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Atomic Energy Commission
Business and Defense Services Administration
Civil Aeronautics Board
Coast Guard
Commodity Credit Corporation
Consumer and Marketing Service
Federal Aviation Administration
Federal Communications Commission
Federal Maritime Commission
Federal Power Commission
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Chapter IX—Consumer and Marketing Service (Marketing Agreements and Orders; Fruits, Vegetables, Nuts), Department of Agriculture

[Nectarine Reg. 1, Amdt. 1]

PART 916—NECTARINES GROWN IN CALIFORNIA

Limitation of Shipments

Findings. (1) Pursuant to the marketing agreement, as amended, and Order No. 916, as amended (7 CFR Part 916), regulating the handling of nectarines grown in the State of California, effective under the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U.S.C. 601–674), and upon the basis of the recommendations of the Nectarine Administrative Committee, established under the aforesaid amended marketing agreement and order, and upon other available information, it is hereby found that the limitation of shipments of nectarines, in the manner herein provided, will tend to effectuate the declared policy of the act.

(2) It is hereby further found that it is impracticable, unnecessary, and contrary to the public interest to give preliminary notice, engage in public rulemaking procedure, and postpone the effective date of this amendment until 30 days after publication thereof in the FEDERAL REGISTER (5 U.S.C. 553) in that the time intervening between the date when information upon which this amendment is based became available and the time when this amendment must become effective in order to effectuate the declared policy of the act is insufficient; and this amendment relieves restrictions on the handling of nectarines grown in California.

a. *Order.* It is, therefore, ordered that the provisions of paragraph (a)(1) of § 916.329 (Nectarine Regulation 1; 32 F.R. 7911) are hereby amended to read as follows:

§ 916.329 Nectarine Regulation 1.

(a) *Order.* (1) During the period June 23, 1967, through October 31, 1967, no handler shall handle any package or container of any variety of nectarines unless such nectarines grade at least U.S. No. 1: *Provided,* That nectarines 2 inches in diameter or smaller, or 4 x 4 size or smaller, shall not have fairly light colored, fairly smooth scars which exceed the aggregate area of a circle ⅜ inch in diameter, and nectarines larger than 2 inches in diameter, or larger than 4 x 4 size, shall not have fairly light colored, fairly smooth scars which exceed an aggregate area of a circle ½ inch in diameter: *And provided further,* That an additional tolerance of 20 percent shall be permitted for fruit that is not well formed but not badly misshapen.

* * * * *

b. The provisions of this amendment shall become effective June 23, 1967.

(Secs. 1–19, 48 Stat. 31, as amended; 7 U.S.C. 601–674)

Dated: June 23, 1967.

PAUL A. NICHOLSON,
Deputy Director, Fruit and Vegetable Division, Consumer and Marketing Service.

[F.R. Doc. 67-7355; Filed, June 28, 1967; 8:46 a.m.]

Chapter XIV—Commodity Credit Corporation, Department of Agriculture

SUBCHAPTER B—LOANS, PURCHASES, AND OTHER OPERATIONS

PART 1427—COTTON

Subpart—1967-Crop Supplement to Cotton Loan Program Regulations

Correction

In F.R. Doc. 67-5422, appearing at page 7386 of the issue for Thursday, May 18, 1967, in § 1427.1511, the rate entry for Osceola, Mississippi County, Ark., should read "20.35" instead of "10.35".

Title 10—ATOMIC ENERGY

Chapter I—Atomic Energy Commission

PART 36—EXPORT AND IMPORT OF BYPRODUCT MATERIAL

Certain Schedule A Countries and Poland and Rumania

The Atomic Energy Commission has amended its regulations, "Export and Import of Byproduct Material," 10 CFR Part 36, by the addition of a new § 36.24, to issue a general license to AEC licensees and agreement State[1] licensees for the export of (1) byproduct material having an atomic number from 3 to 83, inclusive, in labeled organic or inorganic compounds in quantities not to exceed one curie per shipment to certain destinations listed in § 36.50, Schedule A, and (2) tritium with a specific activity of not more than 10 curies per gram of hydrogen in quantities not to exceed 10 curies per shipment in labeled organic compounds to certain destinations listed in § 36.50, Schedule A, and Poland and Rumania. Section 36.21 provides a general license for export of byproduct material having an atomic number from 3 to 83, inclusive, to Poland and Rumania. These compounds are used in physical, biological, biochemical, and life science research.

Because the amendment involves the foreign affairs functions of the United States, the Commission has found that notice of proposed rule making and public procedure thereon are contrary to the public interest and that good cause exists why the amendment should be made effective upon publication in the FEDERAL REGISTER without the customary 30-day notice.

Accordingly, pursuant to the Administrative Procedure Act of 1946, as amended, and the Atomic Energy Act of 1954, as amended, the following amendment of Part 36, Title 10, Chapter I, Code of Federal Regulations, is published as a document subject to codification to be effective upon publication in the FEDERAL REGISTER.

A new § 36.24 is added to read as follows:

§ 36.24 Export of certain byproduct material to certain Schedule A countries and Poland and Rumania.

(a) A general license designated AEC-GL-3624a is hereby issued authorizing any licensee of the Commission or of an agreement State to export from the United States byproduct material covered by his license having an atomic number from 3 to 83, inclusive, in labeled organic or inorganic compounds in quantities not to exceed one curie per shipment, to any foreign country or destination listed in § 36.50, Schedule A, except East Germany (Soviet Zone of Germany and the Soviet Sector of Berlin); China, including Manchuria (and excluding Taiwan (Formosa)) (includes Inner Mongolia; and provinces of Tsinghai and Sikang; Sinkiang; Tibet; the former Kwantung Leased Territory; the present Port Arthur Naval Base Area and Liaoning Province); North Korea; Communist-controlled area of Viet-Nam; and Cuba.

(b) A general license designated AEC-GL-3624b is hereby issued authorizing any licensee of the Commission or of an agreement State to export from the United States tritium covered by his license with a specific activity of not more than 10 curies per gram of hydrogen in labeled organic compounds, to Rumania and Poland and to any foreign country or destination listed in § 36.50, Schedule A, except East Germany (Soviet Zone of Germany and the Soviet Sector of Berlin); China, including Manchuria (and excluding Taiwan (Formosa)) (includes Inner Mongolia; the provinces of Tsinghai and Sikang; Sinkiang; Tibet; the former Kwantung Leased Territory; the present Port Arthur Naval Base Area and Liaoning Province); North Korea; Communist-controlled area of Viet Nam; and Cuba. No single shipment of tritium in labeled

[1] A State to which the Commission has transferred certain regulatory authority over radioactive material by formal agreement, pursuant to Section 274 of the Atomic Energy Act of 1954, as amended.

organic compounds exported pursuant to the general license of this paragraph shall exceed 10 curies.

(c) A person exporting byproduct material pursuant to paragraphs (a) and (b) of this section shall file with the Collector of Customs, or the Postmaster, one copy, in addition to those which may otherwise be required, of the Shipper's Export Declaration, covering each export, marked for transmittal to the Director, Division of State and Licensee Relations, U.S. Atomic Energy Commission, Washington, D.C. 20545. In addition to such other information as may be required, the following information shall be included in the Shipper's Export Declaration: Identification of the byproduct material; the quantity in curies; and the chemical compound.

(Sec. 161, 63 Stat. 948; 42 U.S.C. 2201. Interpret or apply secs. 81, 83, 68 Stat. 935; 42 U.S.C. 2111, 2112)

Dated at Germantown, Md., this 15th day of June 1967.

For the Atomic Energy Commission.

W. B. McCool,
Secretary.

[F.R. Doc. 67-7330; Filed, June 28, 1967; 8:45 a.m.]

AVAILABILITY TO THE PUBLIC OF AEC INFORMATION AND RECORDS

The Atomic Energy Commission (AEC) has adopted amendments of 10 CFR Part 1, Statement of Organization, Delegations, and General Information; 10 CFR Part 2, Rules of Practice; 10 CFR Part 9, Public Records, which are designed to effectuate the provisions of Title 5, United States Code, section 552 (Public Law 90-23, 5 U.S.C. sec. 552) relating to the availability to the public of information regarding AEC rules, opinions, orders, records and proceedings.

A new § 1.7 is added to Part 1 which, for the guidance of the public, states where a description of the central and field organization of the AEC may be found; provides information as to the general course and method by which the functions of the AEC are channeled and determined; specifies where AEC rules of procedure and descriptions of forms may be obtained; and specifies where substantive rules of general applicability and statements of general policy may be found.

A new § 1.8 is added to Part 1 which identifies Part 9 as the source of AEC rules governing the availability of its public records.

Paragraph (a)(17) of § 1.16 of Part 1 identifies more specifically the function of the Office of the Secretary with respect to the availability to the public of AEC records.

Paragraph (a) of § 2.790 of Part 2 is amended to identify a class of AEC records which is to be specifically available to the public for inspection. These records consist of correspondence between the AEC and others regarding certain aspects of the AEC regulatory program. The only exceptions involve records which may be withheld from public inspection pursuant to § 2.790(b) and § 9.5 (a) of Part 9.

Paragraph (b) of § 2.790 of Part 2 has been amended to provide that certain records may, upon application, be withheld from public disclosure if the Commission finds that withholding such records is not contrary to the provisions of Part 9 and the request meets the present standards for the withholding of such records.

A corrective amendment of § 3.10(a)(3) of Part 3 has been made to conform the reference to Part 9 to the correct section of the amended part.

Part 9 has been revised as a whole to provide detailed implementation of 5 U.S.C. section 552. It provides information as to the availability to the public of AEC records. As stated in § 9.1, Part 9 is not intended to limit the distribution of information by the AEC through its public and technical information programs, nor the transmission of information between the AEC and its contractors or Government agencies.

Section 9.2 includes pertinent definitions including a definition of "Record." Section 9.3 identifies § 1.7 of Part 1 as the source for certain information on the organization, functions, procedures and rules of the AEC.

Amended § 9.4 states that any identifiable record in the possession of the AEC will be made available upon request to any member of the public. AEC records which are exempt from disclosure pursuant to 5 U.S.C. section 552 are identified in § 9.5(a). Certain of these identified exemptions are followed by examples illustrative of the types of records which are considered to be covered by the exemption.

Section 9.6 provides for the deletion of identifying details in an AEC opinion, order, or other records required by law to be made available if the release of such information amounts to a clearly unwarranted invasion of personal privacy.

Section 9.7 provides information as to where certain records of the AEC may be inspected. Section 9.8 identifies the location where copies of AEC records may be obtained and specifies the procedure to be followed by a member of the public in requesting a copy of an AEC record.

The provisions of § 9.9 establish the charges to be assessed by the AEC for searching for, and providing copies of, records.

Section 9.10 provides a procedure whereby AEC records exempt from disclosure pursuant to § 9.5(a) may be made available to a person if requested or subpoenaed. This section also provides that the General Manager or the Director of Regulation will make the final AEC determination as to whether or not an exempt record may be disclosed to a person requesting the disclosure of such a record. Paragraph (f) of § 9.10 provides for a separate procedure for the disclosure of exempt records in proceedings of the AEC Board of Contract Appeals. Under this procedure an exempt record requested by a party to a proceeding will be furnished to the Board for determination as to whether it is material and relevant to the proceeding, unless the General Manager determines that the disclosure of the record is contrary to the public interest.

Because these rules relate solely to agency organization and practice and procedure, the Commission has found that notice of proposed rule making and public procedures thereon are unnecessary and good cause exists to make the amendments effective on July 4, 1967.

Since these amendments are designed to provide information and guidance to members of the public regarding the availability of AEC records, the Commission invites all interested persons who desire to submit written comments or suggestions regarding these amendments to send them to the Secretary, U.S. Atomic Energy Commission, Washington, D.C. 20545, within ninety (90) days after the effective date of these amendments. Consideration will be given such submission with the view to possible further amendments of the regulations. Copies of comments received may be examined at the Commission's Public Document Room, 1717 H Street NW., Washington, D.C. 20545.

Pursuant to the Atomic Energy Act of 1954, as amended, and the Administrative Procedure Act of 1946, as amended, the following amendments of 10 CFR Parts 1, 2, 3, and 9 are published as a document subject to codification to be effective on July 4, 1967.

PART 1—STATEMENT OF ORGANIZATION, DELEGATIONS, AND GENERAL INFORMATION

1. A new § 1.7 is added to 10 CFR Part 1 to read as follows:

§ 1.7 Description of organization, functions, procedure, and substantive rules.

(a) A description of the central and field organization of the Atomic Energy Commission and the established places at which, the employees from whom, and the methods whereby, the public may secure information, make submittals or requests, or obtain decisions, may be found in this part and in other parts of this chapter as supplemented by the Atomic Energy Commission Manual. The Atomic Energy Commission Manual is the principal means by which the Commission publishes policy, assigns responsibility, delegates authority, establishes procedures and standards, and provides guidance to its staff, including material not required by law to be published in the Federal Register. The provisions of the Manual are supplemented by local directives issued by Headquarters, operations offices, and area offices of the Atomic Energy Commission. These directives include instructions and guidance dealing with local matters and are available for inspection at the respective issuing offices. Copies of the Atomic Energy Commission Manual are available for public inspection at the Commission's Public Document Room, 1717

H Street NW., Washington, D.C., and each of the field offices listed in § 1.16 (b). Where no other employee or organizational unit is otherwise designated, information may be obtained from the Division of Public Information at Headquarters or from the Public Information Officer at a field office.

(b) Statements of the general course and method by which the functions of the Atomic Energy Commission are channeled and determined, including the nature and requirements of all formal and informal procedures available, may also be found in the Atomic Energy Commission Manual and in this chapter.

(c) Rules of procedure, descriptions of forms available or the places at which forms may be obtained, and instructions as to the scope and content of all papers, reports, or examinations may be found in the Atomic Energy Commission Manual and in this chapter.

(d) Substantive rules of general applicability adopted as authorized by law, and statements of general policy or interpretations of general applicability formulated and adopted by the agency, may be found in this chapter and in the notices collated under the heading "Miscellaneous Notices" and published with this chapter in the official document entitled "U.S. Atomic Energy Commission Rules and Regulations," obtainable from the Superintendent of Documents, U.S. Government Printing Office, Washington, D.C. 20402. Procurement by the Atomic Energy Commission is conducted pursuant to the Atomic Energy Commission Procurement Regulations published in Title 41, Chapter 9, Code of Federal Regulations, as supplemented by pertinent provisions of the Atomic Energy Commission Manual.

(e) Amendment, revision, or repeal of material described in paragraphs (a) through (e) of this section is made available to the public by amendment of this chapter or of the other sources mentioned in this section, as appropriate.

2. A new § 1.8 is added to 10 CFR Part 1 to read as follows:

§ 1.8 Availability of public records.

Part 9 of this chapter prescribes the rules governing availability of the Atomic Energy Commission's public records.

3. Paragraph (a)(17) of § 1.16 of 10 CFR Part 1 is amended to read as follows:

§ 1.16 Office of the Secretary.

(a) * * *

(17) Administers the Commission's Public Document Room, receives and responds to all written and oral requests for the inspection or copying of identified AEC public records, and maintains a current index for public inspection or copying of all final orders, opinions, statements of policy, interpretations, staff manuals or instructions of the AEC which affect any member of the public; and * * *

* * * * *

PART 2—RULES OF PRACTICE

4. Paragraphs (a) and (b) of § 2.790 of 10 CFR Part 2 are amended to read as follows:

§ 2.790 Public inspections, exceptions, requests for withholding.

(a) Except as provided in paragraph (b) of this section, correspondence or portions of correspondence to and from the AEC regarding the issuance, denial, amendment, transfer, renewal, modification, suspension, revocation or violation of a license, permit, or order, or regarding a rule making proceeding subject to this Part 2 shall not be exempt from disclosure and will be made available for inspection and copying in the AEC Public Document Room.

(b) A person who proposes that a document or a part be withheld in whole or in part from public disclosure shall at the time of filing it submit an application for withholding or make timely application thereafter identifying the document or part, and stating reasons why it should be withheld. He shall, as far as possible, incorporate in a separate paper any part sought to be withheld. The Commission may withhold any document or part from public inspection if disclosure of its contents is not required pursuant to Part 9 of this chapter, is not required in the public interest and would adversely affect the interest of a person concerned. Withholding from public inspection shall not, however, affect the right, if any, of persons properly and directly concerned to inspect the document. If the applicant fails to comply with the requirements of this paragraph, the Commission will inform him that it intends to deny his application unless he complies with those requirements within the time stated in the notice.

* * * * *

PART 3—RULES OF PROCEDURE IN CONTRACT APPEALS

§ 3.10 [Amended]

5. Paragraph (a)(3) of § 3.10 of 10 CFR Part 3 is amended by substituting "§ 9.5(a) of this chapter" for "10 CFR 9.4."

PART 9—PUBLIC RECORDS

6. The present Part 9 of 10 CFR is deleted and a new Part 9 is substituted to read as follows:

Sec.
9.1 Scope.
9.2 Definitions.
9.3 Statement of organization, functions, procedure, and substantive rules.
9.4 Availability of records.
9.5 Exemptions.
9.6 Deletion of identifying details.
9.7 Inspection of records.
9.8 Copies of records.
9.9 Charges for locating and reproducing copies of records.
9.10 Production or disclosure of exempt records.

AUTHORITY: The provisions of this Part 9 issued under 81 Stat. 54; 5 U.S.C. 552; sec. 161, 68 Stat. 948; 42 U.S.C. 2201.

§ 9.1 Scope.

This part implements the provisions of 5 U.S.C. section 552, with respect to the availability to the public of the Atomic Energy Commission's records for inspection and copying. This part does not limit the distribution of information by the AEC as part of its public and technical information programs, nor the transmission of information between the AEC and its contractors or Government agencies.

§ 9.2 Definitions.

As used in this part:

(a) "AEC" means the agency established by the Atomic Energy Act of 1954, as amended.

(b) "AEC personnel" means employees, consultants, and members of advisory boards, committees and panels of the AEC; members of boards designated by the Commission to preside at adjudicatory proceedings; and officers or employees of Government agencies, including military personnel, assigned to duty at the AEC.

(c) "Commission" means the commission of five members or a quorum thereof sitting as a body, as provided by section 21 of the Atomic Energy Act of 1954, as amended.

(d) "Government agency" means any executive department, commission, independent establishment, corporation wholly or partly owned by the United States of America which is an instrumentality of the United States, or any board, bureau, division, service, office, officer, authority, administration, or other establishment in the executive branch of the U.S. Government.

(e) "Record" means any book, paper, map, photograph, brochure, punch card, magnetic tape, paper tape, sound recording, pamphlet, slide, motion picture, or other documentary material, regardless of physical form or characteristics, made or received by the AEC pursuant to Federal law or in connection with the transaction of public business and preserved by the AEC as evidence of its organization, functions, policies, decisions, procedures, operations, programs, or other activities. "Records" do not include objects or articles such as structures, furniture, tangible exhibits or models, or vehicles or equipment.

§ 9.3 Statement of organization, functions, procedure, and substantive rules.

As required by 5 U.S.C. section 552, a statement as to the sources of information concerning the following subjects may be found in § 1.7 of this chapter: (a) A description of the central and field organization of the AEC and the established places at which, the officers from whom, and the methods whereby, the public may secure information, make submittals or requests, or obtain decisions; (b) statements of the general course and method by which the AEC functions are channeled and determined, including the nature and requirements of all formal and informal procedures available; (c) AEC rules of procedure,

descriptions of forms available or the places at which forms may be obtained, and instructions as to the scope and contents of all papers, reports, or examinations; (d) AEC substantive rules of general applicability adopted as authority by law, and statements of general policy or interpretations of general applicability formulated and adopted by AEC; and (e) every amendment, revision, or repeal of the foregoing.

§ 9.4 Availability of records.

Any identifiable record which is in the possession of the AEC shall be made available upon request of any member of the public.

§ 9.5 Exemptions.

(a) The following types of records are exempt from public disclosure under § 9.4:

(1) Records specifically required by Executive order to be kept secret in the interest of national defense or foreign policy.

(2) Records related solely to the internal personnel rules and practices of the AEC. This exemption does not apply to rules relating to the work hours, leave, and working conditions of AEC personnel, or similar matters. To the extent that they cannot be disclosed without harm to the functions to which they pertain, examples of exempt records of the type specified in the first sentence of this paragraph include, but are not limited to:

(i) Operating rules, guidelines, manuals on internal procedure, schedules and methods utilized by AEC inspectors, investigators, auditors, and examiners;

(ii) Negotiating techniques and positions, including the fixed-fee policies of the AEC;

(iii) Bargaining positions and limitations;

(iv) Personnel policies, procedures and instructions; internal staffing plans, requirements, authorizations, controls, and supporting data relating to position management and manpower utilization; and information involved in the determination of the qualifications of candidates for employment or advancement.

(3) Records specifically exempted from disclosure by statute.

(4) Trade secrets and commercial or financial information obtained from a person and privileged or confidential. Such information, to the extent that it is customarily confidential, includes, but is not limited to:

(i) Information received in confidence, such as trade secrets, inventions and discoveries, and proprietary data;

(ii) Technical reports and data, designs, drawings, specifications, formulae, or other types of proprietary information which are generated or developed by the AEC or for the AEC under contract;

(iii) Statistical data or information concerning contract performance, income, profits, losses, and expenditures, if received in confidence from a contractor or potential contractor;

(iv) Information withheld pursuant to § 2.790 of this chapter.

(5) Interagency or intraagency memorandums or letters which would not be available by law to a private party in litigation with the AEC. To the extent not so available by law, examples include, but are not limited to:

(i) Reports, memorandums, letters, correspondence, work papers, minutes of meetings, and staff papers prepared for use within the AEC or within the Executive Branch of the Government by (*a*) members of the Commission, AEC personnel, or any Government agency, or (*b*) an AEC contractor, or its personnel acting within the scope of a contract with the AEC;

(ii) Advance information on proposed AEC plans to procure, lease or otherwise acquire or dispose of materials, real estate, facilities, or functions, when such information would provide undue or unfair competitive advantage to any person;

(iii) Records prepared for use in proceedings before any Federal or State court or administrative body;

(iv) Evaluations of contractors or products;

(v) Information scheduled for public release, but as to which premature release would be contrary to the public interest;

(vi) Reports of inspections or investigations or surveys which pertain to the internal management or administration of the AEC;

(vii) Financial accounts and records and supporting documents; budget documents and supporting papers used or arising in the preparation and/or execution of a budget; annual and multiyear program and financial plans and supporting papers; audit reports, programs, work papers, and other data developed during the course of audits.

(6) Personnel and medical files and similar files the disclosure of which would constitute a clearly unwarranted invasion of personal privacy. Information in such files, which is not exempt from disclosure pursuant to other provisions of this § 9.5, will not be withheld from the individual concerned or from his designated legal representative, and it may be disclosed to others with his written consent. To the extent that they involve a clearly unwarranted invasion of personal privacy, examples of files exempt from disclosure include, but are not limited to:

(i) Files containing the names of individuals who have received exposure to radiation;

(ii) Files containing reports, records and other material pertaining to individual cases in which disciplinary or other administrative action has been or may be taken, including records of proceedings pertaining to the conduct or performance of duties by AEC personnel. Opinions and orders resulting from those proceedings shall be disclosed without identifying details if used, cited or relied upon as precedent, as provided in § 9.6.

(7) Except to the extent available by law to a private party, investigatory files compiled for law enforcement purposes, including without limitation the enforcement of statutes, regulations, terms of licenses, and orders.

(8) Matters contained in or related to examination, operating, or condition reports prepared by, on behalf of, or for the use of any Government agency responsible for the regulation or supervision of financial institutions.

(9) Geological and geophysical information and data (including maps) concerning wells.

(10) Records belonging to another Government agency or dealing with subject matter as to which a Government agency, other than the AEC, has exclusive or primary responsibility. Requests for such records shall be promptly forwarded to the appropriate Government agency.

(b) Nothing in this part authorizes withholding of information or limiting the availability of records to the public, except as specifically provided in this part, nor is this part authority to withhold information from Congress.

§ 9.6 Deletion of identifying details.

Whenever the release of the name or names or other identifying details of, or relating to, a private party or parties will constitute a clearly unwarranted invasion of personal privacy, an opinion, order, or other record required to be made available pursuant to 5 U.S.C. section 552 will be published or made available with such identifying details deleted and with a notification such as the following as a preamble:

> Names of parties and certain other identifying details have been removed in order to prevent a clearly unwarranted invasion of the personal privacy of the individuals involved.

§ 9.7 Inspection of records.

(a) The AEC Public Document Room at 1717 H Street NW., Washington, D.C., is the place where the following records will be made available for public inspection and copying:

(1) Atomic Energy Commission rules and regulations;

(2) All final opinions (including concurring and dissenting opinions) and all orders made in the adjudication of cases;

(3) Statements of policy and interpretations which have been adopted by the AEC and are not published in the FEDERAL REGISTER;

(4) Atomic Energy Commission Manual and instructions to AEC personnel that affect any member of the public;

(5) A record of the final vote of each member in every Commission proceeding;

(6) A current index of the foregoing records issued, adopted or promulgated after July 4, 1967.

(b) The Public Document Room will be open between 8:30 a.m. and 5:15 p.m. on Mondays through Fridays.

§ 9.8 Copies of records.

(a) Copies of records may be requested at the Public Document Room or at any one of the major field offices of the AEC identified in § 1.6(b) of this chapter.

(b) If the requested records are not available at the Public Document Room

or at the major field office where the request is made, a request shall be addressed in writing to the Secretary, U.S. Atomic Energy Commission, Washington, D.C. 20545.

(c) A request shall identify the record sought by a brief description containing the name, number, or date, as applicable, in sufficient detail to permit the identification and location of the record.

(d) If the description of the record requested does not permit its identification, the Secretary shall so inform the person making the request.

(e) If the record requested is exempt from disclosure pursuant to § 9.5(a), the Secretary shall follow the procedure specified in § 9.10(b).

(f) If the record has been adequately identified and can be made available, the Secretary shall notify the person making the request as to when it is anticipated that the record will be available and of the estimated cost of conducting the search for the record and making the requested copies.

§ 9.9 Charges for locating and reproducing copies of records.

(a) A self-service, coin-operated office copying machine, located in the Reading Room adjacent to the Public Document Room, is available for the reproduction of records up to 8½ x 14 inches in size at a charge of $0.25 per page copy. In addition, there is available at the Public Document Room, for a charge of $0.50 per hour of use or any fraction thereof, a self-service copying machine for the use of those persons who choose to provide their own paper for the reproduction of records. Where such copying machines are available for public use in major AEC field offices, the same charge will be made.

(b) For copies of records to be made and furnished by the AEC, the following reproduction charges will be made:

(1) Sizes up to 8½ x 14 inches made on office copying machines—$0.25 per page copy.

(2) Sizes larger than 8½ x 14 inches made on office copying machines—$0.25 for each 8½ x 14 inch unit or fraction thereof per page copy.

(3) Photostat copies—$0.40 each up to 9 x 12 inches. Copies larger than 9 x 12 inches, $0.40 for each 9 x 12 inch unit or fraction thereof.

(4) The charge for reproducing other records will be computed on the AEC full-cost recovery basis.

(5) The minimum charge for copies of requested records made and furnished by the AEC will be $1 per order.

(c) In the event a search is required to locate a requested record, the following search charges will be made:

(1) By clerical personnel, $5 per person per hour; fractional parts of an hour shall be charged on a pro rata basis.

(2) By professional personnel at an actual hourly charge to be established prior to search; fractional parts of an hour shall be charged on a pro rata basis.

(3) The minimum charge for a record search will be $2.50.

(d) A deposit equal to the estimated cost of searching for and reproducing the number of requested copies will be required to be paid in advance by any person requesting copies of records from the Secretary. Refunds of unused deposits or additional billings will be made to adjust the charge to the actual cost.

(e) Transcripts of testimony in AEC adjudicatory proceedings, which are transcribed by a reporting firm under contract with the AEC, shall be purchased directly from the reporting firm at charges established under the contract.

(f) No charge will be made for:

(1) Locating requested records which are on file in the Public Document Room or in a comparable facility at a major field office;

(2) A record search for a requested record or for furnishing copies of AEC records if it is determined by the AEC to be appropriate in the interest of its program.

§ 9.10 Production or disclosure of exempt records.

(a) Records of the kind specified in § 9.5(a) shall not be produced or disclosed by AEC personnel, or AEC contractors who may have possession of such records, except in accordance with this section.

(b) AEC personnel or AEC contractors from whom a record exempt from disclosure is sought shall follow the procedure specified below:

(1) If an exempt record is sought from a major field office, the request or the subpoena shall promptly be forwarded to the Manager of the field office involved, who in turn, after consultation with his Chief Counsel, shall forward copies of the request or subpoena to the General Manager and to the General Counsel with an appropriate recommendation for disposition.

(2) If an exempt record is sought from an AEC contractor, the request or subpoena shall promptly be forwarded to the AEC contracting officer administering the contract who will then follow the procedure specified in subparagraph (1) or (3) of this paragraph (b) as appropriate.

(3) If an exempt record is sought at any other place, the request or subpoena shall promptly be forwarded to the General Manager or to the Director of Regulation, as appropriate, with a copy to the General Counsel.

(c) If, after consultation with the General Counsel, the General Manager, or the Director of Regulation finds that the record sought is not exempt from production or disclosure, or, if the record is exempt, that its production or disclosure is not contrary to the public interest and will not adversely affect the rights of any person, the General Manager or the Director of Regulation will authorize the production or disclosure of the record to the person who sought it. If, after consultation with the General Counsel, the General Manager, or the Director of Regulation finds that the record sought is exempt from production or disclosure pursuant to § 9.5(a) and its production or disclosure would be contrary to the public interest, the General Manager or the Director of Regulation shall so notify the person who sought the record. If the request for an exempt record is received from any State or political subdivision thereof, the General Manager or the Director of Regulation, after consultation with the General Counsel, may, upon a finding that the disclosure of the record is not contrary to the public interest, produce or disclose the record. Authority of the Director of Regulation to authorize production or disclosure of a record shall extend to records in the custody of divisions which report to him pursuant to Part 1 of this chapter, and the authority of the General Manager to authorize production or disclosure of a record shall extend to all other divisions, offices, and activities of the AEC.

(d) Decisions of the General Manager or the Director of Regulation with respect to requests or subpoenas for records exempt from disclosure or production shall be in writing and shall constitute the final action of the AEC.

(e) AEC personnel, or AEC contractors who are required by a subpoena to produce or disclose a record of the types included in § 9.5(a) shall appear in response thereto and shall respectfully decline to produce or disclose the record described, basing refusal on this paragraph, unless production or disclosure has been authorized pursuant to this § 9.10.

(f) Records of the types included in § 9.5(a), except for those included in subparagraphs (1) and (3) of § 9.5(a), which are requested by a party to a proceeding conducted pursuant to Part 3 of this chapter shall be furnished to the Board of Contract Appeals panel established to preside at the proceeding and shall be reviewed by the panel to determine whether such records are material and relevant to the proceeding. If the panel determines that the requested records are material and relevant to the proceeding, it may authorize the disclosure of the records unless the General Manager determines that the disclosure of the records will be contrary to the public interest. Records produced pursuant to this paragraph (f) shall be used (1) only by the panel and the parties to the proceeding, and (2) only for the purpose of the proceeding; and shall not become a part of the public record of the proceeding.

(Sec. 161, 68 Stat. 948; 42 U.S.C. 2201)

Dated at Washington, D.C., this 23d day of June 1967.

For the Atomic Energy Commission.

W. B. McCool,
Secretary.

[F.R. Doc. 67-7388; Filed, June 28, 1967; 8:48 a.m.]

Title 13—BUSINESS CREDIT AND ASSISTANCE

Chapter I—Small Business Administration

[Rev. 7, Amdt. 3]

PART 121—SMALL BUSINESS SIZE STANDARDS

Interpretations

Section 121.3–4 of Part 121 of Chapter I of Title 13 of the Code of Federal Regulations is hereby amended by adding paragraphs (c) and (d) as follows:

§ 121.3–14 Interpretations.

* * * * *

(c) *Section 121.3–2(a) of Part 121 "Affiliates"*—(1) *Nature of control.* Every business concern is considered as having one or more parties who directly or indirectly control or have the power to control it. Control may be affirmative or negative and it is immaterial whether it is exercised so long as the power to control exists.

Example. A party owning 50 percent of the voting stock of a concern would have negative power to control such concern since he can block any action of the other stockholders. Also, the bylaws of a corporation may be drawn up in such a manner which would permit a stockholder with less than 50 percent of the voting stock to block any actions taken by the other stockholders. Affiliation exists when one or more parties have the power to control a concern while at the same time another party, or other parties, may be in control of the concern at the will of the party or parties with the power to control.

(2) *Meaning of "party or parties."* The term "party or parties" includes, but is not limited to, two or more persons with an identity of interest such as members of the same family or persons with common investments in more than one concern. In determining who controls or has the power to control a concern, persons with an identity of interest may be treated as though they were one person.

(3) *Control through stock ownership.* (i) A party is considered to control or have the power to control a concern if he controls or has the power to control 50 percent or more of its voting stock.

(ii) A party is considered to control or have the power to control a concern if he controls or has the power to control less than 50 percent of its voting stock, but such block of stock is large as compared with any other block outstanding. If two or more parties each control or have the power to control equal or substantially equal blocks of stock, and such blocks are large as compared with any other blocks of stock outstanding, each of such parties is considered as having the power to control such concern.

(iii) If a concern's voting stock is distributed other than as described above, its management (officers and directors) is deemed to be in control of such concern.

Example. In a corporation where the officers and directors owned various size blocks of stock totaling 40 percent of a concern's voting stock but no officer or director has a block sufficient to give him control or the power to control and the remaining 60 percent is widely distributed with no individual stockholder having a stock interest greater than 10 percent, management has the power to control.

(4) *Stock options, convertible debentures, and agreements to merge.* Stock options and convertible debentures exercisable at the time of, or within a relatively short time after, a size determination, and agreements to merge in the future, are considered as having a present effect on the power to control the concern. Therefore, in making a size determination, such options, debentures, and agreements are treated as though the rights held thereunder had been exercised prior to the date of the determination.

Example. If, on the date of the determination, Company "A" holds an option to purchase a controlling interest in Company "B" and such option can be exercised at any time by Company "A," the situation is treated as though Company "A" had exercised i s rights and had become owner of a controlling interest in Company "B" prior to the determination. Further, if, as of the date of a determination, Company "A" has entered into an agreement to merge with Company "B" in the future, the situation is treated as though the merger had taken place prior to the date of the determination.

(5) *Voting trusts.* If the purpose of a voting trust or similar agreement is to separate voting power from beneficial ownership of voting stock, for the purpose of shifting control of, or the power to control a concern, in order that such concern or another concern may qualify as a small business within the size regulation, such voting trust shall not be considered valid for this purpose, regardless of whether the trust is or is not valid within the appropriate jurisdiction. However, if a voting trust is entered into for a legitimate purpose other than that described above, and it is a valid trust within the appropriate jurisdiction, it may be considered valid for the purpose of a size determination, provided such consideration is determined to be in the best interest of the small business program.

(6) *Control through common management.* A concern is considered as controlling or having the power to control another concern when one or more of the following circumstances are found to exist, and it is reasonable to conclude that, under the circumstances, such concern is directing or influencing, or has the power to direct or influence the operation of such other concern.

(i) *Interlocking management.* Officers, directors, employees, or principal stockholders of one concern serve as a working majority of the board of directors or officers of another concern.

(ii) *Common facilities.* One concern shares common office space and/or employees and/or other facilities with another concern, particularly where such concerns are in the same or related industry or field of operation, or where such concerns were formerly affiliated.

(iii) *Newly organized concern.* Former officers, directors, principal stockholders and/or key employees of one concern organize a new concern in the same or a related industry or field of operation, and serve as its officers, directors, principal stockholders and/or key employees, and one concern is furnishing or will furnish the other concern with subcontracts, financial or technical assistance, and/or other facilities, whether for a fee or otherwise.

(7) *Control through contractual relationships*—(i) *Definition of a joint venture for size determination purposes.* A joint venture, for size determination purposes, is an association of persons or concerns with interest in any degree or proportion by way of contract, express or implied, consorting to engage in and carry out a single business venture, such as a government contract, for joint profit, for which purpose they combine their efforts, property, money, skill, or knowledge, but without creating a corporation or partnership in the legal or technical sense of the term.

(ii) *Joint ventures — financial assistance.* For the purpose of financial assistance to a joint venture, the parties thereto are considered as controlling or having the power to control each other and are considered as being affiliated. For the purpose of financial assistance to a concern which has requested assistance for its own use, but which is incidentally a party to a joint venture, such concern is not considered as being affiliated with its joint venturer.

(iii) *Joint venture—procurement assistance.* Concerns bidding on a particular procurement as joint venturers are considered as controlling or having the power to control each other with regard to performance of the contract, and therefore are considered as being affiliated. However, a concern which is a party to one or more joint ventures, but which is bidding on a procurement as an individual concern, is not considered as being affiliated with its joint venturers since they have no power to control its performance of the contract being bid on. Where a concern is not considered as being an affiliate of a concern with which it is participating in a joint venture, it is necessary, nevertheless, in computing annual sales or annual receipts, etc., for the purpose of applying size standards to include such concern's share of the joint venture sales or receipts (as distinguished from its share of the profits of such venture).

(iv) *Franchise and license agreements.* If a concern operates or is to operate under a franchise (or a license) agreement, the following policy is applicable: In determining whether the franchisor controls or has the power to control and, therefore, is affiliated with the franchisee, the restraints imposed on a franchisee by its franchise agreement shall not be considered provided that the franchisee has the right to profit from its effort and the risk of loss or failure, commensurate with ownership. Even though a franchisee may not be controlled by the franchisor by virtue of the

contractual relationship between them, the franchisee may be controlled by the franchisor or others through common ownership or common management, in which case they would be considered as affiliated.

(d) *Section 121.3-8 of Part 121 "Definition of small business for Government procurement"*—(1) *Sawmills.* For the purpose of a size determination, a sawmill is considered as the manufacturer of treated lumber, even if it contracts out the treatment of the lumber. Therefore, a small business sawmill can deliver in the performance of a set-aside procurement lumber which has been treated by a concern which does not qualify as a small business concern.

(2) *Oxygen converters.* For the purpose of a size determination, a concern which converts liquid oxygen to gaseous oxygen with or without additives, is a nonmanufacturer of the gaseous oxygen and therefore must furnish gaseous oxygen converted from liquid oxygen manufactured by a small business concern.

Effective date. This amendment shall become effective on publication in the FEDERAL REGISTER.

NOTE: In accordance with section 4(a) of the Administrative Procedure Act, notice of, and public procedure on, this amendment to Part 121 of Chapter I of Title 13 of the Code of Federal Regulations, is omitted as it contains only interpretative rules.

Dated: June 23, 1967.

BERNARD L. BOUTIN,
Administrator.

[F.R. Doc. 67-7360; Filed, June 28, 1967; 8:47 a.m.]

Title 14—AERONAUTICS AND SPACE

Chapter I—Federal Aviation Administration, Department of Transportation

[Docket No. 8015; Amdt. 39-439]

PART 39—AIRWORTHINESS DIRECTIVES

Allison-Aero Products Models A6441FN-606, A6441FN-606A Propellers

A proposal to amend Part 39 of the Federal Aviation Regulations to include an airworthiness directive requiring, on or before November 1, 1967, modification of Allison-Aero Products Models A6441FN-606 and A6441FN-606A propellers by the installation of a restrictor in the increase pitch port of each hub island and the replacement of the master gear retention bolts with those having higher strength, was published on May 19, 1967, in the FEDERAL REGISTER (32 F.R. 7460).

Interested persons have been afforded an opportunity to participate in the making of the amendment. Two comments were received. ALPA (Air Line Pilots Association) strongly recommended adoption of the proposed amendment. ATA (Air Transport Association), representing ten member airlines affected by the proposed AD, while generally supporting the agency's proposal, has recommended either that the compliance date be extended 90 days or, as an alternate means, that the compliance date be retained with a proviso for an extension up to 90 days upon application by a Part 121 operator, substantiated by data satisfactory to the FAA. Most of the 10 airline operators involved indicated they could meet the November 1, 1967, compliance date. ATA has made these alternative recommendations because a few of the airlines have expressed their concern whether the manufacturer would be able to provide the technical representatives, test equipment and parts as needed for the modification. Also, some of the airlines have stressed their own manpower problems, scheduling disruptions, and their desire to accomplish the PACE project, as outlined in Allison Commercial Service Letter No. 189, at the same time that the AD is accomplished, as reasons for extending the compliance time. The manufacturer advises that it anticipates no difficulty in making parts available to the airlines and in providing sufficient technical representation and test equipment to accomplish the modification. The agency recognizes that compliance with the AD may place some burden on an individual airline or operator and that concurrent accomplishment of the PACE project is desirable, even though the PACE program goes beyond the mandatory action required by the proposed AD. However, since certain failure combinations of the torque unit components have indicated that the pitch lock system may not be adequate to prevent serious propeller overspeeds and the manufacturer has developed and made available a design modification to take care of these contingencies, the propeller modification proposed in the AD should be accomplished with utmost urgency. An extension of the period for compliance would, therefore, defeat the purpose of the AD and would not be in the public interest. Each carrier that feels it will experience difficulty in complying with the AD by November 1, 1967, should submit individual requests for exemption through FAA channels together with adequate data to justify its request for an extension.

In consideration of the foregoing, and pursuant to the authority delegated to me by the Administrator (31 F.R. 13697), § 39.13 of Part 39 of the Federal Aviation Regulations is amended by adding the following new AD:

ALLISON-AERO PRODUCTS. Applies to Models A6441FN-606 and A6441FN-606A propellers installed on Allison-Convair Model 340/440 airplanes modified in accordance with STC SA 4-1100 or Lockheed Model L-188 series airplanes.

Compliance required as indicated, unless already accomplished.

To prevent serious overspeeds and to make the propeller pitch lock more effective under remote combinations of critical component failures, accomplish the following:

(a) On or before November 1, 1967, install Part No. 6859637 restrictor in the increase pitch port of each hub island, as outlined in Allison Commercial Service Letter CSL 189, Pages 14 and 15, Paragraph C2b(1) (2) (3) and (4), entitled "Hub Assembly—Preparation for Assembly."

(b) On or before November 1, 1967, remove the eight master gear retention bolts and install eight Part No. 6859722 bolts as replacements, as outlined in Allison Commercial Service Letter CSL 189, Page 28, Paragraph C8b(5), entitled "Hub Final Assembly—Install Master Gear Assembly."

This amendment becomes effective July 1, 1967.

(Secs. 313(a), 601, 603, Federal Aviation Act of 1958; 49 U.S.C. 1354(a), 1421, 1423)

Issued in Kansas City, Mo., on June 23, 1967.

EDWARD C. MARSH,
Director, Central Region.

[F.R. Doc. 67-7387; Filed, June 28, 1967; 8:48 a.m.]

[Docket No. 67-SO-50; Amdt. 39-438]

PART 39—AIRWORTHINESS DIRECTIVES

Piper PA-28 and PA-32 Series Airplanes

A proposal to amend Part 39 of the Federal Aviation Regulations to include an airworthiness directive requiring inspection of the main landing gear torque links and replacement as necessary on Piper PA-28 and PA-32 series airplanes was published in the FEDERAL REGISTER, dated May 4, 1967.

Interested persons have been afforded an opportunity to participate in the making of the amendment. No objections were received.

In consideration of the foregoing, and pursuant to the authority delegated to me by the Administrator (25 F.R. 6489), § 39.13 of the Federal Aviation Regulations is amended by adding the following new airworthiness directive:

PIPER. Applies to Piper PA-28 and PA-32 series airplanes equipped with main landing gear torque links which are drilled for lubricator fittings.

Compliance required with the next 25 hours' time in service after the effective date of this AD, unless already accomplished.

To preclude the possibility of failure of the main landing gear torque link, accomplish the following:

(a) Measure the distance from the edge of the bolt hole to the edge of the machined surface on the boss on the small (scissor) end of each of the main landing gear torque links. If this distance is 0.350 inch or less, the link must be replaced, either individually or in pairs, with Piper Part Number 65691-00. When replacing the link, install Piper Kit Number 757 123, which consists of a grease bolt, P/N 65799-00, a brake line clip, P/N 63332-05, a washer, P/N 62833-27, an AN310-C5 nut, P/N 404 122, and an AN381-2-8 cotter pin, P/N 424 060. One kit is required per landing gear.

(b) Inspect to determine the amount of contact on the face of the torque link stops. If the contact of the stops is along the inboard edge only, or outboard edge only, the face must be reworked to insure contact is maintained over the entire width of the bearing surface. This is required to preclude the possibility of side loads on the torque links.

NOTE. Service the landing gear assembly to assure correct fluid content, air pressure

and piston exposure in accordance with the Piper PA-28 or PA-32 Service Manual, as appropriate.

(Piper Service Bulletin No. 248 dated May 12, 1967, covers this same subject.)

This amendment becomes effective July 29, 1967.

(Secs. 313(a), 601, 603, Federal Aviation Act of 1958; 49 U.S.C. 1354(a), 1421, 1423)

Issued in East Point, Ga., on June 19, 1967.

JAMES G. ROGERS,
Director, Southern Region.

[F.R. Doc. 67-7362; Filed, June 28, 1967; 8:47 a.m.]

[Airspace Docket No. 66-WE-52]

PART 71—DESIGNATION OF FEDERAL AIRWAYS, CONTROLLED AIRSPACE, AND REPORTING POINTS

Alteration of Federal Airways

On April 26, 1967, Airspace Docket No. 66-WA-42 was published in the FEDERAL REGISTER (32 F.R. 6434), and in part extended V-500 from Boise to Pocatello, Idaho. This action is effective June 22, 1967. On May 24, 1967, F.R. Doc. No. 67-5744 was published in the FEDERAL REGISTER (32 F.R. 7588) which, in part, redescribed the floor of V-500 from Portland, Oreg., to Boise, Idaho, but inadvertently deleted the portion of the airway from Boise to Pocatello. This action is effective July 20, 1967. Corrective action is taken herein to retain this segment.

Since this amendment is editorial in nature and retains assigned airspace, the Administrator has determined that notice and public procedure thereon is unnecessary and that it may be made effective immediately.

In consideration of the foregoing, F.R. Doc. No. 67-5744 (32 F.R. 7588) Item 1,n, is amended, effective immediately, as hereinafter set forth.

In V-500 "12 AGL Boise, Idaho." is deleted and "12 AGL Boise, Idaho; 21 miles, 12 AGL, 28 miles, 90 MSL, 48 miles, 95 MSL, 25 miles, 75 MSL, 12 AGL Pocatello, Idaho." is substituted therefor.

(Sec. 307(a), Federal Aviation Act of 1958; 49 U.S.C. 1348)

Issued in Washington, D.C., on June 22, 1967.

J. F. BIRON,
Acting Chief, Airspace and Air Traffic Rules Division.

[F.R. Doc. 67-7363; Filed, June 28, 1967; 8:47 a.m.]

[Docket No. 8236; Amdt. 151-19]

PART 151—FEDERAL AID TO AIRPORTS

Critical Date for Applicability of Technical Guidelines; Compliance With Past Agreements

The purpose of this amendment is to specify the date that controls the applicability of the technical guidelines made mandatory by § 151.72 to an airport project, and to clarify § 151.7.

Since technical guidelines must be amended from time to time to keep them current with technological progress and the state of the art, it may happen that a substantial change is made in the standards while a project is pending before the FAA. The sponsor normally makes his basic decision on the technical and economic feasibility of a project on the basis of the technical guidelines in effect when he prepares the request, Form FAA-1623, as required by § 151.21 (a). It therefore appears that, normally, the standards should attach to the project as they are in effect on the date written on the notification to the sponsor of tentative allocation of funds under § 151.21(b), and this amendment so provides.

However, it may happen that an amendment to the technical guidelines becomes effective after that date, and that the public interest would be advanced by applying that amendment to the project. It is therefore provided herein that this may be done by agreement between the sponsor and the Administrator. This amendment also spells out the established interpretation that generally the standards of Subpart C applicable to a project are those in effect when the grant agreement is made. Changes corresponding to this amendment will be made in the FAA forms affected.

Section 151.7(a) provides that Federal-aid Airport grants are made only to sponsors who have met the requirements of any past agreements with the United States, and subparagraph (1) lists some such agreements by way of illustration. Conveyances under Regulation 16 of the War Assets Administration are being added to the list. The present wording of subparagraphs (2) and (3) could be misconstrued as providing procedural safeguards and excuses for noncompliance only in relation to the agreements listed in subparagraph (1). Subparagraphs (2) and (3) are therefore reworded to make them clearly applicable to all agreements covered by paragraph (a), whether listed or not.

Since these amendments relate to public grants and benefits and are clarifying in nature or make the regulation less burdensome to comply with, notice and public procedure thereon are not required and the amendments may be made effective immediately.

These amendments are made under the authority of sections 1-15 and 17-21 of the Federal Airport Act (49 U.S.C. 1101-1114, 1116-1120).

In consideration of the foregoing, Part 151 of the Federal Aviation Regulations (14 CFR Part 151) is amended, effective June 28, 1967.

1. By amending subparagraphs (1) and (2) and the introductory paragraph of subparagraph (3) of § 151.7(a) to read as follows:

§ 151.7 Grant of funds: general policies.

(a) * * *

(1) Agreements with the United States to which this requirement of compliance applies include—

(i) Any grant agreement made under the Federal-Aid Airport Program;

(ii) Any covenant in a conveyance under section 16 of the Federal Airport Act;

(iii) Any covenant in a conveyance of surplus airport property either under section 13(g) of the Surplus Property Act (50 U.S.C. App. 1622(g)) or under Regulation 16 of the War Assets Administration; and

(iv) Any AP-4 agreement made under the terminated Development Landing Areas National Defense Program and the Development Civil Landing Areas Program.

This requirement does not apply to assurances required under section 602 of the Civil Rights Act of 1964 (42 U.S.C. 2000d-1) and § 15.7 of the Federal Aviation Regulations (14 CFR 15.7).

(2) If it appears that a sponsor has failed to comply with a requirement of an agreement with the United States with respect to an airport, the FAA notifies him of this fact and affords him an opportunity to submit materials to refute the allegation of noncompliance or to achieve compliance.

(3) If a project is otherwise eligible under the Federal-Aid Airport Program, a grant may be made to a sponsor who has not complied with an agreement if the sponsor shows—

* * * * *

2. By amending § 151.71 to read as follows:

§ 151.71 Applicability.

(a) This subpart prescribes programing and design and construction standards for projects under the Federal-Aid Airport Program to assure the most efficient use of Program funds and to assure that the most important elements of a national system of airports are provided.

(b) Except for the standards made mandatory by § 151.72(a), the standards prescribed in this subpart that apply to any particular project are those in effect on the date the sponsor accepts the Administrator's offer under § 151.29(c). The standards of § 151.72(a) applicable to a project are those in effect on the date written on the notification of tentative allocation of funds (§ 151.21(b)). Standards that become effective after that date may be applied to the project by agreement between the sponsor and the Administrator.

Issued in Washington, D.C., on June 21, 1967.

WILLIAM F. MCKEE,
Administrator.

[F.R. Doc. 67-7364; Filed, June 28, 1967; 8:47 a.m.]

Chapter II—Civil Aeronautics Board

SUBCHAPTER B—PROCEDURAL REGULATIONS

[NTSB Reg. PR-1; Amdt. 3]

PART 301—RULES OF PRACTICE IN AIR SAFETY PROCEEDINGS

Miscellaneous Amendments

Adopted by the National Transportation Safety Board at its office in Washington, D.C., on the 23d day of June 1967.

Effective April 1, 1967, the Department of Transportation Act, Public Law 89-670, 80 Stat. 931 (hereinafter referred to as the Act), established within the Department of Transportation the National Transportation Safety Board. Under section 6(d) of the Act, there was transferred to the Secretary all functions, powers, and duties of the Civil Aeronautics Board and of the Chairman, members, officers and offices thereof under Titles VI and VII of the Federal Aviation Act of 1958, as amended, with the proviso that said functions, powers, and duties were transferred and should be exercised by the National Transportation Safety Board.

The Act also transferred the Federal Aviation Agency, renamed the Federal Aviation Administration, in its entirety, to the Department of Transportation.

Under Title VI of the Federal Aviation Act of 1958, more specifically sections 602 and 609 thereof, the National Transportation Safety Board in quasi-judicial proceedings reviews on appeal all denials by the Administrator of the Federal Aviation Administration of applications for airman certificates and all orders issued by the Administrator suspending, modifying, amending or revoking air safety certificates issued by the Administrator under Title VI of the Federal Aviation Act of 1958, as amended.

All of the provisions of Part 301 are now under review by the National Transportation Safety Board to determine whether modifications are necessary in the interest of improving such procedures. Pending completion of such review, it has been determined that one major modification should be effected at this time, in addition to minor changes prompted by the substitution of the National Transportation Safety Board and the Federal Aviation Administration for the Civil Aeronautics Board and the Federal Aviation Agency, respectively. The Civil Aeronautics Board, pursuant to Reorganization Plan No. 3 of 1961, 26 F.R. 5989, delegated to its hearing examiners the Board's function of making the agency decision on the substantive and procedural issues remaining for dispute at the close of a hearing in safety certificate cases, except in emergency cases arising under section 609. Review of such decisions was made the subject of discretionary review by the Board.

It is the judgment of the National Transportation Safety Board that review by the Board of such decisions of its examiners should be a matter of right to the holders of safety certificates. It is, therefore, proposed that the discretionary review procedure previously utilized be abandoned and a procedure not unlike that used by the Civil Aeronautics Board prior to 1962, substituted. It is to this end that the major changes effected in Part 301 by this amendment are directed.

In addition, as indicated above, changes required to reflect the substitution of National Transportation Safety Board for Civil Aeronautics Board and Administrator of the Federal Aviation Administration for Administrator of the Federal Aviation Agency are included in this amendment.

The amendment restoring the right of appeal will be applicable to all cases wherein initial decisions of its examiners are issued on or after the effective date of this amendment. All cases in which initial decisions have been issued prior to such date will be handled in accordance with the current provision of 14 CFR 301.45, et seq.

Since this amendment is not a substantive rule and is one of agency procedure, notice and public procedure herein are unnecessary and the amendment may be made effective immediately.

In consideration of the foregoing, the National Transportation Safety Board hereby amends Part 301 of the Procedural Regulations (14 CFR 301) as follows, effective June 29, 1967:

1. Amend the table of contents so that after item 301.41 and before item 301.48 it will read:

REVIEW OF DECISIONS

Sec.
301.45 Notice of appeal.
301.46 Briefs and oral argument.
301.47 Consideration of issues on appeal.

2. Amend § 301.1 so that it reads:

§ 301.1 Definitions.

As used in this part:

"Act" means the Federal Aviation Act of 1958, as amended (49 U.S.C. 1301, et seq.);

"Administrator" means the Administrator of the Federal Aviation Administration;

"Board" means the National Transportation Safety Board;

"Certificate" means any certificate issued by the Administrator under Title VI of the Act;

"Complaint" means a complaint filed by the Administrator for an order of the Board affirming an order of the Administrator which was appealed to the Board pursuant to section 609 of the Act;

"Emergency order" means an order of the Administrator made under section 609 of the Act which recites that an emergency exists and that safety in air commerce or air transportation requires the immediate effectiveness of such order;

"Examiner" means the Board's hearing examiner assigned to the respective case;

"Initial decision" means the examiner's decision on the substantive and procedural issues remaining for disposition at the close of the hearing in a proceeding and an examiner's order granting a motion to dismiss in lieu of answer as provided in §§ 301.19 and 301.27 and terminating the proceeding except that this delegation does not apply in cases where the record is certified to the Board, with or without a recommended decision by the examiner, or to orders partly granting a motion to dismiss and requiring answer to any remaining allegation. This definition does not include the review of rulings by the examiner on interlocutory matters which have been appealed to the Board in accordance with the requirements of § 301.10(f);

"Petition for review" means a petition filed pursuant to section 602(b) of the Act for review of the Administrator's denial of an application for issuance or renewal of an airman certificate;

"Petitioner" means a person who has filed a petition for review of the Administrator's action denying an application for issuance or renewal of an airman certificate, pursuant to section 602(b) of the Act;

"Respondent" means the holder of a certificate, who has appealed to the Board pursuant to section 609 of the Act, from an order of the Administrator amending, modifying, suspending, or revoking such certificate;

Terms defined in the Act are used with the meaning of such definitions.

3. Amend § 301.2 to read:

§ 301.2 Applicability and description of part.

The provisions of this part shall govern all proceedings before the Board upon petition for review of a refusal by the Administrator to issue or renew an airman certificate to an applicant therefor; and upon appeal from any order of the Administrator amending, modifying, suspending, or revoking any certificate. The provisions of Part 263 of this chapter (Civil Aeronautics Board Economic Regulations) are applicable to participation of air carrier associations in proceedings under this part. (See Part 263 of this chapter.)

4. Amend paragraph (a) of § 301.4 to read:

§ 301.4 Filing of documents.

(a) *Filing address, date of filing hours.* Documents required by any section of this part to be filed with the Board shall be filed with the Docket Section of the National Transportation Safety Board, Washington, D.C. 20591. Such documents may be filed by personal delivery or by mail. Unless otherwise specified, documents shall be deemed to be filed on the date on which they are actually received by the Board.

* * * * *

5. Amend paragraph (d) of § 301.5 to read:

§ 301.5 Service of documents.

* * * * *

(d) *Where service may be made.* Service by regular or registered or certified mail shall be made at the address of the person designated in accordance with § 301.4(f) to receive service or, if no such person is designated, at the usual residence or principal place of business of the party or person, or, if not known, at the address last furnished by him to the Federal Aviation Administration, except that an agent designated by an air carrier under section 1005(b) of the Act shall be served only at his office or usual place of residence. Service by mail on the Administrator shall be made at the

office of his designee to receive service, or, if none, at the Federal Aviation Administration, Washington, D.C. 20553. Personal service may be made on any of the persons described in paragraph (c) of this section wherever they may be found, except that an agent designated by an air carrier under section 1005(b) of the Act may be served only at his office or usual place of residence.

* * * * *

6. Amend paragraphs (a) and (a–1) of § 301.10 to read:

§ 301.10 Motions.

(a) *Generally.* An application to the Board or an examiner for an order or ruling not otherwise specifically provided for in this part shall be by motion. After the assignment of an examiner to a proceeding, and before the expiration of the period within which an appeal from the examiner's initial decision may be filed, or the certification of the record to the Board, all motions shall be addressed to the examiner. At all other times motions shall be addressed to the Board. All motions not specifically provided for in any other section of this part shall be made at an appropriate time depending upon the nature thereof and the relief requested therein.

(a–1) *Motions to disqualify Board Member in review proceedings.* If a party wishes to request that a Board Member disqualify himself from participating in the Board decision of a pending case, he shall file a motion, supported by an affidavit setting forth the grounds for such disqualification, within the times hereinafter prescribed. In nonemergency proceedings where an appeal from an examiner's initial decision is filed, such motion shall be filed on or before the date the reply brief is due pursuant to § 301.46(c). In emergency proceedings where a notice of appeal is filed, such motion shall be filed on or before the date the briefs are due pursuant to § 301.50. Failure to file a timely motion shall be deemed a waiver of disqualification. Applications for leave to file an untimely motion seeking disqualification of a Board Member shall be accompanied by an affidavit setting forth in detail why the facts relied upon as grounds for disqualification were not known and could not have been discovered with reasonable diligence within the prescribed time.

* * * * *

7. Amend paragraph (b) of § 301.19 to read:

§ 301.19 Motions to dismiss.

* * * * *

(b) *Appeal of dismissal orders.* Where an examiner grants a motion to dismiss in lieu of answer and terminates the proceeding without hearing, an appeal of such order by the Board may be filed in accordance with procedures for appeal of initial decisions set forth in § 301.45. Where an examiner grants a motion to dismiss in part, objections to such interlocutory order may be raised in an appeal only after the examiner has rendered his initial decision on the remaining issues, unless the examiner consents to an appeal to the Board in accordance with § 301.10(f).

* * * * *

8. Amend paragraph (b) of § 301.27 to read:

§ 301.27 Motions to dismiss.

* * * * *

(b) *Appeal of dismissal orders.* Where an examiner grants a motion to dismiss in lieu of answer and terminates the proceeding without hearing, an appeal of such order by the Board may be filed in accordance with procedures set forth in § 301.45. Where an examiner grants a motion to dismiss in part, objections to such interlocutory order may be raised in an appeal only after the examiner has rendered his initial decision on the remaining issues, unless the examiner consents to an appeal to the Board in accordance with § 301.10(f).

* * * * *

9. Amend § 301.29 to read:

EXAMINERS

§ 301.29 Assignment, duties, powers and delegation of authority to examiners.

(a) *Assignment of examiner.* Upon the filing of a petition for review or appeal, an examiner will be assigned to the case. Thereafter, all motions and procedural requests shall be addressed to the examiner. The examiner's authority in each case will terminate either upon certification of the record in the proceeding to the Board, or upon expiration of the period within which appeals from initial decisions may be filed, or when he shall have withdrawn from the case upon considering himself disqualified.

(b) *Examiner's powers.* Examiners shall have the following powers:

(1) To give notice concerning, and hold, prehearing conferences and hearings;

(2) To administer oaths and affirmations;

(3) To examine witnesses;

(4) To issue subpoenas and to take or cause depositions to be taken;

(5) To rule upon offers of proof and receive evidence;

(6) To regulate the course of the hearings;

(7) To hold conferences, before or during the hearing, for the settlement or simplification of issues by consent of the parties;

(8) To dispose of procedural requests or similar matters;

(9) To make initial decisions.

(c) *Disqualification of examiner.* An examiner shall withdraw from the case if at any time he deems himself disqualified. If, prior to the initial decision in the case, there is filed in good faith an affidavit of personal bias or disqualification with substantiating facts and the examiner does not withdraw, the Board will determine the matter as a part of the record and decision in the case if an appeal of the examiner's initial decision is filed. The Board will not otherwise consider any claim of bias or disqualification. The Board, in its discretion, may order a hearing on a charge of bias or disqualification.

10. Amend § 301.40 to read:

INITIAL DECISION

§ 301.40 Initial decision by examiner.

(a) The examiner may render his initial decision orally at the close of the hearing or he may render such decision in writing at a later date.

(b) The initial decision shall include a statement of findings and conclusions, as well as the reasons or basis therfor, upon all material issues of fact (including the credibility of witnesses where such finding is material), law, or discretion presented on the record and the appropriate sanction or denial thereof.

(c) If the initial decision is in writing, it shall be served upon the parties. At any time before the date for filing appeal has passed, the examiner or the Board may, for good cause shown, extend the time within which to file an appeal to the Board and the examiner may also reopen the case for good cause upon notice to the parties.

11. Amend § 301.41 to read:

§ 301.41 Effect of examiner's initial decision.

If no appeal to the Board from either party nor motion by the Board to review the initial decision is filed within the time allowed, such initial decision shall become final, but shall not be deemed to be such an order as to constitute a precedent binding on the Board. The timely filing of such appeal or motion shall stay the order in the initial decision.

12. Amend § 301.45 to read:

REVIEW OF DECISIONS

§ 301.45 Notice of appeal.

A party may appeal from an examiner's order or from the initial decision by filing with the Board and serving upon the other parties (pursuant to § 301.5) a notice of appeal within 10 days after an oral initial decision or service of a written initial decision. Exceptions are not required. Upon good cause shown, the Board or examiner may extend the time for filing a notice of appeal.

13. Amend § 301.46 to read:

§ 301.46 Briefs and oral argument.

(a) *Appeal briefs.* Each appeal must be perfected within 20 days after a party is advised of an oral initial decision or served with a written initial decision, by the filing with the Board of appellant's brief on appeal. Appeals may be dismissed by the Board, on its own initiative or on motion of the adverse party, when a party who has filed a notice of appeal fails to perfect his appeal by filing a timely brief.

(b) *Waiver of objections.* Each appellant's brief shall set forth in detail the objections to the initial decision, whether such objections be related to alleged errors in the examiner's findings of fact and conclusions, or the proposed order. Each such brief shall further state the reasons for such objections and the relief requested. Any error contained in the initial decision that is not objected to shall be deemed to have been waived.

Where any objection is based upon evidence of record, such objection need not be considered by the Board if specific record citations to the pertinent evidence are not contained in appellant's brief.

(c) *Appellee's reply brief.* Within 15 days after appellant's appeal brief has been served upon him, the appellee may file a brief in reply thereto. No further briefs may be filed except upon specific leave of the Board granted upon a showing of good cause. Where the reply brief relies upon evidence of record, specific citations thereto shall be made in the brief.

(d) *Number of copies.* Nine copies of briefs shall be filed with the Board.

(e) *Oral argument.* Oral argument before the Board will normally not be held in proceedings conducted under this part. However, the Board may permit oral argument when it is specifically requested and a need therefor is shown.

14. Amend § 301.47 to read:

§ 301.47 Consideration of issues on appeal.

In considering issues raised on appeal by the parties which relate to findings of fact or the order of the examiner, the Board will consider only whether:

(a) A finding of a material fact is erroneous;

(b) A necessary legal conclusion is without governing precedent or is a departure from or contrary to law, Board rules, or precedent;

(c) A substantial and important question of law, policy, or discretion is involved, or

(d) A prejudicial procedural error has occurred.

If the Board determines that the examiner erred in any respect or that his order specifying the appropriate sanction or denial thereof should be changed, the Board may make any necessary findings or order in lieu thereof or remand the case for further hearing. The Board, upon its own motion, may raise any issue the resolution of which it deems important to a proper disposition of the proceedings; in such a case a reasonable opportunity shall be afforded to the parties to submit argument thereon.

15. Amend § 301.48 to read:

§ 301.48 Petition for rehearing, reargument, reconsideration, or modification of Board order.

(a) Any party to a proceeding may petition for rehearing, reargument, reconsideration, or modification of a Board order. Initial decisions which have become final because they were not appealed from shall not be deemed Board orders for this purpose. The petition shall be in writing. Nine copies shall be filed with the Board, and it shall be served upon all other parties within 30 days after service of the Board's order. The petition shall state, briefly and specifically, the matters of record alleged to have been erroneously decided, the ground relied upon, and the relief sought. If the petition is based, in whole or in part, on allegations as to the consequences that would result from the Board's order, the basis of such allegations shall be set forth. If the petition is based, in whole or in part, upon new matter, the petition shall set forth such new matter; shall contain affidavits of prospective witnesses, authenticated documents, or both, or any explanation why such substantiation is unavailable; and shall explain why such new matter could not have been discovered, by the exercise of due diligence, prior to the date the case was submitted for decision. Repetitious petitions will not be entertained by the Board.

(b) Replies to petitions filed pursuant to this section shall be filed and served upon petitioner within 10 days after the receipt of the petition.

(c) Upon good cause shown, the Board may extend the time for filing petitions or replies.

(d) The filing of a petition under this section shall operate to stay the effectiveness of the Board's order, unless otherwise ordered by the Board.

16. Amend paragraph (d) of § 301.50 to read:

§ 301.50 Proceedings where the Administrator has made an emergency order.

* * * * *

(d) Parties to the proceeding may appeal from an initial decision by filing with the Board and serving upon the other parties a notice of appeal within two days after service of such initial decision. No exceptions shall be filed, but, within 5 days of the notice of appeal, each party shall file one brief with the Board. Such briefs shall comply with the requirements of § 301.46. The Board will give three days' notice of oral argument, where granted. The Board will not entertain petitions for reconsideration, rehearing, reargument or modification of its order except on the ground that new matter has been discovered. Such petitions shall set forth the new matter; shall contain affidavits of prospective witnesses, authenticated documents, or both, or an explanation why such substantiation is unavailable; and shall state that such new matter could not have been discovered by the exercise of due diligence, prior to the date the case was submitted for decision. The Board, upon its own motion, may raise any issue the resolution of which it deems important to a proper disposition of the proceeding; in such a case a reasonable opportunity will be afforded to the parties to submit argument thereon.

* * * * *

By the National Transportation Safety Board.

[SEAL] JOSEPH J. O'CONNELL, Jr.,
Chairman.

[F.R. Doc. 67-7378; Filed, June 28, 1967; 8:48 a.m.]

SUBCHAPTER D—SPECIAL REGULATIONS

[Reg. SPR-17; Amdt. 3]

PART 378—INCLUSIVE TOURS BY SUPPLEMENTAL AIR CARRIERS, CERTAIN FOREIGN AIR CARRIERS, AND TOUR OPERATORS

Tour Operators Utilizing Foreign Air Carriers Authorized by the Board To Perform Inclusive Tour Charter Trips

Adopted by the Civil Aeronautics Board at its office in Washington, D.C., on the 23d day of June 1967.

In a notice of proposed rule making published in the FEDERAL REGISTER on April 26, 1967 (32 F.R. 6454), and circulated to the industry as SPDR-7, Docket 18436, the Board indicated that it had under consideration an amendment to Part 378 of the Special Regulations (14 CFR Part 378) which would extend the provisions of the regulation to inclusive tours furnished by tour operators in conjunction with foreign air carriers whose permits authorize the performance of such tours subject to the regulation.

Interested persons have been afforded an opportunity to participate in the proposed rule making. No comments have been received. Accordingly, for the reasons set forth in SPDR-7, the Board hereby amends Part 378 of the Special Regulations, effective July 29, 1967, as follows:

1. Change the title of the part to read as set forth above.

2. Amend § 378.1 to read as follows:

§ 378.1 Applicability.

This part establishes the terms and conditions governing the furnishing of inclusive tours in interstate, overseas, and foreign air transportation by supplemental air carriers, certain foreign air carriers, and tour operators. This part also relieves tour operators from various provisions of the Act and the Board's regulations for the purpose of enabling them to provide inclusive tours to members of the general public utilizing aircraft chartered from supplemental air carriers and certain foreign air carriers. The provisions of this regulation shall not be construed as limiting any other authority to engage in air transportation issued by the Board. Nothing contained in this part shall be construed as repealing or amending any provisions of any of the Board's regulations, unless the context so requires.

3. In § 378.2, amend the definition of "supplemental air carrier" to read as follows:

§ 378.2 Definitions.

* * * * *

(f) "Supplemental air carrier" means (1) a supplemental air carrier as defined in § 200.8 of this chapter (Board's Economic Regulations) and authorized under section 7 of Public Law 87-528 or section 401(d)(3) of the Act to perform inclusive tour charters, or (2) a foreign

air carrier which holds a permit issued under section 402 of the Act authorizing it to perform inclusive tour charters, but only to the extent that such tours are to be performed subject to the provisions of this regulation.

* * * * *

(Secs. 101(3), 204(a), 401, 402, 409, 414, Federal Aviation Act of 1958, as amended (72 Stat. 737; 49 U.S.C. 1301; 72 Stat. 743; 49 U.S.C. 1324; 72 Stat. 754, as amended by 76 Stat. 143; 49 U.S.C. 1371; 72 Stat. 757; 49 U.S.C. 1372; 72 Stat. 768; 49 U.S.C. 1379; 72 Stat. 770; 49 U.S.C. 1384))

By the Civil Aeronautics Board.

[SEAL] MABEL MCCART,
Acting Secretary.

[F.R. Doc. 67-7379; Filed, June 28, 1967; 8:48 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 4236]

[Utah 0146674; 828; 1836]

UTAH

Partial Revocation of Executive Order No. 8652

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Executive Order No. 8652 of January 28, 1941, which reserved public lands within described areas in Utah for use of the Department of the Air Force as an aerial bombing and gunnery range, is hereby revoked so far as it affects the following described areas:

SALT LAKE MERIDIAN

T. 1 S., R. 18 W.,
Sec. 7.
T. 1 S., R. 19 W.,
Sec. 12.

The areas described aggregate approximately 1,257 acres in Tooele County.

The lands are situated in the vicinity of Wendover, Utah. Topography is flat and devoid of vegetative growth. Soils contain a high percentage of salt.

2. Until 10 a.m. on December 21, 1967, the State of Utah shall have a preferred right of application to select the lands as provided by R.S. 2276, as amended (43 U.S.C. 852). After that time the lands shall be open to the operation of the public land laws generally, including the mining laws, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on December 21, 1967, shall be considered in the order of filing.

The lands have been open to applications and offers under the mineral leasing laws.

Inquiries should be addressed to the Manager, Land Office, Bureau of Land Management, Salt Lake City, Utah.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

JUNE 22, 1967.

[F.R. Doc. 67-7342; Filed, June 28, 1967; 8:45 a.m.]

Title 46—SHIPPING

Chapter II—Maritime Administration, Department of Commerce

SUBCHAPTER J—MISCELLANEOUS

[General Order 81, Amdt. 4]

PART 350—SEAMEN'S SERVICE AWARDS

Changes as to Distributors and Cost of Merchant Marine Ribbons

Effective as of June 1, 1967, §§ 350.4 and 350.5 of Chapter II, Title 46, Code of Federal Regulations, are amended to read as follows:

§ 350.4 **Procedure for purchase.**

Application for the Korean Service ribbon shall be made to the Seafarer Relations Branch, Division of Manpower Development, Maritime Administration, Department of Commerce, Washington, D.C. 20235. Such application should include seaman's name, his license or identification number, the name or names of ships on which he served, dates of service, and his mailing address. If found to be eligible, an Authorization Card will be supplied to the applicant whereby he may purchase the Korean Service Bar from the only duly certified distributor, Harry Sadow, Inc., 20 Vesey Street, New York, N.Y. 10007, at a cost of 65 cents. Replacement may be obtained in the same manner if bar is lost, destroyed, or rendered unfit for use, without fault or neglect on the part of the owner.

§ 350.5 **Replacements.**

(a) The following ribbon bars, previously issued for service in the U.S. Merchant Marine during World War II, pursuant to earlier Acts of Congress and Executive orders, now repealed, may be replaced, if bar is lost, destroyed, or rendered unfit for use, without fault or neglect on the part of the owner, at a cost of 65 cents per ribbon bar by presenting to Harry Sadow, Inc., either in person or by mail, the appropriate Authorization Card presently in the applicant's possession:

Atlantic War Zone Bar.
Pacific War Zone Bar.
Mediterranean-Middle East War Zone Bar.
Combat Bar.
Defense Bar.
Victory Medal Bar.

If Authorization Cards are lost or destroyed, replacements thereof may be obtained upon application to the Seafarer Relations Branch, Division of Manpower Development, Maritime Administration, Department of Commerce, Washington, D.C. 20235.

(b) The following decorations may be replaced at cost upon application to the Seafarer Relations Branch, Division of Manpower Development, Maritime Administration, Washington, D.C. 20235:

Distinguished Service Medal.
Meritorious Service Medal.
Mariner's Medal.
Victory Medal.
Merchant Marine Emblem.
Honorable Service Button.

(Section 204, 49 Stat. 1987, as amended; 46 U.S.C. 1114)

By order of the Acting Maritime Administrator.

Dated: June 23, 1967.

JAMES S. DAWSON, Jr.
Secretary.

[F.R. Doc. 67-7370; Filed, June 28, 1967; 8:47 a.m.]

Title 21—FOOD AND DRUGS

Chapter I—Food and Drug Administration, Department of Health, Education, and Welfare

SUBCHAPTER B—FOOD AND FOOD PRODUCTS

PART 121—FOOD ADDITIVES

Subpart C—Food Additives Permitted in the Feed and Drinking Water of Animals or for the Treatment of Food-Producing Animals

AMPROLIUM, ARSANILIC ACID, ERYTHROMYCIN THIOCYANATE, ETHOPABATE, ZOALENE

The Commissioner of Food and Drugs, having evaluated the data submitted in petitions (FAP 5D1591, 5D1609) filed by AMDAL Co., Agricultural Division, Abbott Laboratories, North Chicago, Ill. 60064, and other relevant material, has concluded that the food additive regulations should be amended to provide for

the safe use in chicken feed, for the purposes indicated, of erythromycin thiocyanate in specified combinations with amprolium, arsanilic acid, ethopabate, and zoalene. Therefore, pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1)) and under the authority delegated to the Commissioner by the Secretary of Health, Education, and Welfare (21 CFR 2.120), Part 121 is amended in Subpart C as follows:

1. Section 121.207(c) is amended by adding to item 2.7 in the table a new subitem, as follows:

§ 121.207 Zoalene.

* * * * *

(c) * * *

ZOALENE IN COMPLETE FEEDS FOR CHICKENS AND TURKEYS

Principal ingredient	Grams per ton	Combined with—	Grams per ton	Limitations	Indications for use
* * *	* * *	* * *	* * *	* * *	* * *
2.7 * * *					
a. 2.1, 2.2	113.5	Erythromycin	92.5-185	§ 121.292(d), items 1.1, 2.1, 4.1.	§ 121.292(d), items 1.1, 2.1, 4.1.
* * *	* * *	* * *	* * *	* * *	* * *

2. Section 121.210(c) is amended by adding to item 2.9 in Table 1 two new subitems, as follows:

§ 121.210 Amprolium.

* * * * * * *

(c) * * *

TABLE 1—AMPROLIUM IN COMPLETE CHICKEN AND TURKEY FEED

Principal ingredient	Grams per ton	Combined with—	Grams per ton	Limitations	Indications for use
* * *	* * *	* * *	* * *	* * *	* * *
2.9 * * *					
s. 2.1, 2.2, 2.3, 2.4	113.5-227	Erythromycin	4.6-18.5	As erythromycin thiocyanate.	Growth promotion and feed efficiency.
t. 2.1, 2.2, 2.3, 2.4	113.5-227	do	92.5-185	§ 121.292(d), items 1.1, 2.1, 4.1.	§ 121.292(d), items 1.1, 2.1, 4.1.
* * *	* * *	* * *	* * *	* * *	* * *

3. Section 121.253(c) is amended by adding to item 1.7 in the table a new subitem, as follows:

§ 121.253 Arsanilic acid.

* * * * * * *

(c) * * *

ARSANILIC ACID IN COMPLETE CHICKEN AND TURKEY FEED

Principal ingredient	Grams per ton	Combined with—	Grams per ton	Limitations	Indications for use
* * *	* * *	* * *	* * *	* * *	* * *
1.7 * * *					
f. 1.1, 1.2, 1.3, 1.5		Erythromycin	92.5-185	§ 121.292(d), items 1.1, 2.1, 4.1.	§ 121.292(d), items 1.1, 2.1, 4.1.
* * *	* * *	* * *	* * *	* * *	* * *

4. Section 121.292(d) is amended by adding to the table new items, as follows:

§ 121.292 Erythromycin thiocyanate.

* * * * * * *

(d) * * *

ERYTHROMYCIN IN ANIMAL FEED

Principal ingredient	Grams per ton	Combined with—	Grams per ton	Limitations	Indications for use
1.1 * * *	* * *	* * *	* * *	* * *	* * *
1.2 Erythromycin	92.5	Arsanilic acid	90 (0.01%)	For chickens; feed for 2 days before stress and 3 to 5 days after stress; withdraw 5 days before slaughter.	As an aid in the prevention of chronic respiratory disease during periods of stress; growth promotion and feed efficiency; improving pigmentation.
a. 1.1, 1.2		Zoalene	113.5	§ 121.207(c), item 2.1.	§ 121.207(c), item 2.1.
b. 1.1, 1.2		Amprolium	113.5-227	§ 121.210(c) table 1, item 2.1.	§ 121.210(c), table 1, item 2.1.
c. 1.1, 1.2		Amprolium + Ethopabate	113.5-227 3.6	§ 121.210(c), table 1, item 2.2.	§ 121.210(c), table 1, item 2.2.
2.1 * * *	* * *	* * *	* * *	* * *	* * *
2.2 Erythromycin	92.5	Arsanilic acid	90 (0.01%)	For chickens; feed for 7 to 14 days; withdraw 5 days before slaughter.	As an aid in the prevention of infectious coryza; growth promotion and feed efficiency; improving pigmentation.
a. 2.1, 2.2		Zoalene	113.5	§ 121.207(c), item 2.1.	§ 121.207(c), item 2.1.
b. 2.1, 2.2		Amprolium	113.5-227	§ 121.210(c), table 1, item 2.1.	§ 121.210(c), table 1, item 2.1.
c. 2.1, 2.2		Amprolium + Ethopabate	113.5-227 3.6	§ 121.210(c), table 1, item 2.2.	§ 121.210(c), table 1, item 2.2.
* * *	* * *	* * *	* * *	* * *	* * *
4.2 Erythromycin	185	Arsanilic acid	90 (0.01%)	For chickens; feed for 5 to 8 days; do not use in birds producing eggs for food purposes; withdraw 5 days before slaughter.	As an aid in the prevention and reduction of lesions and in lowering severity of chronic respiratory disease; growth promotion and feed efficiency; improving pigmentation.
a. 4.1, 4.2		Zoalene	113.5	§ 121.207(c), item 2.1.	§ 121.207(c), item 2.1.
b. 4.1, 4.2		Amprolium	113.5-227	§ 121.210(c), table 1, item 2.1.	§ 121.210(c), table 1, item 2.1.
c. 4.1, 4.2		Amprolium + Ethopabate	113.5-227 3.6	§ 121.210(c), table 1, item 2.2.	§ 121.210(c), table 1, item 2.2.

Any person who will be adversely affected by the foregoing order may at any time within 30 days from the date of its publication in the FEDERAL REGISTER file with the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington, D.C. 20201, written objections thereto, preferably in quintuplicate. Objections shall show wherein the person filing will be adversely affected by the order and specify with particularity the provisions of the order deemed objectionable and the grounds for the objections. If a hearing is requested, the objections must state the issues for the hearing. A hearing will be granted if the objections are supported by grounds legally sufficient to justify the relief sought. Objections may be accompanied by a memorandum or brief in support thereof.

Effective date. This order shall become effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1))

Dated: June 22, 1967.

J. K. KIRK,
Associate Commissioner for Compliance.

[F.R. Doc. 67-7305; Filed, June 28, 1967; 8:45 a.m.]

Title 32—NATIONAL DEFENSE

Chapter XIV—The Renegotiation Board

SUBCHAPTER B—RENEGOTIATION BOARD REGULATIONS UNDER THE 1951 ACT

PART 1470—INFORMATION REQUIRED OF CONTRACTORS

Forms and Instructions for Filing

Section 1470.92 *Instructions for preparing and filing renegotiation reports* is deleted in its entirety and the following is inserted in lieu thereof:

§ 1470.92 Forms and instructions for filing renegotiation reports.

The Standard Form of Contractor's Report (see § 1470.90) and the Statement of Non-Applicability (see § 1470.91), together with explanatory information and instructions for preparing and filing such reports, are set forth in a booklet published by the Board, entitled "Forms and Instructions for Filing Renegotiation Reports." Such information and instructions are intended to guide and assist contractors in complying with the act; they are not a substitute for any regulations in this subchapter. Copies of the forms and booklet may be obtained from the Board and the Regional Boards (see § 1472.6(d)(1) of this subchapter), and may also be obtained in person at the field offices of the Department of Commerce.

(Sec. 109, 65 Stat. 22; 50 U.S.C. App., Sup. 1219)

Dated: June 26, 1967.

LAWRENCE E. HARTWIG,
Chairman.

[F.R. Doc. 67-7398; Filed, June 28, 1967; 8:49 a.m.]

PART 1480—AVAILABILITY AND CONTROL OF RENEGOTIATION RECORDS AND INFORMATION

Sec.

1480.1 Scope of part.
1480.2 Statutory provisions and Executive orders.
1480.3 In general.
1480.4 Publication in the FEDERAL REGISTER.
1480.5 Public inspection of records; index.
1480.6 Production of identifiable records.
1480.7 Procedure for obtaining access to identifiable records.
1480.8 Voting records of Board members.
1480.9 Exemptions.
1480.10 Access by agencies of the Government.
1480.11 Access to records pursuant to subpoena or other judicial process.
1480.12 Copies of records; fees or charges.

AUTHORITY: The provisions of this Part 1480 issued under sec. 109, 65 Stat. 22; 50 U.S.C. App. 1219; Pub. Law 90-23, 81 Stat. 54.

§ 1480.1 Scope of part.

This part establishes the regulations governing the availability of information, records and files relating to renegotiation proceedings conducted by the Renegotiation Board.

§ 1480.2 Statutory provisions and Executive orders.

(a) *Freedom of information.* The regulations in this part implement the provisions of section 552 of title 5, United States Code (section 3 of the Administrative Procedure Act as amended by Public Law No. 90-23, approved June 5, 1967 (81 Stat. 54)).

(b) *Confidential information.* Records of the Board are subject to the restrictions on disclosure of confidential information provided in section 1905, title 18, United States Code.

(c) *Income tax data.* (1) Executive Order 10907, dated January 17, 1961 (26 F.R. 508), issued pursuant to section 6103(a)(1) of the Internal Revenue Code of 1954 (68A Stat. 753), provides in part that "income tax returns made under the Internal Revenue Code of 1954 shall be open to inspection by the Renegotiation Board." Income Tax Regulation 301.6103(a)-105(a), referring to the foregoing, provides in part as follows:

> * * * Any information thus obtained shall be held confidential except that it may be published or disclosed in statistical form provided such publication does not disclose, directly or indirectly, the name or address of any taxpayer.

By similar provisions, income and excess profit tax returns made under the Internal Revenue Code of 1939 are open to inspection by the Renegotiation Board.

(2) Records of the Board are subject to the restrictions on disclosure of income tax information and data provided in section 7213(a)(1) of the Internal Revenue Code of 1954.

(d) *Classified information.* Executive Order 10501, dated November 5, 1953 (18 F.R. 7049), as amended, entitled "Safeguarding official information in the interests of the defense of the United States," establishes three categories of classification for such information: Top Secret, Secret, and Confidential. The order confers upon the Renegotiation Board, among other departments, agencies and Governmental units, authority for original classification of such information or material.

§ 1480.3 In general.

The renegotiation law requires the Board to obtain or develop, with respect to the business of contractors subject to the provisions of the act, information of the type described in section 1905, title 18, United States Code, section 7213(a)(1) of the Internal Revenue Code of 1954, and Executive Order 10501 (see § 1480.2 (b), (c), and (d), as well as other commercial or financial information which contractors themselves do not customarily disclose to the public. In establishing the regulations in this part, the Board has endeavored to balance the necessity of protecting such information with the right of the public to be adequately informed of the operations of the Board.

§ 1480.4 Publication in the Federal Register.

(a) *Matter published.* The Board separately states and currently publishes in the FEDERAL REGISTER, for the guidance of the public, the following:

(1) Descriptions of its central and field organization and the established places at which, the officers from whom, and the methods whereby, the public may secure information, make submittals or requests, or obtain decisions.

(2) Statements of the general course and method by which its functions are channeled and determined, including the nature and requirements of all formal and informal procedures available.

(3) Rules of procedure, descriptions of forms available or the places at which forms may be obtained, and instructions as to the scope and contents of all papers, reports, or examinations.

(4) Substantive rules of general applicability adopted as authorized by law, and statements of general policy or interpretations of general applicability formulated and adopted by the Board.

(5) Every amendment, revision, or repeal of the foregoing.

(b) *Where contained.* (1) Publication of the matter referred to in paragraph (a)(1) of this section, including every amendment, revision, or repeal, is made in the Board's Statement of Organization and in the regulations in this part.

(2) Publication of the matter referred to in paragraph (a) (2), (3), and (4) of this section, including every amendment, revision, or repeal, is made in the regulations in this part as part of the Code of Federal Regulations, this Title 32, Chapter XIV, Subchapter B.

(c) *Availability; sale to the public.* All matter published in the FEDERAL REGISTER, as provided in this section, will be maintained and made available for public inspection at the principal office of the Board during usual hours of business, as set forth in § 1472.6 (d)(1) and (e)(2) of this subchapter. All matter so published in the FEDERAL REGISTER is available to the public by purchase from the Superintendent of Documents, Government Printing Office, Washington, D.C., 20402.

§ 1480.5 Public inspection of records: index.

(a) *Records available for inspection.* Subject to the exemption provisions of § 1480.9, and subject to the deletion of identifying details to the extent required to prevent clearly unwarranted invasions of personal privacy, the Board will make available for public inspection and copying, the following records:

(1) Final opinions (including concurring and dissenting opinions) in the adjudication of cases, and statements of policy and interpretations adopted by the Board and not published in the FEDERAL REGISTER, to the extent that matter included therein is considered by the Board to have potential significance as a precedent.

(2) Administrative staff manuals and instructions to Board personnel that affect any member of the public.

(b) *Certain records not available for inspection.* The Board will not make

available for public inspection and copying any orders, as defined in section 2(d) of the Administrative Procedure Act, as amended (5 U.S.C. section 551(6)), made in the adjudication of cases. The Board has determined that all such orders are within the exemptions set forth in § 1480.9(a) (3) and (4), and in particular instances may also be within other exemptions set forth in that section.

(c) *Deletion of identifying details.* (1) When making available for public inspection and copying in an appropriate case any records described in paragraph (a) of this section, the Board will delete identifying details to the extent required to prevent a clearly unwarranted invasion of personal privacy. As used in this part, the term "personal privacy" refers to the financial, commercial, medical, family or other private interests of any person as defined in § 1451.21 of this subchapter.

(2) To each record from which identifying details shall have been deleted when the record is made available for public inspection and copying pursuant to this section, the Board will attach a written justification for such deletions. A single such justification shall suffice for deletions made in a group of similar or related records. Subject to necessary or appropriate variations in individual instances, the justification will be in substantially the following form:

> This record is (These records are) made available for public inspection and copying pursuant to Section 3(b) of the Administrative Procedure Act, as amended (5 U.S.C. § 552(a)(2)). As authorized therein, to prevent a clearly unwarranted invasion of personal privacy, identifying details have been deleted. Information exempted from disclosure by Section 3(e) of the Administrative Procedure Act, as amended (5 U.S.C. § 552(b)), including information subject to 18 U.S.C. § 1905 and § 7213(a)(1) of the Internal Revenue Code of 1954, has also been deleted. See RBR 1480.9.

(d) *Index.* The Board will maintain and make available for public inspection and copying a current index, or current indexes, providing identifying information for the public as to any record described in paragraph (a) of this section which is issued, adopted, or promulgated by the Board after July 4, 1967. The Board will also maintain and make available for public inspection and copying a current index, or current indexes, of all matter described in § 1480.4.

(e) *Time and place for inspection.* Records (including indexes) subject to public inspection and copying pursuant to this section will be made available for such purpose at the principal office of the Board during usual hours of business, as set forth in § 1472.6 (d)(1) and (e)(2) of this subchapter.

§ 1480.6 Production of identifiable records.

(a) *In general.* Subject to the exemption provisions of § 1480.9, upon request made as provided in § 1480.7 the Board will make available for inspection and copying any identifiable record not published or made available for public inspection and copying pursuant to the provisions of § 1480.4 or § 1480.5; but generally no such record will be made available for inspection and copying until the case or matter or which it is a part or to which it pertains has been finally completed.

(b) *Burden of identification.* A person who requests access to a record under this section must provide a reasonably specific description of the particular record sought. Such description shall include, or shall explain the failure to include, the date of the record sought to be made available, the names or titles of the persons by whom and to whom it is addressed, and the title or subject matter of the record. The burden of providing a sufficient description shall be upon the person making the request, and the Board will not comply with a request that does not provide a sufficient description, or with a general or blanket request.

(c) *Referrals to other agencies.* (1) When the Board receives a request to make available a record which is the exclusive concern of another agency of the Government (see § 1451.23 of this subchapter), the Board will refer the request to such other agency and will notify the person making the request of such referral.

(2) When the Board receives a request to make available a record which is of concern to more than one agency of the Government, the Board will retain and act upon the request if the Board is one of the agencies concerned and if its interest in the record is paramount; otherwise, the Board will refer the request to the agency having the paramount interest and will notify the person making the request of such referral.

§ 1480.7 Procedure for obtaining access to identifiable records.

(a) *In general.* This section prescribes the procedure for obtaining access to an identifiable record (see § 1480.6).

(b) *Form of request.* Any person desiring access to an identifiable record shall make a request therefor. Such request shall be in writing and shall indicate the record or records to which access is desired, and shall also comply with the provisions of § 1480.6(b). If a copy of a particular record is desired instead of an inspection thereof, the written request shall so state. A request for a record shall be addressed to the Secretary to the Board, at the principal office of the Board, and will be acted upon by the General Counsel of the Board.

(c) *Notice granting request.* If the person requesting access to an identifiable record is entitled thereto under the regulations in this part, the General Counsel will notify such person in writing of the time and place at which the record will be made available and access granted.

(d) *Notice denying request.* If the person requesting access to a record is not entitled thereto under the regulations in this part, the General Counsel will notify such person in writing that his request has been denied and will state the reasons for such denial.

(e) *Board review when request is denied.* A person who has made a request for access to an identifiable record shall, if the request is denied, be entitled to obtain a review of such action by the Board. A request for review pursuant to this paragraph shall be made by letter addressed to and filed with the Secretary to the Board, at the principal office of the Board, within 20 days after the date of the notice by the General Counsel to such person of the action to be reviewed.

§ 1480.8 Voting records of Board members.

Subject to the exemption provisions of § 1480.9, the Board will make available for public inspection a record of the final votes of each member of the Board after July 4, 1967 in every "agency proceeding" as that term is defined in section 2(g) of the Administrative Procedure Act, as amended (5 U.S.C. sec. 551(12)). Such record will be made available for such purpose at the principal office of the Board during usual hours of business, as set forth in § 1472.6 (d)(1) and (e)(2) of this subchapter.

§ 1480.9 Exemptions.

(a) *In general.* The provisions of section 3 of the Administrative Procedure Act, as amended (5 U.S.C. sec. 552; see § 1480.2(a)), do not apply to the following:

(1) Records classified as Top Secret or Secret or Confidential within the meanings assigned to those terms in Executive Order 10501, dated November 5, 1953 (18 F.R. 7049), as amended, whether such classification is imposed by the Board or by any other authorized department, agency, or Governmental unit (see § 1480.2(d)).

(2) Matters related solely to the internal personnel rules and practices of the Board or of a Regional Board.

(3) Matters specifically exempted from disclosure by statute. Examples: Information described in 18 U.S.C. section 1905 (see § 1480.2(b)); income tax data described in section 7213(a)(1) of the Internal Revenue Code (see § 1480.2(c)(2)); "restricted data" as that term is defined in the Atomic Energy Act of 1954, as amended (42 U.S.C. sec. 2014).

(4) Trade secrets and commercial, financial, or other information that is privileged or that was given to the Board in confidence or would not customarily be made public by the person from whom it was obtained.

(5) Interagency or intraagency memorandums or letters which would not be available by law to a party other than an agency in litigation with the Board.

(6) Personnel and medical files and similar files the disclosure of which would constitute a clearly unwarranted invasion of personal privacy.

(7) Investigatory files compiled for law enforcement purposes except to the extent available by law to a party other than an agency.

(8) Matters contained in or related to examination, operating, or condition reports prepared by, on behalf of, or for the use of an agency responsible for the regulation or supervision of financial institutions.

(9) Geological and geophysical information and data, including maps, concerning wells.

(b) *Certain records.* Without limiting the generality of the provisions of paragraph (a) of this section, the following are exempt:

(1) Financial statements filed with the Board pursuant to § 1470.3 (a) and (b) of this subchapter.

(2) Reports from any Department, or from any contractor, providing information to the Board for renegotiation purposes with respect to the performance of any contract or subcontract.

(3) Determinations, unilateral orders, agreements, clearance notices, and letters not to proceed (see Part 1498 of this subchapter).

§ 1480.10 Access by agencies of the Government.

(a) *Departments performing procurement functions.* Any Department named in or designated pursuant to section 103(a) of the act will be afforded access to records in the custody of the Board when such access is necessary to further the procurement activities of such Department.

(b) *Departments performing renegotiation functions.* Any Department named in or designated pursuant to section 103(a) of the act and any Department named in a prior Renegotiation Act will be afforded access to records in the custody of the Board when such access is necessary to the performance of duties imposed on such Department by such act.

(c) *Specific instances.* In specific instances, access to records in the custody of the Board will be afforded to any agency of the Government when the Board determines that such access is necessary in the best interests of the Government.

§ 1480.11 Access to records pursuant to subpoena or other judicial process.

Subpoenas duces tecum, or other judicial process constituting a demand for access to or the production of records in the custody of the Board, are properly to be served upon the Chairman of the Board. No person, notwithstanding that he may have physical possession of such records, is authorized to afford access thereto or to produce the same pursuant to subpoena duces tecum or other judicial process except upon authorization or direction from the Chairman of the Board. Whenever a subpoena or other process demanding the production of records which are in the custody of the Board, whether issued by a Federal court, State court, or administrative tribunal, is served upon any person, other than said Chairman, having possession of such records, such person will appear in such court or tribunal and respectfully decline to present such records, basing his refusal upon this regulation and pointing out that such regulation makes provision for service of subpoenas upon the Chairman of the Board.

§ 1480.12 Copies of records; fees or charges.

Upon request, the Board will furnish a copy or copies of any record made available pursuant to this part, except records published in the FEDERAL REGISTER and offered for sale by the Superintendent of Documents, Government Printing Office (see § 1480.4). There shall be a charge of 25 cents for each copy of each page of any record so furnished, with a minimum charge of $1. An additional charge of $2 will be made for furnishing an authenticated copy of any record. There shall be no charge for the making or verification of copies required for use by other agencies of the Government.

Dated: June 26, 1967.

LAWRENCE E. HARTWIG,
Chairman.

[F.R. Doc. 67-7399; Filed, June 28, 1967; 8:51 a.m.]

Title 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission and Department of Transportation [1]

SUBCHAPTER A—GENERAL RULES AND REGULATIONS

[Docket No. 34650; Order 1]

PART 180—CARRIERS BY PIPELINE

JUNE 16, 1967.

The matter of certain regulations governing the transportation of dangerous articles by pipeline, previously formulated, proposed and published by the Interstate Commerce Commission has been transferred to the Department of Transportation under the provisions of the Department of Transportation Act, Public Law 89-670. These regulations are promulgated in Title 49, Code of Federal Regulations, Parts 171-190,[1] and those portions of the regulations dealing with pipelines will be administered by the Administrator, Federal Railroad Administration, Department of Transportation.

Notice No. 1A, dated January 16, 1967, set forth the proposed addition of Part 180 to the said regulations, and the reasons therefor. Notice No. 1A was published in the FEDERAL REGISTER on January 31, 1967 (32 F.R. 1098), pursuant to the provisions of section 4 of the Administrative Procedure Act. Pursuant to said notice interested parties were given an opportunity to be heard with respect to said proposed addition.

Written views or arguments have been submitted with respect to the proposed amendment to the regulations, and are such as to warrant modification at this time of certain of the proposals. In all other respects the proposed addition of Part 180 set forth in Notice No. 1A is deemed justified and necessary;

It is ordered, That the aforesaid regulations governing the transportation of explosives and other dangerous articles be, and they are hereby, amended in the manner and to the extent set forth as follows:

Add new Part 180 to read as follows:

Sec.

180.1 Purpose of the regulations in this Part 180.
180.2 Scope of the regulations in this Part 180.
180.3 Exemptions from the regulations in this Part 180.
180.4 Definitions pertaining to this Part 180.
180.5 Acceptable commodities for transportation by pipeline.
180.6 Dangerous goods not acceptable for transportation by pipeline.

Subpart A—Accident Reporting

180.25 Purpose of accident reporting.
180.26 Reportable accident.
180.27 Accident reports confidential.
180.28 Accident reporting.
180.29 Instructions for preparing DOT Form 7000-1.
180.30 Filing of accident report on DOT Form 7000-1.
180.31 Changes in or additions to accident report.
180.32 Immediate notice of fatal accidents.
180.33 Deaths occurring before filing report.
180.34 Notice of death occurring after filing report.
180.35 Carrier to assist in investigation.
180.36 Supplies of accident report DOT Form 7000-1.

AUTHORITY: The provisions of this Part 180 issued under 74 Stat. 808, 79 Stat. 285, 80 Stat. 931; 18 U.S.C. 834.

§ 180.1 Purpose of the regulations in this Part 180.

(a) To promote the uniform enforcement of law and to minimize the dangers to life and property incident to the transportation of petroleum, explosives and other dangerous articles (other than natural gas and water) by pipeline carrier in interstate or foreign commerce. This Part 180 prescribes the general rules under which pipeline carriers must design, construct, test, maintain and operate in order to provide for safety to the public and to the carrier's personnel. It is the duty of each such carrier to make the regulations effective and to thoroughly instruct employees in relation thereto.

§ 180.2 Scope of the regulations in this Part 180.

(a) All pipeline carriers subject to Title 18, U.S.C. 831-835, known as the Explosives and Other Dangerous Articles Act, which at any time transport dangerous goods, as defined in § 180.4, through their pipeline system under pump pressure shall be subject to the regulations in Parts 171-180 of this chapter.

§ 180.3 Exemptions from the regulations in this Part 180.

(a) Pipelines which operate at a stress level of 20 percent or less of the specified minimum yield strength of line pipe in the system, and pipelines which move commodities from one point to another

[1] Effective Apr. 1, 1967, the Department of Transportation assumed jurisdiction over the transportation of explosives and other dangerous articles in interstate and foreign commerce pursuant to Public Law 89-670. The Explosives Regulations were formerly promulgated and administered by the Interstate Commerce Commission. Transfer of the Commission's safety functions to the Department of Transportation has caused Parts 71 to 90 of Title 49—Transportation to be redesignated Parts 171 to 190 and all sections therein renumbered by adding 100 to each section number, e.g., § 71.1 becomes § 171.1 (see 32 F.R. 5606, Apr. 5, 1967).

by gravity rather than by pumping are exempt from the regulations in this part.

§ 180.4 Definitions pertaining to this Part 180.

(a) For the purpose of regulations in this part, the following terminology is defined:

(1) *Dangerous goods.* The term "dangerous goods" as used in this part shall mean explosives and other dangerous articles as defined in Part 173 of this chapter and petroleum as defined in this section.

(2) *Pipeline system.* The terms "pipeline system" and "pipeline" are synonymous, and shall mean all parts of a carrier's physical facilities through which dangerous goods move including but not limited to: Line pipe, valves and other appurtenances connected to line pipe, pumping units, fabricated assemblies associated with pumping units, measurement and delivery stations and fabricated assemblies therein, and carrier owned breakout tankage.

(3) *Pipe.* "Pipe" or "line pipe" shall mean a tube, usually cylindrical, through which a commodity flows from one point to another.

(4) *Specified minimum yield strength.* The minimum yield strength, expressed in pounds per square inch, prescribed by the specification under which the material is purchased from the manufacturer.

(5) *Stress level.* The level of tangential or hoop stress, usually expressed as a percentage of specified minimum yield strength.

(6) *Barrel.* Unit of measurement equal to 42 U.S. gallons at 60° F. used to determine quantity of petroleum.

(7) *Petroleum.* A general term including but not limited to: crude oil, natural gasoline, liquefied petroleum gas (LPG) and liquid petroleum products.

§ 180.5 Acceptable commodities for transportation by pipeline.

(a) For the purpose of the regulations in this Part 180, all petroleum can be accepted for transportation by pipeline unless, due to the unusual character of the commodity, it will damage the pipeline and thereby create an undue safety hazard to persons or property.

§ 180.6 Dangerous goods not acceptable for transportation by pipeline.

(a) For the purpose of the regulations in this Part 180, no dangerous goods, except as specified in § 180.5, shall be permitted to be transported by pipeline after September 6, 1967, without a special permit being issued by the Administrator, Federal Railroad Administration, Department of Transportation. Applications for such permits shall give properties and characteristics of the dangerous goods to be transported and design specifications, including maximum operating pressures, for the pipeline through which the commodity is to be transported. Applications should be submitted in duplicate to the Director, Office of Hazardous Materials, Department of Transportation, Washington, D.C. 20590.

Subpart A—Accident Reporting

§ 180.25 Purpose of accident reporting.

(a) The purpose of accident reporting is to allow the determination of both causes of accidents and remedies to prevent accidents so that appropriate regulations may be formulated for the safe transportation of dangerous goods by pipeline in interstate and foreign commerce.

§ 180.26 Reportable accident.

(a) For the purpose of the regulations in this part, a reportable accident is any failure in the system of a pipeline carrier transporting dangerous goods under pressure by pumping in which there is a liquid or vapor release of the commodity transported resulting in any of the following:

(1) Explosion or fire not intentionally set by carrier.

(2) Loss of 50 barrels or more of liquid.

(3) Escape to the atmosphere of more than 5 barrels per day of liquefied petroleum gas or other commodity which vaporizes upon release to the atmosphere.

(4) Death of any person.

(5) Bodily harm to any person resulting in one or more of the following:

(i) Loss of consciousness.

(ii) Necessity to carry the person from the scene.

(iii) Necessity for medical treatment.

(iv) Disability which prevents the discharge of normal duties or the pursuit of normal activities beyond the day of the accident.

(6) Property damage to other than carrier's facilities to the extent of $1,000 or more, based upon actual cost or reliable estimates.

§ 180.27 Accident reports confidential.

(a) Accident reports made by pipeline carriers in compliance with the regulations in this part shall be for the information of the Department of Transportation, and shall not be open to public inspection: *Provided, however,* When the Department considers such action consistent with the public interest and necessary to the proper administration and enforcement of the provisions of the Explosives and Other Dangerous Articles Act, Title 18, U.S.C. 831–835, or of orders, rules, and regulations issued thereunder, it may in its discretion, upon prior approval of an application of any operating element of the Department, allow such reports, or excerpts therefrom to be offered in evidence, (1) by attorneys in the employ of the Department in a Department proceeding, and (2) by attorneys in the employ of the Department or by U.S. attorneys in a court proceeding instituted by or at the request of the Department.

§ 180.28 Accident reporting.

(a) Every pipeline carrier subject to the regulations in this part, domiciled in the United States or elsewhere who experiences a reportable accident, as defined in § 180.26, in the United States, shall prepare and file an accident report, on DOT Form 7000–1.[1]

[1] A copy of DOT Form 7000–1 is filed as part of the original document.

§ 180.29 Instructions for preparing DOT Form 7000–1.

(a) Reports of accidents on DOT Form 7000–1 shall be prepared in accordance with following instructions:

(1) *General.* Every applicable item must be marked or filled in as fully and as accurately as information accessible to the pipeline carrier at the time of filing the report will permit.

(2) *Part A.* Enter name as it is filed with the Interstate Commerce Commission. If the carrier's name is not filed with the Commission, enter the complete corporate name of the carrier. Enter the address of your principal place of business including zip code.

(3) *Part B, Item 1.* The date the accident occurred or was discovered will be entered here. If the accident was not discovered on the date it occurred, state this fact on the back of the form.

(4) *Part B, Item 2.* Place the exact time in hours and minutes (i.e., 10:15) if known or a time range (i.e., 10–11) if exact time is not known. If the accident was not discovered on the date it occurred, place the time it was discovered and state this fact on the back of the form as in Part B, Item 1.

(5) *Part B, Item 3.* Enter all three names, State, county, city or town, in or near which accident occurred.

(6) *Part B, Item 4.* Mark the appropriate box. If "other" is marked, state clearly on form what part of the pipeline system.

(7) *Part B, Item 5.* If the accident occurred in an uninhabited area, such as woods, cultivated field swamp, etc., so state clearly on the form under Item 5. If not, a sketch shall be attached to the form showing the part of the pipeline system where the accident occurred, and the location of the accident as related to significant landmarks. Each item shown on the sketch must be clearly and distinctly marked to identify it. Approximate distances from accident location to all landmarks shown on the sketch must be indicated.

(8) *Part C.* Mark the appropriate box or boxes. If applicable, more than one box shall be marked. If "other" is marked, state clearly on form the exact origin of the liquid or vapor release.

(9) *Part D.* Mark the appropriate box. If "other" is marked, clearly state the cause of the accident.

(10) *Part E.* Indicate a number under each heading including "0" if none. If any of the numbers change after the form is filed, the revised number or numbers will be filed as a supplement to the report form (see § 180.31).

(11) *Part F, Items 1 and 2.* Report only material in the pipeline system that was actually demaged such as pipe, valves, or fittings. Do not include cost of commodity which was lost due to the accident or fittings used during repair which became permanently attached to system. The dollar value of damage should be based on replacement at present day costs.

(12) *Part F, Items 3 and 4.* This is damage to property other than that of the carrier. Dollar value must be actual or the best estimate available.

(13) *Part G, Item 1.* State the commonly used name of the commodity, such as fuel oil, regular gasoline, liquefied petroleum gas, etc. If the commodity name is one not commonly used, state the name here and give a brief description of it under "Account of Accident by Responsible Official of Carrier."

(14) *Part G, Item 3.* State the year installed or the best estimate possible. Pipe is excluded as the year of installation is required in Item 4 of Part H.

(15) *Part H.* Mark appropriate boxes and state information required in all items of this Part H only if the accident occurred in line pipe. If the accident occurred in any other part of the pipeline system, omit this Part H.

(16) *Part I.* Mark appropriate boxes and state information required in all items of this Part I if the accident was caused by corrosion in any component of the pipeline system. In Item 4, state the length of time between the type of tests, such as pipe-to-soil potential, stated in Item 5.

(17) *Part J.* Complete all three items only if the accident was caused by equipment rupturing the pipeline. In Item 2, all the information stated on the closest line marker must be shown.

(b) In the space provided after Part J, an account of the accident containing the most reliable information to which the pipeline carrier has access at the time of reporting, sufficiently detailed and complete to convey an understanding of the accident, shall be entered. This account should be continued on an extra sheet of paper if more space is needed.

(c) At the bottom of the back of DOT Form 7000–1, state the name and title of the pipeline official responsible for compiling and filing the report along with the telephone number where this official can be reached, and the date the report was completed.

§ 180.30 Filing of accident report on DOT Form 7000–1.

(a) A report of each accident shall be prepared in compliance with § 180.28. Two copies of each such report shall be filed as soon as practicable, but no later than 15 days after discovery of the accident, with the Administrator, Federal Railroad Administration, Department of Transportation, Washington, D.C. 20591. The carrier shall retain a copy of each accident report.

§ 180.31 Changes in or additions to accident report.

(a) Changes or additions to the original report on DOT Form 7000–1 shall be filed immediately upon receipt of such information by the carrier with the Administrator, Federal Railroad Administration, as shown in § 180.30, as a supplement to the form.

§ 180.32 Immediate notice of fatal accidents.

(a) Whenever a reportable accident results in the death of any person at the time of the accident or prior to the filing of DOT Form 7000–1, the pipeline carrier shall immediately transmit notice of such accident by telegraph or telephone to the Administrator, Federal Railroad Administration, as indicated in § 180.30. The notice shall include at least the following information:

(1) Name and address of the pipeline carrier.

(2) Date, time, and exact location of the accident.

(3) The number of persons killed and the number injured.

(4) Brief description of accident.

§ 180.33 Deaths occurring before filing report.

(a) In addition to the requirements of § 180.32, every death shall be reported on DOT Form 7000–1 whether it occurs at the time of the accident or subsequently if such deaths occur prior to the filing of said accident report form.

§ 180.34 Notice of death occurring after filing report.

(a) Whenever any accident results in the death of any person after filing of DOT Form 7000–1, notice of such deaths shall be given in writing within 24 hours after death becomes known to the pipeline carrier as a supplement to the form and shall be filed with the Administrator, Federal Railroad Administration, as indicated in § 180.30. Such filing shall include the following information:

(1) Name and address of the pipeline carrier.

(2) Date and location of the accident.

(3) Name and age of the deceased.

§ 180.35 Carrier to assist in investigation.

(a) If an investigation is made by the Department subsequent to a reportable accident, the pipeline carrier involved in said accident shall make available to the duly authorized representative or representatives of the Department all records and information which in any way pertain to the accident, and shall afford all reasonable assistance in the investigation of any such accident.

§ 180.36 Supplies of accident report DOT Form 7000–1.

(a) For the purpose of compliance with the regulations in this part, every pipeline carrier shall provide and maintain an adequate supply of DOT Form 7000–1 to enable prompt reporting of accidents. The Department will, upon request, furnish specimen copies of the form.

It is further ordered, That this order shall become effective September 6, 1967, and shall remain in effect until further order of the Administrator, Federal Railroad Administration;

It is further ordered, That compliance with the herein prescribed and amended regulations is hereby authorized on and after the date of service of this order;

And it is further ordered, That copies of this order be served upon all parties of record herein, and that notice shall be given to the general public by filing a copy thereof with the Director, Office of the Federal Register.

Issued in Washington, D.C., on June 16, 1967.

[SEAL] A. SCHEFFER LANG,
Administrator,
Federal Railroad Administration.

[F.R. Doc. 67-7369; Filed, June 28, 1967; 8:51 a.m.]

[S.O. 948; Amdt. 7]

PART 195—CAR SERVICE

Chicago, Rock Island and Pacific Railroad Co. Authorized to Operate Over Trackage of Union Pacific Railroad

At a session of the Interstate Commerce Commission, Railroad Service Board, held in Washington, D.C., on the 22d day of June 1967.

Upon further consideration of Service Order No. 948 (29 F.R. 564, 5757, 18426; 30 F.R. 8269, 16005; 31 F.R. 8872, 16151), and good cause appearing therefor:

It is ordered, That § 195.948 *Service Order No. 948* (The Chicago, Rock Island and Pacific Railroad Co. authorized to operate over trackage of Union Pacific Railroad) be, and it is hereby amended by substituting the following paragraph (d) for paragraph (d) thereof:

(d) *Expiration date.* This order shall expire at 11:59 p.m., December 31, 1967, unless otherwise modified, changed, or suspended by order of this Commission.

Effective date. This amendment shall become effective at 11:59 p.m., June 30, 1967.

(Secs. 1, 12, 15, 24 Stat. 379, 383, 384, as amended; 49 U.S.C. 1, 12, 15, 17(2). Interprets or applies secs. 1(10–17), 15(4), and 17(2), 40 Stat. 101, as amended, 54 Stat. 911; 49 U.S.C. 1(10–17), 15(4), and 17(2))

It is further ordered, That copies of this order and direction shall be served upon the State Corporation Commission of Kansas and upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order shall be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D.C., and by filing it with the Director, Office of the Federal Register.

By the Commision, Railroad Service Board.

[SEAL] H. NEIL GARSON,
Secretary.

[F.R. Doc. 67-7402; Filed, June 28, 1967; 8:49 a.m.]

[S.O. 949; Amdt. 7]

PART 195—CAR SERVICE

Atchison, Topeka and Santa Fe Railway Co. Authorized To Operate Over Trackage of Union Pacific Railroad

At a session of the Interstate Commerce Commission, Railroad Service

Board, held in Washington, D.C., on the 22d day of June 1967.

Upon further consideration of Service Order No. 949 (29 F.R. 564, 5757, 18427; 30 F.R. 8269, 16006; 31 F.R. 8872, 16152) and good cause appearing therefor:

It is ordered, That § 195.949 *Service Order No. 949* (The Atchison, Topeka and Santa Fe Railway Co. authorized to operate over trackage of Union Pacific Railroad) be, and it is hereby amended by substituting the following paragraph (d) for paragraph (d) thereof:

(d) *Expiration date.* This order shall expire at 11:59 p.m., December 31, 1967, unless otherwise modified, changed or suspended by order of this Commission.

Effective date. This amendment shall become effective at 11:59 p.m., June 30, 1967.

(Secs. 1, 12, 15, and 17(2), 24 Stat. 379, 383, 384, as amended; 49 U.S.C. 1, 12, 15, and 17(2). Interprets or applies secs. 1(10–17), 15(4), and 17(2), 40 Stat. 101, as amended, 54 Stat. 911; 49 U.S.C. 1(10–17), 15(4), and 17(2))

It is further ordered, That copies of this order and direction shall be served upon the State Corporation Commission of Kansas and upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement, and that notice of this order shall be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D.C., and by filing it with the Director, Office of the Federal Register.

By the Commission, Railroad Service Board.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 67-7403; Filed, June 28, 1967; 8:50 a.m.]

[S.O. 950; Amdt. 6]

PART 195—CAR SERVICE

Chicago, Burlington & Quincy Railroad Co. Authorized To Operate Over Trackage of Union Pacific Railroad

At a session of the Interstate Commerce Commission, Railroad Service Board, held in Washington, D.C., on the 22d day of June 1967.

Upon further consideration of Service Order No. 950 (29 F.R. 565, 5757, 18427; 30 F.R. 8163, 16006; 31 F.R. 16152) and good cause appearing therefor:

It is ordered, That § 195.950 *Service Order No. 950* (The Chicago, Burlington & Quincy Railroad authorized to operate over trackage of Union Pacific Railroad) be, and it is hereby amended by substituting the following paragraph (d) for paragraph (d) thereof:

(d) *Expiration date.* This order shall expire at 11:59 p.m., December 31, 1967, unless otherwise modified, changed, or suspended by the order of this Commission.

Effective date. This amendment shall become effective at 11:59 p.m., June 30, 1967.

(Secs. 1, 12, 15, and 17(2), 24 Stat. 379, 383, 384, as amended; 49 U.S.C. 1, 12, 15, and 17(2). Interprets or applies secs. 1(10–17), 15(4), and 17(2), 40 Stat. 101, as amended 54 Stat. 911; 49 U.S.C. 1(10–17), 15(4), and 17(2))

It is further ordered, That copies of this order and direction shall be served upon the State Corporation Commission of Kansas and upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order shall be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D.C., and by filing it with the Director, Office of the Federal Register.

By the Commission, Railroad Service Board.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 67-7404; Filed, June 28, 1967; 8:50 a.m.]

SUBCHAPTER B—CARRIERS BY MOTOR VEHICLE

[No. MC-C-1 (Sub-No. 2)]

PART 270—COMMERCIAL ZONES

St. Louis, Mo.-East St. Louis, Ill., Commercial Zone

At a session of the Interstate Commerce Commission, Operating Rights Review Board Number 2, held at its office in Washington, D.C., on the 6th day of June 1967.

It appearing, that on December 30, 1964, the Commission, Operating Rights Review Board Number 2, made and filed its second report on further consideration in this proceeding, 96 M.C.C. 691, and order redefining the limits of the zone adjacent to and commercially a part of St. Louis, Mo.-East St. Louis, Ill., contemplated by section 203(b)(8) of the Interstate Commerce Act (49 U.S.C. 303(b)(8));

It further appearing, that by joint petition filed October 17, 1966, Baldor Electric Co., Keil Engineering Products, Inc., Kepro Circuit Systems, Inc., John V. Thieman (Crestwood Builders Supply Division), L. E. Sauer Machine Co., Shillington Box Textile Products Co., Bohn & Dawson, Inc., and Western Textile Products Co., seek modification so as to include an additional area within the limits of the commercial zone of St. Louis, Mo.-East St. Louis, Ill.;

and good cause appearing therefor:

It is ordered, That the proceeding be, and it is hereby, reopened for reconsideration.

It is further ordered, That § 270.3 as prescribed in the order entered in this proceeding on December 30, 1964 (49 CFR 270.3) be, and it is hereby, vacated and set aside, and the following revision is hereby substituted in lieu thereof:

§ 270.3 St. Louis, Mo.-East St. Louis, Ill.

(a) The zone adjacent to and commercially a part of St. Louis, Mo.-East St. Louis, Ill., within which transportation by motor vehicle, in interstate or foreign commerce, not under a common control, management, or arrangement for a continuous carriage to or from a point beyond the zone is partially exempt from regulation under section 203(b)(8) of the Interstate Commerce Act (49 U.S.C. 303(b)(8)), includes and is comprised of all points as follows: (1) All points within the corporate limits of St. Louis, Mo; (2) all points in St. Louis County, Mo., within a line drawn 0.5 mile south, west, and north of the following line, but not including any point north of the Meramec River and west of Kirkwood, Mo., west of the right-of-way of proposed Circumferential Expressway (Interstate Highway 244), north of a line formed by Dorsett Road and the right-of-way of the Chicago, Rock Island and Pacific Railroad, south of Lackland Avenue, or points beyond the established corporate boundaries of Kirkwood, Huntleigh, and St. Ferdinand, Mo. (except that area bounded on the east by the western boundary of Kirkwood, on the south by Marshall Road, on the west by Treecourt Avenue, and on the north by Big Bend Road): Beginning at the Jefferson Barracks Bridge across the Mississippi River and extending westerly along Missouri Highway 77 to its junction with U.S. Highway 61 Bypass, thence along U.S. Highway 61 Bypass to its junction with U.S. Highway 66, thence westerly along U.S. Highway 66, to its junction with Bowles Avenue, thence northerly along Bowles Avenue actual or projected to the Meramec River, thence easterly along the south bank of the Meramec River to a point directly south of the western boundary of Kirkwood, thence across the Meramec River to and along the western boundary of Kirkwood to Marshall Road, thence westerly along Marshall Road to its junction with Treecourt Avenue, thence northerly along Treecourt Avenue to its junction with Big Bend Road, thence easterly along Big Bend Road to the western boundary of Kirkwood, thence along the western and northern boundaries of Kirkwood to the western boundary of Huntleigh, Mo., thence along the western and northern boundaries of Huntleigh to junction U.S. Highway 66, thence in a northerly direction along U.S. Highway 66 (Lindbergh Boulevard) to its junction with Lackland Avenue, thence in a westerly direction along Lackland Avenue to its junction with the right-of-way of proposed Circumferential Expressway (Interstate Highway 244), thence in a northerly direction along said right-of-way to its junction with the right-of-way of the Chicago, Rock Island and Pacific Railroad, thence in an easterly direction along said right-of-way to its junction with Dorsett Road, thence in an easterly direction along Dorsett Road to its junction with U.S. Highway 66, thence in a northerly direction along U.S. Highway 66 to its junction with Natural Bridge

Road, thence in an easterly direction along U.S. Highway 66 to the western boundary of St. Ferdinand (Florissant), Mo., thence along the western, northern, and eastern boundaries of St. Ferdinand to junction U.S. Highway 66 and thence along U.S. Highway 66 (Taylor Road) to the corporate limits of St. Louis (near Chain of Rocks Bridge); and (3) all points within the corporate limits of East St. Louis, Belleville, Granite City, Madison, Venice, Brooklyn, National City, Fairmont City, Washington Park, and Monsanto, Ill., and that part of the Village of Cahokia, Ill., bounded by Illinois Highway 3 on the east, First Avenue and Red House (Cargill) Road on the south and southwest, the east line of the right-of-way of the Alton and Southern Railroad on the west, and the corporate limits of Monsanto, Ill., on the northwest and north.

(b) The exemption provided by section 203(b)(8) of the Interstate Commerce Act in respect of transportation by motor vehicle, in interstate or foreign commerce, between Belleville, Ill., on the one hand, and, on the other, any other point in the commercial zone, the limits of which are defined in paragraph (a) of this section, is hereby removed, and the said transportation is hereby subjected to all the applicable provisions of the Interstate Commerce Act.

(49 Stat. 543, as amended, 544, as amended, 546, as amended; 49 U.S.C. 302, 303, 304)

It is further ordered, That this order shall become effective on July 21, 1967, and shall continue in effect until the further order of the Commission.

And it is further ordered, That notice of this order shall be given to the general public by depositing a copy thereof in the office of the Secretary of the Commission, at Washington, D.C., and by filing a copy with the Director, Office of the Federal Register.

By the Commission, Operating Rights Review Board Number 2.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 67-7406; Filed, June 28, 1967; 8:50 a.m.]

Title 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[FCC 67-749]

PART 13—COMMERCIAL RADIO OPERATORS

Order Regarding Eligibility for New License

In the matter of amendment of Part 13 of the Commission's rules to provide for issuance of specially endorsed Radiotelephone Third Class Operator Permits to blind persons.

The Commission has under consideration the eligibility requirements for commercial radio operator licenses as they pertain to blind applicants who seek employment at radio broadcast stations.

The rules require that applicants for such licenses take a written examination; however, this requirement may be waived and an oral examination given to blind persons who desire to perform certain routine operating duties for which a Radiotelephone Third Class Operator Permit endorsed for broadcast is required. The privileges granted under this class license are limited and do not include the installation, service, or maintenance of transmitting equipment.

Under existing Commission procedure, however, a Radiotelephone Third Class Operator Permit is issued to a blind person who passes the examination only upon a determination that the broadcast station where the applicant proposes to work has been adapted for sightless operation. Some State agencies engaged in rehabilitation services have expressed willingness to pay the expenses necessary to adapt a broadcast station for sightless operation. These agencies have requested, however, that before making such expenditures, the candidate must be properly licensed by the Commission. To avoid this impasse, § 13.5(c) is hereby amended by adding a new section to provide that a Radiotelephone Third Class Operator Permit issued to a blind person who qualifies by oral examination shall contain the following proviso:

This license is not valid for the operation of any station licensed by the Commission unless the station has been adapted for operation by a blind person and the equipment to be used in such station for that purpose is capable of providing for operation in compliance with the Commission's rules.

The amendment herein ordered will facilitate the licensing of blind persons who qualify by examination to obtain Radiotelephone Third Class Operator Permits and will specify the endorsement to be placed on such permits. The endorsement will simply alert station licensees who are employers of licensed blind operators that the permit is valid only for use in stations which have been adapted for sightless operation. Since this amendment is a procedural change, compliance with the notice and rule making procedure prescribed by sections 4 (a) and (b) of the Administrative Procedure Act is unnecessary, and it may be made effective immediately.

It is ordered, Under authority contained in sections 4(i) and 303(r) of the Communications Act of 1934, as amended, that effective June 30, 1967, § 13.5 of the Commission's rules is amended as set forth below.

(Secs. 4, 303, 48 Stat., as amended, 1066, 1082; 47 U.S.C. 154, 303)

Adopted: June 23, 1967.
Released: June 26, 1967.

FEDERAL COMMUNICATIONS COMMISSION,[1]
[SEAL] BEN F. WAPLE, *Secretary.*

Part 13 of Chapter I of Title 47 of the Code of Federal Regulations is amended as follows:

[1] Commissioner Lee absent.

In § 13.5, a new paragraph 13.5(c)(2) is added. Current §§ 13.5(c)(2) and 13.5(c)(3) are redesignated §§ 13.5(c)(3) and 13.5(c)(4) respectively. As added, § 13.5(c)(2) reads as follows:

§ 13.5 Eligibility for new license.

* * * * *

(c) * * *

(2) If an applicant afflicted with blindness is afforded a waiver of the written examination requirement and is found qualified for a radiotelephone third class operator permit, he may be issued the permit: *Provided*, That the license so received shall bear an endorsement as follows:

This license is not valid for the operation of any station licensed by the Commission unless the station has been adapted for operation by a blind person and the equipment to be used in such station for that purpose is capable of providing for operation in compliance with the Commission's rules.

* * * * *

[F.R. Doc. 67-7389; Filed, June 28, 1967; 8:49 a.m.]

Title 41—PUBLIC CONTRACTS AND PROPERTY MANAGEMENT

Chapter 1—Federal Procurement Regulations

PART 1-16—PROCUREMENT FORMS

Revision of Performance Bond Form

This amendment of the Federal Procurement Regulations (FPR) prescribes the June 1967 edition of Standard Form 25, Performance Bond. The new edition of the form was made necessary by section 105(b) of Public Law 89-719 which amended the Miller Act (40 U.S.C. 270a-270e) to require that performance bonds required under that act provide coverage for taxes imposed by the United States which are collected, deducted, or withheld from wages paid by contractors in carrying out the contracts with respect to which such bonds are furnished. The FPR amendment also authorizes changes in and use of the June 1964 edition of the form until stocks of the new edition of the form are available.

Subpart 1-16.8—Miscellaneous Forms

Section 1-16.801 is amended by revising paragraph (a)(2) as follows:

§ 1-16.801 Bond forms.

(a) * * *

(2) Performance Bond (Standard Form 25, June 1967 edition).

* * * * *

Subpart 1-16.9—Illustrations of Forms

Section 1-16.901-25 is revised to illustrate the June 1967 edition of Standard Form 25, as follows:

§ 1–16.901–25 Standard Form 25: Performance Bond.

(a) Page 1 of Standard Form 25.

STANDARD FORM 25
JUNE 1967 EDITION
GENERAL SERVICES ADMINISTRATION
FED. PROC. REG. (41 CFR) 1–16.901

PERFORMANCE BOND
(See Instructions on reverse)

DATE BOND EXECUTED *(Must be same or later than date of contract)*

PRINCIPAL *(Legal name and business address)*

TYPE OF ORGANIZATION *("X" one)*

☐ INDIVIDUAL ☐ PARTNERSHIP
☐ JOINT VENTURE ☐ CORPORATION

STATE OF INCORPORATION

SURETY(IES) *(Name(s) and business address(es))*

PENAL SUM OF BOND

MILLION(S)	THOUSAND(S)	HUNDRED(S)	CENT(S)

CONTRACT DATE | CONTRACT NO.

KNOW ALL MEN BY THESE PRESENTS, That we, the Principal and Surety(ies) hereto, are firmly bound to the United States of America (hereinafter called the Government) in the above penal sum for the payment of which we bind ourselves, our heirs, executors, administrators, and successors, jointly and severally: *Provided*, That, where the Sureties are corporations acting as co-sureties, we, the Sureties, bind ourselves in such sum "jointly and severally" as well as "severally" only for the purpose of allowing a joint action or actions against any or all of us, and for all other purposes each Surety binds itself, jointly and severally with the Principal, for the payment of such sum only as is set forth opposite the name of such Surety, but if no limit of liability is indicated, the limit of liability shall be the full amount of the penal sum.

THE CONDITION OF THIS OBLIGATION IS SUCH that whereas the Principal entered into the contract identified above;

NOW, THEREFORE, if the Principal shall

(a) Perform and fulfill all the undertakings, covenants, terms, conditions, and agreements of said contract during the original term of said contract and any extensions thereof that may be granted by the Government, with or without notice to the Surety(ies), and during the life of any guaranty required under the contract, and shall also perform and fulfill all the undertakings, covenants, terms, conditions, and agreements of any and all duly authorized modifications of said contract that may hereafter be made, notice of which modifications to the Surety(ies) being hereby waived; and

(b) If the said contract is subject to the Miller Act, as amended (40 U.S.C. 270a–270e), pay to the Government the full amount of the taxes imposed by the Government which are collected, deducted, or withheld from wages paid by the Principal in carrying out the construction contract with respect to which this bond is furnished; then the above obligation shall be void and of no effect.

IN WITNESS WHEREOF, the Principal and Surety(ies) have executed this performance bond and have affixed their seals on the date set forth above.

PRINCIPAL			
Signature(s)	1. (Seal)	2. (Seal)	Corporate Seal
Name(s) & Title(s) (Typed)	1.	2.	
INDIVIDUAL SURETY(IES)			
Signature(s)	1. (Seal)	2. (Seal)	
Name(s) (Typed)	1.	2.	
CORPORATE SURETY(IES)			
SURETY A — Name & Address		STATE OF INC. / LIABILITY LIMIT	Corporate Seal
SURETY A — Signature(s)	1.	2.	
SURETY A — Name(s) & Title(s) (Typed)	1.	2.	

SPECIMEN

(b) Page 2 of Standard Form 25.

CORPORATE SURETY(IES) (Continued)

SURETY B — Name & Address		STATE OF INC. / LIABILITY LIMIT	Corporate Seal
SURETY B — Signature(s)	1.	2.	
SURETY B — Name(s) & Title(s) (Typed)	1.	2.	
SURETY C — Name & Address		STATE OF INC. / LIABILITY LIMIT	Corporate Seal
SURETY C — Signature(s)	1.	2.	
SURETY C — Name(s) & Title(s) (Typed)	1.	2.	
SURETY D — Name & Address		STATE OF INC. / LIABILITY LIMIT	Corporate Seal
SURETY D — Signature(s)	1.	2.	
SURETY D — Name(s) & Title(s) (Typed)	1.	2.	
SURETY E — Name & Address		STATE OF INC. / LIABILITY LIMIT	Corporate Seal
SURETY E — Signature(s)	1.	2.	
SURETY E — Name(s) & Title(s) (Typed)	1.	2.	
SURETY F — Name & Address		STATE OF INC. / LIABILITY LIMIT	Corporate Seal
SURETY F — Signature(s)	1.	2.	
SURETY F — Name(s) & Title(s) (Typed)	1.	2.	
SURETY G — Name & Address		STATE OF INC. / LIABILITY LIMIT	Corporate Seal
SURETY G — Signature(s)	1.	2.	
SURETY G — Name(s) & Title(s) (Typed)	1.	2.	

SPECIMEN

BOND PREMIUM ▶	RATE PER THOUSAND $	TOTAL $

INSTRUCTIONS

1. This form is authorized for use in connection with contracts for construction work or the furnishing of supplies or services. There shall be no deviation from this form without approval by the Administrator of General Services.

2. The full legal name and business address of the Principal shall be inserted in the space designated "Principal" on the face of this form. The bond shall be signed by an authorized person. Where such person is signing in a representative capacity (e.g., an attorney-in-fact), but is not a member of the firm, partnership, or joint venture, or an officer of the corporation involved, evidence of his authority must be furnished.

3. (a) Corporations executing the bond as sureties must be among those appearing on the Treasury Department's list of approved sureties and must be acting within the limitations set forth therein. Where more than a single corporate surety is involved, their names and addresses (city and State) shall be inserted in the spaces (Surety A, Surety B, etc.) headed "CORPORATE SURETY(IES)", and in the space designated "SURETY(IES)" on the face of this form only the letter identification of the Sureties shall be inserted.

(b) Where individual sureties execute the bond, they shall be two or more responsible persons. A completed Affidavit of Individual Surety (Standard Form 28), for each individual surety, shall accompany the bond. Such sureties may be required to furnish additional substantiating information concerning their assets and financial capability as the Government may require.

4. Corporations executing the bond shall affix their corporate seals. Individuals shall execute the bond opposite the word "Seal"; and, if executed in Maine or New Hampshire, shall also affix an adhesive seal.

5. The name of each person signing this performance bond should be typed in the space provided.

★ U.S. GOVERNMENT PRINTING OFFICE : 1967 O—255-154

(Sec. 205(c), 63 Stat. 390; 40 U.S.C. 486(c))

Modification of Standard Form 25 (June 1964 edition). Pending the availability of stocks of the June 1967 edition of Standard Form 25, the requirement for use of the form may be satisfied by modifying the language on the face of the June 1964 edition of the form (including the use of an attachment, as necessary) in the following manner. Change the provision beginning "Now, Therefore" as follows:

(a) In line 1, change "shall perform" to "shall: (a) Perform".

(b) In line 6, revise the line to read "Surety(ies) being hereby waived; and".

(c) Add additional lines as necessary to read "(b) If the said contract is subject to the Miller Act, as amended (49 Stat. 793; 40 U.S.C. 270a–270e), pay to the Government the full amount of the taxes imposed by the Government which are collected, deducted, or withheld from wages paid by the Principal in carrying out the construction contract with respect to which this bond is furnished; then the above obligation shall be void and of no effect."

Effective date. This amendment is effective with respect to contracts entered into pursuant to invitations for bids and requests for proposals issued after June 30, 1967.

Dated: June 21, 1967.

J. E. MOODY,
Acting Administrator of General Services.

[F.R. Doc. 67-7251; Filed, June 28, 1967; 8:45 a.m.]

Chapter 11—Coast Guard, Department of Transportation

[CGFR 67-41]

MISCELLANEOUS AMENDMENTS TO CHAPTER

Pursuant to authority vested in me as Commandant, U.S. Coast Guard, by 49 CFR 1.4:

PART 11-1—GENERAL

Subpart 11-1.3—General Policies

Section 11-1.318 is revised to read as follows:

§ 11-1.318 Contracting officer's decision under a disputes clause.

(a) When a final decision of the contracting officer concerns a dispute that is or may be subject to the Disputes clause, include the following as the last paragraph in the decision in lieu of the paragraph set forth in § 1-1.318(a) of this title.

This decision is made in accordance with the Disputes clause and shall be final and conclusive as provided therein, unless, within 30 days from the date of receipt of this decision, a written notice of appeal is mailed or otherwise furnished to the contracting officer addressed to the Secretary of Transportation. The contractor shall sign the notice of appeal, identify the contract involved and the decision appealed from, and state that he is appealing from that decision. A general letter of complaint objecting to some action taken may be considered not to be a notice of appeal. The notice should be in triplicate, specify the part or parts of the decision from which the appeal is taken, and should state the reason why those parts are erroneous. The rules of the Department of Transportation Contract Appeals Board are set forth in 41 CFR 12-60.

(b) See Chapter 1 of this title.

(14 U.S.C. 633, 10 U.S.C. Ch. 137)

PART 11-60—CONTRACT DISPUTE APPEALS

New subpart 11-60.5 is added, reading as follows:

Subpart 11-60.5—Department of Transportation, Contract Appeals Board

§ 11-60.500 Effective date and applicability.

Part 12-60 of this title established the Department of Transportation Contract Appeals Board, prescribes its functions and procedures, provides for the appointment of a chairman and members of the Board, and authorizes the members of the Board to act. The regulations in Part 12-60 of this title became effective on May 27, 1967, and shall apply to all contracts "dispute" cases wherein appeal from the contracting officer's decision is taken on and after such effective date. The contract appeals rules contained in this Subpart 11-60, shall be applicable to all cases pending prior to said effective date of the rules in Part 12-60 of this title except to the extent that the Board determines that the rules contained in Part 12-60 shall apply.

(14 U.S.C. 633, 10 U.S.C. Ch. 137)

Dated: June 21, 1967.

W. J. SMITH,
Admiral, U.S. Coast Guard, Commandant.

[F.R. Doc. 67-7361; Filed, June 28, 1967; 8:47 a.m.]

Title 50—WILDLIFE AND FISHERIES

Chapter I—Bureau of Sport Fisheries and Wildlife, Fish and Wildlife Service, Department of the Interior

PART 32—HUNTING

San Andres National Wildlife Refuge, N. Mex.

The following special regulation is issued and is effective on date of publication in the FEDERAL REGISTER.

§ 32.32 Special regulations; big game; for individual wildlife refuge areas.

NEW MEXICO

SAN ANDRES NATIONAL WILDLIFE REFUGE

Public hunting of deer (either sex) on the San Andres National Wildlife Refuge, N. Mex., is permitted from December 9, through December 10, 1967, inclusive, only on the area designated by signs as open to hunting. This area, comprising 57,215 acres, is delineated on maps available at refuge headquarters, Las Cruces, N. Mex., and from the Regional Director, Bureau of Sport Fisheries and Wildlife, Post Office Box 1306, Albuquerque, N. Mex. 87103. Hunting shall be in accordance with all applicable State regulations covering the hunting of deer, subject to the following special conditions:

(1) Hunters must check in and out in person at the check station at the junction of U.S. 70 and Jornada Road. The check station will be open to allow hunters to start checking in during the late afternoon of December 8, 1967. Time of entry to the hunting area will be at the discretion of the conservation officer in charge. Any entry permits required by the military authorities will be available at the check station. All hunters must check out no later than 10 p.m., December 10, 1967.

(2) No entry into the hunting area from the west will be permitted north of the Rope Springs road. Hunters will also not be permitted to enter the east side of the San Andres Range except at the discretion of the conservation officer in charge.

(3) The conservation officer in charge may restrict the number of hunters entering any one area. If required by the firing schedule, hunters will be cleared from all areas whereon their safety is endangered.

The provisions of this special regulation supplement the regulations which govern hunting on wildlife refuge areas generally which are set forth in Title 50, Code of Federal Regulations, Part 32, and are effective through December 10, 1967.

CECIL A. KENNEDY,
Refuge Manager, San Andres National Wildlife Refuge, Las Cruces, N. Mex.

JUNE 26, 1967.

[F.R. Doc. 67-7341; Filed, June 28, 1967; 8:45 a.m.]

Proposed Rule Making

DEPARTMENT OF THE INTERIOR

National Park Service

[36 CFR Part 7]

CAPE HATTERAS NATIONAL SEASHORE, N.C.

Aircraft, Camping, etc.

Notice is hereby given that pursuant to the authority contained in section 3 of the Act of August 25, 1916 (39 Stat. 535), 245 DM–1 (27 F.R. 6395), National Park Service Order No. 34 (31 F.R. 4255), Regional Director, Southeast Region Order No. 4 (31 F.R. 8135), as amended, it is proposed to revise § 7.58 of Title 36 of the Code of Federal Regulations as set forth below.

The purpose of this revision is to: (1) Designate the Billy Mitchell Airstrip as an authorized landing area; (2) to limit the time allowed for camping in order to insure the availability of camping facilities to the public; (3) to control commercial fishing permitted by the Act of August 17, 1937; (4) to control the use of firearms; (5) to protect the natural resources and provide for the protection of geological, historical and archeological objects; (6) to control the use of vehicles on the beach; (7) to control overnight stays on vessels at designated mooring facilities; (8) to eliminate material on speed limits which is no longer needed; and (9) to update the regulations concerning hunting within the Seashore.

It is the policy of the Department of the Interior, whenever practicable, to afford the public an opportunity to participate in the rule making process. Accordingly, interested persons may submit written comments, suggestions, or objections with respect to the proposed revision, to the Superintendent, Cape Hatteras National Seashore, Post Office Box 457, Manteo, N.C. 27954, within 30 days of the date of publication of this notice in the FEDERAL REGISTER.

(5 U.S.C. 553; 39 Stat. 535; 16 U.S.C. 3; 50 Stat. 669; 54 Stat. 702; 16 U.S.C. 459a–1)

THOMAS W. MORSE,
Acting Superintendent.

Section 7.58 of Title 36 of the Code of Federal Regulations is revised to read as follows:

§ 7.58 Cape Hatteras National Seashore.

(a) *Aircraft; designated airstrip.* (1) Billy Mitchell Airstrip, located approximately 6 miles southwest of Cape Hatteras Lighthouse on Hatteras Island, N.C.

(b) *Boats.* No person shall stay overnight on a vessel moored at a designated mooring facility unless permission is first obtained in writing from the Superintendent.

(c) *Camping.* Camping is permitted in Cape Hatteras National Seashore for not more than a total of 30 days in any calendar year: *Provided, however,* That during the period from May 15 through September 15, inclusive, camping is limited to not more than a total of 12 days.

(d) *Commercial fishing.* (1) Commercial fishing is prohibited from any section of the beach which is closed to vehicular traffic.

(2) Commercial fishing without a permit is prohibited. Commercial fishermen may obtain an annual permit (on a calendar year basis), which shall be issued only to legal residents of the villages specified in section 1 of the Act of August 17, 1937 (50 Stat. 669).

(3) Commercial fishermen shall not set nets within 200 yards of any person engaged in sport fishing.

(4) Camping and the erection of tents or other structures on the beach in connection with commercial fishing operations is prohibited.

(e) *Firearms, traps and other weapons.* (1) The use of traps, hand-thrown spears, nets (except landing nets and seines used in fishing), firearms (including air and gas powered pistols and rifles), blow guns, bows and arrows or crossbows, and other implements designed to discharge missiles in the air or under the water which are capable of destroying animal life is prohibited. The possession of such objects or implements is prohibited, unless they are unloaded and adequately cased, broken down or otherwise packed in such a way as to prevent their use while in the area.

(2) The provisions of this paragraph do not apply to the use of shotguns while a person is engaged in the legal hunting of waterfowl as provided under paragraph (i) of this section.

(3) Federal, State, county, or municipal law enforcement officers are permitted to carry firearms within the Seashore when in the performance of their official duties.

(f) *Fishing.* Sports fishermen shall not fish within 200 yards of commercial fishing operations.

(g) *Protection of resources.* (1) The cutting, breaking, tearing, removal or possession of any tree, shrub, or plant or part thereof, except driftwood and such fruits and berries as may be designated by the Superintendent, is prohibited. Driftwood, fruits, and berries shall be gathered only by hand for personal use, and not for sale or other commercial purposes.

(2) The use of any mineral or metal detecting device capable of detecting the underground or underwater location of geological, archeological, or historical objects is prohibited. The provisions of this section do not apply to fathometers, radar equipment, and electronic equipment used primarily for the navigation and safe operation of boats and aircraft.

(h) *Vehicular travel.* (1) License and registration: Every motor vehicle operated within the Seashore must be registered and shall carry and display a current license plate of the State or country in which it has been registered. The operator of every motor vehicle must have a valid operator's license.

(2) Only four-wheel drive vehicles and beach buggies not engaged in commercial operations may be operated on the seashore beaches. No such authorized vehicle shall be so operated until a permit therefor has been issued by the Superintendent. The term "commercial operation" does not include commercial fishing from the beach.

(3) Vehicular travel on the beach is permitted only on that portion of the beach which lies between the foot of the barrier dune and the ocean.

(4) All access to the beach by vehicles shall be by and on established routes and via ramps constructed by the Service. Driving off the established routes, or so-called dune driving is prohibited.

(5) All vehicular travel on the beach, except for vehicular travel connected with commercial fishing operations, is prohibited between the hours of sunset and sunrise.

(6) During the period May 20 to September 10, the following sections of the beach are closed to all vehicular traffic:

(i) Bodie Island, except that tip which lies south of the Oregon Inlet campground and adjacent beach as marked;

(ii) Protected swimming areas and those portions of the beach adjacent to or opposite designated campgrounds;

(iii) An area starting at the north boundary of the Village of Buxton and extending south to a point opposite Cape Hatteras light;

(iv) An area starting at the north boundary of the village of Hatteras and extending south approximately one-half mile, as posted.

(7) The Superintendent may, by marking on a map which is available for public inspection at the office of the Superintendent, designate additional areas or adjust the boundaries of the areas listed in subparagraph (6) of this paragraph which are closed to vehicular travel, when necessary for reasons of public safety.

(8) Sitting or standing on fenders, tailgates, roofs or other portions of the exterior vehicle body while the vehicle is in motion is prohibited.

(9) Operating a motor vehicle which is so loaded, or when there are in the front seat such a number of persons, exceeding three (3), as to obstruct the view of the operator to the front or sides of the vehicle or so as to interfere with the operator's control over the driving mechanism, is prohibited.

(10) The speed of vehicles operated on the beach or access routes shall not exceed 20 miles per hour.

(11) All vehicles shall proceed with due caution, taking into account the presence of persons using the beach. All vehicles approaching any person on foot shall slow down, detour around, or take whatever other measures are necessary to protect the safety of the person on foot.

(12) Vehicular traffic on the beaches, except as provided in this paragraph, shall be otherwise controlled by the provisions of Part 4 of this chapter.

(i) *Wildlife-hunting.* (1) Except as otherwise provided in this section, the hunting, killing, wounding, frightening, capturing, or attempting to kill, wound, frighten, or capture, at any time of any wildlife, or the feeding, touching, teasing, molesting, or intentionally disturbing any wildlife or nesting and related activities or phenomena thereof is prohibited.

(2) Hunting of Canada Geese, Ducks, and Coots is permitted in accordance with the provisions of the Migratory Bird Treaty Act and the Migratory Bird Hunting Regulations of the Secretary of the Interior, and the laws and regulations of the State of North Carolina, and the following special provisions.

(3) Hunting is permitted only on the following lands:

Ocracoke Island, except Ocracoke Village.

Hatteras Island—a strip measuring 250 feet eastward from the highwater mark of Pamlico Sound between the Villages of Salvo and Avon.

Hatteras Island—a strip measuring 250 feet eastward from the highwater mark of Pamlico Sound between the Villages of Avon and Buxton.

Hatteras Island—a strip consisting of the marshlands only starting at a point near the east end of the Buxton Woods "Open Ponds" and continuing westerly to a point approximately one-half mile north of the Frisco Campground, as posted and as shown on a map in the Hatteras District Ranger's office.

Bodie Island—1,000 acres consisting of the marsh lands containing the fresh water ponds, lying to the west of a line 500 feet west of and parallel to the park entrance road and between the north dike of the former Goose-Wing Gun Club property on the north and the north boundary of the former Dare County tract on the south.

(4) Hunting on Bodie Island is permitted only from permanent blinds provided by the National Park Service. Temporary blinds may be used on Hatteras and Ocracoke Islands.

(5) Blinds on Seashore lands shall be no less than 300 yards apart.

(6) Jump shooting of waterfowl is prohibited except on Hatteras and Ocracoke Islands and is prohibited within 300 yards of any blind.

(7) A daily drawing for blind assignments at Bodie Island will be made at the game checking station approximately 1 hour before permissible shooting time which will be announced annually by the Superintendent. Drawings must be made by the person holding the reservation.

(8) Advance requests for reservations may be made only through the U.S. mail. Requests postmarked prior to 12:01 a.m., September 25, will not be accepted. The postmarked date and hour of mailing will govern the order of drawing. The maximum number of reservations by any person may not exceed 3 consecutive days in any 1 calendar week and not more than a total of 6 days for the season. Reservations shall have priority over nonreservations at drawing time. In the event a reservation is to be canceled, the Superintendent shall be informed by the holder of the reservation at least 12 hours in advance of the drawing time for the date or dates of cancellation. Failure of any party to so notify the Superintendent of cancellation will result in cancellation of the remaining reservations in the party's name.

(9) The first departure from a blind by a person terminates his reservation and hunting privilege within Bodie Island for the day. Vacating persons must check out through the official checking station.

(10) All persons hunting on designated lands within the Seashore must be out of the hunting area within 1 hour after sunset. Possession of game or firearms within the designated area after that hour is prohibited.

(11) Parties in blinds are limited to two hunters and two guns. One guest may be present but may not hunt.

(12) Only one hunter per pair may draw for a blind. The Superintendent may assign an additional hunter to any blind containing only one hunter.

(13) Hunters must leave the blinds in a clean and sanitary condition.

(14) Hunters taking banded waterfowl shall turn in the bands at the checking station or nearest ranger station.

(15) Provisions of this hunting regulation will be enforced in cooperation with Game Management Agents of the U.S. Fish and Wildlife Service and Wildlife Protectors of the State of North Carolina.

[F.R. Doc. 67-7350; Filed, June 28, 1967; 8:46 a.m.]

[36 CFR Part 7]

MOUNT RUSHMORE NATIONAL MEMORIAL, S. DAK.

Climbing Prohibition

Notice is hereby given that pursuant to the authority contained in section 3 of the Act of August 25, 1916 (39 Stat. 535; 16 U.S.C. 3), 245 DM-1 (27 F.R. 6395), National Park Service Order No. 34 (31 F.R. 4255), Regional Director, Midwest Region Order No. 4 (31 F.R. 5169), as amended, it is proposed to amend Part 7 of Title 36, Code of Federal Regulations, as is set forth below. The purpose of this amendment is to prohibit the climbing of Mount Rushmore in order to prevent injury to the visitor, and possible damage to the sculpture.

It is the policy of the Department of the Interior whenever practicable, to afford the public an opportunity to participate in the rule making process. Accordingly, interested persons may submit written comments, suggestions, or objections with respect to the proposed amendment to the Superintendent, Mount Rushmore National Memorial, Keystone, S. Dak. 57751, within 30 days of the date of publication of this notice in the FEDERAL REGISTER.

(5 U.S.C. 553; 39 Stat. 535; 16 U.S.C. 3)

A new § 7.77 is added to Part 7 of Title 36 CFR, reading as follows:

§ 7.77 Mount Rushmore National Memorial.

(a) Climbing Mount Rushmore is prohibited.

WALLACE O. MCCAW,
Superintendent,
Mount Rushmore National Memorial.

[F.R. Doc. 67-7349; Filed, June 28, 1967; 8:46 a.m.]

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Social Security Administration

[20 CFR Part 401]

[Reg. No. 1]

DISCLOSURE OF INFORMATION

Protection of National Security

Notice is hereby given, pursuant to the Administrative Procedure Act approved June 11, 1946, that the amendment to the regulation set forth in tentative form below is proposed by the Commissioner of Social Security, with the approval of the Secretary of Health, Education, and Welfare. The proposed regulation relates to disclosure of official records and information of the Social Security Administration.

At present, § 401.3(i)(4) of the regulation of the Social Security Administration authorizes the disclosure of information to the Federal Bureau of Investigation of the Department of Justice where such information is required in an investigation of major importance involving the commission of an act of espionage or sabotage inimical to the national security. The proposed regulation broadens this authorization to permit the Social Security Administration to disclose information in its records, under similar conditions, to a central official of the U.S. Secret Service charged with responsibility for protecting the national security where the information is required to enable the requesting agency to discharge such responsibility.

Prior to the final adoption of the proposed amendment, consideration will be given to any data, views, or arguments pertaining thereto which are submitted in writing in duplicate to the Commissioner of Social Security, Department of Health, Education, and Welfare Building, Fourth and Independence Avenue SW., Washington, D.C. 20201, within a period of 30 days from the date of publication of this notice in the FEDERAL REGISTER.

The proposed amendment is to be issued under the authority contained in sections 205, 1102, and 1106, 53 Stat. 1368, as amended; 49 Stat. 647, as

amended; 53 Stat. 1398, as amended; section 5 of Reorganization Plan No. 1 of 1953, 67 Stat. 18, 631; 42 U.S.C. 405, 1302, and 1306.

Dated: June 12, 1967.

[SEAL] ROBERT M. BALL,
Commissioner of Social Security.

Approved: June 23, 1967.

WILBUR J. COHEN,
Acting Secretary of Health, Education, and Welfare.

Regulation No. 1 of the Social Security Administration, as amended (20 CFR 401.1 et seq.) is further amended to read as follows:

Section 401.3(i)(4) is amended to read as follows:

§ 401.3 Information which may be disclosed and to whom.

Disclosure of any such file, record, report, or other paper, or information, is hereby authorized in the following cases and for the following purposes:

* * * * *

(i) To any officer, agency, establishment, or department of the Federal Government, charged with the duty of conducting an investigation or prosecution, for the purpose of such an investigation or prosecution involving:

* * * * *

(4) An inquiry relating to the commission or threatened commission of an act of espionage or sabotage or other similar act inimical to the national security: *Provided*, That such information shall be disclosed only to the Federal Bureau of Investigation or the U.S. Secret Service and only upon written certification by a central official of the requesting agency that the information requested is required in an investigation of major importance to enable it to discharge its statutory responsibility for protecting the national security.

* * * * *

[F.R. Doc. 67-7376; Filed, June 28, 1967; 8:48 a.m.]

DEPARTMENT OF TRANSPORTATION

Federal Aviation Administration

[14 CFR Part 23]

[Docket No. 8083; Notice 67-14A]

SMALL AIRPLANES

Type Certification Standards; Extension of Comment Period

The Federal Aviation Administration proposed in Notice 67-14, published in the FEDERAL REGISTER on April 11, 1967 (32 F.R. 5791), to amend Part 23 of the Federal Aviation Regulations to revise the type certification standards for small airplanes. The notice stated that consideration would be given to all comments received on or before July 8, 1967.

The Aerospace Industries Association of America has requested a 60-day extension of time for submission of comments. They point out that the proposal is long and complex and that the extension is required in order to provide industry comments having the degree of completeness necessary to achieve the FAA's objective.

I find that the petitioner has shown a substantive interest in the proposed rule, that good cause exists for the extension, and that the extension is consistent with the public interest.

Therefore, pursuant to the authority delegated to me by the Administrator (14 CFR 11.45), the time within which comments on Notice 67-14 will be received is extended to September 9, 1967.

Issued in Washington, D.C., on June 23, 1967.

JAMES F. RUDOLPH,
Acting Director,
Flight Standards Service.

[F.R. Doc. 67-7367; Filed, June 28, 1967; 8:47 a.m.]

[14 CFR Part 71]

[Airspace Docket No. 67-WE-37]

FEDERAL AIRWAY

Proposed Designation

The Federal Aviation Administration is considering an amendment to Part 71 of the Federal Aviation Regulations that would designate a Federal airway from Boysen Reservoir, Wyo., via a VOR to be commissioned about October 12, 1967, in the vicinity of Worland, Wyo., at approximate latitude 43°57'51'' N., longitude 107°57'00'' W., to the Cody, Wyo., VOR. The Cody VOR will be commissioned on August 17, 1967 (32 F.R. 8405). A floor of 1,200 feet above the surface is proposed for this airway to contain the climb from the surface to the minimum en route altitude and letdown.

This action would provide controlled airspace within which air traffic service could be provided to a scheduled air carrier operating into Boysen Reservoir, Worland, and Cody.

Interested persons may participate in the proposed rule making by submitting such written data, views, or arguments as they may desire. Communications should identify the airspace docket number and be submitted in triplicate to the Director, Western Region, Attention: Chief, Air Traffic Division, Federal Aviation Administration, 5651 West Manchester Avenue, Post Office Box 90007, Airport Station, Los Angeles, Calif. 90009. All communications received within 45 days after publication of this notice in the FEDERAL REGISTER will be considered before action is taken on the proposed amendment. The proposal contained in this notice may be changed in the light of comments received.

An official docket will be available for examination by interested persons at the Federal Aviation Administration, Office of the General Counsel, Attention: Rules Docket, 800 Independence Avenue SW., Washington, D.C. 20590. An informal docket also will be available for examination at the office of the Regional Air Traffic Division Chief.

This amendment is proposed under the authority of section 307(a) of the Federal Aviation Act of 1958 (49 U.S.C. 1348).

Issued in Washington, D.C., on June 22, 1967.

J. F. BIRON,
Acting Chief, Airspace and Air Traffic Rules Division.

[F.R. Doc. 67-7366; Filed, June 28, 1967; 8:47 a.m.]

CIVIL AERONAUTICS BOARD

[14 CFR Part 302]

[Docket No. 18467; PDR-25B]

LOCAL SERVICE CARRIERS

Servicing Expense; Supplemental Notice

JUNE 26, 1967.

The Board in 32 F.R. 6714 and by circulation of PDR-25, dated April 25, 1967, gave notice that it had under consideration an amendment to Subpart K of Part 302 which would prescribe a new standardized method for use in Board proceedings for estimating the servicing expense of local service routes and route proposals. Interested persons were invited to participate in the rule making proceeding by submission of ten (10) copies of written data, views, or arguments to the Docket Section of the Board on or before June 1, 1967. On May 19, 1967, pursuant to a request by the 13 local service carriers, the Board, in PDR-25A, 32 F.R. 7635, extended the time for filing these comments 30 days.

A number of local service carriers have requested another similar extension of time in order to be able to fully evaluate possible improvements in the proposal which the Board might wish to consider.

The undersigned finds that good cause has been shown for the extension of time requested. Accordingly, pursuant to authority delegated in § 385.20(d) of the Board's Organization Regulations, effective June 21, 1967, the undersigned hereby extends the time for submitting comments to August 2, 1967.

All relevant communications received on or before August 2, 1967, will be considered by the Board before taking action on the proposed rule. Copies of these communications will be available for examination in the Docket Section, Room 710, Universal Building, 1825 Connecticut Avenue NW., Washington, D.C., upon receipt thereof.

(Sec. 204(a), Federal Aviation Act of 1958, as amended; 72 Stat. 743; 49 U.S.C. 1324)

By the Civil Aeronautics Board.

[SEAL] ARTHUR H. SIMMS,
Associate General Counsel,
Rules and Rates Division.

[F.R. Doc. 67-7380; Filed, June 28, 1967; 8:48 a.m.]

SECURITIES AND EXCHANGE COMMISSION

[17 CFR Part 240]

[Release No. 34-8106]

REPORTS OF DIRECTORS, OFFICERS, AND PRINCIPAL STOCKHOLDERS

Notice of Proposed Rule Making

Notice is hereby given that the Securities and Exchange Commission has under consideration the adoption of an amendment to Rule 16a-8(g)(3) (17 CFR 240.16a-8(g)(3)) under the Securities Exchange Act of 1934 ("Act") which would clarify and to some extent limit the exemption from the requirement of filing certain reports under section 16(a) of the Act. The proposed rule would be adopted pursuant to the authority granted to the Commission in sections 16 and 23 of the Act.

The present rule exempts from the reporting requirement of section 16(a) of the Act a person's indirect interest in portfolio securities held by a pension or retirement plan holding securities of an issuer whose employees generally are the beneficiaries of the plan.

The Commission's attention has been called to recent litigation in which it was argued that this exemption is applicable even where an officer or director owns a substantial portion of the securities of the plan or has the power to influence or control the sale or purchase of securities for the plan. The proposed amendment would make it clear that in such situations a person's interest is not exempt.

The text of the proposed amendment to Rule 16a-8(g)(3) (17 CFR 240.16a-8(g)(3)) is as follows:

§ 240.16a-8 Ownership of securities held in trust.

* * * * *

(g) No report shall be required by any person, whether or not otherwise subject to the requirement of filing reports under section 16(a) [of the Act] with respect to his indirect interest in portfolio securities held by * * *

* * * * *

(3) A pension or retirement plan holding securities of an issuer whose employees generally are the beneficiaries of the plan, unless such person is a beneficial owner of more than 10 percent of the securities so held or has the power to influence or control the sale or purchase of securities for the plan,

* * * * *

(Secs. 3, 16, 23, 48 Stat. 882, as amended, 896, 901, as amended, sec. 8, 78 Stat. 579; 15 U.S.C. 78c, 78p, 78w)

All interested persons are invited to submit views and comments on the proposed amendment. Written statements of views and comments should be submitted to the Securities and Exchange Commission, Washington, D.C. 20549, on or before July 31, 1967.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

JUNE 22, 1967.

[F.R. Doc. 67-7351; Filed, June 28, 1967; 8:46 a.m.]

Notices

DEPARTMENT OF THE TREASURY

Office of the Secretary

[Antidumping—ATS 643.3–B]

THIOUREA FROM JAPAN

Notice of Tentative Determination

JUNE 22, 1967.

Information was received on May 11, 1966, that thiourea imported from Japan was being sold at less than fair value within the meaning of the Antidumping Act, 1921, as amended (19 U.S.C. 160 set seq.). This information was the subject of an "Antidumping Proceeding Notice" which was published pursuant to § 14.6(d), Customs Regulations, in the FEDERAL REGISTER of June 25, 1966, on page 8883 thereof.

Thiourea is a chemical intermediate used in the manufacturing of photographic chemicals, diazo-type coatings for office copy machine papers, pharmaceuticals, textile chemicals and a number of other end products.

I hereby make a tentative determination that thiourea imported from Japan is not being, nor likely to be, sold at less than fair value within the meaning of section 201(a) of the Antidumping Act, 1921, as amended (19 U.S.C. 160(a)).

Statement of reasons on which this tentative determination is based. All importations were pursuant to outright purchases, before exportation from Japan, by U.S. purchasers not related within the meaning of section 207 of the Antidumping Act (19 U.S.C. 166) to either the manufacturers or exporters of the merchandise under consideration. Identical merchandise is sold for home consumption in sufficient quantities to provide an adequate basis for comparison. As the prices for home consumption varied because of a number of considerations, a weighted average of the prices at which sales were made during the period under consideration was used. Accordingly, in all instances, purchase price was compared with weighted-average adjusted home market price for fair value purposes.

Purchase price was calculated on the basis of the c.i.f. or f.o.b. port price, as applicable. The included ocean freight, insurance, handling charges, and inland freight from factory to point of loading aboard vessel, were deducted as applicable.

Adjusted home market price was computed on the basis of a weighted-average of delivered prices. From such weighted-average prices were deducted, as applicable, the average inland freight cost experienced during the period under consideration, differences in credit terms, the cost of technical services, and advertising on behalf of home market customers. Where appropriate, a deduction was made for quantity discount. Adjustment was also made for differences in packing costs.

Purchase price was found not to be lower than adjusted home market price except in sporadic instances early in the period under consideration. These were deemed to be not more than insignificant. Due to improved market conditions considered in conjunction with assurances given that future pricing would be controlled to prevent any reoccurrence of sales to the United States at lower than adjusted home market prices, there appears to be no likelihood of a resumption of sales for exportation to the United States at prices lower than weighted-average adjusted home market prices.

Such written submissions as interested parties may care to make with respect to the contemplated action will be given appropriate consideration by the Secretary of the Treasury.

If any person believes that any information obtained by the Bureau of Customs in the course of this antidumping proceeding is inaccurate or that for any other reason the tentative determination is in error, he may request in writing that the Secretary of the Treasury afford him an opportunity to present his views in this regard.

Any such written submissions or requests should be addressed to the Commissioner of Customs, 2100 K Street NW., Washington, D.C. 20226, in time to be received by his office not later than 30 days from the date of publication of this notice in the FEDERAL REGISTER.

This tentative determination and the statement of reasons therefor are published pursuant to § 14.8(a) of the Customs Regulations (19 CFR 14.8(a)).

[SEAL] TRUE DAVIS,
Assistant Secretary of the Treasury.

[F.R. Doc. 67–7373; Filed, June 28, 1967; 8:48 a.m.]

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

[Montana 1598]

MONTANA

Notice of Classification of Lands for Multiple Use Management

Correction

In F.R. Doc. 67–6733, appearing at page 8623 of the issue for Thursday, June 15, 1967, the first line in the third column on page 8624 should read as follows: "T. 15 S., R. 11 W.,".

[Serial No. N–1005]

NEVADA

Notice of Classification of Public Lands for Multiple Use Management

JUNE 20, 1967.

1. Pursuant to the Act of September 19, 1964 (43 U.S.C. 1411–18), and to the regulations in 43 CFR, Parts 2410 and 2411, the public lands described in paragraph 3 below, are hereby classified for multiple use management.

2. Publication of this notice segregates the public lands described in paragraph 3 from appropriation only under the agricultural land laws (43 U.S.C. Chs. 7 and 9; 25 U.S.C. sec. 334). The lands shall remain open to all other applicable forms of appropriation, including the mining and mineral leasing or material sale laws. As used herein, "public land" means any lands withdrawn or reserved by Executive Order No. 6910 of November 26, 1934, as amended, or within a grazing district established pursuant to the Act of June 28, 1934 (48 Stat. 1269), as amended, which are not otherwise withdrawn or reserved for a Federal use or purpose.

3. The classified public lands are shown on Maps No. 1005 on file in the Ely District Office, Bureau of Land Management, Ely, Nev., and the Land Office, Bureau of Land Management, Federal Building, Reno, Nev.

The lands involved are generally described as follows:

All public land in White Pine County, Nev. with the exception of those lands described in paragraph 4 below.

The areas described aggregate approximately 4,334,000 acres of public land.

4. The following described public lands are not included within this classification. These lands are in need of further study to determine proper classification.

MOUNT DIABLO MERIDIAN, NEVADA

T. 16 N., R. 63 E.,
Sec. 1, Lots 5–20, S½NE¼, S½SE¼;
Sec. 3, Lot 4, SW¼NW¼, NW¼SW¼;
Sec. 9, NE¼SE¼, W½SE¼, excluding app. 8 acres of MS 3903;
Sec. 12, E½;
Sec. 13, E½SE¼, SW¼NW¼, NW¼SW¼;
Sec. 16, W½NW¼, excluding app. 1 acre of ME Pats., NE¼NW¼, excluding app. 4 acres of MS 3903, NW¼NE¼, excluding app. 1.5 acres of MS 3903, SW¼NE¼, excluding 12.64 acres of MS 3458;
Sec. 21, E½SW¼, excluding app. 76 acres of patented lands;
Sec. 22, SW¼SW¼, E½SW¼, W½SE¼, NE¼SE¼;
Sec. 23, S½;
Sec. 24, W½NW¼, E½NE¼;
Sec. 25, W½;
Sec. 26, All;
Sec. 27, N½, NE¼SE¼;
Sec. 28, NE¼, SE¼NW¼, W½NW¼;
Sec. 35, N½N½;
Sec. 36, N½NW¼.

T. 17 N., R. 63 E.,
Sec. 1, S½;
Sec. 2, Lots 2, 3, 4, S½NW¼, SW¼NE¼, N½SW¼;
Sec. 3, Lots 1, 2, 3, 4, S½N½, S½;
Sec. 10, N½, N½SW¼, SE¼SW¼, SE¼;
Sec. 11, S½NW¼, NW¼SW¼, S½S½, NE¼SE¼, SE¼NE¼;
Sec. 12, N½, N½S½, S½SW¼, SW¼SE¼;
Sec. 13, N½NW¼, NW¼NE¼, S½N½, S½;
Sec. 14, E½, E½W½;
Sec. 15, N½NW¼, NW¼NE¼, SE¼SE¼;
Sec. 16, NE¼, W½SE¼;
Sec. 21, W½, SE¼, NW¼NE¼;
Sec. 22, W½SW¼, E½E½;
Sec. 23, All;
Sec. 24, All;
Sec. 25, NE¼NE¼, SE¼NE¼, excluding 2.5 acres of Pat. 1218746, SW¼NW¼NE¼SE¼, NW¼SW¼NE¼SE¼, SW¼SE¼, NW¼SE¼, excluding 5 acres of Pat. 1220864;
Sec. 26, N½;
Sec. 27, N½SW¼;
Sec. 28, All;
Sec. 33, All;
Sec. 34, W½;
Sec. 36, SE¼SE¼.

T. 17 N., R. 64 E.,
Sec. 4, Lots 1, 2, S½NE¼, S½;
Sec. 5, SE¼;
Sec. 6, Lots 6, 7, NE¼SW¼;
Sec. 7, Lots 1, E½, E½SW¼;
Sec. 8, NW¼SW¼, SE¼SW¼, E½;
Sec. 9, W½;
Sec. 16, W½;
Sec. 17, All;
Sec. 18, Lots 2, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, E½NW¼NW¼, E½W½SW¼, E½W½, NW¼NE¼, SE¼NE¼, NE¼NE¼, excluding 5 acres of Pat. 1227479, W½SE¼, SE¼SE¼, NE¼SE¼, excluding 5 acres of Pat. 27–66–0122;
Sec. 19, Lots 3, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, E½W½NW¼, E½NW¼, E½, S½NE¼SW¼SW¼, NW¼SE¼SW¼SW¼, W½SW¼SE¼SW¼SW¼, S½N½NE¼SW¼, S½NE¼SE¼SW¼, SE¼SE¼SW¼;
Sec. 20, All;
Sec. 29, W½;
Sec. 30, Lots 3, 4, 5, 6, 7, 8, 10, 11, 17, E½, E½SW¼, NE¼NW¼NW¼, S½SE¼SW¼NW¼, N½NE¼NW¼, S½SW¼SE¼NW¼NW¼, N½SE¼SE¼NW¼, S½NE¼SE¼NW¼;
Sec. 31, Lots 1, 2, 3, 4, E½W½, E½;
Sec. 32, W½.

T. 18 N., R. 63 E.,
Sec. 12, NW¼SW¼, S½SW¼;
Sec. 13, W½, SW¼NE¼, W½SE¼;
Sec. 24, W½, SW¼NE¼;
Sec. 25, W½, NW¼NE¼;
Sec. 35, SE¼;
Sec. 36, NW¼, NW¼SW¼.

T. 18 N., R. 64 E.,
Sec. 7, NE¼SE¼;
Sec. 8, N½SW¼, SE¼;
Sec. 9, W½SW¼, SE¼;
Sec. 10, W½SW¼;
Sec. 15, W½NW¼, NW¼SW¼;
Sec. 33, E½E½, SW¼SE¼.

The lands described above aggregate approximately 21,800 acres.

5. For a period of 30 days, interested parties may submit comments to the Secretary of the Interior, LLM, 721, Washington, D.C. 20240 (43 CFR 2411.1–2(d)).

NOLAN F. KEIL,
State Director, Nevada.

[P.R. Doc. 67-7343; Filed, June 28, 1967; 8:46 a.m.]

[Serial No. N–815]

NEVADA

Notice of Classification of Public Lands for Multiple Use Management

JUNE 23, 1967.

1. Pursuant to the Act of September 19, 1964 (43 U.S.C. 1411–18), and to the regulations in 43 CFR, Parts 2410 and 2411, the public lands described in paragraph 3 below, are hereby classified for multiple-use management.

2. Publication of this notice segregates the described lands from (a) appropriation under the agricultural land laws (43 U.S.C. chs. 7 and 9; 25 U.S.C. sec. 334); from sales under section 2455 of the Revised Statutes (43 U.S.C. 1171); the Public Land Sale Act of September 19, 1964 (78 Stat. 988; 43 U.S.C. 1421–27); exchanges under section 8(b) of the Taylor Grazing Act of June 28, 1934 (48 Stat. 1272; 43 U.S.C. 3159); from lease or sale under the Recreation and Public Purposes Act of June 14, 1926, as amended (44 Stat. 741; 43 U.S.C. 869) and (b) further segregates the public lands described in paragraph 4 of this notice from operation of the general mining laws (30 U.S.C. 20). Except as provided in (a) and (b) above, the land shall remain open to all other applicable forms of appropriation, including the mining and mineral leasing or material sale laws. As used herein, "public lands" means any lands withdrawn or reserved by Executive Order No. 6910 of November 26, 1934, as amended, or within a grazing district established pursuant to the Act of June 28, 1934 (48 Stat. 1269), as amended, which are not otherwise withdrawn or reserved for a Federal use or purpose.

3. The classified public lands are located within the following described area and are shown on a map designated by Serial No. 815, in the Carson City District Office, Bureau of Land Management, 801 North Plaza Street, Carson City, Nev., and the Land Office, Bureau of Land Management, Room 3008 Federal Building, 300 Booth Street, Reno, Nev.

MOUNT DIABLO MERIDIAN, NEVADA

LYON COUNTY

T. 7 N., R. 26 E.,
Sec. 25, NE¼, S½;
Sec. 36, NE¼, SE¼NW¼, S½.

T. 9 N., R. 26 E.,
Secs. 1, 12, 13, 24, 25, and 36, unsurveyed.

T. 10 N., R. 26 E.,
Secs. 35 and 36.

T. 7 N., R. 27 E.,
Sec. 1, S½;
Secs. 2 to 18, inclusive;
Sec. 19, NE¼NE¼, NW¼NW¼, S½NW¼, SW¼;
Secs. 20 to 29, inclusive;
Sec. 30, NE¼, W½NW¼, SW¼SW¼, SE¼;
Secs. 31 to 36, inclusive.

T. 8 N., R. 27 E.,
Secs. 1 to 4, inclusive;
Sec. 5, NE¼, E½NW¼, NE¼SW¼, N½SE¼, SE¼SE¼;
Sec. 6, Lots 2 to 7, inclusive, NE¼NE¼, S½NE¼, SE¼NW¼, W½SW¼, SE¼;
Sec. 7, All;
Sec. 8, NE¼NE¼, NW¼NW¼, S½NW¼, S½;
Sec. 9, N½, NE¼SW¼, N½SE¼, SE¼SE¼;
Sec. 10, N½, N½SW¼, SE¼SW¼, SE¼;
Sec. 11 to 14, inclusive;
Sec. 15, NE¼, NE¼NW¼, NW¼SW¼, S½SW¼, NE¼SE¼;
Sec. 16, W½NE¼, W½, SE¼;
Sec. 21, All;
Sec. 22, N½NE¼, NW¼, SW¼SW¼;
Sec. 23, NE¼, N½NW¼, SE¼NW¼, S½;
Secs. 24 to 28, inclusive;
Secs. 33 and 34;
Sec. 35, W½;
Sec. 36, NE¼, NW¼NW¼, SE¼.

T. 9 N., R. 27 E.,
Secs. 6, 7, 8, 17, and 18;
Sec. 19, N½, SW¼, N½SE¼, SW¼SE¼;
Sec. 20, N½, SE¼;
Sec. 21, Lots 1 to 5, inclusive, SE¼NW¼;
Secs. 25 to 27, inclusive;
Sec. 28, Lots 2 to 4, inclusive, NE¼, SE¼NW¼, E½SW¼, SE¼;
Sec. 29, NE¼SE¼, S½SE¼;
Sec. 30, W½;
Sec. 31, W½;
Secs. 32 to 36, inclusive.

T. 10 N., R. 27 E.,
Sec. 31, unsurveyed.

MINERAL COUNTY

T. 6 N., R. 26 E.,
Secs. 1 and 12.

T. 5 N., R. 27 E.,
Sec. 1, NE¼, W½NW¼, NE¼SW¼, SE¼;
Sec. 2, N½NE¼, SW¼NE¼, NW¼, N½SW¼, SW¼SW¼;
Sec. 11, NW¼NW¼, S½NW¼, SW¼, S½SE¼;
Sec. 12, NE¼, NE¼NW¼, S½NW¼, S½;
Sec. 13, All;
Sec. 14, W½NE¼, W½, NW¼SE¼, S½SE¼;
Secs. 23, 24, and 25, inclusive;
Sec. 26, Lots 1 to 7, inclusive, NE¼, NE¼NW¼, NE¼SE¼;
Sec. 36, Lots 1 to 6, inclusive, N½NE¼, SE¼NE¼, NE¼NW¼.

T. 6 N., R. 27 E.,
Secs. 1 and 2;
Sec. 3, NE¼, N½NW¼, SE¼NW¼, N½SE¼, SE¼SE¼;
Sec. 4, W½, SW¼SE¼;
Secs. 5 to 9, inclusive;
Sec. 10, NE¼NE¼, S½NW¼, SW¼, S½SE¼;
Sec. 11, N½NE¼, SE¼NE¼, NW¼;
Secs. 12 and 13;
Sec. 14, W½NW¼, S½;
Secs. 15 to 18, inclusive;
Secs. 20 to 23, inclusive;
Sec. 24, NE¼NE¼, S½NE¼, NW¼NW¼, S½NW¼, SW¼, N½SE¼;
Sec. 25, W½;
Sec. 26, N½, NSW¼, SE¼SW¼, SE¼;
Sec. 35, N½NE¼, SE¼NE¼, NE¼NW¼, S½NW¼, S½;
Sec. 36, S½NE¼, NW¼, S½.

T. 4 N., R. 28 E.,
Secs. 1 to 3, inclusive;
Sec. 4, N½, N½SW¼, SE¼SW¼, SE¼;
Sec. 5, Lot 5, N½, E½SW¼, SE¼;
Sec. 6, Lots 1 to 9, inclusive, SE¼NE¼;
Sec. 8, Lots 1 and 2, N½NE¼, SE¼NE¼;
Sec. 9, Lots 1 and 2, N½, NE¼SW¼, SE¼;
Secs. 10 to 12, inclusive;
Sec. 13, NW¼;
Sec. 14, N½;
Sec. 15, N½;
Sec. 16, Lots 1 to 4, inclusive, NE¼NE¼.

T. 5 N., R. 28 E.,
Secs. 2 and 3;
Sec. 4, NE¼, S½NW¼, S½;
Sec. 5, W½NE¼, E½NW¼, NW¼NW¼, NE¼SW¼, S½SW¼, SE¼;
Sec. 6, N½NE¼, W½, W½SE¼, SE¼SE¼;
Sec. 7, N½, SW¼, W½SE¼, exclusive of patented mining claims;
Sec. 8, N½, N½SW¼, SE¼SW¼, SE¼;
Sec. 9, All;
Sec. 10, exclusive of patented mining claims;
Sec. 11, NE¼, N½NW¼, SW¼NW¼, S½;
Secs. 14 and 15;
Sec. 16, NE¼, E½NW¼, NW¼NW¼, E½SW¼, SW¼SW¼, SE¼;
Sec. 17, N½NE¼, W½, exclusive of patented mining claims, S½SE¼, exclusive of patented mining claims;
Sec. 18, exclusive of patented mining claims;
Sec. 19, exclusive of patented mining claims;
Sec. 20, exclusive of patented mining claims;
Secs. 21 to 23, inclusive;
Sec. 25, All;
Sec. 26, N½, SW¼, N½SE¼;
Sec. 27, N½, SW¼, N½SE¼, SE¼SE¼;
Sec. 28, NE¼, NE¼NW¼, S½NW¼, S½;
Sec. 29, N½, N½SW¼, SE¼SW¼, SE¼;
Sec. 30, NE¼, exclusive of patented mining claims, W½, exclusive of patented mining claims, W½SE¼, NE¼SE¼;
Sec. 31, Lots 1 to 4, inclusive, NW¼NE¼, S½NE¼, E½NW¼, E½SW¼, SE¼;
Sec. 32, NE¼NE¼, W½SW¼, SE¼SW¼;
Sec. 33, NE¼, E½NW¼, SW¼NW¼, E½SW¼, N½SE¼, SE¼SE¼;
Sec. 34, N½, SW¼, N½SE¼, SE¼SE¼;
Sec. 35, NW¼, S½.

T. 6 N., R. 28 E.,
Sec. 1 to 18, inclusive;
Sec. 19, N½, N½SW¼, SW¼SW¼, N½SE¼, SE¼SE¼;
Secs. 20 to 22, inclusive;
Sec. 23, N½, SW¼, NE¼SE¼, S½SE¼;
Secs. 24 to 33, inclusive;
Sec. 34, N½NE¼, SE¼NE¼, NW¼, NW¼SW¼, SE¼SW¼, NE¼SE¼, S½SE¼;
Sec. 35, N½, S½SW¼, NE¼SE¼, S½SE¼;
Sec. 36, All.

T. 7 N., R. 28 E.,
Sec. 2, N½, E½SW¼, SE¼;
Secs. 3 to 9, inclusive;
Sec. 10, N½NE¼, SW¼NE¼, W½, SE¼;
Sec. 11, E½, W½SW¼;
Sec. 12 to 36, inclusive.

T. 8 N., R. 28 E.,
Secs. 4 to 9, inclusive;
Sec. 10, W½;
Sec. 15, W½NE¼, SE¼NE¼, W½, SE¼;
Secs. 16 to 22, inclusive;
Sec. 26, N½, SW¼, W½SE¼, SE¼SE¼;
Secs. 27 to 35, inclusive.

T. 9 N., R. 28 E.,
Secs. 28 to 33, inclusive.

The public lands described above aggregate approximately 173,590 acres.

4. As provided in paragraph 2, the following described public lands, which are a part of the lands described in paragraph 3, are further segregated from appropriation under the general mining laws:

MOUNT DIABLO MERIDIAN, NEVADA

T. 7 N., R. 26 E.,
Sec. 25, NE¼SE¼, S½SE¼;
Sec. 36, N½NE¼.

T. 7 N., R. 27 E.,
Sec. 3, Lot 4, SW¼NW¼, NW¼SW¼;
Sec. 4, Lots 1 and 2, S½NE¼, E½SW¼, SE¼;
Sec. 5, S½SW¼, SE¼;
Sec. 7, E½E½;
Sec. 8, N½NE¼, NW¼, W½SW¼;
Sec. 9, NW¼NE¼, N½NW¼;
Sec. 17, W½NW¼, NW¼SW¼;
Sec. 18, Lots 3 and 4, NE¼NE¼, S½NE¼, SE¼NW¼, E½SW¼, N½SE¼, SW¼SE¼;
Sec. 19, NE¼NE¼;
Sec. 30, Lot 4, N½NE¼, SW¼NE¼.

T. 8 N., R. 27 E.,
Sec. 5, NE¼SW¼;
Sec. 8, NE¼NE¼;
Sec. 9, SW¼NW¼, NE¼SW¼, N½SE¼, SE¼SE¼;
Sec. 15, NE¼NW¼;
Sec. 22, N½NE¼;
Sec. 27, NW¼, W½SW¼;
Sec. 28, E½E½;
Sec. 33, E½;
Sec. 34, W½W½.

The public lands described above aggregate approximately 3,586.80 acres.

5. For a period of 30 days, interested parties may submit comments to the Secretary of the Interior, LLM, 721, Washington, D.C. 20240 (43 CFR 2411.2 (d)).

DANIEL P. BAKER,
Acting State Director, Nevada.

[F.R. Doc. 67-7344; Filed, June 28, 1967; 8:46 a.m.]

[New Mexico 1612]

NEW MEXICO

Notice of Proposed Classification

JUNE 22, 1967.

Pursuant to section 2 of the Act of September 19, 1964 (43 U.S.C. 1412), notice is hereby given of a proposal to classify the lands described below for disposal through exchange, under the Act of June 28, 1934 (48 Stat. 1269; 43 U.S.C. 315g), as amended, for lands within Torrance and Valencia Counties, N. Mex.

The District Advisory Board, local governmental officials and other interested parties have been notified of this application. Information derived from discussions and other sources indicate that these lands meet the criterion of 43 CFR 2410.1-3(c)(4), which authorizes classification of lands "for exchange under appropriate authority where they are found to be chiefly valuable for public purposes because they have special values, arising from the interest of exchange proponents, for exchange for other lands which we need for the support of a Federal program." Information concerning the lands, including the record of public discussions, is available for inspection and study in the Land Office, Bureau of Land Management, U.S. Post Office and Federal Building, Santa Fe, N. Mex.; Albuquerque District Office, 1304 Fourth Street NW., Albuquerque, N. Mex. 87107, and Socorro District Office, 200 Neel Avenue, Socorro, N. Mex. 87801.

For a period of 60 days from the date of this publication, interested parties may submit comments to the district manager of the Albuquerque or Socorro District Offices.

The lands affected by this proposal are located in Socorro, McKinley, San Juan, and Valencia Counties, N. Mex., and are described as follows:

NEW MEXICO PRINCIPAL MERIDIAN

T. 2 N., R. 6 W.,
Sec. 2, S½S½.
T. 3 N., R. 7 W.,
Sec. 36, NE¼, and S½.
T. 20 N., R. 7 W.,
Sec. 30, lots 1, 2, 3, 4, E½W½ and SE¼;
Sec. 32, NE¼ and W½.
T. 19 N., R. 8 W.,
Secs. 10 and 12;
Sec. 14, lots 1, 2, E½, and E½NW¼;
Sec. 17;
Sec. 20, N½, and SW¼;
Sec. 24;
Sec. 30, lots 1, 4, E½, NE¼NW¼, and SE¼SW¼.
T. 20 N., R. 8 W.,
Sec. 16;
Sec. 22, E½;
Sec. 24, SE¼;
Secs. 26, 34, and 36.
T. 15 N., R. 10 W.,
Sec. 6, lots 1, 2, S½NE¼, and SE¼.
T. 16 N., R. 10 W.,
Sec. 6, lots 1, 2, and S½NE¼;
Sec. 20.
T. 15 N., R. 11 W.,
Sec. 14, SW¼;
Sec. 24, E½.
T. 16 N., R. 11 W.,
Sec. 26, S½.
T. 17 N., R. 11 W.,
Sec. 32, S½NW¼.
T. 16 N., R. 12 W.,
Sec. 10, NW¼;
Sec. 14, NW¼;
Sec. 32, SE¼.
T. 25 N., R. 12 W.,
Secs. 20, 29 and 32;
Sec. 33, SW¼NW¼, SW¼, and SW¼SE¼.
T. 15 N., R. 13 W.,
Sec. 2, lots 3, 4, and S½NW¼.
T. 16 N., R. 13 W.,
Sec. 26, NW.
T. 23 N., R. 13 W.,
Sec. 34, N½NE¼, and E½NE¼NW¼.
T. 6 N., R. 14 W.,
Sec. 28.
T. 15 N., R. 14 W.,
Sec. 18, SE¼;
Sec. 28, SW¼.
T. 15 N., R. 15 W.,
Sec. 4, lots 1, 2, 3, 4, S½N½, and SW¼;
Sec. 8, N½ and SW¼;
Sec. 18, lots 1, 2, 3, 4, 5, N½NE¼, and NE¼NW¼.

The areas described aggregate 15,791.22 acres.

W. J. ANDERSON,
State Director.

[F.R. Doc. 67-7345; Filed, June 28, 1967; 8:46 a.m.]

[Serial No. U-2932]

UTAH

Notice of Proposed Classification of Public Lands for Multiple Use Management

1. Pursuant to the Act of September 19, 1964 (78 Stat. 986; 43 U.S.C. 1411-18),

and to the regulations in Title 43 CFR, Parts 2410 and 2411, it is proposed to classify for multiple use management the public lands within the area described below, together with any lands therein that may become public lands in the future. Publication of this notice has the effect of segregating the described lands from appropriation only under the agricultural land laws (43 U.S.C., Parts 7 and 9; 25 U.S.C. sec. 334), and from sales under Section 2455 of the Revised Statutes as amended (43 U.S.C. 1171). The lands shall remain open to all other applicable forms of appropriation, including the mining and mineral leasing laws. As used herein, "public lands" means any lands withdrawn or reserved by Executive Order No. 6910 of November 26, 1934, as amended, or within a grazing district established pursuant to the Act of June 28, 1934 (48 Stat. 1269), as amended, which are not otherwise withdrawn or reserved for a Federal use or purpose.

2. The lands proposed to be classified are those lands administered by the Bureau of Land Management within the following described area in Millard County, Utah.

SALT LAKE MERIDIAN, UTAH

Tps. 15–18 S., Rs. 9–20 W.
Tps. 19–22 S., Rs. 6–20 W.
Tps. 23–25 S., Rs. 7–20 W.
Tps. 26 S., Rs. 7–20 W.,
Those portions of north tier of sections (secs. 1–6 of each township) north of Millard-Beaver County line.
T. 15 S., R. 5 W.,
Secs. 3 to 9, 17 to 20, 29 to 32.
T. 15 S., R. 6 W.,
All of township.
T. 15 S., R. 7 W.,
Secs 1 to 6, 9 to 15, 22 to 26.
T. 15 S., R. 8 W.,
Secs. 1 to 23, 27 to 33.
T. 16 S., R. 5 W.,
Secs. 5 to 8, 18, 19.
T. 16 S., R. 6 W.,
Secs 1 to 30.
T. 16 S., R. 8 W.,
Secs. 4 to 8, 17, 18, 19, 30, 31.
T. 17 S., R. 8 W.,
Secs. 6, 7, 8, 17 to 20, 29 to 33.
T. 18 S., R. 6 W.,
Secs. 13 to 36.
T. 18 S., R. 7 W.,
Secs. 13, 14, 15, 21 to 36.
T. 18 S., R. 8 W.,
Secs. 4 to 9, 16 to 22, 25 to 36.
T. 19 S., R. 5 W.,
Secs. 6, 7, 18, 19, 30, 31.
T. 20 S., R. 5 W.,
Secs. 5 to 8, 17 to 20, 29, 30, 31.
T. 23 S., R. 6 W.,
Sec. 6.
T. 25 S., R. 6 W.,
Sec. 31.
T. 26 S., R. 6 W.,
Sec. 6.

The described area aggregates approximately 2,929,000 acres of public domain land.

3. For a period of 60 days from the date of publication of this notice in the FEDERAL REGISTER, all persons who wish to submit comments, suggestions, or objections in connection with the proposed classification may present their views in writing to the District Manager, Bureau of Land Management, Post Office Box 778, Fillmore, Utah 84631, or to the State Director, Bureau of Land Management, Post Office Box 11505, Salt Lake City, Utah 84111.

4. Maps depicting these lands are on file and may be reviewed at the Bureau of Land Management's District Office at Fillmore and the State Office, Federal Building, Salt Lake City, Utah.

5. A public hearing on the proposed classification will be held on July 20, 1967 at 1 p.m., in the Millard County Courthouse, Fillmore, Utah.

R. D. NIELSON,
State Director.

[F.R. Doc. 67-7346; Filed, June 28, 1967; 8:46 a.m.]

[Oregon 1374 (Wash.)]

WASHINGTON

Notice of Proposed Withdrawal and Reservation of Lands

JUNE 21, 1967.

The Department of Agriculture, on behalf of the Forest Service, has filed application, OR 1374 (Wash.), for the withdrawal of the lands described below, from all forms of appropriation under the mining laws (30 U.S.C., Ch. 2), but not from leasing under the mineral leasing laws.

The applicant desires the lands for public recreation areas, roadside zones, and fire lookout sites.

For a period of 30 days from the date of publication of this notice, all persons who wish to submit comments, suggestions, or objections in connection with the proposed withdrawal may present their views in writing to the undersigned officer of the Bureau of Land Management, Department of the Interior, 729 Northeast Oregon Street (Post Office Box 2965), Portland, Oreg. 97208.

The authorized officer of the Bureau of Land Management will undertake such investigations as are necessary to determine the existing and potential demand for the lands and their resources. He will also undertake negotiations with the applicant agency with the view of adjusting the application to reduce the area to the minimum essential to meet the applicant's needs, to provide for the maximum concurrent utilization of the lands for purposes other than the applicant's, to eliminate lands needed for purposes more essential than the applicant's, and to reach agreement on the concurrent management of the lands and their resources.

He will also prepare a report for consideration by the Secretary of the Interior who will determine whether or not the lands will be withdrawn as requested by the applicant agency.

The determination of the Secretary on the application will be published in the FEDERAL REGISTER. A separate notice will be sent to each interested party of record.

If circumstances warrant it, a public hearing will be held at a convenient time and place which will be announced.

The lands involved in the application are:

WILLAMETTE MERIDIAN

COLVILLE NATIONAL FOREST

San Poil (Federal No. 19) Highway, Roadside Zone

A strip of land 200 feet on each side of the centerline of Federal Highway No. 19 through the following legal subdivisions:

T. 35 N., R. 32 E.,
Sec. 24, SE¼SE¼;
Sec. 25, E½E½.
T. 35 N., R. 33 E.,
Sec. 19, lot 4;
Sec. 30, lot 1;
Sec. 31, lot 4 and SE¼SW¼.

Bodie Lookout Administrative Site

T. 38 N., R. 32 E.,
Sec. 6, lot 4. Beginning at a point from which the fire lookout tower on Bodie Mountain bears west, 5 chains, thence south, 5 chains; west, 10 chains; north, 10 chains; east, 10 chains; south, 5 chains, to point of beginning.

Republic-Kettle Falls (Federal No. 20) Highway, Roadside Zone

A strip of land 200 feet on each side of the centerline of Federal Highway No. 20 through the following legal subdivisions:

T. 36 N., R 33 E.,
Sec. 25, NW¼NW¼;
Sec. 26, N½NE¼, and NE¼NW¼.

Quartz Lookout Administrative Site

T. 36 N., R. 33 E.,
Sec. 34, SW¼SW¼. Beginning at a point from which the fire lookout tower on Quartz Mountain bears west, 5 chains, thence south, 5 chains; west, 10 chains; north, 10 chains; east, 10 chains; south, 5 chains, to point of beginning.

Barnaby Butte Lookout Administrative Site

T. 35 N., R. 35 E.,
Sec. 7, (unsurveyed);
Sec. 18, (unsurveyed). Beginning at a point from which the fire lookout tower on Barnaby Butte bears west, 5 chains, thence south, 5 chains; west, 10 chains; north, 10 chains; east, 10 chains; south, 5 chains, to point of beginning.

Kettle Range Observation Site

T. 36 N., R. 35 E.,
Sec. 19, (unsurveyed). Beginning at the junction where the existing observation site road leaves Federal Highway No. 20 which is a point approximately 65 chains in an easterly direction from Sherman Creek Pass, thence west, 5 chains; north, 6 chains; east, 20 chains; south, 6 chains; west, 15 chains, to point of beginning.

Twin Sisters Lookout Administrative Site

T. 37 N., R. 35 E.,
Sec. 10, (unsurveyed). Beginning at a point from which the fire lookout tower on Twin Sisters bears west, 5 chains, thence south, 5 chains; west, 10 chains; north, 10 chains; east, 10 chains; south, 5 chains, to point of beginning.

Marble Lookout Administrative Site

T. 39 N., R. 35 E.,
Sec. 4, (unsurveyed). Beginning at a point from which the fire lookout tower on Marble Mountain bears west, 5 chains, thence south, 5 chains; west, 10 chains; north, 10 chains; east, 10 chains; south, 5 chains, to point of beginning.

Canyon Creek Recreation Area

T. 36 N., R. 36 E.,
Sec. 35, S½NE¼NE¼, and SE¼NE¼.

Davis Lake Recreation Area

T. 37 N., R. 36 E.,
Sec. 3, N½SE¼NW¼.

First Thought Lookout Administrative Site

T. 39 N., R. 37 E.,
Sec. 7, NE¼SW¼. Beginning at a point from which the fire lookout tower on First Thought Mountain bears west, 5 chains, thence south, 5 chains; west, 10 chains; north, 10 chains; east, 10 chains; south, 5 chains, to point of beginning.

Dominion Lookout Administrative Site and Picnic Area

T. 36 N., R. 40 E.,
Sec. 34, NE¼. Beginning at a point from which the fire lookout tower on Dominion Mountain bears west, 5 chains, thence south, 5 chains; west, 10 chains; north, 20 chains; east, 10 chains; south, 15 chains, to point of beginning.

Chewelah Lookout Administrative Site

T. 32 N., R. 41 E.,
Sec. 12, N½SE¼. Beginning at a point from which the fire lookout tower on Chewelah Mountain bears west, 5 chains, thence south, 5 chains; west, 10 chains; north, 10 chains; east, 10 chains; south, 5 chains, to point of beginning.

Frater Lake Recreation Area

T. 36 N., R. 42 E.,
Sec. 3, lots 1 and 2.

Huckleberry Lookout Administrative Site

T. 38 N., R. 42 E.,
Sec. 29, W½SW¼;
Sec. 30, E½SE¼. Beginning at a point from which the fire lookout tower on Huckleberry Mountain bears west, 5 chains, thence south, 5 chains; west, 10 chains; north, 10 chains; east, 10 chains; south, 5 chains, to point of beginning.

Crescent Lake Recreation Area

T. 40 N., R. 43 E.,
Sec. 12, E½NE¼NE¼SW¼, and W½NW¼ NW¼SE¼.

LeClerc Creek Recreation Area

T. 36 N., R. 44 E.,
Sec. 19, E½W½SW¼NE¼, and E½SW¼ NE¼.

Salmo Lookout Administrative Site

T. 40 N., R. 45 E.,
Sec. 16, S½NE¼ and N½SE¼. Beginning at a point from which the fire lookout tower on Salmo Mountain bears west, 5 chains, thence south, 5 chains; west, 10 chains; north, 10 chains; east, 10 chains; south, 5 chains, to point of beginning.

The areas described aggregate 485.85 acres.

ERLING A. OLSON,
Chief, Lands Adjudication Section.

[F.R. Doc. 67-7347; Filed, June 28, 1967; 8:46 a.m.]

National Park Service

[Order No. 4]

ADMINISTRATIVE OFFICER ET AL., MAMMOTH CAVE NATIONAL PARK, KENTUCKY

Delegation of Authority Regarding Execution of Contracts for Supplies, Equipment, or Services

1. *Administrative Officer.* The Administrative Officer may execute and approve contracts not in excess of $10,000 for supplies, equipment, or services in conformity with applicable regulations and statutory authority and subject to availability of appropriations.

2. *General Supply Assistant.* The General Supply Assistant may execute and approve contracts not in excess of $5,000 for supplies, equipment, or services in conformity with applicable regulations and statutory authority and subject to availability of appropriations.

3. *Great Onyx Job Corps Conservation Center Director and Administrative Officers.* The Great Onyx Job Corps Conservation Center Director and Administrative Officers may execute and approve contracts not in excess of $2,500 for supplies, equipment, or services in conformity with applicable regulations and statutory authority and subject to availability of appropriations.

4. *Revocation.* This order supersedes Order No. 3 and Amendment No. 1 thereto issued August 17, 1965 and January 12, 1966, respectively.

(National Park Service Order No. 34 (31 F.R. 4255), as amended; 39 Stat. 535, 16 U.S.C. Sec. 2; Southeast Region Order No. 4 (31 F.R. 3135))

Dated: June 5, 1967.

JOHN A. AUBUCHON,
Superintendent, Mammoth Cave National Park.

[F.R. Doc. 67-7348; Filed, June 28, 1967; 8:46 a.m.]

ATOMIC ENERGY COMMISSION

[Docket No. 50-208]

TRUSTEES OF COLUMBIA UNIVERSITY IN THE CITY OF NEW YORK

Notice of Extension of Completion Date

The Atomic Energy Commission has issued an Order extending to December 31, 1967, the latest completion date specified in Construction Permit No. CPRR-78 for construction of the TRIGA Mark II type nuclear reactor being constructed on the University's campus at Morningside Heights, New York, N.Y.

Copies of the order and of the application by the Trustees of Columbia University in the city of New York are available for public inspection at the Commission's Public Document Room, 1717 H Street NW., Washington, D.C.

Dated at Bethesda, Md., this 16th day of June 1967.

For the Atomic Energy Commission.

ROGER S. BOYD,
Acting Director, Division of Reactor Licensing.

[F.R. Doc. 67-7331; Filed, June 28, 1967; 8:45 a.m.]

[Docket No. 50-283]

GENERAL ELECTRIC TECHNICAL SERVICES CO., INC.

Notice of Issuance of Facility Export License

Please take notice that no request for a hearing having been filed following publication of notice of proposed action in the FEDERAL REGISTER on May 2, 1967 (32 F.R. 6739), the Atomic Energy Commission has issued License No. XR-65 to General Electric Technical Services Co., Inc., a wholly owned subsidiary of the General Electric Co., authorizing the export of a 306,660 kilowatt electrical, boiling water nuclear power reactor to the Japan Atomic Power Co., Tokyo, Japan. The export of this reactor to Japan is within the scope of and consistent with the terms of the present agreement for cooperation between the Governments of the United States and Japan.

Dated at Bethesda, Md., this 22d day of June 1967.

For the Atomic Energy Commission.

JAMES R. MASON,
Acting Director, Division of State and Licensee Relations.

[F.R. Doc. 67-7332; Filed, June 28, 1967; 8:45 a.m.]

DEPARTMENT OF AGRICULTURE

Office of the Secretary

DIRECTOR, NATIONAL AGRICULTURAL LIBRARY

Delegation of Authority To Make Grants for Research

Notice is hereby given that the Secretary of Agriculture, pursuant to the authority vested in him by section 2 of the Act of August 4, 1965 (7 U.S.C. 450b), has, effective April 17, 1967, assigned to the Director, National Agricultural Library, authority to make grants for research to further the programs of the Department of Agriculture. Nothing herein shall preclude the Secretary of Agriculture from himself exercising the authority so delegated.

Done at Washington, D.C., this 23d day of June 1967.

ORVILLE L. FREEMAN,
Secretary.

[F.R. Doc. 67-7356; Filed, June 28, 1967; 8:47 a.m.]

NEBRASKA

Designation and Extension of Areas for Emergency Loans

For the purpose of making emergency loans pursuant to section 321 of the Consolidated Farmers Home Administration Act of 1961 (7 U.S.C. 1961), it has been determined that in the hereinafter-named counties in the State of Nebraska natural disasters have caused a need for agricultural credit not readily available from commercial banks, cooperative lending agencies, or other responsible sources.

NEBRASKA

Burt.	Nemaha.
Cass.	Otoe.
Cuming.	Phelps.
Dakota.	Pierce.
Dodge.	Scotts Bluff.
Hall.	Stanton.
Madison.	Thurston.
Merrick.	Wayne.

It also has been determined that in the hereinafter-named counties in the State of Nebraska natural disasters have caused a continuing need for agricultural credit not readily available from commercial banks, cooperative lending agencies, or other responsible sources.

Nebraska	Original designation	First extension	Second extension	Present extension
Butler	31 F.R. 11691			
Chase	29 F.R. 11934	30 F.R. 7616		31 F.R. 7150.
Colfax	31 F.R. 11691			
Furnas	31 F.R. 9090			
Gage	31 F.R. 10327			
Harlan	31 F.R. 9090			
Johnson	31 F.R. 10585			
Keith	29 F.R. 11934	30 F.R. 7616		31 F.R. 7150.
Perkins	29 F.R. 11934	30 F.R. 7616		31 F.R. 7150.
Polk	31 F.R. 10585			
Richardson	31 F.R. 10585			
Saline	31 F.R. 10928			
Seward	31 F.R. 10585			
Sheridan	29 F.R. 11934	30 F.R. 7616	31 F.R. 5642-5643	31 F.R. 13921.
Sioux	29 F.R. 11934	30 F.R. 7616	31 F.R. 5642-5643	31 F.R. 14958.

Pursuant to the authority set forth above, emergency loans will not be made in the above-named counties after June 30, 1968, except to applicants who previously received emergency or special livestock loan assistance and who can qualify under established policies and procedures.

This designation shall become effective on the date this instrument is signed, and this extension shall become effective on June 30, 1967.

Done at Washington, D.C., this 23d day of June 1967.

ORVILLE L. FREEMAN,
Secretary.

[F.R. Doc. 67-7357; Filed, June 28, 1967; 8:47 a.m.]

DEPARTMENT OF COMMERCE

Business and Defense Services Administration

UNIVERSITY OF CALIFORNIA, LAWRENCE RADIATION LABORATORY AND RESEARCH FOUNDATION OF STATE UNIVERSITY OF NEW YORK AT BUFFALO

Notice of Applications for Duty-Free Entry of Scientific Articles

The following are notices of the receipt of applications for duty-free entry of scientific articles pursuant to section 6(c) of the Educational, Scientific and Cultural Materials Importation Act of 1966 (Public Law 89-651; 80 Stat. 897). Interested persons may present their views with respect to the question of whether an instrument or apparatus of equivalent scientific value for the purposes for which the article is intended to be used is being manufactured in the United States. Such comments must be filed in triplicate with the Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration, Washington, D.C. 20230, within 20 calendar days after date on which this notice of application is published in the FEDERAL REGISTER.

Regulations issued under cited Act, published in the February 4, 1967, issue of the FEDERAL REGISTER, prescribe the requirements applicable to comments.

A copy of each application is on file, and may be examined during ordinary Commerce Department business hours at the Office of Scientific and Technical Equipment, Department of Commerce, Room 5123, Washington, D.C.

A copy of each comment filed with the Director of the Office of Scientific and Technical Equipment must also be mailed or delivered to the applicant, or its authorized agent, if any, to whose application the comment pertains; and the comment filed with the Director must certify that such copy has been mailed or delivered to the applicant.

Docket No. 67-00127-00-14200. Applicant: University of California, Lawrence Radiation Laboratory, East End of Hearst Avenue, Berkeley, Calif. 94720. Article: Encoder, Heidenhain Type LID-1 and Grating. Manufacturer: Optics and Electronics, Inc., West Germany. Intended use of article: These articles are for use with the applicant's Franckenstein Scanning Machines (automatic optical scanning devices). Application received by Commissioner of Customs: June 16, 1967.

Docket No. 67-00128-33-43400. Applicant: The Research Foundation of the State University of New York at Buffalo, 3435 Main Street, Buffalo, N.Y. 14214. Article: Micromanipulators, model Mark I and Microtools, model Mark I. Manufacturer: Singer Instrument Co., Ltd., United Kingdom. Intended use of article: Applicant states:

Research—to isolate and study small vessels particularly with respect to diabetes mellitus.

Application received by Commissioner of Customs: June 20, 1967.

CHARLEY M. DENTON,
Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration.

[F.R. Doc. 67-7333; Filed, June 28, 1967; 8:45 a.m.]

CURATORS OF UNIVERSITY OF MISSOURI

Notice of Decision on Application for Duty-Free Entry of Scientific Article

The following is a decision on an application for duty free-entry of a scientific article pursuant to section 6(c) of the Educational, Scientific, and Cultural Materials Importation Act of 1966 (Public Law 89-651; 80 Stat. 897) and the regulations issued thereunder (32 F.R. 2433 et seq.).

A copy of the record pertaining to this decision is available for public review during ordinary business hours of the Department of Commerce, at the Office of Scientific and Technical Equipment, Department of Commerce, Room 5123, Washington, D.C. 20230.

Docket No. 67-00027-75-21540. Applicant: The Curators of the University of Missouri, Columbia, Mo. 65201. Article: Specially designed Double (axis) Neutron Diffractometer — Diffractometer Component Parts and Ancillary Equipment. Manufacturer: Mitsubishi Electric Corp., Japan. Intended use of article: Applicant states:

The Double Neutron Diffractometer will be used for instruction and research related thereto at the University of Missouri. When installed at one port of our reactor, it will accept from the reactor a beam of neutrons which will be diffracted by samples of solids, liquids, or gases. From the diffraction patterns so obtained we will undertake to determine many of the properties of matter, including chemical structure, magnetic structure, and the thermal motions of atoms.

Comments: No comments were received with respect to this application Decision: Application approved. No instrument or apparatus of equivalent scientific value to such article, for the purposes for which such article is intended to be used, is being manufactured in the United States. Reasons: The double neutron diffractometer is a complex apparatus consisting of a number of major components which must be made compatible with each other, assembled and adjusted to provide a functionally integrated apparatus with the desired operating characteristics and specifications. In the past, apparatus of this type has been built by research institutions which purchased the various components from different manufacturers. These were assembled and adjusted by the research groups using the apparatus. Although many of the components were supplied by domestic manufacturers, we know of no single domestic manufacturer willing and able to supply the apparatus as a whole. The responsibility for assembling the components and assuring compatibility between them lay with the institutions using the apparatus. Furthermore, the series of components available from domestic manufacturers do not constitute a "reasonable combination of domestic instruments" eligible for comparison with the foreign article within the meaning of the term as used in Section 602.1(e) of the regulations, since the integration of the components into

a properly functioning apparatus requires an extensive variety of mechanical and electronic skills to be available within a single institution.

CHARLEY H. DENTON,
Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration.

[F.R. Doc. 67-7334; Filed, June 28, 1967; 8:45 a.m.]

NORTH CAROLINA STATE UNIVERSITY ET AL.

Notice of Applications for Duty-Free Entry of Scientific Articles

The following are notices of the receipt of applications for duty-free entry of scientific articles pursuant to section 6(c) of the Educational, Scientific and Cultural Materials Importation Act of 1966 (Public Law 89-651; 80 Stat. 897). Interested persons may present their views with respect to the question of whether an instrument or apparatus of equivalent scientific value for the purposes for which the article is intended to be used is being manufactured in the United States. Such comments must be filed in triplicate with the Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration, Washington, D.C., 20230, within 20 calendar days after date on which this notice of application is published in the FEDERAL REGISTER.

Regulations issued under cited Act, published in the February 4, 1967 issue of the FEDERAL REGISTER, prescribe the requirements applicable to comments.

A copy of each application is on file, and may be examined during ordinary Commerce Department business hours at the Office of Scientific and Technical Equipment, Department of Commerce, Room 5123, Washington, D.C.

A copy of each comment filed with the Director of the Office of Scientific and Technical Equipment must also be mailed or delivered to the applicant, or its authorized agent, if any, to whose application the comment pertains; and the comment filed with the Director must certify that such copy has been mailed or delivered to the applicant.

Docket No. 67-00111-00-46040. Applicant: North Carolina State University, Post Office Box 5935, Raleigh, N.C. 27607. Article: Electron Microscope Accessory Model 171460 Shutter for applicant's foreign made Electron Microscope. Manufacturer: Siemens Aktiengesellschaft, West Germany. Intended use of article: The article will be used to expose photoplates during operation of the electron microscope. Application received by Commissioner of Customs: June 13, 1967.

Docket No. 67-00112-33-46040. Applicant: Cornell University, Ithaca, N.Y. 14850. Article: Electron Microscope Model Norelco EM 300. Manufacturer: Philips Electronic Instruments, The Netherlands. Intended use of article: Applicant states: "The instrument is to be used for several purposes. The primary one being biological research. The research involves (1) developing and applying techniques for ultrahigh resolution autoradiography; (2) the ultrastructure of biomolecular materials at ultimate resolution; and (3) using the instrument in conjunction with a program to develop new electron microscopes of even higher resolution than now commercially available." Application received by Commissioner of Customs: June 13, 1967.

Docket No. 67-00122-00-46040. Applicant: The Research Foundation of State University of New York, Upstate Medical Center, 766 Irving Avenue, Syracuse, N.Y. 13210. Article: Electron Microscope Accessory Model 171460 Shutter for applicant's foreign made Electron Microscope. Manufacturer: Siemens Aktiengesellschaft, West Germany. Intended use of article: The article will be used to expose photoplates during operation of the electron microscope. Application received by Commissioner of Customs: June 13, 1967.

Docket No. 67-00123-00-46040. Applicant: Albany Medical College of Union University, 47 New Scotland Avenue, Albany, N.Y. 12208. Article: Electron Microscope Accessory Model 171460 Shutter for applicant's foreign made Electron Microscope. Manufacturer: Siemens Aktiengesellschaft, West Germany. Intended use of article: The article will be used to expose photoplates during operation of the electron microscope. Application received by Commissioner of Customs: June 13, 1967.

Docket No. 67-00121-00-46040. Applicant: Health Research, Inc., 666 Elm Street, Buffalo, N.Y. 14203. Article: Electron Microscope Accessory Model 171460 Shutter for applicant's foreign made Electron Microscope. Manufacturer: Siemens Aktiengesellschaft, West Germany. Intended use of article: The article will be used to expose photoplates during operation of the electron microscope. Application received by Commissioner of Customs: June 13, 1967.

CHARLEY M. DENTON,
Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration.

[F.R. Doc. 67-7335; Filed, June 28, 1967; 8:45 a.m.]

OHIO STATE UNIVERSITY ET AL.

Notice of Applications for Duty-Free Entry of Scientific Articles

The following are notices of the receipt of applications for duty-free entry of scientific articles pursuant to section 6(c) of the Educational, Scientific and Cultural Materials Importation Act of 1966 (Public Law 89-651; 80 Stat. 897). Interested persons may present their views with respect to the question of whether an instrument or apparatus of equivalent scientific value for the purposes for which the article is intended to be used is being manufactured in the United States. Such comments must be filed in triplicate with the Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration, Washington, D.C. 20230, within 20 calendar days after date on which this notice of application is published in the FEDERAL REGISTER.

Regulations issued under cited Act, published in the February 4, 1967 issue of the FEDERAL REGISTER, prescribe the requirements applicable to comments.

A copy of each application is on file, and may be examined during ordinary Commerce Department business hours at the Office of Scientific and Technical Equipment, Department of Commerce, Room 5123, Washington, D.C.

A copy of each comment filed with the Director of the Office of Scientific and Technical Equipment must also be mailed or delivered to the applicant, or its authorized agent, if any, to whose application the comment pertains; and the comment filed with the Director must certify that such copy has been mailed or delivered to the applicant.

Docket No. 67-00101-33-46500. Applicant: The Ohio State University, 190 North Oval Drive, Columbus, Ohio 43210. Article: Ultramicrotome Reichert Model Om U2. Manufacturer: C. Reichert Optische Werke A.G., Austria. Intended use of article: Applicant states: "The Reichert OmU2 Ultramicrotome will be used as an integral part of a biological-medical research program involving electron microscopy of blood and blood-forming organs in health and disease * * *. Research projects in which this instrument will become immediately involved include:

A. Electron microscopy and electron microscopic histochemistry of the cytoplasmic lysosomal granules in cells of the bone marrow in man, rabbit and cat.

B. Electron microscopy of the lymphocytic cells of the lymph nodes during embryonic-fetal development.

C. Submicroscopic studies of the developing erythrocytic cells as related to their cellular origin and specialization during maturation.

D. Electron microscopy of the embryonic thymus.

E. A study of unusual plasma cells in a patient with plasma cell leukemia."

Application received by Commissioner of Customs: June 7, 1967.

Docket No. 67-00115-33-46500. Applicant: Baylor University College of Medicine, 1200 Moursund Avenue, Houston, Tex. 77025. Article: Ultramicrotome Model 8800A Ultrotome III. Manufacturer: LKB-Produkter AB, Sweden. Intended use of article: The article will be used with electron microscopes for instruction of students and scientific research. Application received by Commissioner of Customs: June 13, 1967.

Docket No. 67-00118-00-46040. Applicant: The University of Chicago, 5801 South Ellis Avenue, Chicago, Ill. 60637. Article: Special objective lens power supply and control panel for HU-200 objective lens and special HU-200 (200KV) objective-intermediate lens assembly, objective and field limiting aperture assembly, objective stigmator specimen stage control aims and etc. Manufacturer: Hitachi, Ltd., Japan. Intended

use of article: Applicant states: "They are necessary for experimentation with biological specimens, perfecting high resolution techniques, at cryogenic temperatures." Application received by Commissioner of Customs: June 13, 1967.

CHARLEY M. DENTON,
Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration.

[F.R. Doc. 67-7336; Filed, June 28, 1967; 8:45 a.m.]

UNIVERSITY OF OREGON MEDICAL SCHOOL

Notice of Decision on Application for Duty-Free Entry of Scientific Articles

The following is a decision on an application for duty-free entry of a scientific article pursuant to section 6(c) of the Educational, Scientific, and Cultural Materials Importation Act of 1966 (Public Law 89-651; 80 Stat. 897) and the regulations issued thereunder (32 F.R. 2433 et seq.).

A copy of the record pertaining to this decision is available for public review during ordinary business hours of the Department of Commerce, at the Office of Scientific and Technical Equipment, Department of Commerce, Room 5123, Washington, D.C. 20230.

Docket No. 67-00047-33-72000. Applicant: University of Oregon Medical School, 3181 Southwest Sam Jackson Park Road, Portland, Oreg. 97201. Article: Weissenberg Rheogoniometer, Model R. 17 with ancillary equipment. Manufacturer: Farol Research Engineers, Ltd., United Kingdom. Intended use of article: Applicant states:

> The instrument will be used as a research tool for studying the flow properties of blood and red blood cell suspensions, and also as a demonstration and instruction instrument for graduate students.

Comments: No comments have been received from domestic firms. Decision: Application approved. No instrument or apparatus of equivalent scientific value to such article, for the purpose for which such article is intended to be used, is being manufactured in the United States. Reasons: No commercial instrument manufactured in the United States is known to be capable of measuring normal stress as well as velocity as a function of rate of shear.

CHARLEY M. DENTON,
Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration.

[F.R. Doc. 67-7337; Filed, June 28, 1967; 8:45 a.m.]

Bureau of International Commerce

[File No. 23(66)-14]

NEW WORLD LTD.

Order Denying Export Privileges for Indefinite Period

In the matter of the New World Ltd., Yu To Sang Building, 37 Queens Road C., Hong Kong, Respondent; File No. 23(66)-14.

The Director, Investigations Division, Office of Export Control, Bureau of International Commerce, U.S. Department of Commerce, has applied for an order denying to the above-named respondent all export privileges for an indefinite period because the said respondent, without good cause being shown, failed to furnish answers to interrogatories, failed to furnish certain records and other writings specifically requested, and failed to make available for inspection certain specific commodities exported to it from the United States. This application was made pursuant to § 382.15 of the Export Regulations (Title 15, Chapter III, Subchapter B, Code of Federal Regulations).

In accordance with the usual practice, the application for an Indefinite Denial Order was referred to the Compliance Commissioner, Bureau of International Commerce, who after consideration of the evidence has recommended that the application be granted. The report of the Compliance Commissioner and the evidence in support of the application have been considered.

The evidence presented shows that respondent, The New World Ltd., is a limited liability company with a place of business in Hong Kong; the company is an importer of fine chemicals, surgical equipment, and other commodities; in the period from January 1965, through June 1965, the respondent is known to have received under validated licenses from suppliers in the United States, five shipments of commodities for ultimate destination Hong Kong. The said Investigations Division is conducting an investigation into the disposition of said commodities by said respondent to ascertain whether they have been reexported to unauthorized destinations or traded in violation of the U.S. Export Regulations. It is impracticable to subpoena the respondent, and relevant and material interrogatories relating to its disposition of said commodities were served on it pursuant to § 382.15 of the Export Regulations. The respondent also, pursuant to said section, was requested to furnish certain specific documents relating to the disposition of said commodities and, if said commodities were still in its possession, to make them available for inspection. Said respondent has failed to furnish responsive answers to said interrogatories, to furnish the documents requested, or to make said commodities available for inspection as required by said section, and it has not shown good cause for such failure. I find that an order denying export privileges to said respondent for an indefinite period may properly be entered under § 382.15 of the Export Regulations and that such an order is reasonably necessary to protect the public interest and to achieve effective enforcement of the Export Control Act of 1949, as amended.

Accordingly, it is hereby ordered:

I. All outstanding validated export licenses in which respondent appears or participates in any manner or capacity are hereby revoked and shall be returned forthwith to the Bureau of International Commerce for cancellation.

II. The respondent, its successors, representatives, agents, and employees hereby are denied all privileges of participating, directly or indirectly, in any manner or capacity, in any transaction involving commodities or technical data exported from the United States in whole or in part, or to be exported, or which are otherwise subject to the Export Regulations. Without limitation of the generality of the foregoing, participation prohibited in any such transaction, either in the United States or abroad, shall include participation, directly or indirectly, in any manner or capacity: (a) As a party or as a representative of a party to any validated export license application; (b) in the preparation or filing of any export license application or reexportation authorization, or any document to be submitted therewith; (c) in the obtaining or using of any validated or general export license or other export control document; (d) in the carrying on of negotiations with respect to, or in the receiving, ordering, buying, selling, delivering, storing, using, or disposing of any commodities or technical data in whole or in part exported or to be exported from the United States; and (e) in the financing, forwarding, transporting, or other servicing of such commodities or technical data.

III. Such denial of export privileges shall extend not only to the respondent, but also to its agents, employees, representatives, and partners and to any other person, firm, corporation, or business organization with which the respondent now or hereafter may be related by affiliation, ownership, control, position of responsibility, or other connection in the conduct of trade or services connected therewith.

IV. This order shall remain in effect until the respondent provides responsive answers, written information and documents in response to the interrogatories heretofore served upon it and makes available for inspection the commodities specified, or gives adequate reasons for failure to do so, except insofar as this order may be amended or modified hereafter in accordance with the Export Regulations.

V. No person, firm, corporation, partnership, or other business organization, whether in the United States or elsewhere, without prior disclosure to and specific authorization from the Bureau of International Commerce, shall do any of the following acts, directly or indirectly, or carry on negotiations with respect thereto, in any manner or capacity, on behalf of or in any association with the respondent or any related party, or whereby the respondent or related party may obtain any benefit therefrom or have any interest or participation therein, directly or indirectly: (a) Apply for, obtain, transfer, or use any license, Shipper's Export Declaration, bill of lading, or other export control document relating to any exportation, reexportation, transshipment, or diversion of any commodity or technical data exported or to be exported from

the United States, by, to, or for any such respondent or related party denied export privileges; or (b) order, buy, receive, use, sell, deliver, store, dispose of, forward, transport, finance, or otherwise service or participate in any exportation, reexportation, transshipment, or diversion of any commodity or technical data exported or to be exported from the United States.

VI. A copy of this order shall be served on respondent.

VII. In accordance with the provisions of § 382.15 of the Export Regulations, the respondent may move at any time to vacate or modify this Indefinite Denial Order by filing with the Compliance Commissioner, Bureau of International Commerce, U.S. Department of Commerce, Washington, D.C. 20230, an appropriate motion for relief, supported by substantial evidence, and may also request an oral hearing thereon, which, if requested shall be held before the Compliance Commissioner at Washington, D.C., at the earliest convenient date.

This order shall become effective on June 26, 1967.

Dated: June 21, 1967.

RAUER H. MEYER,
Director,
Office of Export Control.

[F.R. Doc. 67-7338; Filed, June 28, 1967; 8:45 a.m.]

DEPARTMENT OF TRANSPORTATION

Federal Aviation Administration

AIR TRAFFIC CONTROL TOWER AT MIDDLETOWN, PENNSYLVANIA

Notice of Establishment

Notice is hereby given that on or about July 1, 1967, the Air Traffic Control Tower at Middletown, Pa., will be established to serve civil and residual military aircraft of the former Olmsted Air Force Base. Formerly this facility was used only for military aircraft. Communication to the facility should be addressed as follows:

Air Traffic Control Tower, Federal Aviation Administration, Middletown, Pa. 17057.

This action is taken under the authority of secs. 307 and 313 of the Federal Aviation Act of 1958 (49 U.S.C. 1348, 1354).

Issued in New York, N.Y., on June 14, 1967.

OSCAR BAKKE,
Director, Eastern Region.

[F.R. Doc. 67-7368; Filed, June 28, 1967; 8:47 a.m.]

Office of the Secretary

ASSISTANT SECRETARY FOR POLICY DEVELOPMENT

Delegation of Authority With Respect to Guaranteed Loans for Aircraft

The Assistant Secretary for Policy Development, U.S. Department of Transportation, is hereby authorized to exercise the functions, powers, and duties of the Secretary of Transportation under the Act of September 7, 1957, as amended (71 Stat. 629; 49 U.S.C. 1324 note) and section 6(a)(3)(A) of the Department of Transportation Act (P.L. 89-670, 49 U.S.C. 1655(a)(3)(A)), relating to guaranties of private loans for the purchase of aircraft.

This delegation becomes effective on June 21, 1967.

This delegation is made under the authority of section 9(e)(2) of the Department of Transportation Act (P.L. 89-670, 49 U.S.C. 1657(e)(2).

ALAN S. BOYD,
Secretary of Transportation.

[F.R. Doc. 67-7400; Filed, June 28, 1967; 8:49 a.m.]

CIVIL AERONAUTICS BOARD

[Docket No. 18694]

AEROLINEAS ARGENTINAS

Notice of Prehearing Conference

Application for amendment of its foreign air carrier permit for authority to engage in foreign air transportation with respect to persons, property, and mail, between a point or points in Argentina, the intermediate points Santiago, and Antofagasta, Chile; La Paz, Bolivia; Lima, Peru; Guayaquil, Ecuador; and Panama City, Panama, and the terminal point Miami, Fla.

Notice is hereby given that a prehearing conference on the above-entitled application is assigned to be held on July 11, 1967, at 10 a.m., e.d.s.t., in Room 1027, Universal Building, 1825 Connecticut Avenue NW., Washington, D.C., before Examiner Joseph L. Fitzmaurice.

Dated at Washington, D.C., June 23, 1967.

[SEAL] FRANCIS W. BROWN,
Chief Examiner.

[F.R. Doc. 67-7381; Filed, June 28, 1967; 8:48 a.m.]

[Docket No. 18720; Order No. E-25340]

AIR CARRIER DISCUSSIONS

Order Regarding Air Freight Credit, Billing, and Collection Practices

Adopted by the Civil Aeronautics Board at its office in Washington, D.C., on the 23d day of June 1967.

By petition filed March 24, 1967, The Flying Tiger Line Inc. (Tiger) requests the Board to authorize expansion of the present carrier discussions of accessorial cargo services [1] to encompass reappraisal of the present credit regulations,[2] including the billing and collection cycles and the possibilities of uniform rules and joint enforcement through an industry organization. Petitioner states that such discussions and solution of problems appear urgent because of serious shipper delinquency in paying carriers, and cites the substantial indebtedness revealed in Docket 18170 (In the Matter of the Application of Air Express International Corp. and Wings and Wheels Express, Inc., for Exemption From Sections 408 and 409 of the Federal Aviation Act of 1958, as amended).

Tiger states that the existing carrier discussions on accessorial cargo services in Docket 17167 would be an appropriate and convenient forum for the proposed discussions on credit, billing, and collection practices. Eastern Air Lines, Inc., supports Tiger's petition, while no other person has formally indicated any other view.

The Board notes that some of the direct air carriers are parties to Agreement CAB 6150-A32, supra, while some are not. The Board will deny the request to expand the present accessorial services discussions in Docket 17167 to include this new matter, since (1) credit, billing, and collection practices are a more basic and fundamental function than the usual accessorial service; and (2) such inclusion would delay resolution of the former matters. In lieu thereof, the Board will approve a new and separate discussion proceeding limited to air freight credit, billing, and collection practices. The industry, both direct and indirect air carriers, has reached the stage of development where the criteria for the extension of air freight credit, and the billing and collection practices, should be administered on a reasonable and uniform basis.

In addition, discussion might lead to the opening of the airlines' clearing house to forwarders and shippers, or the use of various bank or other similar payment plans, and thereby substantially stabilize the credit criteria and minimize the collection delinquency problems. The Board will expect the carriers to give these possibilities serious consideration and study.

As in similar instances of carrier discussions (Docket 17167, supra), the Board believes that the carriers should be exposed to shipper/forwarder views during the course of their discussions and prior to the conclusion of any final agreement.

The Board concludes that the request, as conditioned, should be granted, and will authorize such discussions for a period of 120 days. As in the past, the Board will also condition its approval to permit the attendance of Board observers.

Accordingly, pursuant to the Federal Aviation Act of 1958, and particularly sections 204(a), 412, and 414 thereof.

It is ordered, That:

1. All U.S. certificated route air carriers engaged in interstate or overseas air transportation are authorized for a period of 120 days from the date of this order to engage in discussions with respect to air freight credit, billing, and collection practices in interstate or overseas air transportation;

[1] Order E-24599 dated Jan. 3, 1967, Docket 17167, extended to July 31, 1967, by Order E-25146 dated May 15, 1967.

[2] Agreement CAB 6150-A32, on billing and collection periods, approved Sept. 4, 1962 by Order E-18769, is in effect on behalf of 25 direct air carriers.

2. A notice of any meeting called pursuant to this order to be attended by direct air carriers only, and an agenda of matters to be discussed, shall be filed with the Board in this docket at least 5 calendar days in advance;

3. A notice of any meeting called pursuant to this order to be attended by both direct air carriers and shippers (including indirect air carriers), and an agenda of matters to be discussed, shall be filed with the Board in this docket at least 15 calendar days in advance;

4. All meeting notices and agendas shall also be mailed to shippers and indirect air carriers with such notice to include an invitation to submit comments upon the agenda matters and to request appointments for personal appearances at the carriers' meetings;

5. The Board reserves the right to have one or more observers in attendance at all meetings of the carriers;

6. Complete and accurate minutes shall be kept of all meetings and a true copy thereof filed with the Board not later than 15 days (excluding Saturdays and Sundays) after the conclusion of each meeting;

7. Any agreement or agreements reached as a result of such discussions shall be filed with the Board in accordance with section 412 of the Act and approved by the Board prior to being placed into effect; and

8. The petition of The Flying Tiger Line Inc., in Dockets 17160 and 17167 is denied in all other respects.

This order will be published in the FEDERAL REGISTER.

By the Civil Aeronautics Board.

[SEAL] MABEL MCCART,
Acting Secretary.

[F.R. Doc. 67-7382; Filed, June 28, 1967; 8:48 a.m.]

[Docket No. 18351; Order No. E-25346]

CITY OF SAN JOSE, CALIF.

Order To Show Cause

Adopted by the Civil Aeronautics Board at its office in Washington, D.C., on the 23d day of June 1967.

Application of The City of San Jose, Calif., for amendments of certificates of certain named air carriers so as to designate San Jose as a hyphenated point with San Francisco; Docket No. 18351.

On March 30, 1967, the City of San Jose, Calif., filed an application requesting the amendment of the certificates of public convenience and necessity of the following air carriers so as to designate San Jose as a hyphenated point with San Francisco. The amendments requested are as follows:

American Airlines, Inc.—Routes 4, 7, and 25, redesignate the coterminal points San Francisco and Oakland as the coterminal points San Francisco-San Jose and Oakland.

Delta Air Lines, Inc.—Route 24, redesignate the terminal point San Francisco-Oakland as the terminal point San Francisco-Oakland-San Jose.

National Airlines, Inc.—Route 39, redesignate the terminal point San Francisco-Oakland as the terminal point San Francisco-Oakland-San Jose.

Trans World Airlines, Inc.—Route 2, redesignate the terminal point San Francisco as San Francisco-San Jose.

United Air Lines, Inc.—Route 1, redesignate the terminal point San Francisco as San Francisco-San Jose on Segment 4, and the intermediate point San Francisco as San Francisco-San Jose on Segments 5 and 7; Route 118, redesignate the coterminal points San Francisco and Los Angeles as San Francisco-San Jose and Los Angeles.

Western Air Lines, Inc.—Route 35, redesignate the coterminal points San Francisco and Oakland as San Francisco-San Jose and Oakland; Route 63, redesignate the intermediate point San Francisco as San Francisco-San Jose.

West Coast Airlines, Inc.—Route 77, redesignate the coterminal points Oakland and San Francisco as Oakland and San Francisco-San Jose.

On the same day, San Jose filed a petition requesting the Board to issue an order to show cause why its application, Docket 18351, should not be granted. In support of its petition, San Jose alleges, inter alia, that: San Jose is an integral part of the Bay Area and is the center of the fastest growing region of the entire Bay Area; San Jose has attained significant status as a major metropolitan center in the overall Bay Area complex; San Jose has historically generated a large proportion of San Francisco O&D traffic and more than 20 percent of the passengers using other area airports are actually San Jose-Santa Clara County origin and destination passengers; with the status of a hyphenated point, air carriers at their discretion will be able to serve San Jose directly responsive to operational and traffic requirements in the overall Bay Area; the requested redesignation will encourage further growth by permitting air carriers certificated in the Bay Area to add San Jose to their advertising and promotion and show it as a part of their schedules and tariffs as a point to which daily service is available; moreover, hyphenated status is important to San Jose in terms of the future planning and development of its entire airport complex. Pacific Air Lines, Inc., has been certificated to serve San Jose since 1949 and is the only air carrier authorized to serve San Jose through the San Jose Airport.

Answers to San Jose's petition were filed by American Airlines, Inc., Delta Airlines, Inc., United Air Lines, Inc., Western Air Lines, Inc., and San Francisco & Oakland Helicopter Airlines, Inc.[1] The carriers filing answers do not object to grant of San Jose's petition.

The Board has decided to institute a proceeding pursuant to section 401(g) of the Act to determine whether the public convenience and necessity require, and the Board should order, the amendment of American's certificates for Routes 4, 7, 25; Delta's certificate for Route 24; National's certificate for Route 39; TWA's certificate for Route 2; United's certificates for Routes 1 and 118; Western's certificate for Routes 35 and 63. We will not, however, include in this proceeding any issue of amending West Coast's certificate. Permitting West Coast access to San Jose could result in future competition with Pacific and an increase in the subsidy requirements of both carriers. In addition, we will restrict the issues in such a manner as to prohibit single-plane service through the San Jose airport in the following Pacific markets: Las Vegas, Los Angeles, Fresno, Bakersfield, Reno, Portland, Santa Barbara, San Diego, Monterey, Sacramento, and Stockton. Competition in these Pacific markets would not in our judgment be warranted in the light of the fact that Pacific's services are subsidized and the carrier is encountering increased competition from intra-California carriers. We have also tentatively determined to prohibit single-plane service between San Jose and Seattle by the carriers now operating between Seattle and San Francisco. The Board wishes to retain maximum flexibility in dealing with services in this market in view of pending applications by local service carriers.

For the reasons set forth below, we tentatively find and conclude that the public convenience and necessity require the amendment of the certificates of those air carriers indicated above so as to designate San Jose as a hyphenated point with San Francisco or with San Francisco and Oakland as the case may be.

San Jose is an integral part of the Bay Area and is one of the major metropolitan centers of that area. San Jose is the center of the fastest growing region of the entire Bay Area and the growth has been of an urban character. It appears from the data submitted by San Jose that more than 20 percent of the passengers using other Bay Area airports are actually San Jose-Santa Clara County origin and destination passengers. We think that grant of hyphenated point status to San Jose will accord to that city proper recognition of this significant traffic generation.

We tentatively find that the redesignation requested by San Jose will reflect the major traffic flows presently generated by San Jose through the other Bay Area airports; and will permit the air carriers certificated to the other Bay Area airports to add San Jose to their advertising and promotion and show it as part of their schedules and tariffs as a point to which service is available. Hyphenated point status will afford the carriers the operating flexibility which may be desirable now and which will almost certainly be required in the future as the growth of the area continues. Moreover, permitting the carriers to show San Jose in their advertising and schedules will result in benefits both to the carriers and the traveling public.

In granting interested persons the opportunity to show why our tentative findings and conclusions should not be adopted, we expect such persons to direct their objections, if any, to specific markets and to support such objections with detailed * answers, specifically setting forth the tentative findings and conclusions to which objection is taken. Such

[1] We will consider Western's late filed answer.

objection should be accompanied by arguments of fact or law and should be supported by legal precedent or detailed economic analysis. General, vague and unsupported objections will not be entertained.

Accordingly, it is ordered, That:

1. A proceeding be and it hereby is instituted in Docket 18351 pursuant to section 401(g) of the Act, to determine whether the public convenience and necessity require, and the Board should order, the amendment of the certificates of public convenience and necessity held by American Airlines, Inc., for Routes 4, 7, and 25; Delta Air Lines, Inc., for Route 24; National Airlines, Inc., for Route 39; Trans World Airlines, Inc., for Route 2; United Air Lines, Inc., for Routes 1 and 118; Western Air Lines, Inc., for Routes 35 and 63; as follows:

American Airlines, Inc.—Routes 4, 7, and 25, redesignate the coterminal points San Francisco and Oakland as the coterminal points San Francisco-San Jose and Oakland.

Delta Air Lines, Inc.—Route 24, redesignate the terminal point San Francisco-Oakland as the terminal point San Francisco-Oakland-San Jose.

National Airlines, Inc.—Route 39, redesignates the terminal point San Francisco-Oakland as the terminal point San Francisco-Oakland-San Jose.

Trans World Airlines, Inc.—Route 2, redesignate the terminal point San Francisco as San Francisco-San Jose.

United Air Lines, Inc.—Route 1, redesignate the terminal point San Francisco as San Francisco-San Jose on Segment 4, and the intermediate point San Francisco as San Francisco-San Jose on Segments 5 and 7; Route 118, redesignate the coterminal points San Francisco and Los Angeles as San Francisco-San Jose and Los Angeles.

Western Air Lines, Inc.—Route 35, redesignate the coterminal points San Francisco and Oakland as San Francisco-San Jose and Oakland; Route 63, redesignate the intermediate point San Francisco as San Francisco-San Jose.

2. Any service operated pursuant to an award in this proceeding shall be subject to a restriction prohibiting single-plane service through the San Jose Airport in the following San Jose markets; Seattle, Las Vegas, Los Angeles, Fresno, Bakersfield, Reno, Portland, Santa Barbara, San Diego, Monterey, Sacramento, and Stockton;

3. That all interested parties are directed to show cause why the Board should not issue an order making final the tentative findings and conclusions stated herein and issue at an appropriate time to those carriers designated in ordering paragraph (1) herein amended certificates of public convenience and necessity as described in ordering paragraph (1) herein and subject to the restriction set forth in ordering paragraph (2) herein;

4. Any interested persons having objection to the issuance of an order making final the proposed findings, conclusions and certificate amendments set forth herein shall, within 20 days after service of a copy of this order, file with the Board and serve upon all persons made parties to this proceeding a statement of objections together with a summary of testimony, statistical data and other evidence expected to be relied upon to support the stated objections;

5. If timely and properly supported objections are filed, full consideration will be accorded the matters or issues raised by the objections before further action is taken by the Board; [1]

6. In the event no objections are filed, all further procedural steps will be deemed to have been waived, and the case will be submitted to the Board for final action; and

7. A copy of this order shall be served upon the following persons who are hereby made parties to this proceeding: American Airlines, Inc., Delta Air Lines, Inc., National Airlines, Inc., Trans World Airlines, Inc., United Air Lines, Inc., Western Air Lines, Inc., West Coast Airlines, Inc., San Francisco & Oakland Helicopter Airlines, Inc., Pacific Air Lines, Inc., and the city of San Jose, Calif.

This order will be published in the FEDERAL REGISTER.

By the Civil Aeronautics Board.

[SEAL] MABEL MCCART,
Acting Secretary.

[F.R. Doc. 67-7383; Filed, June 28, 1967; 8:48 a.m.]

[Docket No. 16236; Order No. E-25344]

INTERNATIONAL AIR TRANSPORT ASSOCIATION

Order Regarding Specific Commodity Rates

Adopted by the Civil Aeronautics Board at its office in Washington, D.C., on the 23d day of June, 1967.

An agreement has been filed with the Board, pursuant to section 412(a) of the Federal Aviation Act of 1958 (the Act) and Part 261 of the Board's Economic Regulations, between various air carriers, foreign air carriers, and other carriers, embodied in the resolutions of Joint Conference 1-2 of the International Air Transport Association (IATA), and adopted pursuant to the provisions of Resolution 590 dealing with specific commodity rates.

The agreement, adopted pursuant to unprotested notices to the carriers and promulgated in an IATA letter dated June 15, 1967,[1] extends the validity of the presently effective specific commodity rates set forth below.

R-37 COMMODITY ITEM 4400

Electrical equipment, excluding machinery. 199 cents per kg., minimum weight 100 kgs. 188 cents per kg., minimum weight 200 kgs. 183 cents per kg., minimum weight 500 kgs. New York to Dhahran.

R-38 COMMODITY ITEM 8426

Motion picture film, including advertising material appertaining thereto.
209 cents per kg., minimum weight 45 kgs.
199 cents per kg., minimum weight 300 kgs.
New York to Dhahran.

The Board, acting pursuant to sections 102, 204(a), and 412 of the Act, does not find the subject agreement to be adverse to the public interest or in violation of the Act, provided that approval thereof is conditioned as hereinafter ordered.

Accordingly, it is ordered, That:

Agreement CAB 19276, R-37 and R-38, be approved, provided that approval shall not constitute approval of the specific commodity descriptions contained therein for purposes of tariff publication.

Any air carrier party to the agreement, or any interested person, may, within 15 days from the date of service of this order, submit statements in writing containing reasons deemed appropriate, together with supporting data, in support of or in opposition to the Board's action herein. An original and nineteen copies of the statements should be filed with the Board's Docket Section. The Board may, upon consideration of any such statements filed, modify or rescind its action herein by subsequent order.

This order will be published in the FEDERAL REGISTER.

By the Civil Aeronautics Board.

[SEAL] MABEL MCCART,
Acting Secretary.

[F.R. Doc. 67-7384; Filed, June 28, 1967; 8:48 a.m.]

FEDERAL COMMUNICATIONS COMMISSION

[Docket Nos. 17357-17359; FCC 67M-1051]

AKRON TELERAMA, INC., ET AL.

Statement and Order Governing Hearing

In re petitions by Akron Telerama, Inc., Akron, Ohio, Docket No. 17357, File No. CATV 100-16; Armstrong Utilities, Inc., Orrville and Rittman, Ohio, File No. CATV 100-52; Lorain Cable TV, Inc., Lorain, Ohio, Docket No. 17358, File No. CATV 100-128; Telerama, Inc., Cleveland Heights, Richmond Heights, South Euclid, Beachwood, Oakwood, East Cleveland, Garfield Heights, Euclid, Highland Heights, University Heights, Bedford Heights, Maple Heights, Lyndhurst, Bedford, and North Randall; also Shaker Heights, Warrensville Heights, and Warrensville Township, Ohio, Docket No. 17359, File No. CATV 100-146; Clear Pictures, Inc., Wooster, Ohio, File No. CATV 100-157; for authority pursuant to § 74.1107 of the rules to operate CATV systems in the Cleveland Television Market.

At a prehearing conference held on June 12, 1967, it was established that there would be a further conference on June 26. It was also agreed that the hearing would commence on July 17, as-

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[1] All motions and/or petitions for reconsideration shall be filed within the period allowed for filing objections and no further such motions, requests or petitions for reconsideration of this order will be entertained.

[1] Received in the Board June 19, 1967.

suming that certain difficulties of proof could be overcome.

At the request of one of the parties all counsel met informally with the hearing examiner on June 20, 1967, and further discussions were held regarding the proposed schedule. For reasons which need not be discussed at length, it was decided that no purpose would be served by holding the further conference on June 26. It was decided, however, with the apparent concurrence of all parties that the hearing would be commenced on Friday, July 21, 1967. The evidence to be submitted on this date, however, will be limited in scope and will relate only to Issue No. 4 and to that part of Issue No. 1 which relates to present penetration of CATV service in the Cleveland market.

Counsel for the CATV companies bearing the burden of proof on Issue No. 1 explained some of the difficulties they anticipated in completing their showings with respect to that issue. The examiner, therefore, requested them to make such showings as complete as possible under the circumstances and it is understood that neither they nor any of the other parties will be precluded from tendering further evidence on Issue No. 1 at subsequent hearing sessions.

Exhibits to be offered at the July 21 hearing session will be exchanged on July 14, 1967.

Accordingly, it is ordered, That the further conference date of June 26, 1967 is canceled and the hearing will commence on July 21, 1967, at 10 a.m.

Issued: June 22, 1967.

Released: June 26, 1967.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 67-7390; Filed, June 28, 1967; 8:49 a.m.]

[Docket Nos. 17178-17180; FCC 67R-259]

LAWRENCE COUNTY BROADCASTING CORP. ET AL.

Memorandum Opinion and Order Enlarging Issues

In re applications of Lawrence County Broadcasting Corp., New Castle, Pa., Docket No. 17178, File No. BP-16602; Brownsville Radio, Inc., Brownsville, Pa., Docket No. 17179, File No. BP-16648; Shawnee Broadcasting Co., Aliquippa, Pa., Docket No. 17180, File No. BP-16880; for construction permits.

1. This proceeding involves the above-captioned applications for construction permits to establish new standard broadcast stations in Aliquippa, Brownsville, and New Castle, respectively, all in Pennsylvania. By Memorandum Opinion and Order, released February 16, 1967 (FCC 67-185), the applications were designated for hearing on various issues. Presently before the Review Board is a petition to enlarge issues, filed March 9, 1967, by Lawrence County Broadcasting Corp. and Brownsville Radio, Inc. (petitioners), requesting addition of five issues relating to the qualifications of Shawnee Broadcasting Co. (Shawnee).[1]

Section 73.37 of the rules. 2. Petitioners first request an issue to determine whether Shawnee's proposal contravenes § 73.37 of the rules, urging specifically that it does not comply with the exception contained in § 73.37(b)(2) of the rules.[2] In support of its request, petitioners contend that although Shawnee attempted to show in its application that its proposed 1 mv/m contour would not overlap the 0.05 mv/m contour of Station WCAR, Detroit, Mich., measurements petitioners have taken (submitted with their request) show that there would be a substantial overlap of Shawnee's proposed 1 mv/m contour and the 0.5 mv/m contour of cochannel WCAR. The Broadcast Bureau supports the addition of an issue. Shawnee in opposition alleges that there are engineering errors in the petitioners' technical showing, and contends that Shawnee's measurements establish that there can be no overlap of the WCAR 0.05 mv/m contour with its proposed 1 mv/m contour. Lawrence in its reply concedes some errors, but maintains that there will be an overlap of the prohibited contours.

3. The differences of opinion as to whether there will be an overlap of the WCAR 0.05 mv/m contour with the proposed 1 mv/m contour of Shawnee result from differing evaluations of the measurements taken by the petitioners and Shawnee. Petitioners originally submitted measurements made in March, 1966, on one radial (121°) from Station WCAR, wherein the terminal conductivity was evaluated as 12.5 millimhos per meter (mmhos/m). In reply to Shawnee's opposition, petitioners later submitted a corrected showing wherein, among other corrections, the terminal conductivity was evaluated as 10 mmhos/m. Both showings depict an overlap of the WCAR 0.05 mv/m contour with Shawnee's 1.0 mv/m contour. Shawnee, in its opposition, submitted measurements taken in March and April, 1967, on three radials, and evaluated the terminal conductivity as 9 mmhos/m on the 124° radial, 8 mmhos/m on the 119° stub radial, and 10 mmhos/m on the 129° stub radial. Shawnee's showing depicts a minimum separation of approximately 3 miles between the WCAR 0.05 mv/m contour and Shawnee's 1.0 mv/m contour. Possible explanations for the differences in the showings have been advanced, including errors in plotting measurement locations and the effect of seasonal or weather differences. Our review of these showings indicates that the questions raised therein would be best resolved by inquiry in the evidentiary hearing, and that the addition of an appropriate issue is warranted. With the purpose of serving the public interest by obtaining the most meaningful information, it is desirable, in the event that additional measurements are taken, that the parties be invited to cooperate in such operation.

Programing. 4. Petitioners' next request the addition of an issue to determine what efforts have been made by Shawnee to ascertain the program needs of the area it proposes to serve, and the manner in which it proposes to meet those needs (Suburban issue). In support of its request, petitioners submitted affidavits from six Aliquippa community leaders, who stated that they were never contacted by Shawnee regarding the programing needs and interests of Aliquippa. Petitioners further allege that while Shawnee, subsequent to filing of its application (about 2 months later), conducted a mail survey, it failed to make a sufficient inquiry into the programing needs and interests of Aliquippa; and that its program proposal, which includes 41 percent local live programs, was designed in a vacuum.

5. Shawnee, in opposition, states that the proposed program service is supported by two visits by Truman A. Morris, president and 100 percent owner of Shawnee, to Aliquippa; questionnaires to more than 240 people; personal surveys; U.S. Census data; Aliquippa Chamber of Commerce material; and the broadcast experience of Truman Morris since 1941. Shawnee contends that Morris is familiar with the needs by reason of his travel in the area over many years; and that the proposed program service was prepared after study of statistical and descriptive information concerning Aliquippa and with the assistance of Miss Alice Shein, a broadcaster with 30 years experience in programing in the general area. It further contends that a personal survey was conducted in September 1965, by Michael E. Zobrak, a resident of Aliquippa for 22 years and a former station manager of a college educational station; that Mr. Zobrak advised Shawnee that its program proposal was ideally suited to the needs of Aliquippa; that, of the eight affiants presented by Lawrence as not having been contacted by Shawnee, five were sent questionnaires and, of

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[1] Also before the Review Board are: (a) Opposition of Shawnee, filed May 1, 1967; (b) Broadcast Bureau's comments, filed May 2, 1967; (c) reply of Shawnee to Broadcast Bureau's comments, filed May 11, 1967, and (d) reply, filed June 1, 1967, by the petitioners. The Broadcast Bureau on May 2, 1967, filed a petition for late acceptance of its responsive pleading. The Bureau states that its pleading was filed late because it consented to a request for extension of time for filing of responsive pleadings which was to have been filed by a party, but the Bureau later learned that it was not filed. Good cause has been shown and the Bureau's responsive pleading is accepted for filing.

[2] Section 73.37(b) states in pertinent part "An application for a new statiton * * * may be granted notwithstanding overlap of the proposed 0.5 mv/m contour and the 0.025 mv/m contour of another cochannel station, where the applicant station is or would be * * * the first standard broadcast facility in a community of 25,000 or more population wholly or partly within an urbanized area * * *: *Provided*, That: (1) The proposal complies with paragraph (a) of this section in all other respects and is consistent with all other provisions of this part; and (2) No overlap would occur between the 1 mv/m contour of the proposed facilities and the 0.05mv/m contour of any cochannel station."

these, two did not reply; that 95 completed survey forms were received, representing 39 percent of the questionnaires circulated; and that Morris made inquiries in October 1965, and in September 1966, which included a half-hour meeting with the Mayor of Aliquippa. The Broadcast Bureau contends that petitioners failed to demonstrate that Shawnee did not make a bona fide effort to ascertain the needs and interests of Aliquippa prior to the filing its application.

6. Petitioner's request for a Suburban issue will be denied. The information contained in Shawnee's opposition establishes that although its prefiling efforts to determine the needs and interests of the community it proposes to serve were somewhat scant, it began (almost immediately after filing its application) and has continued to assiduously attempt to ascertain those needs and interests through surveys, personal interviews, questionnaires, and other means. These efforts provided Shawnee with a reasonable basis for determining that no changes in its program proposal were required; Shawnee has set forth examples of how the results of its efforts are reflected in its program schedules; and petitioners have not demonstrated that Shawnee's proposal does not in fact reflect the needs and desires of Aliquippa. Under these circumstances, further inquiry into this matter is not warranted. See Saul M. Miller, FCC 66–551, 4 FCC 2d 150.

Site availability. 7. Petitioners request the addition of a site availability issue, alleging that Shawnee has absolutely no assurance, either oral or written, of the availability of the land specified for its antenna location. In support of the allegation, petitioners point out that Shawnee has specified in its application a site on Sohn Road, located south of Aliquippa, and estimated an expenditure of $3,000 for acquiring land; but it did not state whether the land has been leased, will be leased, or will be purchased. An affidavit from a local attorney was submitted by petitioner, in which the attorney states that he discussed the site with the owners of the property who told him that there are no outstanding agreements for leasing, optioning or purchasing this land between the owners and Shawnee.

8. Shawnee, in its opposition, contends (a) that it has obtained the assurance of the real estate agent handling the sale of the property that the site will be available for purchase when Shawnee is ready to proceed; (b) that since the owners of the land would be reluctant to sign any legal document not constituting an actual sale, no option was sought; (c) that there has never been any indication that the transmitter site proposed by Shawnee is not available. The Broadcast Bureau also opposes the addition of the issue, stating that none of the factual allegations advanced by petitioners raises a question of the availability of the site specified by Shawnee.

9. The Commission has reiterated on numerous occasions that absolute assurance of site availability is not required; only that there be a showing of reasonable assurance of site availability made in good faith. See, e.g., Beacon Broadcasting System, Inc., 21 RR 727 (1961); Suburban Broadcasting Co., Inc., 19 RR 956a (1960). Shawnee has a verbal assurance from a real estate agent, who is alleged to be handling the sale of the property and a close friend of the land owner, that the land will be available when Shawnee needs it, and, in the absence of any allegation to the contrary, this is sufficient to show the availability of site. cf. Lorenzo W. Milam and Jeremy D. Lansman, 4 FCC 2d 610, 7 RR 2d 765 (1966); and Eastside Broadcasting Co., FCC 63R–528, 1 RR 2d 763. The request for site availability issue will therefore be denied.

Staffing issue. 10. In support of a requested issue to determine whether Shawnee's proposed staff is adequate to effectuate its proposal, petitioners point out that Shawnee, in its application, stated that it "plans to staff the station with enough able and qualified employees to serve the community well"; and that Shawnee proposes to devote 41 percent or approximately 31 hours, of a weekly broadcast time to local live programing. Since no definitive showing of staff has been made by Shawnee, petitioners contend that a question is raised as to whether adequate staff will be employed to effectuate the program proposal. The Broadcast Bureau agrees that Shawnee's staffing proposal is too vague to be evaluated and that its program proposal is of sufficient complexity to require the addition of a staffing issue, if the applicant fails to submit a satisfactory explanation in its responsive pleading.

11. Shawnee in its opposition alleges that, for a 250-watt, daytime-only operation, a limited staff will adequately fulfill the varied functions of the station. The staff, it states, will consist of (a) one station manager-commercial manager-program director-announcer-engineer; (b) two announcer-engineer-salesmen; (c) one contract engineer with a radio-telephone first class operator's license; (d) one receptionist-bookkeeper-traffic employee; (e) and four (part-time) announcer-engineer-salesmen. Shawnee states that all station personnel, with the exception of the receptionist-bookkeeper-traffic employee, will be expected to have a radiotelephone third class operator license with broadcast endorsement. Shawnee contends that, of the 30 local live programs, eighteen will be furnished by outside local talent, exclusive of station personnel; two are of 25 minutes duration and are expected to be handled by part-time employees, and 10, ranging in length from 5 to 15 minutes, will require substantial participation by station personnel. Shawnee asserts that, based upon its experience at Station WCAI, Fort Myers, Fla., the type of programming proposed for Aliquippa can be accomplished with even less personnel than now proposed, and that its proposal is tailored specifically for Aliquippa.

12. Shawnee proposes to broadcast 74.25 hours per week, of which 41 percent (approximately 31 hours) is live programing, with three full-time and four part-time employees. Shawnee has indicated that the majority of its live programs will be conducted by nonstation personnel. However, from the descriptions of the programs contained in its opposition, it appears that station personnel would be needed for the remote operations and the tape recordings of these live programs. Further, Shawnee indicated that station personnel would participate substantially in 10 local live programs ranging from 5 to 15 minutes in duration. With the recent development of equipment and techniques, it may be possible to operate a broadcast station with a limited number of personnel as proposed by Shawnee. However, on the basis of the information supplied in its responsive pleading, Shawnee has not satisfactorily demonstrated that its staff would be able to effectuate the program proposal. Therefore the request for a staffing issue will be granted.[3]

Financial issue. 13. To support a request for an issue inquiring into the financial qualifications of Shawnee, petitioners note that Shawnee's application reflects initial costs of construction of $24,600, cost of first year's operation of $30,000; and funds available in an amount of $59,500 consisting of $2,000 cash on deposit, a $50,000 bank loan and a $7,500 deferred credit arrangement on radio equipment. Petitioners first contend that the bank letter from the Savings Bank Company of Chillicothe, Ohio, does not show the security for the loan; and that where banks require collateral and there is no showing of necessary collateral to meet the condition specified by the bank, a financial issue is required, citing Lebanon Valley Radio, FCC 65R–159, 5 RR 2d 45 (1965) and Eastern Long Island Broadcasters, Inc., 1 FCC 2d 1165, 6 RR 2d 477 (1965). Petitioners further contend that, even assuming that the bank letter is a firm commitment, Shawnee would still have insufficient funds available to construct, own, and operate its proposed station because it will require an amount in excess of $58,000; and that this figure does not take into account the legal expenses, the costs of rentals, and other costs normally provided under "Other Items." Finally, petitioners allege that Shawnee's estimate of operating cost for the first year is unreasonably low in view of the substantial amount of time for live programing and the staff necessary to accommodate such a proposal. The Broadcast Bureau opposes the addition of a general financial issue, alleging that Shawnee has shown the availability of $59,800 to meet total costs of $54,600, and that the letter of credit which Shawnee has submitted is sufficient to evidence a firm commitment to lend $50,000, citing Romac Baton Rouge Corp., FCC 67R–92, 7 FCC 2d 468 (1967). The Bureau contends that petitioners allegation as to underestimation of first year's operating cost is nothing more than bare assertion and must be rejected.

[3] Cf. John N. Traxler and Alvera M. Traxler, FCC 65R–191, 5 RR 2d 738 (1965).

However, since Shawnee has not presented any breakdown of its estimated cost for the first year's operation, Bureau questions whether it has provided funds for principal and interest payments for the first year, and urges, in the absence of a satisfactory explanation in Shawnee's responsive pleading, the addition of a limited financial issue to determine Shawnee's first year costs of operation.

14. Shawnee in its opposition alleges that it is paying the costs of prosecuting its application out of operating income; and submits a detailed breakdown of its costs of construction and operation for 1 year, reflecting a total cash requirement of $55,631, including payments of principal and interest on the deferred credit arrangement and the bank loan. To meet this requirement, Shawnee alleges that it has funds available in an amount of approximately $114,374, consisting of the $50,000 bank loan, assets reflected on Shawnee's up-dated balance sheet, and $20,000 from its owner, Truman Morris.

15. The Board is satisfied that the bank commitment letter submitted by Shawnee is adequate to establish the availability of the $50,000 loan.[4] Thus, Shawnee must show that it has available a maximum of $8,000 in additional funds.[5] We would be unwilling to permit Shawnee to rely upon the personal assets of its owner since its application does not reflect this source of funds and an amendment would be required to show new or changed methods of financing. However, Shawnee's up-dated balance sheet reflects current assets of $65,098.16; total assets of $121,155.95; current liabilities of $5,424.02; long term liabilities of $34,353; and $1,798.88 in net profits for the first 2 months of 1967. While part of the current assets consist of accounts receivable, the liquidity of which has not been established, it is clear from Shawnee's overall financial posture that the $8,000 requirement can be met. See Massillon Broadcasting Co., Inc., FCC 61-1164, 22 RR 218; Springfield Television Broadcasting Corp., FCC 64R-234, 2 RR 841; and Garo W. Ray, FCC 63R-103, 23 RR 286.

Accordingly, it is ordered, That the Broadcast Bureau's petition to accept late filing, filed on May 2, 1967, is granted; that the petition to enlarge issues, filed March 9, 1967, by Lawrence County Broadcasting Corp. and Brownsville Radio, Inc., is granted to the extent indicated below and is denied in all other respects; and

It is further ordered, That the issues in this proceeding are enlarged by addition of the following issues:

To determine whether the application of Shawnee Broadcasting Co. is in contravention of § 73.37 of the rules.

To determine whether the proposed staff of Shawnee Broadcasting Co. is adequate to effectuate its program proposal; and

It is further ordered, That the burden of proceeding with the introduction of evidence and the burden of proof will be on Shawnee Broadcasting Co.

Adopted: June 20, 1967.

Released: June 26, 1967.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 67-7391; Filed, June 28, 1967; 8:49 a.m.]

[Docket Nos. 17345, 17346; FCC 67R-261]

LEE BROADCASTING CORP. AND MID AMERICA BROADCASTING, INC.

Memorandum Opinion and Order Enlarging Issues

In re applications of Lee Broadcasting Corp., Moline, Ill., Docket No. 17345, File No. BPH-5470; Mid America Broadcasting, Inc., Moline, Ill., Docket No. 17346, File No. BPH-5569; for construction permits.

1. The above-captioned applications for a construction permit to establish an FM broadcast station at Moline, Ill., were designated for comparative hearing by order published April 18, 1967 (32 F.R. 6106).

2. Before the Board is the petition filed on May 3, 1967, by Mid America Broadcasting, Inc. (Mid America), seeking the addition of two issues to this proceeding to determine on a comparative basis the significant differences between the applicants with respect to (a) their proposed programing, and (b) the efforts made by each applicant to ascertain the needs and interest of the community and area each proposes to serve.[1]

3. In support of its petition, Mid America asserts that there are substantial prima facia differences in the programing proposals of the applicants which are sufficient, under the Commission's ruling in Chapman Radio & Television Co.,[2] to warrant addition of the requested programing issues.[3] Mid America first asserts that there is a basic difference in program philosophy, contending that Lee Broadcasting Corp. (Lee), the other applicant, proposes to locate its transmitter and main studio in Davenport, Iowa, and that Lee stated that it selected its site to better serve the population of the Quad City area (Moline, Rock Island, Davenport, and Bettendorf); whereas Mid America proposes to operate primarily as a Moline station. Mid America also asserts that there are substantial differences in program content, alleging that Lee, based on its survey, proposes a program service consisting of stereo recordings ("good music" plus some "religious music") 55 minutes of every hour with the remaining 5 minutes being devoted to newscasts. In contrast, Mid America contends, its survey revealed a need for more diversified programing, and it proposes to provide, among other things, live coverage of portions of city council meetings; a biweekly chamber of commerce program; live coverage of local sporting events; live church service on Sunday mornings; and emphasis on educational and civic affairs programing.[4] Thus, Mid America states, Lee proposes "virtually zero" percent in "public affairs" and "all other programs" categories, while it proposes a total of 8 percent in these categories. Finally, Mid America avers that there is a significant difference between the two applicants in efforts to ascertain program needs, pointing out that, according to Lee's application, its representative list of contacts includes twelve persons, only four of whom were from Moline; and that Mid America, on the other hand, lists some 48 persons contacted, showing a broader diversity among communities and types of leaders contacted, a higher concentration in Moline, and a more thorough documentation of the results of the contacts and the manner in which those results are reflected in the program proposal.

4. Opposing the requested enlargement, Lee argues that the Mid America petition is based on comparisons of percentages of time to be devoted to local or other types of programing, and that the programs proposed by Lee are not now available locally, whereas those proposed by Mid America are available. The Broadcast Bureau would grant the requested enlargement of issues.

5. The Board is satisfied that Mid America's allegations are sufficient to warrant the addition of the requested

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[4] The bank commitment letter is firm and complete in all respects, except that it states that collateral will be decided upon at a later date. We do not regard this aspect of the loan agreement as impairing the availability of the loan. See Romac Baton Rogue Corp., supra.

[5] Petitioners contended that Shawnee will require $58,000 to construct its proposal and operate for 1 year (see par. 13 supra). Their allegation that Shawnee's costs might be higher are speculative and adequately overcome by the breakdown of costs submitted with Shawnee's opposition.

[1] Also before the Board are the following responsive pleadings: Opposition, filed on May 15, 1967, by Lee Broadcasting Corp., and comments, filed on May 17, 1967, by the Broadcast Bureau.

[2] 7 FCC 2d 213, 9 RR 2d 635 (1967).

[3] In Chapman, the Commission stated in part:

"As pointed out in the policy statement, differences in proposed program plans, to be regarded as of decisional significance, must go beyond ordinary differences in judgment and show a superior devotion to public service (for example, an unusual attention to local community matters for which there is a demonstrated community need). The statement indicates also that the Commission will not assume that an unusually high percentage of time to be devoted to local or other particular types of programs is necessarily to be preferred unless it is related to such needs * * *. In other words, a proponent of the programing issue should be required to make a prima facie showing that there are significant differences in the programing proposed and should relate his claimed substantial superiority in program planning to his ascertainment of community needs."

[4] Each of these programing areas is said to be responsible to needs ascertained in Mid America's survey.

issues. As to proposed programing, Mid America has alleged facts indicating that there are substantial differences between the applicants in basic program policy and program content. Lee does not, in essence, dispute these allegations, but argues that there is no need for the diversified programing proposed by Mid America. However, since Mid America's program offerings appear to reflect its own ascertainment of community needs and interests, the Board is of the opinion that the appropriate means of resolving the question of whether Mid America's proposal reflects a superior devotion to public service is by the addition of a hearing issue. See Chapman Radio & Television Co., supra. Mid America's undisputed allegations concerning efforts to ascertain programing needs indicate that there may be a significant disparity in both the quantity and quality of the applicants' respective efforts in this regard. An issue permitting further inquiry will therefore be added. See Chapman Radio & Television Co., supra.

Accordingly, it is ordered, That the petition to enlarge issues, filed on May 3, 1967, by Mid America Broadcasting, Inc., is granted, and that the issues in this proceeding are enlarged by the addition of the following issues:

To determine on a comparative basis the significant differences between the applicants with respect to their proposed programing.

To determine on a comparative basis the significant differences between the applicants with respect to the efforts made by each applicant to ascertain the needs and interest of the community and area each proposes to serve.

Adopted: June 20, 1967.

Released: June 26, 1967.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 67-7392; Filed, June 28, 1967; 8:49 a.m.]

[Docket Nos. 17517, 17518; FCC 67-698]

MISS LOU BROADCASTING CORP. AND ROMAC BATON ROUGE CORP.

Order Designating Applications for Consolidated Hearing on Stated Issues

In re applications of Miss Lou Broadcasting Corp., Baton Rouge, La., Docket No. 17517, File No. BPH-5616; Requests: 101.5mc, No. 268; 100 kw; 332 ft.; Romac Baton Rouge Corp., Baton Rouge, La., Docket No. 17518, File No. BPH-5678; Requests: 101.5mc, No. 268; 100 kw; 339 ft.; for construction permits.

1. At a session of the Federal Communications Commission held at its offices in Washington, D.C., the Commission has under consideration the above captioned and described applications which are mutually exclusive in that operation by the applicants as proposed would result in mutually destructive interference.

2. Romac Baton Rouge Corp. also has applied for a new television station in Baton Rouge, and its application and that of Capitol Television Broadcasting Corp. were designated for comparative hearing. As a result of a petition by Capitol, the issues were enlarged by the Review Board to determine whether Romac had failed to disclose material facts in its television application and/or failed to keep this application up to date. Because the question of Romac's qualifications is equally involved in the present proceeding, we believe that the orderly dispatch of the Commission's business be served by having the same Examiner preside in both proceedings and having this common qualifications issue heard at one time with all the parties participating.

3. Consideration of the programing proposals is required because of the substantial and material difference between the proposals in the amount of AM programing to be duplicated. Miss Lou Broadcasting Corp. proposes 50 percent AM programing duplication, while Romac Baton Rouge Corp. proposes independent programing. Therefore, evidence regarding duplicated programing will be admissible under the contingent comparative issue. The showing permitted under the standard comparative issue when duplicated programing is proposed will be limited to evidence concerning the benefits to be derived from the proposed duplication, and a full comparison of the applicants' program proposals will not be permitted in the absence of a specific programing inquiry—Jones T. Sudbury ------ FCC 2d ------, FCC 67-614 (1967).

4. Except as indicated below, the applicants are qualified to construct and operate as proposed. However, because of their mutual exclusivity, the Commission is unable to make the statutory finding that a grant of the applications would serve the public interest, convenience and necessity, and is of the opinion that the applications must be designated for hearing on the issues set forth below.

It is ordered, That, pursuant to section 309(e) of the Communications Act of 1934, as amended, the applications are designated for hearing in a consolidated proceeding, at a time and place to be specified in a subsequent order, upon the following issues:

1. To determine whether Romac Baton Rouge Corp. submitted complete and accurate information in its application for a new television station in Baton Rouge, La., and has continued to keep the Commission advised of "substantial and significant changes" as required by § 1.65 of the Commission's rules.

2. To determine in light of the evidence adduced under the foregoing issue whether Romac Baton Rouge Corp. possesses the requisite qualifications to construct and operate its proposed station.

3. To determine, if issue number two is resolved in Romac Baton Rouge Corp's. favor, which of the proposals would better serve the public interest.

4. To determine in the light of the evidence adduced pursuant to the foregoing issues, which of the applications for construction permit should be granted.

It is further ordered, That with respect to the common qualifications issue regarding Romac Baton Rouge Corp., this issue is hereby consolidated to the extent that all of the parties are to participate in the presentation of evidence before the Hearing Examiner and that the evidence adduced under this consolidated issue is to be considered and evaluated in the Initial Decision to be issued in both proceedings.

It is further ordered, That to avail themselves of the opportunity to be heard, the applicants, pursuant to § 1.221(c) of the Commission's rules, in person or by attorney shall, within twenty (20) days of the mailing of this order, file with the Commission in triplicate, a written appearance stating an intention to appear on the date fixed for the hearing and present evidence on the issues specified in this order.

It is further ordered, That the applicants herein shall, pursuant to section 311(a)(2) of the Communications Act of 1934, as amended, and § 1.594 of the Commission's rules, give notice of the hearing, either individually or, if feasible and consistent with the rules, jointly, within the time and in the manner prescribed in such rule, and shall advise the Commission of the publication of such notice as required by § 1.594(g) of the rules.

Adopted: June 14, 1967.

Released: June 26, 1967.

FEDERAL COMMUNICATIONS COMMISSION,[1]
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 67-7393; Filed, June 28, 1967; 8:49 a.m.]

[Docket Nos. 17517, 17518; FCC 67M-1061]

MISS LOU BROADCASTING CORP. AND ROMAC BATON ROUGE CORP.

Order Scheduling Hearing

In re applications of Miss Lou Broadcasting Corp., Baton Rouge, La., Docket No. 17517, File No. BPH-5616; Romac Baton Rouge Corp., Baton Rouge, La., Docket No. 17518, File No. BPH-5678; for construction permits.

It is ordered, That Isadore A. Honig shall serve as Presiding Officer in the above-entitled proceeding; that the hearings therein shall be convened on September 11, 1967, at 10 a.m.; and that a prehearing conference shall be held on July 12, 1967, commencing at 9 a.m.; *And, it is further ordered,* That all pro-

[1] Commissioner Wadsworth absent.

ceedings shall take place in the Offices of the Commission, Washington, D.C.

Issued: June 20, 1967.

Released: June 26, 1967.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 67-7394; Filed, June 28, 1967; 8:49 a.m.]

[Docket Nos. 17446-17448; FCC 67M-1045]

ST. ANTHONY TELEVISION CORP. (KHMA-TV) AND DELTA TELERADIO CORP.

Order Regarding Procedural Dates

In re applications of St. Anthony Television Corp. (KHMA-TV), Houma, La., Docket No. 17446, File No. BMPCT-6125; for extension of time within which to construct; St. Anthony Television Corp. (KHMA-TV), Houma, La., Docket No. 17447, File No. BMPCT-6196; for modification of construction permit; St. Anthony Television Corp. (KHMA-TV) (Assignor), Houma, La., and Delta Teleradio Corp., Panama City, Fla. (Assignee), Docket No. 17448, File No. BAPCT-375; for assignment of construction permit.

To formalize the agreements and rulings made on the record at a prehearing conference held on June 21, 1967, in the above-entitled matter concerning the future conduct of this proceeding;

It is ordered, That:

Exchange of Exhibits is scheduled for September 6, 1967;

Informal engineering conference is scheduled for September 11, 1967;

Notification of witnesses is scheduled for September 18, 1967; and

Hearing presently scheduled for July 12, 1967, is continued to September 25, 1967.

Issued: June 21, 1967.

Released: June 26, 1967.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 67-7395; Filed, June 28, 1967; 8:49 a.m.]

[Docket Nos. 17523, 17524; FCC 67-705]

VICTOR MUSCAT AND KTOW-TV, INC.

Order Designating Applications for Consolidated Hearing on Stated Issues

In re applications of Victor Muscat, Tulsa, Okla., Docket No. 17523, File No. BPCT-3843; KTOW-TV, Inc., Tulsa, Okla., Docket No. 17524, File No. BPCT-3867; for construction permit for new television broadcast station.

1. The Commission has before it for consideration the above-captioned applications, each requesting a construction permit for a new television broadcast station to operate on Channel 29, Tulsa, Okla.

2. Since Federal Aviation Administration approval has not been obtained for Victor Muscat's proposed tower height and location, an air menace issue has been specified, and the Federal Aviation Administration has been made a party thereto.

3. There appears to be a significant disparity in the proposed Grade B contours of the applications. In accordance with the Commission's policy, evidence with respect to which of the proposals would represent a more efficient use of the frequency may be adduced under the comparative issue.[1]

4. KTOW-TV, Inc., proposes to locate its main studios outside of the corporate limits of Tulsa, Okla., for economic reasons. We believe that good cause has been shown for so locating the main studio and that the location proposed would not be inconsistent with the operation of the station in the public interest. We will provide, therefore, that in the event of a grant of the application of KTOW-TV, Inc., the Commission's consent to the location will be granted, pursuant to § 73.613(b) of the rules.

5. Based on information contained in the application of KTOW-TV, Inc., cash in the amount of approximately $380,000 will be required for the construction and operation of the proposed station for the first year without reliance upon revenues. To meet the cash requirements the applicant relies on a bank loan of $75,000, existing capital of $500 and letters from stockholders indicating their commitments to make monies available as needed for the financing of the station. The bank letter relied upon fails to set out terms, conditions and security required, if any. Since the proposed stockholders have undertaken to provide funds as required, the exact financial commitment of each cannot be determined and it is not possible to determine, therefore, whether any of them are financially qualified. It cannot be determined, therefore, that the applicant is financially qualified.

6. Except as indicated by the issues set forth below, Victor Muscat and KTOW-TV, Inc., are qualified to construct, own and operate the proposed new television broadcast station. The applications are, however, mutually exclusive in that operation by the applicants as proposed, would result in mutually destructive interference. The Commission is, therefore, unable to make the statutory finding that a grant of the applications would serve the public interest, convenience and necessity, and is of the opinion that they must be designated for hearing in a consolidated proceeding on the issues set forth below.

Accordingly, it is ordered, That, pursuant to section 309(e) of the Communications Act of 1934, as amended, the above-captioned applications of Victor Muscat and KTOW-TV, Inc., are designated for hearing in a consolidated proceeding at a time and place to be specified in a subsequent order, upon the following issues:

1. To determine with respect to the application of KTOW-TV, Inc.;

(a) The terms, conditions and security, if any, required in connection with the proposed loan of $75,000 from the First Bank & Trust Co. of Sand Springs, Okla.

(b) To determine the amount of cash which each stockholder will be required to provide to the applicant and whether each stockholder has sufficient current and liquid assets (as defined in section III, paragraph 4(d), FCC Form 301) in excess of current liabilities to meet his commitment.

(c) Whether, in light of the evidence adduced pursuant to the foregoing, KTOW-TV, Inc., is financially qualified.

2. Whether there is a reasonable possibility that the tower height and location proposed by Victor Muscat would constitute a menace to air navigation.

3. To determine which of the proposals would better serve the public interest.

4. To determine, in light of the evidence adduced pursuant to the foregoing issues, which of the applications should be granted.

It is further ordered, That, in the event of a grant of the application of KTOW-TV, Inc., the applicant's request, pursuant to § 73.613(b) of the Commission's rules to locate its main studio outside of the corporate limits of Tulsa, Okla., shall be granted.

It is further ordered, That the Federal Aviation Administration is made a party to this proceeding with respect to the application of Victor Muscat.

It is further ordered, That, to avail themselves of the opportunity to be heard, the applicants and the party respondent herein, pursuant to § 1.221(c) of the Commission's rules, in person or by attorney, shall within twenty (20) days of the mailing of this order, file with the Commission, in triplicate, a written appearance stating an intention to appear on the date fixed for the hearing and present evidence on the issues specified in this order.

It is further ordered, That the applicants herein shall, pursuant to section 311(a)(2) of the Communications Act of 1934, as amended, and § 1.594 of the Commission's rules, give notice of the hearing, either individually or, if feasible, jointly, within the time and in the manner prescribed in such rule, and shall advise the Commission of the publication of such notice as required by § 1.594(g) of the rules.

Adopted: June 14, 1967.

Released: June 26, 1967.

FEDERAL COMMUNICATIONS COMMISSION,[1]
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 67-7396; Filed, June 28, 1967; 8:49 a.m.]

[1] Harriscope, Inc., FCC 65-1165, 2 FCC 2d 233.

[1] Commissioner Wadsworth absent.

[Docket Nos. 17523, 17524; FCC 67M-1062]

VICTOR MUSCAT AND KTOW-TV, INC.

Order Scheduling Hearing

In re applications of Victor Muscat, Tulsa, Okla., Docket No. 17523, File No. BPCT-3843; KTOW-TV, Inc., Tulsa, Okla., Docket No. 17524, File No. BPCT-3867; for construction permit for new television broadcast station (Channel 29).

It is ordered, That Charles J. Frederick shall serve as Presiding Officer in the above-entitled proceeding; that the hearings therein shall be convened on September 7, 1967, at 10 a.m.; and that a prehearing conference shall be held on July 14, 1967, commencing at 9 a.m.; *And, it is further ordered*, That all proceedings shall take place in the Offices of the Commission, Washington, D.C.

Issued: June 20, 1967.

Released: June 26, 1967.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] BEN F. WAPLE,
Secretary.

[F.R. Doc. 67-7397; Filed, June 28, 1967; 8:49 a.m.]

FEDERAL MARITIME COMMISSION

[Docket No. 67-40]

FRENCH NORTH-ATLANTIC WESTBOUND FREIGHT CONFERENCE

Self-Policing Reports, Shippers' Requests and Complaints; Order To Show Cause

Agreement 7810, originally approved March 19, 1946, between the member lines of the French North-Atlantic Westbound Freight Conference, covers the trade from French Atlantic ports in the Bayonne/Dunkirk range to U.S. North Atlantic ports in the Hampton Roads/Portland, Maine, range.

Section 15 of the Shipping Act, 1916, reads, in pertinent part, as follows:

The Commission shall disapprove any such agreement, after notice and hearing, on a finding of inadequate policing of the obligations under it * * *.

General Order 7 (46 CFR Part 528) was adopted to implement section 15, as amended by Public Law 87-346, 75 Stat. 733-4, effective October 3, 1961. In this connection the order states that:

§ 528.1 *Scope and purpose.*

* * * The Commission shall disapprove an agreement thereunder if, after notice and hearing, it finds inadequate policing of the obligations of the agreement. This amendment makes it necessary that provisions for self-policing be included in certain section 15 agreements and that the Commission be informed of the manner in which such provision is being carried out. The requirements set forth below are to aid the Commission in determining the existence and adequacy of self-policing systems, in accordance with the statutory objective.

§ 528.2 *General requirements; section 15 agreements.*

Conference agreements and other rate-fixing agreements between common carriers by water in the foreign and domestic offshore commerce of the United States, whether or not previously approved, shall contain a provision describing the method or system used by the parties in policing the obligations under the agreement, including the procedure for handling complaints and the functions and authority of every person having responsibility for administering the system. In the case of agreements previously approved under section 15 which do not meet these requirements, the parties shall file for approval an amendment which complies with the requirements * * *

§ 528.3 *Reporting requirements.*

Twice each year, once during the month of January and one during the month of July, there shall be filed with the Commission by the conferences and carriers subject to these rules, or by any person to whom they have delegated the self-policing authority, a report showing the nature of each complaint received during the preceding 6-month period; the action taken on the complaint or on the volition of any person responsible for policing; and with respect to violations found, the nature thereof and the penalty or other sanction imposed. The names of the parties involved in complaints or in action on the volition of the person responsible for policing may be omitted from these reports. The first report due under this section shall be filed during the month of July, 1964. In the event that no complaints were received during the 6-month period, or no actions were taken on complaints received in the previous 6-month period, a negative report so stating must be filed.

The basic agreement, as amended, by Agreement 7810-4 approved by the Commission on July 23, 1964, contains a self-policing provision which conforms to the requirements outlined in § 528.2 above.

On or about November 27, 1964, a form letter (Attachment 1)[1] was addressed to all those conferences and rate-fixing agreements, including the subject Conference, which had not filed self-policing reports due in July, 1964, covering the period from January through June, 1964, pursuant to the requirements of § 528.3 of General Order 7. On December 14, 1964, the Conference Secretary, Mrs. M. Lambert, advised (Attachment 2)[1] that inasmuch as the conference's self-policing system did not start functioning before Commission approval of July 23, 1964, there was nothing to report for the period from January through June, 1964.

On May 5, 1965 a form letter (Attachment 3)[1] was addressed to those conferences and rate-fixing agreements, including the subject Conference, which had not filed self-policing reports due in January, 1965, covering the period from July through December, 1964. It was pointed out that such reports must be filed in January and July of each year to cover the preceding 6-month period and that they should be filed even though there is no activity to report. The Conference Secretary was also advised that continued noncompliance with the lawful requirements of the Commission could not be tolerated, and that if a report or a statement that such a report might be expected was not received within 15 days of the date of the letter, the staff would have no alternative but to recommend appropriate action to the Commission.

By letter dated June 4, 1965 (Attachment 4)[1] in response to the letter of May 5, 1965, the Conference Secretary advised that the conference had been instructed by the French authorities to inform us that our request should be made to the French Government via diplomatic channels. Although the French Government does not now object to compliance by the conferences, no reports have been filed in accordance with General Order 7.

Section 15 of the Shipping Act, 1916, further provides, in pertinent part, that:

The Commission shall disapprove any such agreement, after notice and hearing, on a finding * * * of failure or refusal to adopt and maintain reasonable procedures for promptly and fairly hearing and considering shippers' requests and complaints.

General Order 14 was adopted to implement section 2 of Public Law 87-346, effective October 3, 1961. The General Order provides, in pertinent part, as follows:

§ 527.3 *Filing of procedures.*

Within 60 days from the effective date of these rules, each ratemaking group operating under an approved section 15 agreement shall file with the Commission a statement outlining in complete detail its procedures for the disposition of shippers' requests and complaints.

§ 527.4 *Reports.*

By January 31, April 30, July 31, and October 31 of each year, each conference and each other body with rate-fixing authority under an approved agreement shall file with the Commission a report covering all shippers' requests and complaints received during the preceding calendar quarter or pending at the beginning of such calendar quarter. The first such report shall be filed by October 31, 1965. All such reports shall include the following information for each request or complaint:

(a) Date request or complaint was received.

(b) Identity of the person or firm submitting the request or complaint.

(c) Nature of request or complaint, i.e., rate reduction, rate establishment, classification, overcharge, undercharge, measurement, etc.

(d) If final action was taken, date and nature thereof.

(e) If final action was not taken, an identification of the request or complaint as "pending."

(f) If denied, the reason.

§ 527.5 *Resident representative.*

Conferences and other ratemaking groups domiciled outside the United States shall designate a resident representative in the United States with whom shippers situated in the United States may lodge their requests and complaints. The resident representative shall maintain for a period of 2 years a complete record of requests and complaints filed with him by shippers and consignees situated in the United States and its territories. Conferences and other ratemaking groups subject to this section may satisfy the reporting requirements of § 527.4 by reporting those requests and complaints filed with the resident agent appointed pursuant to the provisions of this section. Appointment of the resident representative shall be made by September 9, 1965.

§ 527.6 *Tariff provisions.*

Tariffs issued by or on behalf of conferences and other ratemaking groups shall con-

[1] Attachments 1-4 filed as part of the original document.

tain full instructions as to where and by what method shippers may file their requests and complaints, together with a sample of the rate request form, if one is used, or, in lieu thereof, a statement as to what supporting information is considered necessary for processing the request or complaint through conference channels. Appropriate tariff provisions shall be accomplished within 90 days from the effective date of these rules. All changes made in such instructions shall be published in said tariffs, supplements thereto, or reissues thereof, in accordance with the tariff filing requirements of section 18(b) of the Shipping Act, 1916.

On June 9, 1965, all conferences and ratemaking agreements were mailed a copy of General Order 14 which became effective July 9, 1965. This Conference has made no effort to comply with General Order 14.

The issues raised herein do not involve any disputed issues of fact which necessitate an evidentiary hearing and require a prompt determination by the Commission.

Now, therefore, pursuant to sections 15 and 22 of the Shipping Act, 1916,

It is ordered, That the French North-Atlantic Westbound Freight Conference and the member lines thereof show cause why Agreement 7810, as amended, should not be disapproved by the Commission pursuant to section 15 of the Shipping Act, 1916, because of the Conference's failure to comply with the requirements of section 15 of the Shipping Act, 1916, and the Conference's failure to comply with the Commission's General Order 7, issued July 30, 1963, and the Commission's General Order 14, issued June 8, 1965. This proceeding shall be limited to the submission of affidavits and memoranda and oral argument. The affidavits of fact and memoranda of law shall be filed by respondents no later than close of business July 21, 1967, replies thereto shall be filed by Hearing Counsel and interveners, if any, no later than close of business August 7, 1967. An original and 15 copies of affidavits of fact, memoranda of law, and replies to be filed with the Secretary, Federal Maritime Commission, Washington, D.C. 20573. Copies of any papers filed with the Secretary should also be served upon all parties hereto. Oral argument will be heard at a time and place to be designated at a later date.

It is further ordered, That the French North-Atlantic Westbound Freight Conference and its member lines as indicated in Attachment 5, are hereby made respondents in this proceeding.

It is further ordered, That this order be published in the FEDERAL REGISTER and a copy of such order be served upon each respondent.

Persons other than respondents and Hearing Counsel who desire to become a party to this proceeding shall file a petition for leave to intervene in accordance with Rule 5(1) (46 CFR 502.72) of the Commission's rules of practice and procedure, no later than close of business July 12, 1967, with copy to Respondent Conference.

By the Commission.

[SEAL] THOMAS LISI,
Secretary.

ATTACHMENT 5

French North-Atlantic Westbound Freight Conference, Mrs. M. Lambert, Secretary, 38, Rue Des Pierrelais, Chatillon-sous-Bagneux, Seine, France.
American Export Isbrandtsen Lines, Inc., 26 Broadway, New York, N.Y. 10004.
Belgian Line, Belgian Line, Inc., 67 Broad Street, New York, N.Y. 10004.
Cosmopolitan Line, A/S J. Ludwig Mowinckels Rederi, 42 Broadway, New York, N.Y. 10004.
The Cunard Steam-Ship Co., Ltd., 25 Broadway, New York, N.Y. 10004.
French Line, 17 Battery Place, New York, N.Y. 10004.
United States Lines Co., 1 Broadway, New York, N.Y. 10004.

[F.R. Doc. 67-7372; Filed, June 28, 1967; 8:47 a.m.]

FEDERAL POWER COMMISSION

[Project No. 2645]

NIAGARA MOHAWK POWER CORP.

Notice of Application for License for Constructed Project

JUNE 20, 1967.

Public notice is hereby given that application for license has been filed under the Federal Power Act (16 U.S.C. 791a–825r) by Niagara Mohawk Power Corp. (correspondence to: Lauman Martin, Vice President and General Counsel, Niagara Mohawk Power Corp., 300 Erie Boulevard West, Syracuse, N.Y. 13202) for constructed Project No. 2645, known as the Beaver River Project, located on the Beaver River in the town of Webb in Herkimer County, and in the towns of Watson and Croghan, in Lewis County, N.Y.

The existing Beaver River Project consists of: Moshier composed of: (1) An earthfill dam 920 feet long (maximum height about 95 feet) with a 200-foot concrete gravity overflow spillway section, topped by flashboards 2 feet high, and a 53-foot nonoverflow concrete section; (2) a 350-acre reservoir at elevation of 1,641 feet, USGS datum; (3) an intake tower structure with trash racks and two steel sliding gates 10 by 12 feet; (4) a 9,367-foot, 10-foot diameter steel and wood stave pipe conveyance system; (5) a surge tank and two steel penstocks each about 70 feet long and 7 feet in diameter; (6) an indoor powerhouse, containing two generating units with total capacity of 8,000 kw; and (7) appurtenant facilities. Eagle composed of: (1) A concrete gravity type dam about 320 feet long (maximum height about 25 feet) with an overflow spillway section about 180 feet long topped by flashboards 1-foot high; (2) a 138-acre reservoir at elevation of 1,425 feet, USGS datum; (3) a 20-foot wide gated log sluice section; (4) a headgate structure 46½ feet long with four sliding log gates; (5) a forebay canal about 450 feet long; (6) a penstock gate house structure with 3 sliding steel gates; (7) a 2,721-foot steel penstock; (8) an indoor powerhouse containing four generating units with total capacity of 6,050 kw and (9) appurtenant facilities. Soft Maple composed of: (1) An earthfill diversion dam about 65 feet high and 920 feet long, with reinforced concrete intake tower structure; (2) a second earthfill diversion dam about 140 feet high and 680 feet long; (3) five earth dikes from 10 to 25 feet high; (4) a 420-acre reservoir at elevation of 1,290 feet, USGS datum; (5) a 144-foot wide concrete gravity overflow spillway structure with 20-foot wide log chute section; (6) a forebay canal and intake structure with 4 steel gates; (7) two 11½-foot diameter steel penstocks; (8) an indoor powerhouse containing two generating units with total capacity of 15,000 kw; and (9) appurtenant facilities. Effley composed of: (1) A concrete gravity type dam about 645 feet long (maximum height about 30 feet) with a 430-foot overflow spillway section and a 17-foot wide log chute section; (2) a 286-acre reservoir at elevation of 1163 feet, USGS datum; (3) a forebay canal and intake structure with 3 timber sliding gates and one steel gate; (4) a 250-foot penstock system; (5) an indoor powerhouse containing four generating units with total capacity of 2,960 kw; and (6) appurtenant facilities. Eimer composed of: (1) A concrete gravity type dam about 370 feet long (maximum height about 20 feet) with an overflow spillway section 238 feet wide and a log sluice section 25 feet wide; (2) an 18-acre reservoir at elevation of 1,108 feet USGS datum; (3) an intake structure with four sliding wood gates; (4) an indoor powerhouse integral with the dam, containing two generating units with total capacity of 1,500 kw; and (5) appurtenant facilities. Taylorville composed of: (1) A concrete gravity type dam about 960 feet long (maximum height about 20 feet) with a 465-foot overflow spillway section, topped with flashboards 9.6 inches high; (2) a 104-acre reservoir at elevation of 1076.6 feet, USGS datum; (3) an intake structure with trash racks and 3 sliding timber gates; (4) an 18-foot log sluice section; (5) a 9.5-foot diameter steel penstock 2,725 feet long and a steel surge tank; (6) an indoor powerhouse containing four generating units with total capacity of 4,500 kw; and (7) appurtenant facilities. And Belfort composed of: (1) A concrete gravity type dam about 205 feet long (maximum height about 15 feet) with a 160-foot overflow spillway section; (2) a 39-acre reservoir at elevation of 966 feet, USGS datum; (3) a 4.7 by 5.8-foot sluice way with stop logs; (4) a forebay and an intake structure with trash racks and sliding timber gates; (5) a 110-foot steel penstock system; (6) an indoor powerhouse containing three generating units with total capacity of 1,800 kw and (7) appurtenant facilities.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure of the Commission (18 CFR 1.8 or 1.10). The last day upon which protests or petitions may be filed is August

7, 1967. The application is on file with the Commission for public inspection.

GORDON M. GRANT,
Secretary.

[F.R. Doc. 67-7340; Filed, June 28, 1967; 8:45 a.m.]

INTERAGENCY TEXTILE ADMINISTRATIVE COMMITTEE

CERTAIN COTTON TEXTILES AND COTTON TEXTILE PRODUCTS PRODUCED OR MANUFACTURED IN MALTA

Entry and Withdrawal From Warehouse for Consumption

JUNE 26, 1967.

On June 14, 1967, the U.S. Government, in furtherance of the objectives of, and under the terms of, the Long Term Arrangement Regarding International Trade in Cotton Textiles done at Geneva on February 9, 1962, concluded a comprehensive bilateral cotton textile agreement with the Government of Malta concerning exports of cotton textiles and cotton textile products from Malta to the United States over a 4-year period beginning retroactively on January 1, 1967. Under this agreement the Government of Malta has undertaken to limit its exports to the United States of all cotton textiles and cotton textile products to an aggregate limit of 12,700,000 square yards equivalent for the first agreement year, beginning January 1, 1967. Group limits are provided for in the agreement, and specific limits are provided for Categories 43, 51, and 60. The terms of the bilateral cotton textile agreement of June 14, 1967, were published in Department of State Press Release No. 142 of June 15, 1967.

Accordingly, there is published below a letter of June 21, 1967, from the Chairman of the President's Cabinet Textile Advisory Committee to the Commissioner of Customs directing that the amounts of cotton textiles and cotton textile products in Categories 43, 51, and 60, produced or manufactured in Malta, which may be entered or withdrawn from warehouse for consumption in the United States for the period beginning January 1, 1967, and extending through December 31, 1967, be limited to designated levels. These levels are subject to adjustment to implement any of the provisions of the agreement of

STANLEY NEHMER,
Chairman, Interagency Textile Administrative Committee, and Deputy Assistant Secretary for Resources.

THE SECRETARY OF COMMERCE

PRESIDENT'S CABINET TEXTILE ADVISORY COMMITTEE

WASHINGTON, D.C. 20230
June 21, 1967.

COMMISSIONER OF CUSTOMS,
Department of the Treasury,
Washington, D.C. 20226.

DEAR MR. COMMISSIONER: Under the terms of the Long Term Arrangement Regarding International Trade in Cotton Textiles done at Geneva on February 9, 1962, the bilateral cotton textile agreement of June 14, 1967 between the Governments of the United States and Malta, and in accordance with the procedures outlined in Executive Order 11052 of September 28, 1962, as amended by Executive Order 11214 of April 7, 1965, you are directed to prohibit, effective as soon as possible and for the 12-month period beginning January 1, 1967, and extending through December 31, 1967, entry into the United States for consumption and withdrawal from warehouse for consumption of cotton textiles and cotton textile products in Categories 43, 51, and 60, produced or manufactured in Malta, in excess of the following designated adjusted levels of restraint:

Category	12-month level of restraint	Adjusted 12 month [1] level of restraint
	Dozen	*Dozen*
43	63,600	63,600
51	22,500	22,500
60	38,500	36,940

[1] These levels of restraint have been adjusted to reflect only those entries made prior to Apr. 1, 1967. They have not been adjusted to reflect entries made on or after that date.

Cotton textiles and cotton textile products produced or manufactured in Malta and which have been exported to the United States prior to January 1, 1967, shall not be subject to this directive.

The levels of restraint set forth above are subject to adjustment pursuant to the bilateral agreement of June 14, 1967, between the Governments of the United States and Malta which provides in part that within the aggregate and applicable group limits, limits on certain categories may be exceeded by not more than 5 percent. Any adjustments provided for in the bilateral agreement will be made in further directives to you, as may be appropirate.

A detailed description of the categories in terms of T.S.U.S.A. numbers was published in the FEDERAL REGISTER on July 7, 1966 (31 F.R. 9310).

In carrying out the above directions, entry into the United States for consumption shall be construed to include entry for consumption into the Commonwealth of Puerto Rico.

The actions taken with respect to the Government of Malta and with respect to imports of cotton textiles and cotton textile products from Malta have been determined by the President's Cabinet Textile Advisory Committee to involve foreign affairs functions of the United States. Therefore, the directions to the Commissioner of Customs, being necessary to the implementation of such actions, fall within the foreign affairs exception to the notice provisions of 5 U.S.C. 553. This letter will be published in the FEDERAL REGISTER.

Sincerely yours,

J. HERBERT HOLLOMON,
Acting Secretary of Commerce, and Chairman, President's Cabinet Textile Advisory Committee.

[F.R. Doc. 67-7386; Filed, June 28, 1967; 8:48 a.m.]

SECURITIES AND EXCHANGE COMMISSION

SUBSCRIPTION TELEVISION, INC.

Order Suspending Trading

JUNE 23, 1967.

It is appearing to the Securities and Exchange Commission that the summary suspension of trading in the common stock, $1 par value of Subscription Television, Inc., being traded otherwise than on a national securities exchange is required in the public interest and for the protection of investors;

It is ordered, Pursuant to section 15(c)(5) of the Securities Exchange Act of 1934, that trading in such securities otherwise than on a national securities exchange be summarily suspended, this order to be effective for the period June 25, 1967, through July 4, 1967, both dates inclusive.

By the Commission.

[SEAL] ORVAL L. DUBOIS,
Secretary.

[F.R. Doc. 67-7352; Filed, June 28, 1967; 8:46 a.m.]

INTERSTATE COMMERCE COMMISSION

[Notice 1079]

MOTOR CARRIER, BROKER, WATER CARRIER AND FREIGHT FORWARDER APPLICATIONS

JUNE 23, 1967.

The following applications are governed by Special Rule 1.247 [1] of the Commission's general rules of practice (49 CFR, as amended), published in the FEDERAL REGISTER issue of April 20, 1966, effective May 20, 1966. These rules provide, among other things, that a protest to the granting of an application must be filed with the Commission within 30 days after date of notice of filing of the application is published in the FEDERAL REGISTER. Failure seasonably to file a protest will be construed as a waiver of opposition and participation in the proceeding. A protest under these rules should comply with § 1.247(d)(3) of the rules of practice which requires that it set forth specifically the grounds upon which it is made, contain a detailed statement of protestant's interest in the proceeding (including a copy of the specific portions of its authority which protestant believes to be in conflict with that sought in the application, and describing in detail the method—whether by joinder, interline, or other means—by which protestant would use such authority to provide all or part of the service proposed), and shall specify with particularity the facts, matters, and things relied upon, but shall not include issues or allegations phrased generally. Protests not in reasonable

[1] Copies of Special Rule 1.247 (as amended) can be obtained by writing to the Secretary, Interstate Commerce Commission, Washington, D.C. 20423.

compliance with the requirements of the rules may be rejected. The original and one copy of the protest shall be filed with the Commission, and a copy shall be served concurrently upon applicant's representative, or applicant if no representative is named. If the protest includes a request for oral hearing, such requests shall meet the requirements of § 1.247 (d)(4) of the special rule, and shall include the certification required therein.

Section 1.247(f) of the Commission's rules of practice further provides that each applicant shall, if protests to its application have been filed, and within 60 days of the date of this publication, notify the Commission in writing (1) that it is ready to proceed and prosecute the application, or (2) that it wishes to withdraw the application, failure in which the application will be dismissed by the Commission.

Further processing steps (whether modified procedure, oral hearing, or other procedures) will be determined generally in accordance with the Commission's General Policy Statement Concerning Motor Carrier Licensing Procedures, published in the FEDERAL REGISTER issue of May 3, 1966. This assignment will be by Commission order which will be served on each party of record.

The publications hereinafter set forth reflect the scope of the applications as filed by applicants, and may include descriptions, restrictions, or limitations which are not in a form acceptable to the Commission. Authority which ultimately may be granted as a result of the applications here noticed will not necessarily reflect the phraseology set forth in the application as filed, but also will eliminate any restrictions which are not acceptable to the Commission.

No. MC 263 (Sub-No. 178), filed June 9, 1967. Applicant: GARRETT FREIGHTLINES, INC., Post Office Box 4048, 2055 Garrett Way, Pocatello, Idaho 83201. Applicant's representative: Maurice H. Greene, 334 First Security Bank Building, Boise, Idaho 83701. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except livestock, household goods as defined by the Commission, commodities in bulk, commodities requiring special equipment, and those injurious or contaminating to other lading), (1) between the junction of U.S. Highways 91 and 93 approximately 20 miles northeast of North Las Vegas, Nev., and the junction of U.S. Highway 93 with Nevada State Highway 7, over U.S. Highway 93, serving no intermediate points, as an alternate route for operating convenience only. (Nevada Highway 7 was formerly U.S. Highway 93. Applicant presently has authority to operate over U.S. Highway 93 between Glendale Junction and Wells, Nev.) (2) Between the junction of U.S. Highway 99 and California Highway 14 at or near San Fernando, Calif., and the junction of U.S. Highway 40 and 95 near Lovelock, Nev., from the junction of U.S. Highway 99 and California Highway 14 at or near San Fernando, Calif., over California Highway 14 to its junction with U.S. Highway 395 near Invokern, Calif., thence over U.S. Highway 395 to Bishop, Calif., thence over U.S. Highway 6 to Basalt, Nev., thence over Nevada Highway 10 to its junction with U.S. Highway 95 near Mina, Nev., and thence over U.S. Highway 95 to its junction with U.S. Highway 40, returning over the same route, serving no intermediate points, as an alternate route for operating convenience only. Restricted against the transportation of traffic originating at or destined to points in the State of Nevada, except points on U.S. Highway 95 between Winnemucca, Nev., and the Oregon-Nevada State line. NOTE: Common Control may be involved. If a hearing is deemed necessary, applicant requests it be held at Reno or Las Vegas, Nev.

No. MC 493 (Sub-No. 5), filed June 13, 1967. Applicant: HYMAN MOTOR SERVICE COMPANY, 425 South Sixth Street, Quincy, Ill. 62302. Applicant's representative: R. W. Burgess, 8514 Midland Boulevard, St. Louis, Mo. 63114. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities*, except those of unusual value, classes A and B explosives, livestock, household goods as defined by the Commission, commodities in bulk and those requiring special equipment, serving the plantsite of Missouri Farmers Association, Inc., adjacent to the Missouri Electric Co-operative, near Palmyra, Mo., as an off-route point in connection with applicants authorized regular-route operations between Quincy, Ill., and St. Louis, Mo. NOTE: If a hearing is deemed necessary, applicant requests it be held at St. Louis, Mo., or Springfield, Ill.

No. MC 531 (Sub-No. 228), filed June 5, 1967. Applicant: YOUNGER BROTHERS, INC., 4904 Griggs Road, Houston, Tex. 77021; also Post Office Box 14287, Houston, Tex. 77021. Applicant's representative: Wray E. Hughes (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Alcohol and alcoholic liquors*, in bulk, in tank vehicles, (1) from ports of entry into the United States located in Massachusetts, Rhode Island, Connecticut, New York, New Jersey, Pennsylvania, Delaware, Maryland, and Virginia to Peoria and Pekin, Ill., San Francisco and Union City, Calif., and ports of entry on the international boundary line between the United States and Canada located in Michigan, (2) from Louisville and Lawrenceburg, Ky., and Muscatine, Iowa, to Seattle, Wash., and San Francisco, Calif., and (3) from Atchison, Kans., to Seattle, Wash. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 694 (Sub-No. 5) filed June 5, 1967. Applicant: CLETUS E. MUMMERT, East Berlin, Pa. 17316. Applicant's representative: Christian V. Graf, 407 North Front Street, Harrisburg, Pa. 17101. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Wood chips*, from points in Kent and Sussex Counties, Del.; points in Accomack and Northampton Counties, Va., and, points in Dorchester, Somerset, Wicomico, Worcester, Talbot, Caroline, Queen Annes, Kent, St. Mary's, Calvert, Charles, Prince Georges, and Anne Arundel Counties, Md., to the plantsite of P. H. Glatfelter Co., Spring Grove, Pa., restricted to transportation to be performed under contract with P. H. Glatfelter Co., Spring Grove, Pa. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C., or Harrisburg, Pa.

No. MC 1323 (Sub-No. 3), filed June 9, 1967. Applicant: CHIEF TRANSFER & STORAGE, INC., 118 West I, Ogallala, Nebr. 69153. Applicant's representative: Frank J. Mattoon, 907 Jackson Street, Sidney, Nebr. 69162. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Used household goods*, between points in Nebraska, on and west of Highway 183, including Buffalo County, restricted to shipments moving on the through bill of lading of a forwarder operating under the section 402(b)(2) exemption, and further restricted to shipments having an immediately prior or subsequent line-haul movement by rail, motor, water, or air. NOTE: If a hearing is deemed necessary, applicant requests it be held at North Platte, Nebr., Cheyenne, Wyo., or Denver, Colo.

No. MC 1459 (Sub-No. 4) filed June 16, 1967. Applicant: ROYAL MOTOR EXPRESS, INC., 410 West Silver Street, Lebanon, Ohio. Applicant's representative: Richard H. Brandon, 79 East State Street, Columbus, Ohio 43215. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: (1) *Plastic articles*, from Bryan, Ohio, to that part of Indiana and Illinois which is bounded by a line beginning at Gary, Ind., thence along Indiana Highway 53 to junction U.S. Highway 30, thence along U.S. Highway 30 to junction Sauk Trail Road, thence along Sauk Trail Road to junction U.S. Highway 1A, thence along U.S. Highway 1A to junction Interstate Highway 294, thence along Interstate Highway 294 to junction Illinois Highway 58, thence along Illinois Highway 58 to Lake Michigan, and (2) *materials, equipment, and supplies* used in the manufacture, packing, and shipping of plastic articles, from the above-described area and from Lake Zurich, Ill., to Bryan, Ohio, restricted against commodities in bulk, and restricted to service by towing shipper-supplied semitrailers or trailers, under contract with the Standard Oil Co. and its wholly owned subsidiaries. NOTE: If a hearing is deemed necessary, applicant requests it be held at Columbus, Ohio.

No. MC 1936 (Sub-No. 26), filed June 16, 1967. Applicant: B & P MOTOR EXPRESS, INC., 720 Gross Street, Pittsburgh, Pa. 15224. Applicant's representative: John A. Vuono, 1515 Park Building,

Pittsburgh, Pa. 15222. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, livestock, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment), serving the plantsite of Ford Motor Co., Van Dyke and 18 Mile Road, Sterling Township, Macomb County, Mich., as an off-route point in connection with applicant's regular route operations to and from Detroit, Mich. NOTE: If a hearing is deemed necessary, applicant requests it be held at Detroit, Mich., or Washington, D.C.

No. MC 2153 (Sub-No. 39), filed June 5, 1967. Applicant: MIDWEST MOTOR EXPRESS, INC., 1205 Front Avenue, Bismark, N. Dak. Applicant's representative: James F. Greenstein, 112 East Sixth Street, St. Paul, Minn. 55101. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Empty cheese drums and cheese packaging supplies, cheese in metal drums or other packages*, from Hutchinson and New Ulm, Minn., to points in North Dakota, and return over the same route. NOTE: If a hearing is deemed necessary, applicant requests it be held at Minneapolis, Minn., or Madison, Wis.

No. MC 2202 (Sub-No. 320), filed June 6, 1967. Applicant: ROADWAY EXPRESS, INC., 1077 Gorge Boulevard, Post Office Box 471, Akron, Ohio 44309. Applicant's representatives: William O. Turney, 2001 Massachusetts Avenue NW., Washington, D.C. 20036, and Douglas Faris (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, livestock, household goods as defined by the Commission, commodities in bulk and those requiring special equipment), between Memphis, Tenn., and Lufkin, Tex., from Memphis over U.S. Highway 79 to junction U.S. Highway 167, thence over U.S. Highway 167 to junction Louisiana Highway 9, thence over Louisiana Highway 9 to junction U.S. Highway 79, thence over U.S. Highway 79 to junction U.S. Highway 171, thence over U.S. Highway 171 to junction Louisiana Highway 5, thence over Louisiana Highway 5 to junction U.S. Highway 84, thence over U.S. Highway 84 to junction Texas Highway 7, thence over Texas Highway 7 to junction U.S. Highway 59, thence over U.S. Highway 59 to Lufkin and return over the same route, serving no intermediate points, as an alternate route for operating convenience only and serving Lufkin for the purpose of joinder only, in connection with its regular route operation between Greenville, Miss., and Kinder, La., which is restricted against the use of the route for the transportation of shipments originating at, destined to, or interchanged at, Memphis, Tenn., points in the Memphis, Tenn., commercial zone, as defined by the Commission or points in Alabama or Mississippi. Applicant states it is willing to have the restriction as it presently exists, to apply in the instant application. NOTE: If a hearing is deemed necessary, applicant requests it be held at Memphis, Tenn., or Houston, Tex.

No. MC 9444 (Sub-No. 6), filed June 5, 1967. Applicant: BILOXI TRANSFER & STORAGE CO., INC., 440 Reynoir Street, Post Office Box 361, Biloxi, Miss. 39533. Applicant's representative: Frank C. Wentzell, Post Office Box 361, Biloxi, Miss. 39533. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Household goods*, as defined by the Commission, for exempt forwarders, between Biloxi, Miss., on the one hand, and, on the other, points in that part of Mississippi on and south of U.S. Highway 80, restricted to traffic having a prior or subsequent out-of-State movement. NOTE: If a hearing is deemed necessary, applicant does not specify a location.

No. MC 17000 (Sub-No. 7), filed June 5, 1967. Applicant: HOHENWALD TRUCK LINES, INC., 107 Mill Street, Hohenwald, Tenn. Applicant's representative: Robert H. Cowan, 500 Court Square Building, Nashville, Tenn. 37201. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities*, except those of unusual value, classes A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, between Nashville, Tenn., and intersection of Interstate Highway 65 and Tennessee Highway 99 over said Interstate Highway 65 to the extent same is available for use and in the future over such additional sections of said Interstate Highway 65 as same become available for use, with authority to enter, leave and reenter said Interstate Highway 65 at such interchanges, crossings and traversing such highways as is necessary to connect with applicants' presently authorized route, to be used for operating convenience only, serving no intermediate points. NOTE: If a hearing is deemed necessary, applicant requests it be held at Nashville, Tenn.

No. MC 27817 (Sub-No. 69), filed June 16, 1967. Applicant: H. C. GABLER, INC., Rural Delivery No. 3, Chambersburg, Pa. 17201. Applicant's representative: Christian V. Graf, 407 North Front Street, Harrisburg, Pa. 17101. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Canned goods*, from points in Morgan County, W. Va. to points in Pennsylvania, New Jersey, New York, Maryland, Virginia, Delaware, and the District of Columbia. NOTE: Common control may be involved. Applicant states that tacking would be possible at points in Adams, York, and Franklin Counties, Pa., so as to permit service to points in Rhode Island, Massachusetts, and Connecticut. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C., or Harrisburg, Pa.

No. MC 28658 (Sub-No. 14), filed June 9, 1967. Applicant: INTER-CITY TRUCKING SERVICE, INC., 14333 Goddard Street, Detroit, Mich. 48212. Applicant's representative: Robert D. Schuler, Suite 1700, 1 Woodward Avenue, Detroit, Mich. 48226. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment), serving the plantsite of Ford Motor Co., Sterling Township, Macomb County, Mich., as an off-route point in connection with authorized service at Detroit, Mich. NOTE: Applicant states that tacking would take place at Detroit, Mich., in conjunction with its presently held authority. If a hearing is deemed necessary, applicant requests it be held at Lansing, Mich.

No. MC 35320 (Sub-No. 96), filed June 5, 1967. Applicant: T. I. M. E. FREIGHT, INC., 2598 74th Street, Post Office Box 1120, Lubbock, Tex. 79408. Applicant's representative: Frank M. Garrison, Post Office Box 1120, Lubbock, Tex. 79408. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities*, except classes A and B explosives, livestock, articles of unusual value, commodities in bulk, and those requiring special equipment, from Atlanta, Ga., over U.S. Highway 278 to junction U.S. Highway 231, thence over U.S. Highway 231 to junction Alabama Highway 67, thence over Alabama Highway 67 to junction U.S. Highway 31, thence over U.S. Highway 31 to junction Alternate U.S. Highway 72, Decatur, Ala., thence over Alternate U.S. Highway 72 to junction U.S. Highway 72 near Tuscumbia, Ala., thence over U.S. Highway 72 to Memphis, Tenn., and return over the same route, serving no intermediate points as an alternate route for operating convenience only. NOTE: Applicant states that no duplicating authority is being sought. If a hearing is deemed necessary, applicant requests it be held at Atlanta, Ga., or Memphis, Tenn.

No. MC 42487 (Sub-No. 673), filed June 13, 1967. Applicant: CONSOLIDATED FREIGHTWAYS CORPORATION OF DELAWARE, 175 Linfield Drive, Menlo Park, Calif. 94024. Applicant's representative: V. R. Oldenburg, 7101 South Cicero Avenue, Post Office Box 5138, Chicago, Ill. 60680. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, commodities in bulk, and commodities requiring special equipment), serving the plantsite of the Ford Motor Co., located at Van Dyke and 18 Mile Road, Sterling Township, Mich., as an off-route point in connection with applicant's present operations to and from Detroit, Mich. NOTE: If a hearing is deemed necessary, applicant does not specify a location.

No. MC 50069 (Sub-No. 380), filed June 9, 1967. Applicant: REFINERS TRANSPORT & TERMINAL CORPORATION, 930 North York Road, Hinsdale, Ill. Applicant's representative: Robert H. Levy, 29 South La Salle Street,

Chicago, Ill. 60603. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Fertilizer solution*, from the plantsites of the Occidental Agricultural Chemicals Corp. located at or near Kenton and South Solon, Ohio, to points in Fulton County, Ind. NOTE: Common control and dual operations may be involved. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 52579 (Sub-No. 75), filed June 15, 1967. Applicant: GILBERT CARRIER CORP., 441 Ninth Avenue, New York, N.Y. 10001. Applicant's representative: Irving Klein, 280 Broadway, New York, N.Y. 10007. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Wearing apparel*, loose on hangers, and *materials and supplies used in the manufacture thereof*, (1) between Thomson, Ga., on the one hand, and, on the other, Ripley, Tenn., Hialeah and Miami, Fla.; (2) between Nicholls, Ga., on the one hand, and, on the other, Clinton and Wallace, N.C.; and (3) between Spartanburg, S.C., on the one hand, and, on the other, Alma and Nicholls, Ga. NOTE: Applicant states it intends to tack at Spartanburg, S.C., to serve points in presently authorized authority. If a hearing is deemed necessary, applicant requests it be held at New York, N.Y., or Newark, N.J.

No. MC 52751 (Sub-No. 76), filed June 14, 1967. Applicant: ACE LINE, INC., 4143 East 43d Street, Des Moines, Iowa 50317. Applicant's representative: William A. Landau, 1307 East Walnut Street, Des Moines, Iowa 50306. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *High density concrete*, containing iron ore and portland cement, in bags, from West Des Moines, Iowa, to Ripon, Wis. NOTE: If a hearing is deemed necessary, applicant requests it be held at Des Moines, Iowa.

No. MC 52751 (Sub-No. 77), filed June 15, 1967. Applicant: ACE LINES, INC., 4143 East 43d Street, Des Moines, Iowa 50305. Applicant's representative: William A. Landau, 1307 East Walnut Street, Des Moines, Iowa 50306. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Lumber*, from points in Lawrence, Pennington, Meade, and Custer Counties, S. Dak., to points in Kansas, Missouri, and Nebraska. NOTE: Applicant states it intends to tack at Council Bluffs, Iowa, to provide service at Omaha, Nebr., and points within 10 miles thereof. If a hearing is deemed necessary, applicant requests it be held at Des Moines, Iowa.

No. MC 55896 (Sub-No. 30), filed June 19, 1967. Applicant: R-W SERVICE SYSTEM, INC., 4840 Wyoming Avenue, Dearborn, Mich. 48126. Applicant's representative: Robert A. Sullivan, 1800 Buhl Building, Detroit, Mich. 48226. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment), serving the plant facilities of Ford Motor Co., located at Van Dyke and 18 Mile Road in Sterling Township, Mich., as an off-route point in connection with carriers presently authorized regular route operations to and from Detroit, Mich. NOTE: If a hearing is deemed necessary, applicant requests it be held at Detroit or Lansing, Mich.

No. MC 56409 (Sub-No. 5), filed June 19, 1967. Applicant: MAJOR TRANSPORT, INC., Post Office Box 204, Palmyra, Wis. Applicant's representative: John T. Porter, 1 South Pinckney Street, Madison, Wis. 53703. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Dry fertilizer and fertilizer materials*, (1) from Whitewater, Wis., to points in Illinois (except those on and north of U.S. Highway 30), Indiana, Iowa, Michigan, and Minnesota and (2) from Fulton, Ill., to points in Wisconsin (except those in Jefferson, Walworth, and Waukesha Counties). NOTE: If a hearing is deemed necessary, applicant requests it be held at Madison, Wis.

No. MC 59336 (Sub-No. 19), filed June 12, 1967. Applicant: U.S. TRUCK COMPANY, INC., 2290 24th Street, Detroit, Mich. 48216. Applicant's representative: Wilber M. Brucker, Jr., 2200 Penobscot Building, Detroit, Mich. 48226. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods, as defined by the Commission, commodities in bulk, and those requiring special equipment), serving the Ford Motor Co., Sterling Van Dyke Plant, Sterling Township, Mich., as an off-route point in connection with its regular route operations. NOTE: If a hearing is deemed necessary, applicant requests it be held at Detroit or Lansing, Mich.

No. MC 59457 (Sub-No. 11), filed June 2, 1967. Applicant: SORENSEN TRANSPORTATION COMPANY, INC., Old Amity Road, Bethany, Conn. Applicant's representative: Thomas W. Murrett, 410 Asylum Street, Hartford, Conn. 06103. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Fertilizer, fertilizer materials, insecticides, pesticides, and related advertising materials*, when moving at the same time and in the same vehicle, from Albany and Millerton, N.Y., to points in Connecticut, (2) *the same commodities specified in (1) above*, in bulk, in dump trailers, from Wilmington, Del., and Baltimore, Md., to points in Connecticut, and (3) *animal, bird, fish, and poultry feed and ingredients*, from Albany and Waverly, N.Y., to points in Connecticut. NOTE: Applicant states that no duplicating authority is being sought. If a hearing is deemed necessary, applicant requests it be held at Hartford, N.Y.

No. MC 59694 (Sub-No. 3), (Amendment substitution), filed May 9, 1966, published FEDERAL REGISTERS, issues of June 23, 1966, and July 9, 1966, under No. MC 125364 (Sub-No. 3), and republished this issue. Applicant: MISSOURI VALLEY EXPRESS, INC., Box 78, South Omaha Station, 4434 Buckingham, Omaha, Nebr. 68508. Applicant's representative: Donald E. Leonard, Box 2028, Lincoln, Nebr. 68501. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, and meat byproducts, and dairy products*, as described in sections A and B of appendix I to the *Report in Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766 (except commodities in bulk, in tank vehicles) from Sioux City, Iowa, to New York, N.Y., under continuing contract with Iowa Beef Packers, Inc. (successor in-interest to Sioux Quality Packers, Inc., Sioux City, Iowa). NOTE: The purpose of this republication is to show that the above-named applicant has been substituted in lieu of CAREL TRUCKING CORP., No. MC 125364 (Sub-No. 3). If a hearing is deemed necessary, applicant requests it be held at Omaha, Nebr., or Sioux City, Iowa.

No. MC 61396 (Sub-No. 188), filed June 7, 1967. Applicant: HERMAN BROS., INC., 2501 North 11th Street, Omaha, Nebr. 68110. Applicant's representative: Donald L. Stern, 630 City National Bank Building, Omaha, Nebr. 68102. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Cement*, between points in Kansas, Missouri, Nebraska, Iowa, South Dakota, and Minnesota, restricted to shipments having prior rail movements from plantsites and shipping origins of Ash Grove Lime & Portland Cement Co. and Ideal Cement Co. NOTE: If a hearing is deemed necessary, applicant requests it be held at Omaha, Nebr., Denver, Colo., or Kansas City, Mo.

No. MC 61484 (Sub-No. 17), filed May 31, 1967. Applicant: BUSH MOTOR FREIGHT, INC., 327 West Avenue, Lenoir, N.C. Applicant's representative: James E. Wilson, 1735 K Street NW., Washington, D.C. 20006. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities*, except those of unusual value, and except dangerous explosives, household goods as defined in *Practices of Motor Common Carriers of Household Goods*, 17 M.C.C. 467, commodities in bulk, and those requiring special equipment, between Lenoir, and Newton-Conover, N.C., on the one hand, and, on the other, points in Virginia (except from Richmond), Roanoke, and Norfolk, Va., Maryland (except from Baltimore), Pennsylvania (except from Philadelphia), Delaware, New Jersey, the District of Columbia, and points in New York within the New York, commercial zone as defined by the Commission (except from New York City). NOTE: Applicant states that it proposes to tack with its existing authority for purposes of providing a through service. Applicant further states that by this application it seeks to substitute a gateway at Lenoir or Newton-Conover for the

one at Boone, N.C., and thus obviate the necessity of traversing the 8-mile stretch of U.S. Highway 221 between Blowing Rock and Boone, N.C., which is a hard surface, medium duty, two-lane highway characterized by steep grades and tortuous turns, and the 10-mile stretch of U.S. Highway 221 running southeast from Blowing Rock en route to Lenoir. If a hearing is deemed necesary, applicant requests it be held at Washington, D.C.

No. MC 64932 (Sub-No. 437), filed June 12, 1967. Applicant: ROGERS CARTAGE CO., a corporation, 1439 West 103d Street, Chicago, Ill. 60643. Applicant's representative: Carl L. Steiner, 39 South La Salle Street, Chicago, Ill. 60603. Authority sought to operate as a common carrier, by motor vehicle, over irregular routes, transporting: *Core oil and resins*, in bulk, in tank vehicles, from Mishawaka, Ind., to points in Illinois, Iowa, Michigan, Minnesota, Missouri, Ohio, Pennsylvania, New York, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 64932 (Sub-No. 438), filed June 12, 1967. Applicant: ROGERS CARTAGE CO., a corporation, 1439 West 193d Street, Chicago, Ill. 60643. Applicant's representative: Carl L. Steiner, 39 South La Salle Street, Chicago, Ill. 60603. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Liquid chemicals* (except liquid hydrogen, liquid nitrogen, and liquid oxygen), in bulk, in tank vehicles, from St. Charles, Mo., and points within 5 miles thereof, to points in Arkansas, Arizona, California, Colorado, Idaho, Illinois, Indiana, Iowa, Kansas, Kentucky, Michigan, Minnesota, Montana, Nebraska, New Mexico, Nevada, North Dakota, Ohio, Oklahoma, Oregon, South Dakota, Texas (except Harris County), Utah, Washington, Wisconsin, and Wyoming. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill., or St. Louis, Mo.

No. MC 64994 (Sub-No. 95), filed June 14, 1967. Applicant: HENNIS FREIGHT LINES, INC., Post Office Box 612, Winston-Salem, N.C. 27102. Applicant's representatives: Frank C. Phillips, Post Office Box 612, Winston-Salem, N.C. 27102, and James E. Wilson, 1735 K Street NW., Washington, D.C. 20006. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Drugs, medicines, or hospital supplies, solutions or distilled water, intravenous; distilled water, plain or saline; solutions, nutritional or anticoagulant and expendable administration sets*, from the plantsite of McGaw Laboratories, Inc., located at or near Milledgeville, Ga., to Chicago, Ill., Columbus, Ohio, and Pittsburgh, Pa. NOTE: If a hearing is deemed necessary, applicant requests it be held at Atlanta, Ga., or Washington, D.C.

No. MC 67818 (Sub-No. 76), filed June 5, 1967. Applicant: MICHIGAN EXPRESS, INC., 1122 Freeman SW., Grand Rapids, Mich. Applicant's representative: Robert D. Schuler, Suite 1700, 1 Woodward Avenue, Detroit, Mich. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment), serving the plantsite of Ford Motor Co., located at Van Dyke and 18 Mile Road, Sterling Township, Macomb County, Mich., as an off-route point in connection with authorized service at Detroit, Mich. NOTE: If a hearing is deemed necessary, applicant requests it be held at Lansing, Mich.

No. MC 71096 (Sub-No. 59), filed June 13, 1967. Applicant: NORWALK TRUCK LINES, INC., 180 Milan Avenue, Norwalk, Ohio 44857. Applicant's representative: Marion M. Emery (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, livestock, automobiles, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment), serving the plantsite of Ford Motor Co. located at or near Van Dyke and 18 Mile Road, Sterling Township, Mich., as an off-route point in connection with applicant's presently authorized regular route operations to and from Detroit, Mich. NOTE: If a hearing is deemed necessary, applicant did not specify location.

No. MC 72140 (Sub-No. 53), filed June 4, 1967. Applicant: SHIPPERS DISPATCH, INC., 1216 West Sample Street, South Bend, Ind. 46624. Applicant's representative: Robert D. Schuler, Suite 1700, 1 Woodward Avenue, Detroit, Mich. 48226. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities*, except those of unusual value, classes A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment, serving the plantsite of Ford Motor Co., Sterling Township, Macomb County, Mich., as an off-route point in connection with authorized service at Detroit, Mich. NOTE: If a hearing is deemed necessary, applicant requests it be held at Lansing, Mich.

No. MC 78643 (Sub-No. 56), filed June 15, 1967. Applicant: HART MOTOR EXPRESS, INC., 2417 North Cleveland, St. Paul, Minn. 55113. Applicant's representative: Donald A. Morken, 1000 First National Bank Building, Minneapolis, Minn. 55402. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Empty cheese drums and cheese packaging supplies*, from Hutchinson and New Ulm, Minn., to points in North Dakota, and (2) *cheese* in metal drums and other packages, from points in North Dakota to Hutchinson and New Ulm, Minn. NOTE: If a hearing is deemed necessary, applicant requests it be held at Minneapolis, Minn.

No. MC 82841 (Sub-No. 32), filed June 5, 1967. Applicant: R. D. TRANSFER, INC., 801 Livestock Exchange Building, Omaha, Nebr. 68100. Applicant's representative: Donald L. Stern, 630 City National Bank Building, Omaha, Nebr. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Steel bar joists and accessories*, from Norfolk, Nebr., and points within 1 mile thereof, to points in Upper Peninsula of Michigan, Wisconsin, Illinois, Indiana, Missouri, Iowa, Minnesota, North Dakota, South Dakota, Nebraska, Kansas, Oklahoma, Texas, New Mexico, Colorado, Wyoming, Montana, Idaho, Utah, Arizona, Nevada, California, Oregon, and Washington. NOTE: If a hearing is deemed necessary, applicant requests it be held at Omaha, Nebr., or Kansas City, Mo.

No. MC 83539 (Sub-No. 213), filed June 9, 1967. Applicant: C & H TRANSPORTATION CO., INC., 1935 West Commerce Street, Dallas, Tex. 75222. Applicant's representative: W. T. Brunson, 419 Northwest Sixth Street, Oklahoma City, Okla. 73102. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Asbestos cement pipe, conduit and couplings, rings, or fittings and accessories* necessary for installation thereof when moving in connection therewith, from St. Louis, Mo., to points in the United States (except Alaska, Arizona, California, Connecticut, Hawaii, Idaho, Maine, Massachusetts, Missouri, Nevada, New Hampshire, Oregon, Rhode Island, Utah, Vermont, and Washington). NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 87720 (Sub-No. 66), filed June 7, 1967. Applicant: BASS TRANSPORTATION CO., INC., Old Croton Road, Flemington, N.J. 08822. Applicant's representative: Bert Collins, 140 Cedar Street, New York, N.Y. 10006. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: (1) *Hard rubber scrap-pulverized, scrap rubber*, in containers, between Dorset, Ohio, on the one hand, and, on the other, points in Massachusetts, Rhode Island, Connecticut, New York, New Jersey, Pennsylvania, Delaware, Maryland, and the District of Columbia; (2) *plastic material* such as flakes, granules, lumps, pellets, powder, solid mass, plastic scrap; *scrap rubber, reclaimed rubber, crude and synthetic rubber*, in containers, between Akron, Ohio, on the one hand, and, on the other, the above-described destination territory; (3) *plastic materials*, such as flakes, granules, lumps, pellets, powder, solid mass, plastic scrap; *synthetic rubber*, in containers, between Bellevue and Stryker, Ohio, on the one hand, and, on the other, the above-described destination territory; (4) *materials, supplies* and *equipment* (except in bulk), as used in the manufacture, purchase, distribution and sale of the aforementioned commodities, between the aforedescribed destination territory, on the one hand, and, on the other, Dorset, Akron, Bellevue, and Stryker, Ohio, under contract with A. Schulman, Inc., of Akron, Ohio. NOTE: If a hearing is deemed necessary,

applicant requests it be held at Washington, D.C., or New York, N.Y.

No. MC 94265 (Sub-No. 203), filed June 13, 1967. Applicant: BONNEY MOTOR EXPRESS, INC., Post Office Box 12388, Thomas Corner Station, Norfolk, Va. Applicant's representative: Wilmer B. Hill, 529 Transportation Building, Washington, D.C. 20006. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Foodstuffs*, from Suffolk, Va., to points in Arkansas, Illinois, Indiana, Iowa, Kansas, Kentucky, Michigan, Minnesota, Missouri, Ohio, Tennessee, Texas, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C., or New York, N.Y.

No. MC 98088 (Sub-No. 19), filed June 12, 1967. Applicant: LINDLEY TRUCKING SERVICE, INC., 1701 Grand Avenue, Granite City, Ill. Applicant's representative: Dale Woodall, 900 Memphis Bank Building, Memphis, Tenn. 38103. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Prefabricated metal buildings*, knocked down, *prefabricated metal building sections*, knocked down, *component parts thereof, equipment, materials and supplies* used in the installation, construction, and erection thereof, except metal buildings which are designed to be drawn by passenger vehicles, and commodities which because of their size or weight require special equipment or special handling, from Evansville, Wis., to points in Iowa, Illinois, Nebraska, Kansas, Missouri, Oklahoma, New Mexico, Arizona, Texas, Louisiana, Arkansas, Mississippi, Tennessee, Indiana, Kentucky, Alabama, Florida, Georgia, South Carolina, North Carolina, Virginia, West Virginia, Ohio, California, Arizona, and Michigan, and (2) *materials, equipment, and supplies* used or useful in the manufacture of the commodities described in (1) above, from the destination States to Evansville, Wis. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 99427 (Sub-No. 8) filed June 9, 1967. Applicant: ARIZONA TANK LINES, INC., Post Office Box 6430, Phoenix, Ariz. 85005. Applicant's representative: William J. Lippman, 1824 R Street NW., Washington, D.C. 20009. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Petroleum and petroleum products*, in bulk, in tank vehicles, from Phoenix, Ariz., to McCarran Field and Las Vegas, Nev. NOTE: Applicant states it intends to tack with existing authority in Arizona which would enable applicant to perform through service from points in Arizona. If a hearing is deemed necessary, applicant requests it be held at Phoenix, Ariz.

No. MC 100666 (Sub-No. 103), filed June 5, 1967. Applicant: MELTON TRUCK LINES, INC., Post Office Box 7295, Shreveport, La. 71107. Applicant's representative: Wilburn L. Williamson, 450 American National Building, Oklahoma City, Okla. 73102. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Plastic pipe, tubing, conduit, valves and fittings, compound joint sealer, bonding cement, and accessories and tools used in the installation of such products*, from Terre Haute, Ind., to points in Alabama, Arkansas, Florida, Georgia, Kansas, Kentucky, Louisiana, Mississippi, Missouri, Oklahoma, South Carolina, Tennessee, and Texas. NOTE: Applicant indicated tacking possibilities at Little Rock, Ark. If a hearing is deemed necessary, applicant requests it be held at Little Rock, Ark., or Indianapolis, Ind.

No. MC 101898 (Sub-No. 3), filed June 9, 1967. Applicant: ALLEN EYE and STANLEY LEWIS CRAIG, a partnership, doing business as EYE and CRAIG TANSFER, Franklin, W. Va. 26807. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Poultry feeds and livestock feeds and grains*, in bulk, between Harrisonburg, Va., and points in Pendleton, Hardy and Grant Counties, W. Va., and Highland County, Va., by route of Pendleton County, W. Va. NOTE: Applicant indicates tacking possibilities that would include the whole county, instead of just a portion (Pendleton County) and add some surrounding counties. If a hearing is deemed necessary, applicant requests it be held at Richmond or Harrisonburg, Va.

No. MC 103435 (Sub-No. 197), filed June 8, 1967. Applicant: UNITED-BUCKINGHAM FREIGHT LINES, a corporation, East 4005 Broadway, Spokane, Wash. Applicant's representative: George R. LaBissoniere, 920 Logan Building, Seattle, Wash. 98101. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Commodities* which because of their size or weight require the use of special equipment or special handling (except automobiles, vehicles and buses and motor vehicle cabs, bodies and chassis) and of *related parts and accessories* when their transportation is incidental to the transportation of commodities which because of size or weight require use of special equipment or handling, between points in Montana, Idaho, Washington, and Oregon. NOTE: Applicant states it intends to tack with authorities presently authorized in MC 103435, Sub 104 at Milton, Freewater, and Portland, Oreg, and Garrison and Milltown, Mont.; to Sub 30 at Billings, Miles City, Glendive, Wilbeaux, Culbertson, and Glasgow, Mont., at Lewiston, Idaho, and also to Subs 32, 2, 98, 39, and 128, in order to provide through transportation to and from points in Oregon and to and from points east of Montana and South Dakota, North Dakota, Minnesota, Iowa, Nebraska, Kansas, Missouri, Illinois, Wyoming, and Colorado. If a hearing is deemed necessary, applicant requests it be held at Seattle, Wash.

No. MC 103552 (Sub-No. 6), filed June 12, 1967. Applicant: THE FARER TRANSPORTATION COMPANY, a corporation, 15 West Dover Street, Waterbury, Conn. 06720. Applicant's representative: S. Harrison Kahn, Suite 733, Investment Building, Washington, D.C. 20005. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Newspapers, newspaper supplements, advertising matter, books, magazines, periodicals, song sheets, sheet music, comics, comic sheets, and shopping news*, between New York, N.Y., and its commercial zone as defined by the Interstate Commerce Commission, and Spring Valley, N.Y. NOTE: Applicant states it intends to tack at points in the New York, N.Y., commercial zone to serve points in Northern New Jersey Counties and points in Connecticut on and west of the east bank of the Connecticut River. If a hearing is deemed necessary, applicant requests it be held at New York, N.Y.

No. MC 103993 (Sub-No. 288), filed May 22, 1967. Applicant: MORGAN DRIVE-AWAY, INC., 2800 West Lexington Avenue, Elkhart, Ind. 46514. Applicant's representative: Robert G. Tessar (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Trailers*, designed to be drawn by passenger automobiles, from points in Lee County, Miss., to points in the United States (except Alaska and Hawaii). NOTE: If a hearing is deemed necessary, applicant requests it be held at Memphis, Tenn., or Jackson, Miss.

No. MC 103993 (Sub-No. 290), filed June 6, 1967. Applicant: MORGAN DRIVE-AWAY, INC., 2800 West Lexington Avenue, Elkhart, Ind. 46514. Applicant's representative: Robert G. Tessar (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Trailers*, designed to be drawn by passenger vehicles, from points in Richland County, Ohio, to points in the United States (except Alaska and Hawaii); (2) *special purpose trailers*, designed to be drawn by passenger automobiles, from points in Milwaukee County, Wis., to points in the United States (except Alaska and Hawaii); and (3) *special designed mobile units* (canteens) mounted on their own wheeled undercarriages, equipped with hitch ball connector, from points in Cook County, Ill., to points in the United States (except Alaska and Hawaii). NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 105461 (Sub-No. 77), filed June 8, 1967. Applicant: HERR'S MOTOR EXPRESS, INC., Box 8, Quarryville, Pa. 17566. Applicant's representative: Bernard N. Gingerich, 110 West State Street, Quarryville, Pa. 17556. Authority sought to operate as a common carrier, by motor vehicle, over irregular routes, transporting: (1) *Petroleum products*, in containers, and *commodities* used in the operation of, or sold by, retail gasoline service stations, moving in the same vehicle and at the same time with petroleum products, in containers, from Marcus Hook, Pa., to points

in Ashtabula, Belmont, Carroll, Columbiana, Cuyahoga, Geauga, Harrison, Jefferson, Lake, Lorain, Mahoning, Medina, Portage, Stark, Summit, Trumbull, Tuscarawas, and Wayne Counties, Ohio (except Akron, Boardman, and Cleveland, Ohio); and (2) *empty petroleum products containers* (other than new), from the described destinations in (1) above to Marcus Hook and Philadelphia, Pa. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C., or Philadelphia, Pa.

No. MC 105813 (Sub-No. 150), filed May 31, 1967. Applicant: BELFORD TRUCKING CO., INC., 3500 Northwest 79th Avenue, Post Office Box 1542, M.I.A. Station, Miami, Fla. 33148. Applicant's representative: James T. Moore (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Candy and confectionery*, from Dunn, N.C., to points in Alabama, Georgia, Florida, and South Carolina. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 105813 (Sub-No. 152), filed June 14, 1967. Applicant: BELFORD TRUCKING CO., INC., 3500 Northwest 79th Avenue, Miami, Fla. 33148. Applicant's representative: Carl L. Steiner, 39 South La Salle Street, Chicago, Ill. 60603. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Frozen foods*, from Quincy, Ill., and Cleveland, Ohio, to points in Alabama, Florida, Georgia, North Carolina, and South Carolina. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 106398 (Sub-No. 347), filed June 9, 1967. Applicant: NATIONAL TRAILER CONVOY, INC., 1975 National Plaza, Tulsa, Okla. 74151, also Box 8096, Dawson Station, Tulsa, Okla. 74151. Applicant's representative: Irvin Tull (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transportation: *Trailers*, designed to be drawn by passenger automobiles, initial movement, in truckaway service, from points in in Humphreys County, Miss., Claiborne and Grainger Counties, Tenn., and Natrona County, Wyo., to points in the United States (except Alaska and Hawaii). NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 106760 (Sub-No. 80), filed June 7, 1967. Applicant: WHITEHOUSE TRUCKING, INC., 2905 Airport Highway, Toledo, Ohio 43614. Applicant's representative: Leonard A. Jaskiewicz, Madison Building, 1155 15th Street NW., Washington, D.C. 20005. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Prefabricated wall partitions*, from Bellaire, Ohio, to points in Alabama, Arkansas, Connecticut, Colorado, Delaware, District of Columbia, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Missouri, Maryland, Massachusetts, Michigan, Mississippi, Nebraska, New Hampshire, North Carolina, New Jersey, New Mexico, New York, Ohio, Oklahoma, Pennsylvania, Rhode Island, South Carolina, Tennessee, Texas, Vermont, Virginia, West Virginia, and Wisconsin, and (2) *reinforced plastic pipe, plastic fume scrubbers, reinforced plastic tanks, aggregate-stone casts or natural crushed stone, acid proof cement* in pails, drums, or cartons, from points in Cuyahoga County, Ohio, to points in Colorado, Kansas, New Mexico, Oklahoma, and Texas. NOTE: If a hearing is deemed necessary, applicant requests it be held at Cleveland, Ohio, or Washington, D.C.

No. MC 106904 (Sub-No. 12), filed June 5, 1967. Applicant: TOPEKA MOTOR FREIGHT, INC., 4490 Lower Silver Lake Road, Topeka, Kans. 66603. Applicant's representative: D. S. Hults, Box 225, Lawrence, Kans. 66044. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities*, except those of unusual value, classes A and B explosives, household goods as defined by the Commission, commodities in bulk and those requiring special equipment, (1) between Concordia, Kans., and Hastings, Nebr., from Concordia, Kans., over U.S. Highway 81 to the junction of U.S. Highway 6 at Fairmont, Nebr., thence over U.S. Highway 6 to Hastings, Nebr., and return over the same route, serving the intermediate point of Hebron, Nebr., (2) between Hastings and Grand Island, Nebr., from Hastings, Nebr., over U.S. Highway 34 to Grand Island, Nebr., and return over the same route, serving all intermediate points, (3) between Grand Island and North Platte, Nebr., from Grand Island, Nebr., over U.S. Highway 30 to North Platte, Nebr., and return over the same route, serving all intermediate points, and (4) between Concordia, Kans., and Kearney, Nebr., from Concordia, Kans., over U.S. Highway 81 to Chester, Nebr., thence over Nebraska Highway 6 to Superior, Nebr., thence over Nebraska Highway 14 to Junction U.S. Highway 6, thence over U.S. Highway 6 to junction Nebraska Highway 44, thence over Nebraska Highway 44 to Kearney, Nebr., and return over the same route, serving all intermediate points and the off-route point of Kenesaw, Nebr. NOTE: Applicant states that this application is to convert from an irregular route carrier to a regular route carrier for the same commodities to the same destinations. If a hearing is deemed necessary, applicant requests it be held at Kansas City or Topeka, Kans.

No. MC 107012 (Sub-No. 71), filed June 2, 1967. Applicant: NORTH AMERICAN VAN LINES, INC., Post Office Box 988, Fort Wayne, Ind. 46801. Applicant's representative: Martin A. Weissert (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Floor coverings*, uncrated, from Landrum, S.C., points in Greenville County, S.C., points in Greenville County, S.C., and Lyerly, Ga., to Dallas, Tex. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 107012 (Sub-No. 72), filed June 19, 1967. Applicant: NORTH AMERICAN VAN LINES, INC., Post Office Box 988, Fort Wayne, Ind. 46801. Applicant's representative: Martin A. Weissert, Post Office Box 988, Fort Wayne, Ind. 46801. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Steel sash (windows) and doors, and component parts and accessories*, from Pandora, Ohio, to points in the United States (except Alaska, and Hawaii). NOTE: If a hearing is deemed necessary, applicant requests it be held at Fort Wayne or Indianapolis, Ind.

No. MC 107227 (Sub-No. 95), filed June 13, 1967. Applicant: INSURED TRANSPORTERS, INC., 1944 Williams Street, San Leandro, Calif. 94577. Applicant's representative: John G. Lyons, 1418 Mills Tower, San Francisco, Calif. 94104. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *New Automobiles*, in secondary movements in truckaway service, in mixed loads of passenger automobiles and trucks, from Ogden and Salt Lake City, Utah, to points in Nevada and points in California north of the northern boundaries of San Luis Obispo, Kern, and San Bernardino Counties, restricted to shipments having an immediately prior movement by rail and originating at plantsites of the Kaiser "Jeep" Corp. NOTE: If a hearing is deemed necessary, applicant requests it be held at San Francisco, Calif., or Toledo, Ohio.

No. MC 107295 (Sub-No. 108), filed June 9, 1967. Applicant: PRE-FAB TRANSIT CO., a corporation, 100 South Main Street, Farmer City, Ill. 61842, also Post Office Box 156, Farmer City, Ill. 61842. Applicant's representative: Dale L. Cox, Post Office Box 156, Farmer City, Ill. 61842. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Pulpboard and fiberboard and accessories* used in the installation thereof, from Meridian, Miss., to points in Arkansas, Minnesota, Nebraska, and Tennessee. NOTE: If a hearing is deemed necessary, applicant requests it be held at Jackson, Miss., or Washington, D.C.

No. MC 107403 (Sub-No. 721), filed June 15, 1967. Applicant: MATLACK, INC., 10 West Baltimore Avenue, Lansdowne, Pa. 19050. Applicant's representative: John E. Nelson (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Liquefied petroleum gas*, in bulk, in tank vehicles, from points in Fairfax County, Va., to points in Maryland, Delaware, Pennsylvania, West Virginia, and the District of Columbia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 107403 (Sub-No. 722), filed June 16, 1967. Applicant: MATLACK, INC., 10 West Baltimore Avenue, Lansdowne, Pa. 19050. Applicant's representa-

tive: J. E. Nelson (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Plastic granules*, in bulk, from points in Lawrence County, Ohio, to points in Alabama, Arkansas, Colorado, Connecticut, Delaware, District of Columbia, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Maine, Maryland, Massachusetts, Michigan, Minnesota, Mississippi, Missouri, Nebraska, New Hampshire, New Jersey, New York, North Carolina, North Dakota, Ohio, Oklahoma, Pennsylvania, Rhode Island, South Carolina, South Dakota, Tennessee, Texas, Vermont, Virginia, West Virginia, and Wisconsin. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 107496 (Sub-No. 569) (Correction), filed June 5, 1967, published in FEDERAL REGISTER issue of June 22, 1967, and republished as corrected, this issue. Applicant: RUAN TRANSPORT CORPORATION, Keosauqua Way at Third, Post Office Box 855, Des Moines, Iowa 50304. Applicant's representative: H. L. Fabritz (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Liquefied petroleum gas*, from Michigan City, Ind., to Franklin, Kentucky, Calvert City, Ky., Chamblee, and Atlanta, Ga. NOTE: Common control may be involved. The purpose of this republication is to redescribe the commodity description. If a hearing is deemed necessary, applicant requests it be held at St. Louis, Mo., Kansas City, Kans., or Kansas City, Mo.

No. MC 107496 (Sub-No. 572), filed June 15, 1967. Applicant: RUAN TRANSPORT CORPORATION, Keosauqua Way at Third, Post Office Box 855, Des Moines, Iowa 50304. Applicant's representative: H. L. Fabritz (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Feed and feed ingredients*, from points in Illinois and Iowa to points in Wisconsin. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Madison, Wis., or Chicago, Ill.

No. MC 107515 (Sub-No. 577), filed June 19, 1967. Applicant: REFRIGERATED TRANSPORT CO., INC., Post Office Box 10799, Station A, Atlanta, Ga. 30310. Applicant's representative: B. L. Gundlach (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Frozen foodstuffs*, from Louisville, Ky., to points in Alabama, Georgia, Florida, North Carolina, and South Carolina. NOTE: If a hearing is deemed necessary, applicant requests it be held at Louisville, Ky., or Atlanta, Ga.

No. MC 107698 (Sub-No. 44), filed June 2, 1967. Applicant: BONANZA, INC., 4030 East Magnolia, Post Office Box 12163, Phoenix, Ariz. 85034. Applicant's representative: No applicant representative—send inquiries to Applicant, Post Office Box 12163. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Playground apparatus*, knocked down, from Shreveport and/or Bossier City, La., to (1) points in Alabama, Arkansas, Florida, Georgia, Kentucky, Mississippi, North Carolina, Oklahoma, South Carolina, Tennessee, and Texas; (2) points in Arizona, California, Colorado, Idaho, Montana, Nevada, New Mexico, North Dakota, Oregon, South Dakota, Utah, and Washington; and (3) points in Illinois, Indiana, Iowa, Kansas, Minnesota, Missouri, Nebraska, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Phoenix, Ariz., or New Orleans, La.

No. MC 108053 (Sub-No. 76), filed June 12, 1967. Applicant: LITTLE AUDREY'S TRANSPORTATION COMPANY, INC., Post Office Box 129, Fremont, Nebr. Applicant's representative: Carl L. Steiner, 39 South La Salle Street, Chicago, Ill. 60603. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Frozen foods*, from Quincy, Ill., to points in Washington, Oregon, Idaho, California, Nevada, Utah, and Arizona. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 108207 (Sub-No. 224), filed June 19, 1967. Applicant: FROZEN FOOD EXPRESS, INC., 318 Cadiz Street, Dallas, Tex. Applicant's representative: J. B. Ham, Post Office Box 5888, Dallas, Tex. 75222. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Human blood plasma*, from Houston, Tex., to Detroit, Mich. NOTE: If a hearing is deemed necessary, applicant requests it be held at Dallas or Houston, Tex.

No. MC 108884 (Sub-No. 15), filed June 13, 1967. Applicant: ROGERS TRANSFER, INC., Route 46, Great Meadows, N.J. Applicant's representative: Bert Collins, 140 Cedar Street, New York, N.Y. 10006. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Frozen foods*, in mechanically refrigerated vehicles, from New York, N.Y., points in Hudson and Bergen Counties, N.J., to points in Nassau, Suffolk, Westchester, Orange, Rockland, and Broome Counties, N.Y., Bergen, Essex, Hudson, Union, Morris, Warren, Passaic, Middlesex, Somerset, Monmouth, Ocean, Mercer, and Atlantic Counties, N.J., and points in that part of Pennsylvania on and east of U.S. Highway 15. NOTE: Applicant states no duplicating authority is sought. If a hearing is deemed necessary, applicant requests it be held at New York, N.Y., or Newark, N.J.

No. MC 109294 (Sub-No. 8), filed June 14, 1967. Applicant: COMMERCIAL TRUCK CO., LTD., 230 Brunette Street, New Westminster, British Columbia, Canada. Applicant's representative: Joseph O. Earp, 411 Lyon Building, 607 Third Avenue, Seattle, Wash. 98104. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Lumber*, from the ports of entry on the international boundary line between the United States and Canada located at or near Blaine and Sumas, Wash., to Bangor and Bremerton, Wash., and points in Chelan County, Wash., restricted to shipments originating in British Columbia, Canada. NOTE: If a hearing is deemed necessary, applicant requests it be held at Seattle, Wash.

No. MC 109497 (Sub-No. 19), filed June 13, 1967. Applicant: A. F. COMER TRANSPORT SERVICE, INC., Post Office Box 2933, West Durham Station, Durham, N.C. 27705. Applicant's representative: Louis Reznek, 5009 Keokuk Street, Washington, D.C. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Creosote*, in bulk, in tank motor vehicles, from Chesapeake, Va., to Scotland Neck, N.C. NOTE: If a hearing is deemed necessary, applicant requests it be held at Raleigh, N.C.

No. MC 109914 (Sub-No. 22), filed June 19, 1967. Applicant: DUNDEE TRUCK LINE, INC., 660 Sterling Street, Toledo, Ohio 43609. Applicant's representative: Robert D. Schuler, Suite 1700, 1 Woodward Avenue, Detroit, Mich. 48226. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment), serving the plantsite of Ford Motor Co., Sterling Township, Macomb County, Mich., as an off-route point in connection with authorized service at Detroit, Mich. NOTE: Applicant states it would tack the proposed authority with its present authority at Detroit, Mich. If a hearing is deemed necessary, applicant requests it be held at Lansing, Mich.

No. MC 110420 (Sub-No. 546), filed June 13, 1967. Applicant: QUALITY CARRIERS, INC., 100 South Calumet Street, Burlington, Wis. 53105. Applicant's representatives: Allan B. Torhorst, Post Office Box 339, Burlington, Wis. 53105, Fred H. Figge (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Chemicals*, in bulk, from Janesville, Wis., to points in Navarro County, Tex., and points in Minnesota and Pennsylvania. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill., or Madison, Wis.

No. MC 110525 (Sub-No. 835), filed June 13, 1967. Applicant: CHEMICAL LEAMAN TANK LINES, INC., 520 East Lancaster Avenue, Downingtown, Pa. Applicant's representatives: Leonard A. Jaskiewicz, 1155 15th Street NW., Madison Building, Washington, D.C. 20005, and Edwin H. van Deusen (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Silicone oil*, in bulk, in tank vehicles, from the plant of the General Electric Co. at or near Waterford, N.Y., to the plant of the S. C. Johnson Co., at or near

Waxdale, Wis., restricted to traffic originating at and destined to the plants indicated. NOTE: Applicant states it presently holds authority to perform the involved service by combining grants at Allegheny County, Pa., and that by the instant application it seeks to remove that gateway. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 110525 (Sub-No. 836), filed June 14, 1967. Applicant: CHEMICAL LEAMAN TANK LINES, INC., 520 East Lancaster Avenue, Downingtown, Pa. 19335. Applicant's representatives: Leonard A. Jaskiewicz, 1155 15th Street NW., Madison Building, Washington, D.C., and Edwin H. van Deusen (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Compounds industrial process water treating liquid*, in bulk, in tank vehicles, from Dallas, Tex., to Commerce City, Colo., and the plantsite of the Kermac Potash Co. approximately 30 miles northeast of Carlsbad, N. Mex. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 110988 (Sub-No. 239), filed June 6, 1967. Applicant: KAMPO TRANSIT, INC., 200 West Cecil Street, Neenah, Wis. Applicant's representative: E. Stephen Heisley, 529 Transportation Building, Washington, D.C. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Commodities* in bulk, in tank vehicles, from Utica, Ill., to points in Alabama, Arkansas, Colorado, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Nebraska, North Dakota, Ohio, Oklahoma, Pennsylvania, South Dakota, Tennessee, Texas, West Virginia, Wisconsin, and Wyoming. NOTE: Applicant states it could tack with existing authority from points in Iowa, Illinois, Indiana, Michigan, and Wisconsin. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 111045 (Sub-No. 56), filed June 5, 1967. Applicant: REDWING CARRIERS, INC., Post Office Box 426 (Palm River Road), Tampa, Fla. 33601. Applicant's representative: David E. Wells (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Anhydrous ammonia*, from Occidental, Fla., to points in Alabama and Georgia. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Tampa, Fla.

No. MC 111069 (Sub-No. 48), filed June 9, 1967. Applicant: COLDWAY CARRIERS, INC., Post Office Box 38, Clarksville, Ind. 47131. Applicant's representative: Paul M. Daniell, 1600 First Federal Building, Atlanta, Ga. 30303. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Canned citrus products, canned juices, canned drinks and canned beverages*, from the plantsite of Tropicana Products Sales Inc., located at Bradenton, Fla., to points in Kentucky, Ohio, Indiana, Michigan, Tennessee, West Virginia, Pennsylvania, New York, Virginia, Maryland, and the District of Columbia, under contract with Tropicana Products Sales, Inc. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C., Tampa or Miami, Fla., or Louisville, Ky.

No. MC 111729 (Sub-No. 243), filed June 1, 1967. Applicant: AMERICAN COURIER CORPORATION, 222–17 Northern Boulevard, Bayside, N.Y. 11361. Applicant's representative: Russell S. Bernhard, 1625 K Street NW., Commonwealth Building, Washington, D.C. 20006. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Business papers, records, and audit and accounting media of all kinds* (excluding plant removals), (a) between points in Hartford County, Conn., on the one hand, and, on the other, points in Atlantic, Cumberland, and Camden Counties, N.J.; (b) between points in Middlesex County, Conn., on the one hand, and, on the other, points in Middlesex County, N.J., Onondaga and Erie Counties, N.Y., Middlesex County, Mass., and New York, N.Y.; (c) between Braintree, Mass., on the one hand, and, on the other, Plainfield, Toms River, Wayne, Cedar Grove, and New Brunswick, N.J., and New York, N.Y.; (d) between Jackson, Mich., on the one hand, and, on the other, Van Wert and Youngstown, Ohio; (e) between Cleveland, Ohio, on the one hand, and, on the other, Buffalo and Rochester, N.Y.; (f) between Waterville, Maine, on the one hand, and, on the other, Lowell, Mass.; (g) between Braintree, Mass., on the one hand, and, on the other, South Plainfield, N.J. (2) *Cotton piece goods*, between points in Hartford County, Conn., on the one hand, and, on the other, points in Atlantic, Cumberland, and Camden Counties, N.J. (3) *Payroll checks*, (a) between points in Middlesex County, Conn., on the one hand, and, on the other, points in Middlesex County, N.J., Onondaga and Erie Counties, N.Y., New York, N.Y., and Middlesex County, Mass.; (b) between Jackson, Mich., on the one hand, and, on the other, Van Wert and Youngstown, Ohio; (c) between Waterville, Maine, on the one hand, and on the other, Lowell, Mass.

(4) *Small parts*, between Jackson, Mich., on the one hand, and, on the other, Van Wert and Youngstown, Ohio. (5) *Exposed and processed microfilm and facsimiles of all kinds*, between Cleveland, Ohio, on the one hand, and, on the other, Buffalo and Rochester, N.Y. (6) *Exposed and processed film and prints, complimentary replacement film, incidental dealer handling supplies and advertising literature moving therewith* (excluding motion picture film used primarily for commercial theater and television exhibition), between Cincinnati, Ohio, on the one hand, and, on the other, points in Indiana and Kentucky. (7) *Garments and swatches of cloth for testing and research purposes*, moving at the same time with business papers, records, and audit and accounting media of all kinds (excluding plant removals), between Waterville, Maine, on the one hand, and, on the other, Lowell, Mass. (8) *Cut flowers and decorative greens*, between points in Illinois, having prior or subsequent movement by air. (9) *Ophthalmic goods and commercial papers* (except cash letters and excluding plant removals), between Columbus, Ohio, on the one hand, and, on the other, points in Illinois, Indiana, Kentucky, Maryland, Michigan, Pennsylvania and West Virginia. NOTE: Applicant indicates tacking possibilities with its presently held authority. Applicant also holds contract carrier authority under MC 112520 and subs thereunder, therefore, dual operations may be involved. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C., or Cincinnati, Ohio.

No. MC 111862 (Sub-No. 18), filed June 19, 1967. Applicant: HENNES TRUCKING CO., a corporation, 338 South 17th Street, Milwaukee, Wis. 53233. Applicant's representative: George J. Scanlan, 111 West Washington Street, Chicago, Ill. 60602. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Diammonium phosphate*, in bulk, from Colfax, Depue, and Riverdale, Ill., and Des Moines, Iowa, to points in Illinois, Indiana, Iowa, Kansas, Michigan, Minnesota, Missouri, Nebraska, North Dakota, South Dakota, and Wisconsin, under a continuing contract or contracts with the New Jersey Zinc Co. of New York, N.Y. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill., or St. Louis, Mo.

No. MC 112304 (Sub-No. 22), filed June 14, 1967. Applicant: ACE DORAN HAULING & RIGGING CO., a corporation, 1601 Blue Rock Street, Cincinnati, Ohio 45223. Applicant's representative: James M. Burtch, 100 East Broad Street, Columbus, Ohio 43215. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Aluminum and aluminum articles*, between points in Hancock County, Ky., on the one hand, and, on the other, points in Tennessee, Georgia, Alabama, Florida, Mississippi, Louisiana, Arkansas, Missouri, Oklahoma, Texas, Wisconsin, Minnesota, and Iowa. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C., or Louisville, Ky.

No. MC 112304 (Sub-No. 23), filed June 19, 1967. Applicant: ACE DORAN HAULING & RIGGING CO., a corporation, 1601 Blue Rock Street, Cincinnati, Ohio 45223. Applicant's representative: James M. Burtch, 100 East Broad Street, Columbus, Ohio 43215. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, commodities in bulk, and those requiring special equipment), between the plantsites and warehouses of Rockwell-Standard Corp. at or near Winchester, Ky., on the one hand, and,

on the other, points in Alabama, Arkansas, Connecticut, Delaware, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Louisiana, Maine, Maryland, Massachusetts, Michigan, Minnesota, Mississippi, Missouri, Nebraska, New Hampshire, New Jersey, New York, North Carolina, North Dakota, Ohio, Oklahoma, Pennsylvania, Rhode Island, South Carolina, South Dakota, Tennessee, Texas, Vermont, Virginia, West Virginia, Wisconsin, and the District of Columbia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Louisville, Ky.

No. MC 112595 (Sub-No. 31), filed June 8, 1967. Applicant: FORD BROTHERS, INC., Post Office Box 419, Ironton, Ohio. Applicant's representatives: Herbert Baker and James R. Stiverson, 50 West Broad Street, Columbus, Ohio 43215. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Inedible tallow*, in bulk, in tank vehicles, from Wellston, Ohio, to points in Illinois, Indiana, Kentucky, Michigan, New York, Pennsylvania, Virginia, and West Virginia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Columbus, Ohio, or Washington, D.C.

No. MC 112595 (Sub-No. 32), filed June 19, 1967. Applicant: FORD BROTHERS, INC., Post Office Box 419, Ironton, Ohio. Applicant's representative: James R. Stiverson, 50 Broad Street, Columbus, Ohio 43215. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Plastic granules*, in bulk, from points in Lawrence County, Ohio, to points in Alabama, Arkansas, Colorado, Connecticut, Delaware, District of Columbia, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Maine, Maryland, Massachusetts, Michigan, Minnesota, Mississippi, Missouri, Nebraska, New Hampshire, New Jersey, New York, North Carolina, North Dakota, Ohio, Oklahoma, Pennsylvania, Rhode Island, South Carolina, South Dakota, Tennessee, Texas, Vermont, Virginia, West Virginia, and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C., or Columbus, Ohio.

No. MC 113382 (Sub-No. 13), filed June 15, 1967. Applicant: NELSEN BROS., INC., Nebraska City, Nebr., Applicant's representative: J. Max Harding, Box 2028, Third Floor, NSEA Building, 14th and J Streets, Lincoln, Nebr. 68501. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: (1) *Canned goods and table sauces*, from the plantsite and warehouse facilities of Morton House Kitchens, Inc., located at or near Nebraska City, Nebr., to points in Alabama, Arizona, Arkansas, California, Colorado, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Maryland, Michigan, Minnesota, Mississippi, Missouri, Montana, Nebraska, Nevada, New Jersey, New Mexico, New York, North Carolina, North Dakota, Ohio, Oklahoma, Pennsylvania, South Carolina, South Dakota, Tennessee, Texas, Utah, Virginia, West Virginia, Wisconsin, and Wyoming, and (2) *raw materials, supplies and merchandise*, on return under continuing contract with Morton House Kitchens, Inc., Nebraska City, Nebr. NOTE: If a hearing is deemed necessary, applicant requests it be held at Omaha, Nebr.

No. MC 113678 (Sub-No. 283), filed June 9, 1967. Applicant: CURTIS, INC., 770 East 51st Avenue, Denver, Colo. 80216. Applicant's representative: Duane W. Acklie, Post Office Box 2028, Lincoln, Nebr. 68501. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, and meat byproducts and articles distributed by meat packinghouses*, as described in sections A and C of appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766, from points in Saunders County, Nebr., to points in Connecticut, Delaware, District of Columbia, Maine, Maryland, Massachusetts, New Hampshire, New Jersey, New York, Pennsylvania, Rhode Island, and Vermont. NOTE: If a hearing is deemed necessary, applicant requests it be held at Lincoln, Nebr.

No. MC 113678 (Sub-No. 284), filed June 15, 1967. Applicant: CURTIS, INC., 770 East 51st Avenue, Denver, Colo. 80216. Applicant's representative: Duane W. Acklie, Post Office Box 2028, Lincoln, Nebr. 68501. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, and meat byproducts and articles distributed by meat packinghouses*, as described in sections A and C of appendix I to the report in *Descriptions in Motor Carrier Certificates*, 61 M.C.C. 209 and 766 (except hides and commodities, in bulk, in tank vehicles), from the plantsite and storage facilities of Griffith Provision Co., Inc., at or near Downs, Kans., to points in Colorado, Connecticut, Delaware, Florida, Georgia, Illinois, Indiana, Iowa, Maryland, Massachusetts, Michigan, Minnesota, Nebraska, Nevada, New Jersey, New York, North Carolina, Ohio, Oregon, Pennsylvania, Rhode Island, South Carolina, Virginia, Washington, and Wisconsin. Restriction: The authority granted above is restricted to the transportation of traffic originating at the plantsite and storage facilities of Griffith Provision Co., Inc., at or near Downs, Kans., and further restricted against tacking of authority at destination points. NOTE: If a hearing is deemed necessary, applicant does not specify location.

No. MC 113843 (Sub-No. 129), filed June 8, 1967. Applicant: REFRIGERATED FOOD EXPRESS, INC., 316 Summer Street, Boston, Mass. 02210. Applicant's representative: Lawrence T. Sheils (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Food products*, and (2) *food products* in mixed shipments with *commodities*, the transportation of which is partially exempt under the provisions of section 203(b)(6) of the Interstate Commerce Act if transported in vehicles not used in carrying any other property, when moving in the same vehicle at the same time with food products, from Wellston, Ohio, to points in Connecticut, Delaware, Indiana, Maine, Maryland, Massachusetts, Michigan, New Hampshire, New Jersey, New York, Ohio, Pennsylvania, Rhode Island, Vermont, Virginia, West Virginia, and the District of Columbia. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant does not specify a location.

No. MC 113855 (Sub-No. 163), filed June 12, 1967. Applicant: INTERNATIONAL TRANSPORT, INC., South Highway 52, Rochester, Minn. 55902. Applicant's representative: Franklin J. Van Osdel, 502 First National Bank Building, Fargo, N. Dak. 58102. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Source, special nuclear, and byproduct materials, radioactive materials and related reactor experimental equipment, component parts and associated materials*, between facilities of the General Electric Co. located in New Hanover County, N.C., on the one hand, and, on the other, points in the United States (except Hawaii). NOTE: Applicant states that no duplicating authority is being sought. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 114045 (Sub-No. 283), filed June 5, 1967. Applicant: TRANS-COLD EXPRESS, INC., Post Office Box 5842, Dallas, Tex. Applicant's representative: R. L. Moore (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Fresh carcass meat*, from the plantsite of Swift & Co. at Clovis, N. Mex., to Pensacola, Fla., (2) *dairy products*, from South Fulton, Tenn., and Fulton, Ky., to points in Texas, (3) *meat, meat products, and meat byproducts*, from Smithfield, Va., to points in California, Kansas, Massachusetts, Mississippi, Missouri, New Jersey, New York, Oregon, Pennsylvania, Tennessee, and Washington, D.C., and (4) *meat, meat products, and meat byproducts*, from Lebanon, Pa., to points in California, Kansas, Louisiana, Mississippi, Missouri, Nebraska, Oregon, Tennessee, Texas, and Utah. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill., or Dallas, Tex.

No. MC 114334 (Sub-No. 10), filed June 9, 1967. Applicant: BUILDERS TRANSPORTATION COMPANY, a corporation, 3265 Tulane Road, Memphis, Tenn. 38116. Applicant's representative: Dale Woodall, 900 Memphis Bank Building, Memphis, Tenn. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Prefabricated metal buildings* knocked down, *prefabricated metal building sections* knocked down, *component parts* thereof, *equipment, materials, and supplies* used in the installation, construction, and erection thereof except metal buildings which are designed to be drawn by passenger vehicles, and *commodities* which because of their size or weight require special equipment

or special handling, from Evansville, Wis., to points in Iowa, Illinois, Nebraska, Kansas, Missouri, Oklahoma, New Mexico, Arizona, Texas, Louisiana, Arkansas, Mississippi, Tennessee, Indiana, Kentucky, Alabama, Florida, Georgia, South Carolina, North Carolina, Virginia, West Virginia, Ohio, California, Arizona, and Michigan, and (2) *materials, equipment, and supplies* used or useful in the manufacture of the commodities described in (1) above, on return. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 114725 (Sub-No. 34), filed June 9, 1967. Applicant: WYNNE TRANSPORT SERVICE, INC., 2606 North 11th Street, Omaha, Nebr. Applicant's representative: J. Max Harding, 605 South 14th Street, Post Office Box 2028, Lincoln, Nebr. 68501. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Anhydrous ammonia*, in bulk, in tank trucks, from the plantsite (storage facility) of Armour Agricultural Chemical Co., near Bellevue, Iowa, in Jackson County to points in Iowa, Kansas, Nebraska, South Dakota, Minnesota, North Dakota, Wisconsin, Illinois, Indiana, Michigan, and Missouri. NOTE: Applicant states that tacking is possible in conjunction with its presently held authority in MC 114725 Subs 2, 3, 13, 15, 18, and 19. If a hearing is deemed necessary, applicant requests it be held at St. Louis, Mo.

No. MC 115257 (Sub-No. 38), filed June 9, 1967. Applicant: SHAMROCK VAN LINES, INC., Post Office Box 5447, Dallas, Tex. 75222. Applicant's representative: Max G. Morgan, 450 American National Building, Oklahoma City, Okla. 73102. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *New furniture*, in cartons, between points in Saline, Sebastian, and Crawford Counties, Ark., and points in Arizona, California, Colorado, Iowa, Kansas, Louisiana, Mississippi, Missouri, Nebraska, New Mexico, Oklahoma, Tennessee, Texas, and Wyoming. NOTE: Applicant states it intends to tack this proposed authority at points in Arkansas with other presently held authorized authority serving points in Arkansas, Virginia, Kentucky, Mississippi, Alabama, Florida, Georgia, South Carolina, North Carolina, Tennessee, West Virginia, Indiana, Delaware, Pennsylvania, Ohio, New York, Maryland, Wisconsin, Michigan, Connecticut, Massachusetts, Rhode Island, New Jersey, New Hampshire, Vermont, Maine, Louisiana, Oklahoma, Texas, and the District of Columbia. Applicant further states no duplicate authority sought. If a hearing is deemed necessary, applicant requests it be held at Dallas, Tex., or Little Rock, Ark.

No. MC 115331 (Sub-No. 229), filed June 15, 1967. Applicant: TRUCK TRANSPORT, INCORPORATED, 707 Market Street, St. Louis, Mo. 63101. Applicant's representative: Thomas F. Kilroy, 913 Colorado Building, 1341 G Street NW., Washington, D.C. 20005. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Lime*, and *limestone products*, from points in Fond Du Lac and Dodge Counties, Wis., to points in Illinois, Missouri, and Iowa. NOTE: If a hearing is deemed necessary, applicant requests it be held at St. Louis, Mo., or Chicago, Ill.

No. MC 115331 (Sub-No. 230), filed June 15, 1967. Applicant: TRUCK TRANSPORT, INCORPORATED, 707 Market Street, St. Louis, Mo. 63101. Applicant's representative: Thomas F. Kilroy, Suite 913, Colorado Building, 1341 G Street NW., Washington, D.C. 20005. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Fertilizer, fertilizer materials, fertilizer compounds*, and *pesticides*, from Atlas, Mo., to points in Arkansas, Illinois, Indiana, Iowa, Kansas, Kentucky, Missouri, Nebraska, Oklahoma, Tennessee, and Texas. NOTE: Common control and dual operations may be involved. If a hearing is deemed necessary, applicant requests it be held at St. Louis, Mo., or Chicago, Ill.

No. MC 115594 (Sub-No. 14), filed June 7, 1967. Applicant: HOLLOWAY MOTOR EXPRESS, INC., Post Office Box 2337, East Gadsden, Ala. 35903. Applicant's representative: R. J. Reynolds, Jr., 403–11 Healey Building, Atlanta, Ga. 30303. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Grain, grain products, grain byproducts, animal and poultry feeds and ingredients* thereof, except in bulk, in tank vehicles, from points in Kansas and Missouri (except St. Louis, Mo., and points in the commercial zone thereof as defined by the Commission), to Tifton, Ga., Chipely, Fla., and Cleveland, Tenn. NOTE: If a hearing is deemed necessary, applicant requests it be held at Atlanta, Ga.

No. MC 115648 (Sub-No. 11), filed June 12, 1967. Applicant: LUTHER LOCK, doing business as LUTHER LOCK TRUCKING, 705 13th Street, Wheatland, Wyo. 82201. Applicant's representative: Ward A. White, Post Office Box 568, Cheyenne, Wyo. 82001. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Salt and salt products*, from Lake Point, Utah, to points in Platte County, Wyo. NOTE: If a hearing is deemed necessary, applicant requests it be held at Cheyenne, Wyo.

No. MC 115648 (Sub-No. 12), filed June 14, 1967. Applicant: LUTHER LOCK, doing business as LUTHER LOCK TRUCKING, 705 13th Street, Wheatland, Wyo. 82201. Applicant's representative: Ward A. White, Post Office Box 568, Cheyenne, Wyo. 82001. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Natural stone and stone aggregates*, from points in Albany, Laramie, and Platte Counties, Wyo., to points in Iowa, New Mexico, Oklahoma, and points in Texas on and west of U.S. Highway 75 and north of U.S. Highway 80 (Interstate Highway 20), including the corporate limits of cities and towns located on said highways. NOTE: If a hearing is deemed necessary, applicant requests it be held at Cheyenne, Wyo., or Denver, Colo.

No. MC 115975 (Sub-No. 11), filed June 5, 1967. Applicant: C. B. W. TRANSPORT SERVICE, INC., Hedge Road, South Roxana, Ill. Applicant's representative: Ernest A. Brooks II, 1301 Ambassador Building, St. Louis, Mo. 63101. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Flour*, in bulk, from the plantsite of Peavey Co., located at or near Alton, Ill., to points in Illinois, Indiana, Iowa, Arkansas, Ohio, Kentucky, Missouri, Tennessee, Michigan, Wisconsin, and Minnesota, under contract with Peavey Co. of Alton, Ill. NOTE: If a hearing is deemed necessary, applicant requests it be held at St. Louis, Mo., or Washington, D.C.

No. MC 116077 (Sub-No. 215), filed June 7, 1967. Applicant: ROBERTSON TANK LINES, INC., 5700 Polk Avenue, Post Office Box 1505, Houston, Tex. 77001. Applicant's representative: Thomas E. James, The 904 Lavaca Building, Austin, Tex. 78701. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Isopropyl percarbonate, unstabilized*, from Lake Charles, La., and points within 5 miles thereof, to points in California. NOTE: If a hearing is deemed necessary, applicant does not specify a location.

No. MC 116273 (Sub-No. 93), filed June 5, 1967. Applicant: D & L TRANSPORT, INC., 3800 South Laramie Avenue, Cicero, Ill. 60650. Applicant's representative: Robert G. Paluch (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Phthalic anhydride* in bulk, in tank vehicles, from Chicago and Millsdale, Ill. to points in Indiana, Ohio, Kentucky, Michigan, Wisconsin, Missouri, Iowa, and Minnesota. NOTE: Applicant states it intends to tack this proposed authority at Chicago and Millsdale, Ill., to presently held authorized authority from Muskegon, Mich., serving points in Iowa, Missouri, and Minnesota (except St. Paul). If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 116544 (Sub-No. 86), filed June 15, 1967. Applicant: WILSON BROTHERS TRUCK LINE, INC., 700 East Fairview, Post Office Box 518, Carthage, Mo. 64836. Applicant's representative: Robert Wilson (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Flour* (other than in bulk), from Ulm, Minn.; New Prague, Minn.; and Davenport, Iowa, to points in Alabama, Florida, Georgia, Louisiana, and Mississippi. NOTE: If a hearing is deemed necessary, applicant requests it be held at Kansas City, Mo.

No. MC 116950 (Sub-No. 5), filed June 12, 1967. Applicant: JOSEPH L. DRAKE, 499 North Delaware, Chandler, Ariz. 85224. Applicant's representative: A. Michael Bernstein, 1327 Guaranty Bank Building., Phoenix, Ariz. 85102. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular

routes, transporting: (1) *Fire retardant chemical (Fire-Trol), anhydrous ammonia, and chemical fertilizers*, from Phoenix, Chandler, and Kyrene, Ariz., to points in California, Colorado, Nevada, New Mexico, South Dakota, Utah, and Wyoming, and (2) *materials used for the manufacture of agricultural chemicals*, on return, under contract with Arizona Agrochemical Corp. NOTE: If a hearing is deemed necessary, applicant requests it be held at Phoenix, Ariz., or Los Angeles, Calif.

No. MC 117119 (Sub-No. 399), filed June 5, 1967. Applicant: WILLIS SHAW FROZEN EXPRESS, INC., Elm Springs, Ark. 72728. Applicant's representative: John H. Joyce, 26 North College, Fayetteville, Ark. 72702. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Packaging and paperboard cartons*, knocked down, from Bow, N.H., to Webster City, Iowa, and Omaha, Nebr. NOTE: If a hearing is deemed necessary, applicant requests it be held at Little Rock, Ark., or Washington, D.C.

No. MC 117119 (Sub-No. 400), filed June 15, 1967. Applicant: WILLIS SHAW FROZEN EXPRESS, INC., Elm Springs, Ark. 72728. Applicant's representative: John H. Joyce, 26 North College Street, Fayetteville, Ark. 72702. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Packaging and paperboard cartons*, knocked down, from Pensacola, Fla., to Grand Island, Nebr. NOTE: if a hearing is deemed necessary, applicant requests it be held at Little Rock, Ark., or Omaha, Nebr.

No. MC 117344 (Sub-No. 182), filed June 19, 1967. Applicant: THE MAXWELL CO., a corporation, 10380 Evendale Drive, Post Office Box 15010, Cincinnati, Ohio 45215. Applicant's representative: James R. Stiverson, 50 West Broad Street, Columbus, Ohio 43215. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Plastic granules*, in bulk, from Lawrence County, Ohio, to points in Alabama, Arkansas, Colorado, Connecticut, Delaware, District of Columbia, Florida, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Maine, Maryland, Massachusetts, Michigan, Minnesota, Mississippi, Missouri, Nebraska, New Hampshire, New Jersey, New York, North Carolina, North Dakota, Ohio, Oklahoma, Pennsylvania, Rhode Island, South Carolina, South Dakota, Tennessee, Texas, Vermont, Virginia, West Virginia and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C., or Columbus, Ohio.

No. MC 117375 (Sub-No. 2), filed June 14, 1967. Applicant: BRANSON TRUCK LINE, INC., 1309 East Highway 56, Lyons, Kans. 67554. Applicant's representative: Leland M. Spurgeon, 308 Casson Building, 603 Topeka Boulevard, Topeka, Kans. 66603. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Clay products*, from Des Moines, Sergeant Bluff, Adel, Redfield, Centerville, Fort Dodge, Ottumwa, and Oskaloosa, Iowa, and points within 10 miles of each, to points in Kansas, Missouri, and Oklahoma. NOTE: If a hearing is deemed necessary, applicant requests it be held at Kansas City, Mo., Wichita, Kans., or Des Moines, Iowa.

No. MC 117574 (Sub-No. 163), filed June 9, 1967. Applicant: DAILY EXPRESS, INC., Post Office Box 39, Mounted Route 3, Carlisle, Pa. 17013. Applicant's representative: D. E. Lutz (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Wallboard, building board, insulation board, fiberboard, pulpboard, and incidental materials and supplies* used in or in connection with the insulation thereof, from Lisbon Falls, Maine, to points in New York, New Jersey, Delaware, Maryland, Virginia, Pennsylvania, and West Virginia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 117765 (Sub-No. 61), filed June 5, 1967. Applicant: HAHN TRUCK LINE, INC., 5800 North Eastern, Oklahoma City, Okla. 73111. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Mineral feed mixtures, salt, and salt products*, in bags, blocks, containers, or in bulk, in straight or mixed shipments, from Hutchinson, Kanopolis, and Lyons, Kans., to points in Arkansas. NOTE: If a hearing is deemed necessary, applicant requests it be held at Wichita, Kans., or Oklahoma City, Okla.

No. MC 117883 (Sub-No. 100), filed June 12, 1967. Applicant: SUBLER TRANSFER, INC., East Main Street, Versailles, Ohio 45380. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Food products*, and (2) *food products* in mixed shipments with *commodities* the transportation of which is partially exempt under the provisions of section 203(b)(6) of the Interstate Commerce Act if transported in vehicles used in carrying other property, when moving in the same vehicle at the same time, with food products, from Wellston, Ohio, to points in Connecticut, Delaware, Indiana, Kentucky, Maine, Maryland, Massachusetts, Michigan, New Hampshire, New Jersey, New York, Ohio, Pennsylvania, Rhode Island, Vermont, Virginia, Washington, D.C., and West Virginia. NOTE: If a hearing is deemed necessary, applicant did not specify the location.

No. MC 118288 (Sub-No. 23), filed June 15, 1967. Applicant: STEPHEN F. FROST, Post Office Box 28, Billings, Mont. 59103. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Hides* (green or preserved) (1) from points in Washington to points in California and Oregon; (2) from points in North Dakota and South Dakota to points in Illinois, Wisconsin, Michigan, and Indiana; and (3) from points in Oregon to points in California. NOTE: If a hearing is deemed necessary, applicant requests it be held at Billings, Mont.

No. MC 118831 (Sub-No. 53), filed May 31, 1967. Applicant: CENTRAL TRANSPORT, INCORPORATED, Post Office Box 5033, Umharrie Road, High Point, N.C. Applicant's representative: E. Stephen Heisley, 529 Transportation Building, Washington, D.C. 20006. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Lime*, in bags, from Charlotte, N.C., to points in North Carolina, South Carolina, and Virginia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Raleigh, N.C.

No. MC 119170 (Sub-No. 10), filed June 6, 1967. Applicant: REEFER TRANSIT LINE, INC., 4005 South Packers Avenue, Chicago, Ill. 60609. Applicant's representative: Charles W. Singer, 33 North Dearborn Street, Chicago, Ill. 60602. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Edible animal fats, animal oils, vegetable oils, including products and blends thereof*, with or without emulsifiers, preservatives, coloring, or additives, in packages, and *oleo margarine*, in packages, from Bradley, Ill., to Jamestown, Buffalo, and New York, N.Y., Newark, N.J., Wheeling, W. Va., and points in West Virginia within 25 miles of Wheeling, W. Va., points in that part of Ohio on and east of a line beginning at Lake Erie and extending along Ohio Highway 4 to Bucyrus, Ohio, thence along Ohio Highway 98 to Waldo, Ohio, and thence along U.S. Highway 23 to the Ohio-Kentucky State line, and that part of Pennsylvania on and west of U.S. Highway 219; and (2) *returned, damaged, and rejected shipments* of described commodities on return. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 119182 (Sub-No. 2), filed June 9, 1967. Applicant: McGUIRE LUMBER AND SUPPLY, INC., Wylliesburg, Va. 23976. Applicant's representative: John C. Goddin, Insurance Building, 10 South 10th Street, Richmond, Va. 23219. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: (1) *Wooden pallets and skids* from points in Amelia County, Va., to points in North Carolina, Maryland, Pennsylvania, Delaware, New Jersey, New York, West Virginia, Ohio, and the District of Columbia; and (2) *wood chips*, from points in Mechlenburg County, Va., to Roanoke Rapids, N.C., under contract with Scott Pallets, Inc., and Cantrell Bros. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C., or Richmond, Va.

No. MC 119547 (Sub-No. 19), filed June 16, 1967. Applicant: EDGAR W. LONG, Route 4, Zanesville, Ohio 43701. Applicant's representative: Richard H. Brandon, 79 East State Street, Columbus, Ohio 43215. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Clay products and materials* used in the manufacture, sale, and distribution of clay products, between South Rockwood and Mount Clemens, Mich., and points

within 5 miles thereof, on the one hand, and, on the other, points in the United States, except Alaska and Hawaii. NOTE: If a hearing is deemed necessary, applicant requests it be held at Columbus, Ohio.

No. MC 119632 (Sub-No. 30), filed June 9, 1967. Applicant: REED LINES, INC., Box 285, Woodburn, Ind. 46797. Applicant's representative: John P. McMahon, 100 East Broad Street, Columbus, Ohio 43215. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Waste baskets, file cabinets, file pockets, file boxes, file folders, and hardware used in connection therewith*, from Wauseon, Ohio, to points in Pennsylvania, Maryland, West Virginia, Kentucky, Maine, New York, New Jersey, Connecticut, Massachusetts, Delaware, Virginia, and the District of Columbia, and *returned and rejected shipments*, on return.

No. MC 119798 (Sub-No. 1), filed June 9, 1967. Applicant: CITY WAREHOUSE, INC., 1516 Bluefield Avenue, Bluefield, W. Va. 24701. Applicant's representative: Harry E. Dixon, Jr., Post Office Box 211, Roanoke, Va. 24002. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Lubricating oils and grease*, and such merchandising as is dealt in by wholesale, retail, and chain grocery and food business houses, and in connection therewith, equipment, materials, and supplies used in the conduct of such business, between points in Fayette, Greenbrier, Logan, and Mingo Counties, W. Va., and points in Buchanan, Bland, and Tazewell Counties, Va. NOTE: Common control may be involved. If a hearing is deemed necessary applicant requests it be held at Bluefield, W. Va., or Washington, D.C.

No. MC 119934 (Sub-No. 140), filed June 15, 1967. Applicant: ECOFF TRUCKING, INC., 625 East Broadway, Fortville, Ind., Applicant's representative: Robert C. Smith, 620 Illinois Building, Indianapolis, Ind. 46204. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Commodities* in bulk, in tank, in hopper type vehicles, from Utica, Ill., to points in Alabama, Arkansas, Colorado, Georgia, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Nebraska, North Dakota, Ohio, Oklahoma, Pennsylvania, South Dakota, Tennessee, Texas, West Virginia, Wisconsin, and Wyoming. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 119974 (Sub-No. 16) (Amendment), filed May 15, 1967, published FEDERAL REGISTER Issue of June 2, 1967, amended June 14, 1967, and republished as amended this issue. Applicant: L. C. L TRANSIT COMPANY, a corporation, Post Office Box 949, 54305, 520 North Roosevelt Street, Green Bay, Wis. 54301. Applicant's representative: Charles E. Dye (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Empty cheese drums and cheese packaging supplies*, from Hutchinson, Minn., to points in Iowa and points in that part of Wisconsin on and south of U.S. Highway 8, beginning at the Brule River near Niagara, Wis., to the St. Croix River at St. Croix Falls, Wis., and the Wisconsin-Illinois State line; (2) *cheese in metal drums or other packages*, from destination points in (1) above to Hutchinson, Minn.; (3) *empty cheese drums and cheese packaging supplies*, from New Ulm, Minn., to points in that part of Iowa on and north of U.S. Highway 18 from Marguette, Iowa, to Garner, Iowa, and the Iowa-Minnesota State line, on and west of U.S. Highway 69 from the Iowa-Minnesota State line to the Iowa-Missouri State line, and on and south of U.S. Highway 6 from Des Moines, Iowa, to Davenport, Iowa, and the Iowa-Missouri State line, and points in that part of Wisconsin on and north of Wisconsin Highway 64 from Marinette, Wis., to Merrill, Wis., thence on and west of U.S. Highway 51 to Wausau, Wis., thence on and north of Wisconsin Highway 29 to junction of U.S. Highway 12 near Elk Mound, Wis., and on and north of U.S. Highway 12 to the Wisconsin-Minnesota State line, and on and south of U.S. Highway 8 from the Brule River near Niagara, Wis., to the St. Croix River at St. Croix Falls, Wis.; and (4) *cheese in metal drums or other packages*, from the destination points in (3) above to New Ulm, Minn. NOTE: The purpose of this republication is to broaden the scope of the application. If a hearing is deemed necessary applicant requests it be held at Minneapolis, Minn., or Madison, Wis.

No. MC 123067 (Sub-No. 59) (Amendment), filed April 26, 1967, published in FEDERAL REGISTER issues of May 18, 1967, and June 15, 1967, amended June 14, 1967, and republished as amended, this issue. Applicant: M & M TANK LINES, INC., Post Office Box 4174, North Station, Winston-Salem, N.C. Applicant's representatives: Frank C. Philips, Post Office Box 612, Winston-Salem, N.C., and James E. Wilson, 1735 K Street NW., Washington, D.C. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Olivine*, in bulk, in tank or hopper vehicles, from points in Avery, Jackson, Mitchell, and Yancey Counties, N.C., to points in Alabama, Georgia, Pennsylvania, and Tennessee (except Elizabethton and Kingsport, Tenn.). NOTE: Common control may be involved. The purpose of this republication is to broaden the origin point. If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 123407 (Sub-No. 31), filed June 12, 1967. Applicant: SAWYER TRANSPORT, INC., 2424 Minnehaha Avenue, Minneapolis, Minn. 55404. Applicant's representative: Gene P. Johnson, 502 First National Bank Building, Fargo, N. Dak. 58102. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Building, roofing, and insulating materials, and related articles, cement and asbestos products, conduit or pipe, cement containing asbestos, and accessories* for installation, from Waukegan, Ill., to points in Pennsylvania, Ohio, Indiana, and the Lower Peninsula of Michigan, and (2) *building, roofing, and insulating materials*, from Rockdale, Ill., to points in Pennsylvania, Ohio, Indiana, and the Lower Peninsula of Michigan. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 123613 (Sub-No. 3), filed June 13, 1967. Applicant: CLAREMONT MOTOR LINES, INC., Post Office Box 296, Claremont, N.C. 28610. Applicant's representative: Bill R. Davis, 1600 First Federal Building, Atlanta, Ga. 30303. Authority sought to operate as a common carrier, by motor vehicle, over irregular routes, transporting: (1) *Salt and salt products, and pepper* in packages when moving in mixed loads with salt or salt products, and *animal and poultry feed* in packages and blocks when moving in mixed shipments with salt and salt products, from Rittman and Akron, Ohio, to points in West Virginia and Maryland; and (2) *salt and salt products, and animal and poultry feed* in packages and blocks when moving in mixed shipments with salt and salt products, from Fairport Harbor, Lake County, Ohio (Rail Station Morton, Ohio), to points in Maryland, North Carolina, Virginia, and West Virginia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Charlotte, N.C., or Richmond, Va.

No. MC 124078 (Sub-No. 281), filed June 5, 1967. Applicant: SCHWERMAN TRUCKING CO., a corporation, 611 South 28th Street, Milwaukee, Wis. 53246. Applicant's representative: Richard H. Prevette (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Cement*, in bulk, from Gary, Ind., to Yaphank, Long Island, N.Y. NOTE: If a hearing is deemed necessary, applicant requests it be held at Pittsburgh, Pa.

No. MC 124078 (Sub-No. 282), filed June 6, 1967. Applicant: SCHWERMAN TRUCKING CO., a corporation, 611 south 28th Street, Milwaukee, Wis. 53246. Applicant's representative: Richard H. Prevette (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Cement*, (1) from the plantsite of United Cement Co. at Memphis, Tenn., to points in Mississippi; that part of Arkansas east of Marion, Searcy, Pope, Conway, Perry, Saline, Grant, Dallas, Calhoun, and Union Counties, Ark.; that part of Kentucky west of Hancock, Breckinridge, Grayson, Edmonson, Barren, and Allen Counties, Ky.; and that part of Tennessee west of Sumner, Wilson, Rutherford, Bedford, Moore, and Franklin Counties, Tenn.; and (2) from Lee and Lowndes Counties, Miss., to points in Alabama, Arkansas, Louisiana, Mississippi, and Tennessee. NOTE: Applicant states that tacking is possible in conjunction with its presently held authority in MC 124078 Subs 10 and 13. If a

hearing is deemed necessary, applicant requests it be held at Memphis, Tenn.

No. MC 124211 (Sub-No. 108), filed June 7, 1967. Applicant: HILT TRUCK LINE, INC., 2937 North 27th Street, Post Office Box 824, Lincoln, Nebr. 68501. Applicants representative: Thomas L. Hilt (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Such commodities* as are intended for use in the advertising of beverages, when moving in the same vehicle and at the same time with beverages, (a) between points in Nebraska, and (b) from St. Joseph, Mo., to Lincoln and Omaha, Nebr.; (2) *empty containers and pallets* (a) between points in Nebraska and (b) from Lincoln and Omaha, Nebr., to St. Joseph, Mo.; and (3) *paint materials, plumbing materials and supplies, floor and wall coverings, materials, and supplies*, used by manufacturers of paint materials, plumbing materials, and supplies, floor and wall coverings, between points in California, Illinois, Michigan, Nebraska, New Jersey, Ohio, Pennsylvania, and Wisconsin, and points in the United States, except Hawaii. NOTE: Applicant states it would tack the proposed authority with its present authority and subs thereunder. Applicant states that no duplicating authority is being sought. If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill., or Washington, D.C.

No. MC 124359 (Sub-No. 8), filed June 7, 1967. Applicant: WIL-HELEN, INC., 1409 16th Street, Greeley, Colo. Applicant's representative: Paul F. Sullivan, 913 Colorado Building, 1341 G Street NW., Washington, D.C. 20005. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: (1) *Floor and wall tile, linoleum, and supplies*, used in installation of tile and linoleum, from Houston, Miss., to points in Adams, Arapahoe, Douglas, Bent, Boulder, Crowley, Denver, El Paso, Fremont, Jefferson, Kit Carson, Larimer, Las Animas, Mesa, Morgan, Otero, Pueblo, Sedgewick, Weld Counties, Colo.; Lamar, Colo., points in Albany, Fremont, Goshen, Laramie, Natrona, Park, and Sheridan Counties, Wyo.; Cheyenne, Kimball, Perkins, and Scottsbluff Counties, Nebr.; and Rapid City, S. Dak., and (2) *carpets, carpeting, and supplies* used in the installation thereof, from Dalton and Resaca, Ga., to points in Adams, Arapahoe, Douglas, Bent, Boulder, Crowley, Denver, El Paso, Fremont, Jefferson, Kit Carson, Larimer, Las Animas, Mesa, Morgan, Otero, Pueblo, Sedgewick, and Weld Counties, Colo.; Lamar, Colo.; points in Albany, Fremont, Goshen, Laramie, Natrona, Park, and Sheridan Counties, Wyo.; Cheyenne, Kimball, Perkins, and Scottsbluff Counties, Nebr.; and Rapid City, S. Dak., under contracts with Wholesale Flooring, Inc., and Wholesale Ceramic Tile, Inc. NOTE: Applicant presently is authorized to serve the involved shippers on the subject commodities from other eastern origins to substantially the same destination area as here sought. The subject application is to enable aplicant to serve its contracting shippers from new sources of supply. If a hearing is deemed necessary, applicant requests it be held at Denver, Colo.

No. MC 125694 (Sub-No. 6), filed June 14, 1967. Applicant: OTTO FELDT, INC., Route 22, Brewster, N.Y. Applicant's representative: George A. Olsen, 69 Tonnele Avenue, Jersey City, N.J. 07306. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: (1) *Pulverized talc*, in bags, from Hailesboro, N.Y., to Brooklyn, N.Y., and South Plainfield, N.J.; and (2) *floor tiles and related articles, materials, equipment, and supplies* used or useful in the manufacture of floor tiles, in dump vehicles, between South Plainfield, N.J., and Brooklyn, N.Y.; between South Plainfield, N.J., and Brooklyn, N.Y., on the one hand, and, on the other, points in Middlesex, Norfolk, Plymouth, Suffolk, and Worcester Counties, Mass., under contract with Kentile Floors, Inc. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C., or New York, N.Y.

No. MC 125701 (Sub-No. 3), filed June 7, 1967. Applicant: CAYUGA BULK SERVICE, INC., Chappell Road, Cayuga, N.Y. 13034. Applicant's representative: Murray J. S. Kirshtein, 118 Bleecker Street, Utica, N.Y. 13501. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Animal and poultry feeds and animal and poultry feed ingredients*, from Waverly, N.Y., to points in Columbia, Lackawanna, Luzerne, Lycoming, Potter, and Wayne Counties, Pa., and *returned shipments*, on return. NOTE: If a hearing is deemed necessary, applicant requests it be held at Syracuse, Rochester, Utica, or Albany, N.Y.

No. MC 126463 (Sub-No. 2), filed June 19, 1967. Applicant: GREER BROS. TRUCKING CO., a corporation, Post Office Box 187, London, Ky. 40741. Applicant's representative: George M. Catlett, 703–706 McClure Building, Frankfort, Ky. 40601. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Stone, gravel, sand, and blacktop material*, in bulk, in dump trucks, between points in Lawrence, Gallia, and Scioto Counties, Ohio, on the one hand, and, on the other, points in Boyd, Elliot, Greenup, Carter, Lewis, Lawrence, and Rowan Counties, Ky. NOTE: If a hearing is deemed necessary, applicant requests it be held at Lexington or Ashland, Ky.

No. MC 127568 (Sub-No. 6), filed June 9, 1967. Applicant: MID SOUTH DELIVERY SERVICE CO., a corporation, 3215 Tulane Road, Memphis, Tenn. Applicant's representative: Dale Woodall, 900 Memphis Bank Building, Memphis, Tenn. 38103. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Prefabricated metal buildings* knocked down, *prefabricated metal building sections* knocked down, *component parts thereof, equipment, materials, and supplies* used in the installation, construction, and erection thereof (except metal buildings which are designed to be drawn by passenger vehicles, and commodities which because of their size or weight require special equipment and handling), and (2) *materials, equipment, and supplies* used or useful in the manufacture of the commodities described in (1) above from Evansville, Wis., to points in Iowa, Illinois, Nebraska, Kansas, Missouri, Oklahoma, New Mexico, Arizona, Texas, Louisiana, Arkansas, Mississippi, Tennessee, Indiana, Kentucky, Alabama, Florida, Georgia, South Carolina, North Carolina, Virginia, West Virginia, Ohio, California, and Michigan. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C.

No. MC 127699 (Sub-No. 1), filed June 19, 1967. Applicant: LEE CARTAGE COMPANY, a corporation, 2026 Cleveland Avenue, Canton, Ohio 44707. Applicant's representative: Richard H. Brandon, 79 East State Street, Columbus, Ohio 43215. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Steel buildings and related component parts*, from Canton, Ohio, to points in Indiana and points in that part of Michigan on and south of Michigan Highway 46, under contract with Macomber, Inc., Division of Sharon Steel Corp. of Canton, Ohio. NOTE: If a hearing is deemed necessary, applicant requests it be held at Columbus, Ohio.

No. MC 128205 (Sub-No. 5), filed June 15, 1967. Applicant: BULKMATIC TRANSPORT COMPANY, a corporation, 4141 West George Street, Schiller Park, Ill. Applicant's representative: Irving Stillerman, 29 South La Salle Street, Chicago, Ill. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Fly ash*, in bulk, from Chicago, Waukegan, and Romeoville, Ill., to points in Indiana and Wisconsin. NOTE: If a hearing is deemed necessary, applicant requests it be held at Chicago, Ill.

No. MC 128401 (Sub-No. 3), filed June 9, 1967. Applicant: ROSBOROUGH REFRIGERATED EXPRESS COMPANY, INC., 345 Hartford Avenue, North Bellingham, Mass. 02057. Applicant's representative: F. T. O'Sullivan, 372 Granite Avenue, Milton, Mass. 02186. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Frozen prepared foods, in mixed loads with frozen fish products*, from points in Bristol, Essex, Middlesex, Norfolk, Suffolk, and Worcester Counties, Mass., to points in New York, on and west of U.S. Highway 9, on and north of U.S. Highway 6, from Junction U.S. Highway 6 and U.S. Highway 9 to the interchange of U.S. Highway 6 with New York Highway 17 at Goshen, N.Y., and on and north of New York Highway 17 from the interchange of New York Highway 17 with U.S. Highway 6 at Goshen to the interchange of New York Highway 17 with Interstate Highway 90 at Westfield, N.Y. NOTE: If a hearing is deemed necessary, applicant requests it be held at Boston, Mass.

No. MC 128510 (Amendment), filed July 21, 1966, published in FEDERAL REGISTER issue of August 25, 1966, amended

June 12, 1967, and republished as amended this issue. Applicant: RAY L. STOTTS, Route No. 2, Zanesville, Ohio. Applicant's representatives: David C. Stradley and Robert T. Fitzsimons, 50 West Broad Street, Columbus, Ohio 43215. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Scrap material*, between points in Ohio, Kentucky, West Virginia, Pennsylvania, Indiana, and Michigan, under contract with Muskingun Iron & Metal Co. NOTE: The purpose of this republication is to substitute Muskingun Iron & Metal Co., in lieu of Harry L. Calig Co., as supporting shipper. If a hearing is deemed necessary, applicant requests it be held at Columbus, Ohio.

No. MC 128669 (Sub-No. 3), filed June 12, 1967. Applicant: A. E. MORRIS, Route 3, Virgilina, Va. Applicant's representative: Henry W. McLaughlin III, Halifax, Va. 24558. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (A) *Plant mix, granular asphalt*, in bulk, and *sand*, from (1) from the site of the W. E. Graham Vulcan Materials quarry 3 miles north of South Boston, Va., (2) from the Southern Materials quarry one-fourth mile from Bracey, Mecklenburg County, Va., (3) from the site of a quarry about 2 miles north of Buggs Island, Mecklenburg County, Va., and (4) from the site of a quarry about 2 miles east of Edgerton, Va., to points in Person, Granville, Vance, and Warren Counties, N.C., and (B) *crushed stone and sand*, (1) from the site of the W. E. Graham Vulcan Materials quarry 3 miles north of South Boston, Va., to Roxboro, N.C., and points in Person and Granville Counties, N.C., (2) from the site of the Shelton quarry in North Carolina south of Danville, Va., to Reidsville and Leaksville, N.C., and points in Rockingham and Caswell Counties, N.C., (3) from the site of quarry about 2 miles east of Edgerton, Va., to points in Halifax, Northampton, and Warren Counties, N.C., and (4) from the site of a quarry about 2 miles north of Buggs Island, Mecklenburg County, Va., to points in Vance and Granville Counties, N.C. NOTE: If a hearing is deemed necessary, applicant requests it be held at Richmond, Va., or Washington, D.C.

No. MC 128791 (Sub-No. 1), filed June 16, 1967. Applicant: L & S BOAT TRANSPORTATION COMPANY, INC., 3356 53d Avenue North, St. Petersburg, Fla. 33714. Applicant's representative: M. Craig Massey, 223 South Florida Avenue, Post Office Drawer J, Lakeland, Fla. 33802. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Boats and boat parts, and supplies and equipment* moving in connection therewith, from points in Florida to points in Maine, New Hampshire, Vermont, Massachusetts, Rhode Island, Connecticut, New York, New Jersey, Pennsylvania, Delaware, Maryland, District of Columbia, Virginia, West Virginia, North Carolina, South Carolina, Georgia, Florida, Alabama, Mississippi, Tennessee, Kentucky, Ohio, Indiana, Michigan, Illinois, Wisconsin, Louisiana, Arkansas, Missouri, Iowa, Minnesota, Nebraska, Kansas, Oklahoma, Texas, Arizona, and California. NOTE: If a hearing is deemed necessary, applicant requests it be held at Tampa, Fla.

No. MC 128846 (Sub-No. 1), filed June 7, 1967. Applicant: A. GUEBERT, INC., Red Bud, Ill. Applicant's representative: Delmar O. Koebel, 107 West St. Louis Street, Lebanon, Ill. 62254. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Dexmolass and feed products*, from Clinton, Iowa, to Sparta, Nashville, and Murphysboro, Ill., (2) *mineral supplement and feed products*, from Hannibal, Mo., to Sparta, Nashville, and Murphysboro, Ill., (3) *farm equipment*, from Goshen, Ind., to Sparta, Nashville, and Murphysboro, Ill., and (4) *rough and unfinished lumber*, from points in Illinois on and south of U.S. Highway 50, to points in Lake, Porter, and La Porte Counties, Ind. NOTE: If a hearing is deemed necessary, applicant requests it be held at St. Louis, Mo., and Springfield, Ill.

No. MC 128909 (Sub-No. 1) (Amendment), filed March 2, 1967, published FEDERAL REGISTER issues of March 23, 1967, and April 13, 1967, respectively, amended June 13, 1967 and republished as amended, this issue. Applicant: COMMODORE CONTRACT CARRIER, INC., 2410 Dodge Street, Omaha, Nebr. Applicant's representative: Donald L. Stern, 630 City National Bank Building, Omaha, Nebr. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: (A) *Mobile homes, house trailers* designed to be drawn by passenger autos, and *homes* designed to be drawn by motor vehicle only when partially disassembled, in initial and secondary movement, in towaway and truckaway service: (1) Between Falls City and North Bend, Nebr., Arlington (Shelby County), Tenn., Hamilton, Haleyville, and Red Bay, Ala., Danville, Va., and Roseburg, Oreg.; (2) between Falls City, Nebr., on the one hand, and, on the other, points in Arizona, Arkansas, Colorado, Idaho, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Minnesota, Mississippi, Missouri, Montana, Nevada, New Mexico, North Dakota, Ohio, Oklahoma, Oregon, South Dakota, Tennessee, Texas, Utah, Washington, Wyoming, and Wisconsin, and ports of entry on the international boundary line between the United States and Canada, located in Minnesota, North Dakota, Montana, and Washington; (3) between North Bend, Nebr., on the one hand, and, on the other, points in Arizona, Arkansas, Colorado, Idaho, Illinois, Indiana, Iowa, Kansas, Minnesota, Missouri, Montana, Nevada, New Mexico, North Dakota, South Dakota, Oklahoma, Oregon, Utah, Tennessee, Texas, Wyoming, Washington, and Wisconsin, and ports of entry on the international boundary line between the United States and Canada located in Minnesota, North Dakota, and Montana.

(4) Between Hamilton, Haleyville, and Red Bay, Ala., and Arlington (Shelby County), Tenn., on the one hand, and, on the other, points in Alabama, Arkansas, Florida, Georgia, Illinois, Indiana, Kentucky, Louisiana, Maryland, Mississippi, Missouri, North Carolina, Ohio, Oklahoma, South Carolina, Tennessee, Texas, Virginia, and West Virginia; (5) between Danville, Va., on the one hand, and, on the other, points in Delaware, Georgia, Kentucky, Maryland, New Jersey, New York, North Carolina, Ohio, Pennsylvania, South Carolina, Tennessee, West Virginia, and the District of Columbia; (6) between Roseburg, Oreg., on the one hand, and, on the other, points in Washington, California, Nevada, Arizona, New Mexico, Colorado, Utah, Idaho, Montana, and Wyoming, and ports of entry on the international boundary line between the United States and Canada located in Washington and Montana; (B) *wheels, axles, and hitches*, between points in the United States (except Alaska and Hawaii), on the one hand, and, on the other, Falls City and North Bend, Nebr.; Arlington (Shelby County), Tenn.; Hamilton, Haleyville, and Red Bay, Ala.; Danville, Va.; and Roseburg, Oreg. Restriction: All service included herein is to be performed under continuing contracts with the Commodore Corp., Omaha, Nebr., its wholly owned subsidiaries and its divisions, having plants at the specific named points set out in Parts A and B above. NOTE: The purpose of this republication is to add the State of Alabama as a destination point in A(4) above. If a hearing is deemed necessary, applicant requests it be held at Omaha, Nebr.

No. MC 128939 (Sub-No. 3), filed June 5, 1967. Applicant: AYRCO CORPORATION, 3921 Imlay Street, Toledo, Ohio 43612. Applicant's representative: Robert A. Sullivan, 1800 Buhl Building, Detroit, Mich. 48226. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Beer and malt beverages*, from Milwaukee, Wis., to Toledo, Ohio, and *empty containers and rejected and/or damaged shipments*, on return under contract with Maumee Valley Distributing Co. NOTE: If a hearing is deemed necessary, applicant requests it be held at Toledo, Ohio, or Washington, D.C.

No. MC 128955 (Sub-No. 1), filed June 15, 1967. Applicant: INTERNATIONAL MOVERS, INC., 1244 Knoxville Street, San Diego, Calif. 92110. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Used household goods*, as defined by the Commission, 17 M.C.C. 467, between points in San Diego County, Calif., restricted to traffic having a prior or subsequent out-of-State movement. NOTE: If a hearing is deemed necessary, applicant requests it be held at Los Angeles, Calif.

No. MC 128974 (Sub-No. 1), filed June 7, 1967. Applicant: CLIFFORD R. LATHROP, 487 Barrett Street, Elgin, Ill. 60118. Applicant's representative: Robert T. Lawley, 308 Reisch Building, Springfield, Ill. 62701. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Cattle*, other than ordinary, be-

tween points in Illinois, on the one hand, and, on the other, points in the United States, except Alaska and Hawaii. NOTE: If a hearing is deemed necessary, applicant requests it be held at Springfield, Ill., or St. Louis, Mo.

No. MC 129023 (Sub-No. 2), filed June 6, 1967. Applicant: JOHN C. MADIGAN, JR., Shaker Road, Harvard, Mass. 01451. Applicant's representative: Frank J. Weiner, Investors Building, 536 Granite Street, Braintree, Mass. 02184. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Fertilizer and fertilizer materials*, dry in bulk, in dump-type and hopper-type vehicles, (1) from Wobern, Mass., to points in Maine, New Hampshire, Vermont, Rhode Island, Connecticut, and points in Albany, Columbia, Rensselaer, Saratoga, and Washington Counties, N.Y., and (2) from Billerica, Mass., to points in Maine and New Hampshire on and south of U.S. Highway 302, points in Tolland and Windham Counties, Conn., Bennington, Windham, and Windsor Counties, Vt.; and points in Rhode Island. NOTE: If a hearing is deemed necessary, applicant requests it be held at Boston, Mass.

No. MC 129034 (Sub-No. 1), filed June 9, 1967. Applicant: LOOMIS COURIER SERVICE, INC., 55 Battery Street, Seattle, Wash. 98121. Applicant's representative: George H. Hart, 1100 IBM Building, Seattle, Wash. 98101. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Interoffice records and memorandums, accounting and billing records, commercial papers, documents, written instruments and business records*, between Portland, Oreg., on the one hand, and, on the other, points in Clark and Cowlitz Counties, Wash., under contract with Safeway Stores, Inc.; Crown Zellerbach Corp.; and J. C. Penney Co. NOTE: If a hearing is deemed necessary, applicant requests it be held at Portland, Oreg., or Seattle, Wash.

No. MC 129035 (Amendment), filed April 19, 1967, published FEDERAL REGISTER issue of May 11, 1967, amended June 16, 1967, and republished as amended this issue. Applicant: OAKLEY TRANSFER & STORAGE COMPANY, INC., 4115 Edith Boulevard NE., Albuquerque, N. Mex. 87107. Applicant's representative: J. E. Gallegos, 215 Lincoln Avenue, Santa Fe, N. Mex. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* having a prior or subsequent movement by air carrier (except commodities in bulk, those of unusual value, household goods as defined by the Commission, and those requiring special equipment), and *containerized household goods*, weighing 1,000 pounds or less, between the Albuquerque Sunport, Albuquerque, N. Mex., and points in Bernalillo, Sandoval, McKinley, Valencia, Socorro, Torrance, Guadalupe, San Miguel, Santa Fe, Los Alamos, Taos, and Rio Arriba Counties, N. Mex. NOTE: The purpose of this republication is to broaden the commodity description. If a hearing is deemed necessary, applicant requests it be held at Albuquerque or Santa Fe, N. Mex.

No. MC 129117 (Sub-No. 2), filed June 12, 1967. Applicant: JOHN A. LAWLOR, 158 Morton Boulevard, Plainview, Long Island, N.Y. 11803. Applicant's representative: Edward M. Alfano, 2 West 45th Street, New York, N.Y. 10036. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Artificial flowers and artificial flower arrangements*, from the plantsite of Corham Artificial Flower Co., located at White Plains, N.Y., to points in the New York, N.Y., commercial zone as defined by the Commission. NOTE: If a hearing is deemed necessary, applicant requests it be held at New York, N.Y.

No. MC 129141, filed May 25, 1967. Applicant: WILLIAM E. HARPS, doing business as, WILLIAM (BILL) HARPS TOWING SERVICE, 820 West Chestnut Street, Washington, Pa. 15301. Applicant's representative: John A. Vuono, 1515 Park Building, Pittsburgh, Pa. 15222. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Wrecked, disabled, and repossessed motor vehicles and trailers, and replacement vehicles for wrecked and disabled motor vehicles, and trailers*, by use of wrecker equipment only, between points in Delaware, Illinois, Indiana, Kentucky, Maryland, Michigan, New Jersey, New York, Ohio, Pennsylvania, Virginia, West Virginia, and the District of Columbia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Pittsburgh, Pa.

No. MC 129157, filed June 5, 1967. Applicant: WILMER J. MEHLHAF, doing business as MEHLHAF TRUCKING, Menno, S. Dak. 57045. Applicant's representative: Don A. Bierle, 322 Walnut, Yankton, S. Dak. 57078. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Feed, steel angles, sheets, steel beams, farm machinery, and repair parts, household appliances, lumber, and building material, and fertilizer*, (1) from Sioux City, Iowa, to Menno, S. Dak.; and (2) from Charles City, Iowa, to Menno, S. Dak. NOTE: If a hearing is deemed necessary, applicant requests it be held at Sioux City, Iowa, or Sioux Falls, S. Dak.

No. MC 129161, filed June 5, 1967. Applicant: CHARLES E. HOLSTINE, JESSE HOLSTINE, HUGH HOLSTINE, a partnership, doing business as HOLTSTINE AND COMPANY, 2100 South Bellevue, Memphis, Tenn. 38106. Applicant's representative: Dale Woodall, 900 Memphis Bank Building, Memphis, Tenn. 38103. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Aluminum frames, glazed and unglazed, and uncrated and crated glass*, from Memphis, Tenn., to points in Minnesota, Iowa, Missouri, Arkansas, Louisiana, Wisconsin, Illinois, Mississippi, Indiana, Kentucky, Tennessee, Alabama, Michigan, Ohio, Georgia, Florida, South Carolina, North Carolina, Virginia, West Virginia, Pennsylvania, New York, New Jersey, Maryland, Connecticut, Massachusetts, New Hampshire, Vermont, Maine, Delaware, Rhode Island, Texas, and the District of Columbia. NOTE: If a hearing is deemed necessary, applicant requests it be held at Memphis, Tenn.

No. MC 129162, filed June 2, 1967. Applicant: SCHILLI TRANSPORTATION, INC., 230 St. Clair Avenue, East St. Louis, Ill. 62201. Applicant's representative: Thomas F. Kilroy, 1341 G Street NW., Washington, D.C. 20005. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Clay products and jointing materials*, from St. Louis, Mo., to points in Alabama, Arkansas, Florida, Georgia, Illinois, Indiana, Iowa, Kentucky, Louisiana, Michigan, Minnesota, Mississippi (except Blue Mountain and Ripley), Nebraska, North Carolina, Ohio, Oklahoma, South Carolina, and Tennessee, (2) *clay, clay products, and jointing materials*, from points in Alabama, Arkansas, Florida, Georgia, Illinois, Indiana (except Clay County), Iowa, Kentucky, Louisiana, Michigan, Minnesota, Mississippi (except Blue Mountain and Ripley), Nebraska, North Carolina, Ohio, Oklahoma, South Carolina, and Tennessee, to St. Louis, Mo., and (3) *corrugated fiberboard boxes and interior parts, and corrugated pulpboard sheets*, (a) from Fenton, Mo., to points in that part of Indiana on, south, and west, of a line beginning at the Illinois-Indiana State line and extending along U.S. Highway 50 to junction U.S. Highway 231, and thence along U.S. Highway 231 to the Indiana-Kentucky State line, points in Illinois (except Chicago, and points in the Chicago, Ill., commercial zone, as defined by the Commission), points in that part of Arkansas on and north of U.S. Highway 70, points in that part of Oklahoma on, north, and east of a line beginning at the Arkansas-Oklahoma State line and extending along U.S. Highway 70 to junction U.S. Highway 81, and thence along U.S. Highway 81 to the Oklahoma-Kansas State line, and points in that part of Kansas on, east, and north of a line beginning at the Kansas-Oklahoma State line and extending along Kansas Highway 49 to junction U.S. Highway 160, thence along U.S. Highway 160 to junction Kansas Highway 14, and thence along Kansas Highway 14 to the Kansas-Nebraska State line, and (b) from Evansville, Ind., to Fenton, Mo. NOTE: Applicant seeks to convert its contract carrier applications MC 117509 and Subs except its MC 117509 Sub 2 to common carrier operations as set forth above. Dual operations may be involved. If a hearing is deemed necessary, applicant requests it be held at St. Louis, Mo., or Washington, D.C.

No. MC 129165, filed June 9, 1967. Applicant: BIRD TRUCKING & CARTAGE, INC., 7447 Dix, Detroit, Mich. 48209. Applicant's representative: Robert A. Sullivan, 1800 Buhl Building, Detroit, Mich. 48226. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Automobile parts, assemblies, and materials used in the manufacture of automobiles*, between points in Wayne

County, Mich., and the Detroit commercial zone as defined by the Interstate Commerce Commission, on the one hand, and, on the other, the Detroit Metropolitan Airport, located at Romulus, Mich., and the Willow Run Airport, located at Ypsilanti, Mich., having a prior or subsequent movement by air. NOTE: If a hearing is deemed necessary, applicant requests it be held at Detroit, Mich., or Washington, D.C.

No. MC 129166, filed June 12, 1966. Applicant: RED WING TRANSPORTATION CORPORATION, 1320 West Main Street, Red Wing, Minn. 55066. Applicant's representative: Donald B. Taylor, 3464 Minneahaha Avenue South, Minneapolis, Minn. 55406. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Green salted hides*, from points in Alabama, Arkansas, Colorado, Georgia, Idaho, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Mississippi, Missouri, Montana, Nebraska, New Mexico, North Carolina, North Dakota, Ohio, Oklahoma, South Carolina, South Dakota, Tennessee, Texas, Wisconsin, and Wyoming to Red Wing, Minn., and *pallets*, on return, under contract with S. B. Foot Tanning Co. NOTE: If a hearing is deemed necessary, applicant requests it be held at Minneapolis, Minn., or Chicago, Ill.

No. MC 129167 (Sub-No. 1), filed June 12, 1967. Applicant: MICHAEL A. TOKARSKY, JR., 624 Shady Lane, Windber, Pa. 15963. Applicant's representative: Arthur J. Diskin, 302 Frick Building, Pittsburgh, Pa. 15219. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Coal*, in bulk, in dump vehicles, from points in Somerset and Cambria Counties, Pa., to points in Maryland. NOTE: If a hearing is deemed necessary, applicant requests it be held at Washington, D.C., or Pittsburgh, Pa.

No. MC 129170, filed June 9, 1967. Applicant: MORTIMER & WALLACE, INC., 914 San Clemente, Wilmington, Calif. 90744. Applicant's representative: C. J. Van Duker, 768 Brannan Street, San Francisco, Calif. 94103. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Animal and poultry feed*, in bulk, from points in California and Arizona, to the Los Angeles, Calif., Harbor Area, under contract with Ontario Feed & Milling Co., Pacific Vegetable Oil Corp., Paul Bimmerman Co., Frank Noonan Co., A. H. Ascherman, Inc., Bunge Corp., Pacific Milling Co., and Morse Pellet Mill Co. NOTE: If a hearing is deemed necessary, applicant requests it be held at Los Angeles, Calif.

No. MC 129171, filed June 12, 1967. Applicant: ARTHUR SHELLEY, Dallas, Pa. 18612. Applicant's representative: Kenneth R. Davis, 1106 Dartmouth Street, Scranton, Pa. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Candy and confectionery products* requiring refrigerated service, from Bethlehem, Pa., to Chicago, Ill., Seattle, Wash., Los Angeles and Oakland, Calif., and Denver, Colo. NOTE: If a hearing is deemed necessary, applicant requests it be held at Allentown, Pa.

No. MC 129172, filed June 5, 1967. Applicant: MARSHALL WOOD, doing business as MARSHALL WOOD TRUCKING, Route 1, Highway 64 East, Russellville, Ark. 72801. Applicant's representative: John H. Joyce, 26 North College, Post Office Box 1018, Fayetteville, Ark. 72702. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Frozen inedible meat and meat byproducts*, for use in animal food, unfit for human consumption, from the plantsite of Tommy Lewis Packing Co. located approximately 6 miles north of Conway, Ark., to Crete, Nebr., Chicago, Ill., Hamilton, Mich., Allentown, Pa., and Fond du Lac, Wis., restricted to traffic destined to named destinations, under a continuing contract with Tommy Lewis Packing Co. NOTE: If a hearing is deemed necessary, applicant requests it be held at Little Rock, Ark.

No. MC 129173, filed June 12, 1967. Applicant: INLAND MOVING & STORAGE CO., a corporation, Post Office Box 15, San Bernardino, Calif. 92402. Applicant's representative: Edward J. Hegarty, 100 Bush Street, San Francisco, Calif. 94104. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Household goods*, as defined by the Commission, between points in San Bernardino, Riverside, Los Angeles, and Orange Counties, Calif., restricted to shipments having a prior or subsequent movement in containers in interstate or foreign commerce. NOTE: If a hearing is deemed necessary, applicant requests it be held at San Francisco, Calif.

No. MC 129185, filed June 15, 1967. Applicant: DALE J. COOK MOVING AND STORAGE, INC., 4700 Paramount Drive, North Charleston, S.C. Applicant's representative: J. Mitchell Graham, Post Office Box 223, Charleston, S.C. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Household goods and furniture and fixtures*, when moving on through bills of lading of an exempt freight forwarder, between points in Charleston, Dorchester, Berkeley Counties, S.C., within a 30-mile radius of Charleston and points in South Carolina. NOTE: If a hearing is deemed necessary, applicant requests it be held at Charleston, S.C.

MOTOR CARRIERS OF PASSENGERS

No. MC 3647 (Sub-No. 395), filed June 1, 1967. Applicant: PUBLIC SERVICE COORDINATED TRANSPORT, a corporation, 180 Boyden Avenue, Maplewood, N.J. 07040. Applicant's representative: Richard Fryling (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Passengers and their baggage* in the same vehicle with passengers, in special operations, in round-trip, sightseeing, and pleasure tours, beginning and ending at points in Middlesex County, N.J., and extending to points in Alaska, Alabama, Arizona, Arkansas, California, Colorado, Florida, Georgia, Idaho, Illinois, Indiana, Iowa, Kansas, Kentucky, Louisiana, Michigan, Minnesota, Mississippi, Missouri, Montana, Nebraska, Nevada, New Mexico, North Carolina, North Dakota, Ohio, Oklahoma, Oregon, South Carolina, South Dakota, Tennessee, Texas, Utah, Washington, West Virginia, Wisconsin, and Wyoming. NOTE: If a hearing is deemed necessary, applicant requests it be held at New Brunswick or Newark, N.J.

No. MC 22589 (Sub-No. 14), filed June 9, 1967. Applicant: CAMPUS TRAVEL, INC., doing business as CAMPUS COACH LINES, 545 Fifth Avenue, New York, N.Y. 10017. Applicant's representative: Robert E. Goldstein, 8 West 40th Street, New York, N.Y. 10018. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Passengers and their baggage*, in charter operations and in special operations, in round-trip, sightseeing, pleasure tours; from points in Westchester County, N.Y., to points in the United States, and return. NOTE: Applicant states it currently holds charter operation authority from points in Westchester County, N.Y., to points in New York, New Jersey, Pennsylvania, Massachusetts, Connecticut, Rhode Island, Delaware, Maryland, Virginia, West Virginia, and the District of Columbia, and return. If a hearing is deemed necessary, applicant requests it be held at New York, N.Y.

No. MC 59238 (Sub-No. 62), filed June 13, 1967. Applicant: VIRGINIA STAGE LINES, INCORPORATED, Post Office Box 951, Charlottesville, Va. 22902. Applicant's representative: James E. Wilson, 1735 K Street NW., Washington, D.C. 20006. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *Passengers and their baggage and express and newspapers* in the same vehicle with passengres, between Waynesboro and Roanoke, Va., from Waynesboro over U.S. Highway 340 to junction Interstate Highway 81, thence over Interstate Highway 81 to junction Interstate Highway 581, thence over Interstate Highway 581 to Roanoke, Va., and return over the same route, serving no intermediate points. NOTE: Common control may be involved. If a hearing is deemed necessary, applicant requests it be held at Roanoke, Va.

No. MC 108219 (Sub-No. 6), filed June 13, 1967. Applicant: GREY GOOSE BUS LINES, LIMITED, 301 Burnell Street, Winnipeg 10, Manitoba, Canada. Applicant's representative: Robert A. Wurst, Post Office Box 8, Thief River Falls, Minn. 56701. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *Passengers and their baggage and express*, in the same vehicle with passengers, between the port of entry located on the international boundary line between the United States and Canada, located on U.S. Highway 59, and Detroit Lakes, Minn., over U.S. Highway 59, serving the intermediate points of Lancaster, Lake Bronson, Halma, Karlstad, Strandquist, Newfolden, Thief River

Falls, Plummer, Brookes, Erskine, Winger, Bejou, Mahnomen, Waubun, Ogema, Callaway, and Westbury, Minn. NOTE: If a hearing is deemed necessary, applicant requests it be held at Thief River Falls or Detroit Lakes, Minn.

No. MC 128753 (Sub-No. 3), filed June 16, 1967. Applicant: ASSOCIATED BUS COMPANY OF OAKLAND, a corporation, 921 Bergen Avenue, Jersey City, N.J. 07306. Applicant's representative: Charles J. Williams, 47 Lincoln Park, Newark, N.J. 07102. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Passengers, and their baggage*, between Manhattan and the Bronx, N.Y., on the one hand, and, on the other, East Paterson, N.J., under contract with Kohner Bros., Inc. NOTE: Common control and dual operations may be involved. If a hearing is deemed necessary, applicant requests it be held at Newark, N.J., or New York, N.Y.

No. MC 129153 (Sub-No. 1), filed June 13, 1967. Applicant: HORIZON LIMOUSINE SERVICE, INC., 2182 Lemoine Avenue, Fort Lee, N.J. 07024. Applicant's representative: Charles H. Trayford, 137 East 36th Street, New York, N.Y. 10016. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Passengers and their baggage* limited to transportation of not more than seven passengers in any one vehicle, not including the driver thereof, in special operations, between Fort Lee, N.J., and New York, N.Y. NOTE: Applicant states that this is a door-to-door limousine service on an individual ticket basis. If a hearing is deemed necessary, applicant requests it be held at New York, N.Y.

APPLICATION FOR BROKERAGE LICENSE

No. MC 130039, filed May 26, 1967. Applicant: WILLIAM NEZOWY, doing business as ASTRO TRAVEL SERVICE, 1411 Walnut Street, Philadelphia, Pa. Applicant's representative: Alan Kahn, Suite 1920, 2 Penn Center Plaza, John F. Kennedy Boulevard, at 15th Street, Philadelphia, Pa. 19102. For a license (BMC-5) to engage in operations as a *broker*, in arranging for transportation in interstate or foreign commerce *of individual passengers and groups of passengers and their baggage* in passenger motor vehicles, in special operations, in round-trip tours, beginning and ending in points in Bucks, Chester, Delaware, Montgomery, and Philadelphia Counties, Pa., and Gloucester, Camden, and Burlington Counties, N.J., and extending to points in the United States including ports of entry on the international boundary line between the United States and Canada.

APPLICATIONS FOR WATER CARRIERS

No. W-536 (Sub-No. 11), HENNEPIN TOWING COMPANY—Extension—ARKANSAS RIVER, filed June 12, 1967. Applicant: HENNEPIN TOWING COMPANY, a corporation, 7703 Normandale Road, Room 110, Minneapolis, Minn. 55435. Applicant's representative: William F. King, 2001 Massachusetts Avenue NW., Washington, D.C. 20036. Authority sought under Part III of the Interstate Commerce Act, for a revised certificate to operate as a *common carrier*, in interstate or foreign commerce by non-self-propelled vessels with the use of separate towing vessels in the transportation of *general commodities*, and by towing vessels in the performance of general towage, (a) between ports and points along the Arkansas and Verdigris Rivers and their tributaries from Catoosa, Okla., to the confluence of Arkansas River with the Mississippi River, including the Arkansas Post Canal and the White River, and (b) between ports and points specified above, on the one hand, and, on the other, ports and points along (1) the Mississippi River below and including Minneapolis, Minn., (2) the Minnesota River below and including Shakopee, Minn., (3) the St. Croix River below and including Stillwater, Minn., (4) the Illinois Waterway, and connecting canals and waterways, including canals and waterways serving Chicago, Ill., Whiting, Ind., East Chicago, Ind., Gary, Ind., and Michigan City, Ind., and (5) the Mississippi River-Gulf Outlet Channel, except to the extent authorized in its fifth amended certificate and order.

No. W-1235, SECURITY BARGE LINE, INC., Common Carrier Application, filed June 14, 1967. Applicant: SECURITY BARGE LINE, INC., 539 Highway 82 East, Post Office Drawer 4927, Greenville, Miss. Applicant's representative: Donald W. Smith, Suite 511, Fidelity Building, Indianapolis, Ind. 46204. Authority sought to operate as a *common carrier* in interstate or foreign commerce under Part III of the Interstate Commerce Commission by water, by non-self-propelled vessels with the use of separate towing vessels in the transportation of *general commodities*, and by towing vessels in the performance of general towage, (a) between ports and points on the Arkansas and Verdigris Rivers, from Catoosa, Okla., to the confluence of the Arkansas River with the Mississippi River, and (b) between ports and points specified in (a) above, on the one hand, and, on the other, ports and points on the following rivers, including the ports named: Illinois Waterway, including points on the south shore of Lake Michigan between Chicago, Ill., and Burns Harbor, Ind.; Minnesota River below Shakopee, Minn.; Mississippi River below Minneapolis, Minn., and St. Croix River below Stillwater Minn.

APPLICATIONS IN WHICH HANDLING WITHOUT ORAL HEARING HAVE BEEN REQUESTED

No. MC 50544 (Sub-No. 60), filed June 13, 1967. Applicant: THE TEXAS AND PACIFIC MOTOR TRANSPORT COMPANY, a corporation, 210 North 13th Street, St. Louis, Mo. 63103. Applicant's representative: Robt. S. Davis, 210 North 13th Street, St. Louis, Mo. 63103. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities*, between Odessa, Tex., and junction New Mexico Highways 18 and 176: From Odessa north over U.S. Highway 385 to Andrews, Tex., thence west over Texas Highway 176 to the Texas-New Mexico State line, thence over New Mexico Highway 176 to junction New Mexico Highway 18, and return over the same route serving no intermediate points, for operating convenience only. NOTE: Common control may be involved.

No. MC 97699 (Sub-No. 24), filed June 14, 1967. Applicant: BARBER TRANSPORTATION CO., a corporation, 321 Sixth Street, Rapid City, S. Dak. Applicant's representative: Marion F. Jones, 420 Denver Club Building, Denver, Colo. 80202. Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities*, except those of unusual value, classes A and B explosives, household goods as defined by the Commission, commodities in bulk, commodities requiring special equipment, and those injurious or contaminating to other lading, serving Jefferson, Iowa, unrestricted, as an intermediate point on applicant's authorized routes between Chicago, Ill., and Sioux City, Iowa. NOTE: Applicant states in MC 97699, Sub 4, it is authorized to transport the above commodities between Chicago, Ill., and Sioux City, Iowa, serving Jefferson as an intermediate point, restricted to traffic moving from Sioux City, Iowa. The sole purpose of this application is to permit pickup and delivery service at Jefferson, unrestricted.

No. MC 111301 (Sub-No. 14), filed June 5, 1967. Applicant: L. J. KREUTZER, doing business as KREUTZER MOTOR EXPRESS, 1423 Third Avenue, Mankato, Minn. 56001. Applicant's representative: Charles A. Adamson, 210 Walnut Street, Mankato, Minn. 56001. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Stone*, rough and finished, from Mankato and Kasota, Minn., to points in Montana, Wyoming, Colorado, Kansas, New Mexico, Oklahoma, and Texas, under contract with Mankato Stone Co. and Babcock Stone Co.

No. MC 116063 (Sub-No. 102), filed June 16, 1967. Applicant: WESTERN-COMMERCIAL TRANSPORT, INC., 2400 Cold Springs Road, Fort Worth, Tex. 76101. Applicant's representative: W. Harold Cole (same address as applicant). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Processed clay*, in bulk, from Fort Worth, Tex., to points in Oklahoma.

No. MC 124328 (Sub-No. 28), filed June 13, 1967. Applicant: BRINK'S INCORPORATED, 234 East 24th Street, Chicago, Ill. 60616. Applicant's representative: Francis D. Partlan (same address as applicant). Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Coin*, between West Point, N.Y.; Seattle, Wash.; Portland, Oreg.; San Francisco and Los Angeles, Calif.; Helena, Mont.; Salt Lake City, Utah; Denver, Colo.; El Paso, San Antonio, Houston, and Dallas, Tex.; Oklahoma City, Okla.; Omaha, Nebr.; Minneapolis, Minn.; Chicago, Ill.; St. Louis and Kansas City, Mo.; Little Rock, Ark.; New Orleans, La.; Memphis and Nashville,

Tenn.; Louisville, Ky.; Birmingham, Ala.; Atlanta, Ga.; Jacksonville, Fla.; Charlotte, N.C.; Richmond, Va.; Cincinnati and Cleveland, Ohio; and Detroit, Mich.

No. MC 126420 (Sub-No. 9), filed June 7, 1967. Applicant: ALASKA STEAMSHIP COMPANY, a corporation, Pier 42, Seattle, Wash. Applicant's representative: George R. LaBissoniere, 920 Logan Building, Seattle, Wash. 98101. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, commodities in bulk, livestock, commodities requiring special equipment), between points in that part of Alaska south and east of the international boundary line between the United States and Canada, located at or near Haines, Alaska. NOTE: Common control may be involved.

No. MC 129162 (Sub-No. 1), filed June 1, 1967. Applicant: SCHILLI TRANSPORTATION, INC., 230 St. Clair Avenue, East St. Louis, Ill. 62201. Applicant's representative: Thomas F. Kilroy, 1341 G Street NW., Washington, D.C. 20005. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Nitroglycerin, desensitized* in drums, from Martinsburg, W. Va., McArthur, Ohio, and Atlas, Mo., to East Alton, Ill., and (2) *drums, empty, and their contents of solvent*, on return. NOTE: Applicant holds contract carrier authority under MC 117509 Sub-2 and other subs, therefore, dual operations and common control may be involved.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 67-7282; Filed, June 28, 1967; 8:45 a.m.]

FOURTH SECTION APPLICATION FOR RELIEF

JUNE 26, 1967.

Protests to the granting of an application must be prepared in accordance with Rule 1.40 of the general rules of practice (49 CFR 1.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 41059—*Lumber articles from or to points in southwestern territory.* Filed by Southwestern Freight Bureau, agent (No. B-8995), for interested rail carriers. Rates on lumber articles, in carloads, as described in the application, (1) between points in southwestern territory, on the one hand, and points on Chicago, Rock Island & Pacific Railroad Co., on the other, and (2) from points in southwestern territory, to points on the C.R.I. & P. RR. Co., in Illinois, Iowa, Minnesota, Missouri, and South Dakota.

Grounds for relief—Market competition.

Tariff—Supplement 38 to Southwestern Freight Bureau, agent, tariff I.C.C. 4690.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 67-7405; Filed, June 28, 1967; 8:50 a.m.]

NOTICE OF FILING OF MOTOR CARRIER INTRASTATE APPLICATIONS

JUNE 23, 1967.

The following applications for motor common carrier authority to operate in intrastate commerce seek concurrent motor carrier authorization in interstate or foreign commerce within the limits of the intrastate authority sought, pursuant to section 206(a)(6) of the Interstate Commerce Act, as amended October 15, 1962. These applications are governed by Special Rule 1.245 of the Commission's rules of practice, published in the FEDERAL REGISTER, issue of April 11, 1963, page 3533, which provides, among other things, that protests and requests for information concerning the time and place of State Commission hearings or other proceedings, any subsequent changes therein, and any other related matters shall be directed to the State Commission with which the application is filed and shall not be addressed to or filed with the Interstate Commerce Commission.

State Docket No. A 49327 (Amendment), filed May 1, 1967, published in FEDERAL REGISTER, issue of May 17, 1967, amended June 14, 1967, and republished as amended, this issue. Applicant: KINGS COUNTY TRUCK LINES, Alpine and L Streets, Post Office Box 1016, Tulare, Calif. Applicant's representative: Handler, Baker & Greene, 405 Montgomery, San Francisco, Calif. 94104. Certificate of public convenience and necessity sought to operate a freight service as follows: Transportation of: (a) Frozen foodstuffs and beverages, (b) commodities requiring refrigeration and/or temperature or atmospheric control all or any part of the year, and (c) food and foodstuffs not otherwise requiring refrigeration and/or temperature or atmospheric control when tendered with a shipment of those commodities described in (a) and (b) above, to and between the following named points over and along the following routes including all points located thereon, all intermediate points and points within 20 miles thereof: (1) All streets and highways between points within the San Francisco Territory as described by the California Public Utilities Commission, (2) U.S. Highway 40 (Interstate 80) between Oakland and Roseville, (3) U.S. Highway 99E between Roseville and Marysville, (4) State Highway 20 between Marysville and Yuba City.

(5) State Highways 99 and 113 between Yuba City and Woodland, (6) U.S. Highway 99W (Interstate 5) between Woodland and its junction with U.S. Highway 40 (Interstate 80), (7) U.S. Highway 50 between Oakland and Stockton, (8) State Highway 120 between its junction with U.S. Highway 50 and Manteca, (9) State Highway 33 between Tracy and its junction with State Highway 152, (10) State Highway 132 between Vernalis and Modesto, (11) State Highway 152 between Watsonville and Gilroy, (12) State Highway 129 between Watsonville and its junction with U.S. Highway 101 three miles south of Sargent, (13) U.S. Highway 99 and Interstate Highway 5 between Sacramento and San Diego, (14) State Highway 17 between Oakland and San Jose, (15) State Highway 82 between San Francisco and San Jose, (16) U.S. Highway 101 between San Francisco and the Los Angeles Territory all as described by the California Public Utilities Commission, (17) All streets and highways and points and places within the Los Angeles Territory all as described by the California Public Utilities Commission, (18) Any direct route or routes between points in the Los Angeles Territory on the one hand, and, on the other, Brea, La Habra, Pomona, and Santa Ana, (19) State Highway 180 between Fresno and Sanger, (20) State Highway 152 between Los Banos and its junction with State Highway 99, and (21) Interstate Highway 10 between Los Angeles Territory and Redlands. Restriction: No transportation is authorized of liquid dairy products and whole fresh eggs. Both intrastate and interstate authority sought. NOTE: The purpose of this republication is to add (c) to the commodity description above, and reflect the hearing information.

HEARING: July 17, 18, and 19, 1967, Public Utilities Commission, State of California, State Building, Civic Center, 455 Golden Gate Avenue, San Francisco, Calif. Requests for procedural information, including the time for filing such protests, concerning this application should be addressed to the California Public Utilities Commission, State Building, Civic Center, 455 Golden Gate Avenue, San Francisco, Calif. 94102, and should not be directed to the Interstate Commerce Commission.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 67-7404; Filed, June 28, 1967; 8:50 a.m.]

[Notice 410]

MOTOR CARRIER TEMPORARY AUTHORITY APPLICATIONS

JUNE 26, 1967.

The following are notices of filing of applications for temporary authority under section 210a(a) of the Interstate Commerce Act provided for under the new rules of Ex Parte No. MC 67 (49 CFR Part 340) published in the FEDERAL REGISTER, issue of April 27, 1965, effective July 1, 1965. These rules provide that protests to the granting of an application must be filed with the field official named in the FEDERAL REGISTER publication, within 15 calendar days after the

date of notice of the filing of the application is published in the FEDERAL REGISTER. One copy of such protest must be served on the applicant, or its authorized representative, if any, and the protests must certify that such service has been made. The protest must be specific as to the service which such protestant can and will offer, and must consist of a signed original and six copies.

A copy of the application is on file, and can be examined at the Office of the Secretary, Interstate Commerce Commission, Washington, D.C., and also in the field office to which protests are to be transmitted.

MOTOR CARRIERS OF PROPERTY

No. MC 27817 (Sub-No. 70 TA), filed June 21, 1967. Applicant: H. C. GABLER, INC., Rural Route No. 3, Chambersburg, Pa. 17201. Applicant's representative: Christian V. Graf, 407 North Front Street, Harrisburg, Pa. 17101. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Canned goods*, from the plantsite of Little Miss Canning Co., Inc., near Rock Gap, Morgan County, W. Va., to points in Pennsylvania, New Jersey, New York, Maryland, Virginia, Delaware, and the District of Columbia; for 180 days. Supporting shipper: Little Miss Canning Co., Inc., Post Office Box 278, Berkeley Springs, W. Va. Send protests to: Robert W. Ritenour, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 218 Central Industrial Building, 100 North Cameron Street, Harrisburg, Pa. 17101.

No. MC 62826 (Sub-No. 19 TA), filed June 20, 1967. Applicant: CAROLINA-NORFOLK TRUCK LINE, INC., 2412 Virginia Beach Boulevard, Norfolk, Va. 23516. Applicant's representative: Robey Estes (same address as above). Authority sought to operats as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except those of unusual value, classes A and B explosives, household goods as defined by the Commission, commodities in bulk, commodities requiring special equipment, and those injurious or contaminating to other lading), serving the off-route points in North Carolina located east or north of a line beginning at the North Carolina-Virginia State line, over North Carolina Highway 168 to junction U.S. Highway 158 at or near Belcross, N.C., thence over U.S. Highway 158 to junction U.S. Highway 17 at or near Elizabeth City, N.C., thence southerly over U.S. Highway 17 to Washington, N.C., thence along the north shore of the Pamlico River to Pamlico Sound, thence through the Ocracoke Inlet to the Atlantic Ocean, in connection with applicant's presently authorized regular route operations between Norfolk, Va., and Wilmington, N.C., as set forth in certificate No. MC 62826, issue March 15, 1950; for 180 days. NOTE: Applicant states that the operations proposed will be joined with applicant's regular routes extending between Washington, N.C., over U.S. Highway 17, U.S. Highway 158, and North Carolina Highway 168 to the Virginia-North Carolina State line. Supporting shippers: There are nine shippers' supporting statements attached to application, which may be examined at the Interstate Commerce Commission in Washington, D.C., or at the field office named below. Send protests to: Robert W. Waldron, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 10-502 Federal Building, Richmond, Va. 23240.

No. MC 82079 (Sub-No. 15 TA), filed June 21, 1967. Applicant: KELLER TRANSFER LINE, INC., 1239 Randolph Avenue SW., Grand Rapids, Mich. 49507. Applicant's representative: J. M. Neath, Jr. (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Flour*, in bulk, from Quincy, Mich., to Cleveland, Ohio; for 180 days. Supporting shipper: Williams Milling Co., division of Farm Bureau Services, Inc., Quincy, Mich. 49082. Send protests to: C. R. Flemming, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 221 Federal Building, Lansing, Mich. 48933.

No. MC 107583 (Sub-No. 38 TA), filed June 21, 1967. Applicant: SALEM TRANSPORTATION CO., INC., 1222 Jerome Avenue, Bronx, N.Y. 10452. Applicant's representative: George H. Rosen, 265 Broadway, Monticello, N.Y. 12701. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Blood, blood plasma, and related medicinal and therapeutic agents*, for the Armed Forces, in the same vehicle as passengers, between McGuire Air Force Base, N.J., on the one hand, and on the other, Philadelphia International Airport, Pa., Newark Airport, N.J., Kennedy International Airport, and LaGuardia Airport, New York, N.Y.; for 150 days. Supporting shipper: Department of Defense, Armed Services Whole Blood Processing Laboratory, McGuire Air Force Base, N.J. 08641. Send protests to: Robert E. Johnston, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 346 Broadway, New York, N.Y. 10013.

No. MC 109637 (Sub-No. 322 TA), filed June 22, 1967. Applicant: SOUTHERN TANK LINES, INC., 4107 Bells Lane, Louisville, Ky. 40211. Applicant's representative: G. R. Thim (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Lime (calcium hydroxide or calcium carbide residues)*, in bulk, in tank vehicles, from the plantsite of National Carbide Co., near Louisville, Ky., to Grand Rapids, Mich.; for 150 days. Supporting shipper: National Carbide Co., 150 East 43d Street, New York, N.Y. 10017 (J. W. Peterson, Director of Traffic). Send protests to: Wayne L. Merilatt, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 426 Post Office Building, Louisville, Ky. 40202.

No. MC 113545 (Sub-No. 6 TA), filed June 22, 1967. Applicant: CORMETT FORWARDING CO., INC., 260 Hudson Street, Hackensack, N.J. 07601. Applicant's representative: Morton E. Kiel, 140 Cedar Street, New York, N.Y. 10006. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Radiopharmaceuticals, radioactive drugs, and medical isotopes*, from Newark Airport in Newark, N.J., and LaGuardia and Kennedy Airports in New York, N.Y., to points in Bergen, Passaic, Sussex, Warren, Morris, Essex, Hudson, Union, Middlesex, Somerset, Hunterdon, Mercer, Monmouth, and Ocean Counties, N.J.; Nassau, Suffolk, Westchester, Rockland, Orange, Ulster, Sullivan, Putnam, and Dutchess Counties, N.Y.; Fairfield County, Conn.; and New York, N.Y.; restricted to service under contract with Abbott Laboratories on traffic having an immediately prior movement by air and weighing not over 10 pounds per shipment; for 180 days. Supporting shipper: Abbott Laboratories, North Chicago, Ill. 60064. Send protests to: Joel Morrows, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 1060 Broad Street, Newark, N.J. 07102.

No. MC 119531 (Sub-No. 62 TA), filed June 22, 1967. Applicant: DIECK-BRADER EXPRESS, INC., 5391 Wooster Road, Cincinnati, Ohio 45226. Applicant's representative: Raymond C. Minks (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Glass bottles and paper cartons*, from Terre Haute, Ind., to Belleville, Chicago, Joliet, and Peoria Heights, Ill.; Milwaukee, Wis.; and St. Louis, Mo.; for 180 days. Supporting shipper: American Can Co., 200 South Michigan Avenue, Chicago, Ill. 60604. Send protests to: Emil P. Schwab, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 1010 Federal Building, 550 Main Street, Cincinnati, Ohio 45202.

No. MC 119777 (Sub-No. 77 TA), filed June 22, 1967. Applicant: LIGON SPECIALIZED HAULER, INC., Post Office Drawer L, Madisonville, Ky. 42431. Applicant's representative: William G. Thomas (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Fiberboard, fiberboard faced or finished with decorative or protective material, and accessories and supplies* used in the installation thereof, from the site of the Masonite Corp. warehouse at Chicago, Ill., to points in Indiana, Iowa, Kentucky, Michigan, Missouri, Ohio, and Wisconsin; for 180 days. Supporting shipper: Masonite Corp., 29 North Wacker Drive, Chicago, Ill. 60606 (Frank E. Lawless, assistant general traffic manager). Send protests to: Wayne L. Merilatt, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 426 Post Office Building, Louisville, Ky. 40202.

No. MC 123407 (Sub-No. 32 TA), filed June 21, 1967. Applicant: SAWYER TRANSPORT, INC., 2424 Minnehaha Avenue, Minneapolis, Minn. 55404. Applicant's representative: Gene P. Johnson, 502 First National Bank Building, Fargo, N. Dak. 58102. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: (1) *Building, roofing and insulating materials, and related articles, cement*

and asbestos products, conduit or pipe, cement containing asbestos, and accessories for installation, from Waukegan, Ill., to points in Illinois, Kentucky, the Upper Peninsula of Michigan, Missouri, Mississippi, Tennessee, Wisconsin, Minnesota, Iowa, Nebraska, South Dakota, and North Dakota; and (2) *buildings, roofing and insulating materials*, from Rockdale, Ill., to the destination points set forth in (1) above; for 180 days. Restrictions: (1) Restricted against transportation of commodities in bulk. (2) Restricted to traffic originating at the plantsites of Johns-Manville Products Corp. at Waukegan, Ill., and Johns-Manville Perlite Corp. at Rockdale, Ill. (3) Restricted on traffic from Waukegan, Ill., to points in Iowa to traffic moving on flatbed equipment and against transportation of building, roofing and insulating materials and pipe, and asbestos cement products. Supporting shippers: Johns-Manville Products Corp., Waukegan, Ill.; and Johns-Manville Perlite Corp., Rockdale, Ill. Send protests to: C. H. Bergquist, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 448 Federal Building and U.S. Courthouse, 110 South Fourth Street, Minneapolis, Minn. 55401.

No. MC 124078 (Sub-No. 283 TA), filed June 22, 1967. Applicant: SCHWERMAN TRUCKING CO., 611 South 28th Street, Milwaukee, Wis. 53215. Applicant's representative: Richard H. Prevette (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Fly ash*, in bulk, from New Eagle, Pa., to Bellaire, Tiltonsville, Akron, Youngstown, Cleveland, Lowellville, Warren, Alliance, Niles, Coshocton, and Canton, Ohio; Gainesville, Va.; and Weirton, Wheeling, and Moundsville, W. Va.; for 150 days. Supporting shipper: Dayton Fly Ash Co., Inc., 2101 Dryden Road, Dayton, Ohio 45439 (Barton Thomas, vice president). Send protests to: W. F. Sibbald, Jr., District Supervisor, Bureau of Operations, Interstate Commerce Commission, 135 West Wells Street, Room 807, Milwaukee, Wis. 53203.

No. MC 124908 (Sub-No. 7 TA), filed June 22, 1967. Applicant: IRON & METAL TRUCKING SERVICE, INC., 13828 Jennings, Detroit, Mich. 48227. Applicant's representative: Wilhelmina Boersma, 1600 First Federal Building, 1001 Woodward Avenue, Detroit, Mich. 48226. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Scrap iron*, in dump vehicles, (1) from Pontiac, Mich., to Coshocton, Ohio; and (2) from Detroit, Mich., to Mansfield and Tiffin, Ohio; for 150 days. Supporting shipper: Benlee Industrial Salvage Co., 13828 Jennings, Detroit, Mich. 48227. Send protests to: Gerald J. Davis, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 1110 Broderick Tower, 10 Witherell, Detroit, Mich. 48226.

No. MC 125962 (Sub-No. 3 TA), filed June 22, 1967. Applicant: AAA TRUCKING, INC., Route 6, Box 28–A, Brookhaven, Miss. 39601. Applicant's representative: Donald B. Morrison, Post Office Box 961, Jackson, Miss. 39205. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Brick*, from Kentwood, La., to points in Alabama, Arkansas, Florida, Mississippi, and Texas; for the account of and under a continuing contract with Kentwood Brick & Tile Manufacturing Co., Inc.; for 180 days. Supporting shipper: Kentwood Brick & Tile Manufacturing Co., Inc., Post Office Drawer F, Kentwood, La. 70444. Send protests to: Floyd A. Johnson, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 312–A, U.S. Post Office Building, Jackson, Miss. 39201.

No. MC 129188 TA, filed June 21, 1967. Applicant: COLORADO AIR CARGO, INC., 2934 Drakestone Drive, Colorado Springs, Colo. 80909. Applicant's representative: Paul George (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over regular routes, transporting: *General commodities* (except articles of unusual value, classes A and B explosives, and household goods as defined by the Commission), having an immediately prior or subsequent movement by aircraft, from Colorado City, the Pueblo Ordnance Depot east of Pueblo, Pueblo, Fort Carson, and Colorado Springs, Colo., to Stapleton International Airport, Denver, Colo., and return movements of *general commodities* having an immediately prior or subsequent movement by aircraft; for 180 days. Supporting shippers: There are 11 shippers' supporting statements attached to application, which may be examined at the Interstate Commerce Commission in Washington, D.C., or at the field office named below. Send protests to: Herbert C. Ruoff, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 2022 Federal Building, Denver, Colo. 80202.

No. MC 129191 TA, filed June 22, 1967. Applicant: RICHARD T. PLATTNER, doing business as JANS MOTOR SERVICE, 12320 South Loveland Avenue, Alsip, Ill. 60658. Applicant's representative: Albert A. Andrin, 29 South La Salle Street, Chicago, Ill. 60603. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Ethylene glycol compounds and derivatives, antifreeze, and deicing compounds* (except in bulk), from Lemont, Ill., to points in Illinois, Indiana, Iowa, Kentucky, Michigan, Minnesota, Missouri, Nebraska, Ohio, Pennsylvania, Tennessee, West Virginia, and Wisconsin; for 180 days. Supporting shipper: Mineral Industries, Inc., 59 East Van Buren Street, Chicago, Ill. Send protests to: Roger L. Buchanan, District Supervisor, Bureau of Operations, Interstate Commerce Commission, 1086 U.S. Courthouse and Federal Office Building, 219 South Dearborn Street, Chicago, Ill. 60604.

No. MC 129192 TA, filed June 22, 1967. Applicant: UNIVERSITY TRANSFER & STORAGE, INC., 111 San Lorenzo Avenue, Coral Gables, Fla. 33146. Applicant's representative: R. W. McCandliss, Jr. (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Containerized household goods and personal effects*, between points in Dade and Broward Counties, Fla.; for 180 days. Supporting shippers: Richardson Transfer & Storage Co., Inc., 940 South Santa Fe Avenue, Compton, Calif.; Fernstrom Moving System, Post Office Box 66220, Chicago, Ill.; Routed Thru-Pac, Inc., 350 Broadway, New York, N.Y.; Continental Forwarders, Inc., 105 Leonard Street, New York, N.Y.; Northwest Consolidators, Post Office Box 3583, Terminal Annex, Seattle, Wash. 98124; and American Ensign Van Service, Inc., Post Office Box 2270, Wilmington, Calif. 90744. Send protests to: Joseph B. Teichert, District Supervisor, Bureau of Operations, Interstate Commerce Commission, Room 1621, 51 Southwest First Avenue, Miami, Fla. 33130.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary*.

[F.R. Doc. 67-7408; Filed, June 28, 1967; 8:50 a.m.]

[Notice 1539]

MOTOR CARRIER TRANSFER PROCEEDINGS

JUNE 26, 1967.

Synopses of orders entered pursuant to section 212(b) of the Interstate Commerce Act, and rules and regulations prescribed thereunder (49 CFR Part 279), appear below:

As provided in the Commission's special rules of practice any interested person may file a petition seeking reconsideration of the following numbered proceedings within 20 days from the date of publication of this notice. Pursuant to section 17(8) of the Interstate Commerce Act, the filing of such a petition will postpone the effective date of the order in that proceeding pending its disposition. The matters relied upon by petitioners must be specified in their petitions with particularity.

No. MC–FC–69614. By order of June 22, 1967, the Transfer Board approved the transfer to Donald G. Anderson, doing business as Castle Rock Transfer, Box 147, Castle Rock, Colo., of the operating rights of G. O. Anderson, doing business as Castle Rock Transfer, 512 Jerry Street, Castle Rock, Colo., in certificate No. MC–36684, issued December 5, 1942, authorizing the transportation of general commodities, with certain exceptions, between Denver, Colo., and Larkspur, Colo., and in certificate of registration No. MC–36684 (Sub-No. 2), issued February 24, 1964, authorizing the transportation of milk, produce and express packages, freight, farm produce, and general commodities, from, to, and between specified points and described territory in Colorado, varying with the commodities indicated.

No. MC–FC–69617. By order of June 22, 1967, the Transfer Board approved the transfer to 3B's Moving & Storage, a corporation, 418 Snake River Avenue, Lewiston, Idaho, of the operating rights of Ray Trautman, Genesee, Idaho, in

certificate No. MC–88088, issued February 3, 1950, authorizing the transportation of farm tractors, truck, and automobile tires, iron rods, angle irons, iron plates, grain and seed, presto-logs, blacksmith coal, acetylene gas and oxygen in tanks, building materials, and sand and gravel, machinery, agricultural commodities, and livestock, from, to, and between specified points in Idaho and Washington, varying with the commodities indicated.

No. MC–FC–69681. By order of June 23, 1967, the Transfer Board approved the transfer to Robert L. Roy, doing business as Fortman Truck Line, Hamilton, Mont., of the operating rights in certificate No. MC–89978, issued February 10, 1966, to Norman C. Mosbrucker, doing business as Norm's Truck Line, Hamilton, Mont., authorizing the transportation of: General commodities, except dangerous explosives, and except livestock, household goods as defined in Practices of Motor Common Carriers of Household Goods, 17 M.C.C. 467, petroleum products in bulk, and commodities requiring special equipment, over a regular route, between Missoula, Mont., and Hamilton, Mont., from Missoula over U.S. Highway 93 to Hamilton, and return over the same route. Service is authorized to and from all intermediate points and the off-route points of Stevensville and Corvallis, Mont. D. W. McKenna, Post Office Box 389, Hamilton, Mont. 59480, attorney for applicants.

No. MC–FC–69694. By order of June 23, 1967, the Transfer Board approved the transfer to Thomas E. Frommel, Hopkinsville, Ky., of the operating rights of William G. Maddux, Hopkinsville, Ky., in permit No. MC–128334 (Sub-No. 1), issued by the Commission February 27, 1967, authorizing the transportation, over irregular routes, of liquid fertilizer, in bulk, in tank vehicles, from Hopkinsville, Ky., to points in Tennessee on and west of U.S. Highway 127. Robert H. Cowan, 500 Court Square Building, Nashville, Tenn., attorney for applicants.

No. MC–FC–69702. By order of June 23, 1967, the Transfer Board approved the transfer to Elizabeth M. Guineer, Hempstead, N.Y., of the operating rights in certificate No. MC–94874, issued October 7, 1941, to George L. Guineer, doing business as George's Messenger & Moving Service, Hempstead, N.Y., authorizing the transportation of household goods, over irregular routes, between points in Nassau County, N.Y., on the one hand, and, on the other, points in Connecticut, Massachusetts, New Jersey, Pennsylvania, Delaware, Maryland, and the District of Columbia. Gilbert Henoch, 320 Fulton Avenue, Hempstead, N.Y., attorney for applicants.

No. MC–FC–69728. By order of June 22, 1967, the Transfer Board approved the transfer to City Express, Inc., Fowler, Ind., of the operating rights of Broman Cartage, Inc., Berwyn, Ill., in certificate No. MC–48441, issued October 5, 1964, authorizing the transportation, over irregular routes, of general commodities, excluding household goods, commodities in bulk, and other specified commodities, between points in Chicago, Ill. Robert H. Levy, 29 South La Salle Street, Chicago, Ill., attorney for applicants.

[SEAL] H. NEIL GARSON,
Secretary.

[F.R. Doc. 67–7409; Filed, June 28, 1967; 8:50 a.m.]

[3d Rev. S.O. 562; ICC Order No. 229]

MISSOURI-KANSAS-TEXAS RAILROAD CO.

Rerouting or Diversion of Traffic

In the opinion of R. D. Pfahler, agent, the Missouri-Kansas-Texas Railroad Co. is unable to transport traffic over all of its lines north and east of Parsons, Kans., because of high water.

It is ordered, That:

(a) Rerouting traffic: The Missouri-Kansas-Texas Railroad Co. being unable to transport traffic over all of its lines north and east of Parsons, Kans., that carrier and its connections are hereby authorized to reroute or divert such traffic over any available route to expedite the movement. The billing covering all such cars rerouted shall carry a reference to this order as authority for the rerouting.

(b) Concurrence of receiving roads to be obtained: The railroad desiring to divert or reroute traffic under this order shall receive the concurrence of other railroads to which such traffic is to be diverted or rerouted, before the rerouting or diversion is ordered.

(c) Notification to shippers: Each carrier rerouting cars in accordance with this order shall notify each shipper at the time each car is rerouted or diverted and shall furnish to such shipper the new routing provided under this order.

(d) Inasmuch as the diversion or rerouting of traffic by said agent is deemed to be due to carrier's disability, the rates applicable to traffic diverted or rerouted by said agent shall be the rates which were applicable at the time of shipment on the shipments as originally routed.

(e) In executing the directions of the Commission and of such agent provided for in this order, the common carriers involved shall proceed even though no contracts, agreements, or arrangements now exist between them with reference to the divisions of the rates of transportation applicable to said traffic; divisions shall be, during the time this order remains in force, those voluntarily agreed upon by and between said carriers; or upon failure of the carriers to so agree, said divisions shall be those hereafter fixed by the Commission in accordance with pertinent authority conferred upon it by the Interstate Commerce Act.

(f) Effective date: This order shall become effective at 2 p.m., June 23, 1967.

(g) Expiration date: This order shall expire at 11:59 p.m., June 30, 1967, unless otherwise modified, changed or suspended.

It is further ordered, That this order shall be served upon the Association of American Railroads, Car Service Division, as agent of all railroads subscribing to the car service and per diem agreement under the terms of that agreement and that it be filed with the Director, Office of the Federal Register.

Issued at Washington, D.C., June 23, 1967.

INTERSTATE COMMERCE COMMISSION,
[SEAL] R. D. PFAHLER,
Agent.

[F.R. Doc. 67–7410; Filed, June 28, 1967; 8:50 a.m.]

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PART II

Department of Transportation



Public Availability of Information

Title 49—TRANSPORTATION

Subtitle A—Office of the Secretary of Transportation

PART 7—PUBLIC AVAILABILITY OF INFORMATION

This amendment adds a new Part 7 "Public Availability of Information" to the regulations of the Department. It implements section 552 of Title 5, United States Code (originally enacted as a revision of section 3 of the Administrative Procedure Act by P.L. 89-487) and applies to records in the Office of the Secretary and any of the operating administrations of the Department, except the National Transportation Safety Board, which will issue its own regulations on the subject.

Section 552 of Title 5 establishes the general standard of full public disclosure of Government information unless that information is exempt from disclosure under clearly delineated statutory authority. The President, in endorsing this standard, stated that "* * * A democracy works best when the people have all the information that the security of the nation permits. No one should be able to pull curtains of secrecy around decisions which can be revealed without injury to the public interest."

Part 7 reflects the spirit and intent of section 552 and the President's message. In implementing section 552 and Part 7, the policy of the Department will be to make all information available to the public except that which must not be disclosed in the national interest, to protect the right of an individual to personal privacy, or to ensure the effective conduct of public business. To this end, the part provides that information will be made available to the public even if it falls within one of the exemptions set forth in section 552(b), unless the release of that information would be inconsistent with the purpose of the exemption.

Part 7 prescribes the basic regulations and policy governing the implementation of section 552 by the Department. The new part will not affect the traditional public information programs of the Department. Public information offices of the Department will continue their customary public information activities, including providing, without charge to the public, brochures, pamphlets, films, speeches, and other educational, advisory, and informational material. In addition, Part 7 applies only to records in existence at the time the request is made and does not apply to requests for special statistical studies or special statistical compilations.

Part 7 is composed of eight subparts. Subpart A sets forth the applicability of the part, the policy of the Department as outlined above, and defines terms used in the part.

Subpart B provides the authority for administrative implementation of the part and provides for redelegation of this authority within the operating administrations of the Department. However, in keeping with the Department's policy of making information available to the maximum extent feasible and to ensure uniform application of that policy, it provides that the head of an operating administration may delegate final authority under Subpart G (relating to the nondisclosure of records) only to his deputy and one other person who reports directly to that head and who is located at the headquarters of that administration.

Subpart C covers material that the Department will publish in the FEDERAL REGISTER in accordance with section 552(a)(1) of Title 5. This material includes (1) descriptions of the organization of the Department; (2) statements of the general course and methods by which the Department's functions are exercised; (3) substantive and procedural rules; and (4) statements of general policy. This subpart also provides that a person may not in any manner be required to resort to, or be adversely affected by, any procedure or matter required to be published in the FEDERAL REGISTER but not so published.

Subpart D implements section 552(a)(2) of Title 5 and prescribes rules governing the availability for public inspection and copying of (1) final opinions and orders in the adjudication of cases, including the grant or denial of a license; (2) policies and interpretations adopted under the authority of the Department; and (3) administrative staff manuals and instructions to staff that affect any member of the public. In addition, the subpart requires preparation of indexes to this material and making those indexes available for public inspection and copying. The material covered by Subpart D will be made available at various offices of the Department and its operating administrations.

Subpart E implements section 552(a)(3) of Title 5 and prescribes regulations governing public inspection and copying of identifiable records. Each request for a record under this subpart is required to contain as much information covering that record as possible in order to facilitate the fulfilling of the request. Records that are available may be inspected and copied during regular working hours at the place where they are located. Copies will, of course, be mailed to the requester upon payment of the prescribed fee.

Subpart F implements section 552(b) of Title 5, describes records that are not required to be disclosed, and states the purposes of the exemptions from required disclosure. However, it is emphasized that a record will be disclosed even if it is within the statutory exemption, unless its release would be inconsistent with the purpose of the exemption. Section 552(b) and Subpart F recognize that the release of certain kinds of records may be contrary to the public interest. Typical of the material covered by Subpart F are intragovernmental memoranda that would not be routinely available through discovery procedures to a private person in litigation with the Department. The courts have recognized that the public interest requires that intragovernmental exchanges be protected from disclosure, provided that the facts on which decisions are based are made available.

Subpart G prescribes procedures governing determinations by Department officials that a record which is requested may not be disclosed. It assures that each request will be fully and carefully considered in accordance with Part 7 and Department policy and that Part 7 and that policy will be uniformly applied.

The fees for obtaining copies of records are contained in Subpart H. Following the intent of the statute, the services performed by the Department will be self-sustaining. Title V of the Independent Offices Appropriation Act of 1952 (65 Stat. 290) states "It is the sense of the Congress that any work, service, publication, report, document * * * furnished * * * by any Federal agency * * * to or for any person * * * shall be self-sustaining to the full extent possible * * *." It further provides that the head of each agency is authorized to prescribe a fee or charge therefor. In addition, Circular A-25, issued by the Bureau of the Budget on September 23, 1959, sets forth policies to develop a uniform system of charges. The fees are based on the estimated costs of providing search and copying services and reflect the experience of the agencies in this regard. They will be periodically reviewed and revised as necessary.

Appendix A describes the document inspection facility that will be maintained in the Office of the Secretary and lists the materials that will be available for public inspection and copying at that facility.

Appendices B through F describe the places at which the operating administrations maintain records and list the materials that are available for public inspection and copying at those facilities.

Since this amendment relates to Departmental organization, procedure, and practices, notice and public procedure hereon is unnecessary and it may be made effective in less than 30 days after publication in the FEDERAL REGISTER.

In consideration of the foregoing, Title 49 of the Code of Federal Regulations is amended by adding the following new Part 7 "Public Availability of Information", effective July 4, 1967.

Issued in Washington, D.C., on June 26, 1967.

ALAN S. BOYD,
Secretary of Transportation.

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AUTHORITY: The provisions of this Part 7 issued under sec. 552, Title 5, United States Code; sec. 9, Department of Transportation Act (P.L. 89-670; 49 U.S.C. 1657); Title V, Independent Offices Appropriation Act of 1952 (65 Stat. 290).

Subpart A—Applicability and Policy

§ 7.1 Applicability.

(a) This part implements section 552 of Title 5, United States Code, and prescribes rules governing the availability to the public of the records of the Department of Transportation. It does not apply to the National Transportation Safety Board.

(b) Subpart F of this part describes the records that are not required to be disclosed under this part.

(c) Appendices A through F to this part describe the places and times at which records will be available for inspection and copying and define the kinds of records located at each facility. The Assistant Secretary for Public Affairs may amend Appendix A to this part to reflect any changes in the items covered by that appendix. The head of the operating administration concerned may amend the appendix applicable to that Administration to reflect any changes in the items covered by that appendix.

(d) This part applies only to records that exist at the time the request for the information is made. The Department is not required to compile or procure a record solely for the purpose of making it available under this part.

(e) This part does not apply to studies, compilations, transcripts, or other records requested under section 9(n) of the Department of Transportation Act.

§ 7.3 Policy.

In implementing section 552 of Title 5, United States Code, it is the policy of the Department of Transportation to make information within the Department available to the public to the greatest extent possible in keeping with the spirit of that section. Therefore, all records of the Department, except those that the Department specifically determines must not be disclosed in the national interest, for the protection of private rights, or for the efficient conduct of public business, are declared to be available for public inspection and copying as provided in this part. Each officer and employee of the Department is directed to cooperate to this end and to make records available to the public promptly and to the fullest extent consistent with this policy. A record may not be withheld from the public solely because its release might suggest administrative error or embarrass an officer or employee of the Department.

§ 7.5 Definitions.

Unless the context requires otherwise, the following definitions apply in this part:

"Department" means the Department of Transportation, including the Office of the Secretary and the following operating administrations:

(a) The Coast Guard.

(b) The Federal Aviation Administration.

(c) The Federal Highway Administration.

(d) The Federal Railroad Administration.

(e) The St. Lawrence Seaway Development Corporation.

"Includes" means "includes but is not limited to."

"May" is used in a permissive sense to state authority or permission to do the act prescribed.

"Record" includes any writing, drawing, map, recording, tape, film, photograph, or other documentary material by which information is preserved.

"Secretary" means the Secretary of Transportation or any person to whom he has delegated his authority in the matter concerned.

Subpart B—General

§ 7.11 Administration of part.

Authority to administer this part in connection with the records in the Office of the Secretary is delegated to the Assistant Secretary for Public Affairs. Authority to administer this part in connection with records in each operating administration is delegated to the head of that administration. The head of any operating administration may redelegate to officers of that administration the authority to administer this part in connection with defined groups of records. However, the head of an operating administration may redelegate his duties under Subpart G of this part only to his deputy and to not more than one other officer who reports directly to the head and who is located at the headquarters of that administration.

§ 7.13 Deletion of identifying detail.

Whenever it is determined to be necessary to prevent a clearly unwarranted invasion of personal privacy, identifying details are deleted from any record covered by this part that is published or made available for inspection. A full explanation of the justification for the deletion is attached to the copy of the record published or made available for inspection.

§ 7.15 Records containing both available and unavailable information.

If a record contains information that the Department determines cannot be disclosed under this part, but also contains information that can be disclosed, the latter information will be provided for public inspection and copying unless—

(a) It is readily available from another source;

(b) The other source is made known to the person desiring the record; and

(c) It is not otherwise readily available in the Department.

§ 7.17 Protection of records.

(a) No person may, without permission, remove any record made available to him for inspection or copying under this part, from the place where it is made available. In addition, no person may steal, alter, mutilate, obliterate, or destroy, in whole or in part, such a record.

(b) Section 641 of Title 18 of the United States Code provides, in pertinent part, as follows:

> Whoever * * * steals, purloins, or knowingly converts to his use or the use of another, or without authority, sells, conveys or disposes of any record * * * or thing of value of the United States or of any department or agency thereof * * * shall be fined not more than $10,000 or imprisoned not more than 10 years or both; but if the value of such property does not exceed the sum of $100, he shall be fined not more than $1,000 or imprisoned not more than one year, or both. * * *

Section 2071 of Title 18 of the United States Code provides, in pertinent part, as follows:

> Whoever willfully and unlawfully conceals, removes, mutilates, obliterates, or destroys, or attempts to do so, or, with intent to do so takes and carries away any record, proceeding, map, book, paper, document, or other thing, filed or deposited * * * in any public office, or with any * * * public officer of the United States, shall be fined not more than $2,000 or imprisoned not more than 3 years, or both.

Subpart C—Publication in Federal Register

§ 7.21 Applicability.

This subpart implements section 552 (a)(1) of Title 5, United States Code, and prescribes rules governing the publication in the FEDERAL REGISTER of the following:

(a) Descriptions of the organization of the Department, including its operating administrations and the established places at which, the officers from whom, and the methods by which, the public (1) may secure information; and (2) make submittals or requests or obtain decisions.

(b) Statements of the general course and methods by which the Department's functions are channeled and determined, including the nature and requirements of all formal and informal procedures available.

(c) Rules of procedure, descriptions of forms available or the places at which forms may be obtained, and instructions as to the scope and contents of all papers, reports or examinations.

(d) Substantive rules of general applicability adopted as authorized by law, and statements of general policy or interpretations of general applicability adopted by the Department.

(e) Each amendment, revision, or repeal of any material listed in paragraphs (a) through (d) of this section.

§ 7.23 Publication required.

(a) *General.* All material described in § 7.21 is published in the FEDERAL REGISTER. For the purposes of this paragraph, material that is reasonably available to the class of persons affected by it is considered to be published in the FEDERAL REGISTER if it has been incorporated by reference therein with the approval of the Director of the Federal Register.

(b) *Effect of nonpublication.* Except to the extent that a person has actual and timely notice of the terms thereof, no person may in any manner be required to resort to, or be adversely affected by, any procedure or matter required to be published in the FEDERAL REGISTER but not so published.

Subpart D—Availability of Opinions, Orders, Staff Manuals, Statements of Policy, and Interpretations: Indexes

§ 7.31 Applicability.

(a) This subpart implements section 552(a)(2) of Title 5, United States Code. It prescribes the rules governing the availability, for public inspection and copying, of the following:

(1) Any final opinion (including a concurring or dissenting opinion) or order made in the adjudication of a case.

(2) Any policy or interpretation that has been adopted under the authority of the Department, including any policy or interpretation concerning a particular factual situation, if that policy or interpretation can reasonably be expected to have precedential value in any case involving a member of the public in a similar situation.

(3) Any administrative staff manual or instruction to staff that affects any member of the public, including the prescribing of any standard, procedure, or policy that, when implemented, requires or limits any action of any member of the public or prescribes the manner of performance of any activity by any member of the public.

In addition, this subpart provides for an index of the materials listed in this paragraph.

(b) Any material listed in paragraph (a) of this section that is not made available for public inspection and copying, or that is not indexed as required by § 7.35, may not be cited, relied on, or used as precedent by the Department to adversely affect any member of the public, unless the person against whom it is cited, relied on, or used has had actual and timely notice of that material.

(c) This subpart does not apply to material that is published in the FEDERAL REGISTER or is covered by Subpart F of this part.

§ 7.33 Access to materials and index.

(a) Except as provided in paragraph (b) of this section, material listed in § 7.31(a) is available for inspection and copying by any member of the public at document inspection facilities of the Department. The index of material available at each facility is also located at the facility. Information as to the kinds of materials available at each facility may be obtained from that facility or the headquarters of the operating administration of which it is a part.

(b) The material listed in § 7.31(a) that is published and offered for sale is indexed but is not required to be kept available for public inspection. However, whenever practicable, it will be made available for public inspection at any document inspection facility maintained by the Office of the Secretary or an operating administration, whichever is concerned.

§ 7.35 Indexes of public materials.

The index of material subject to public inspection and copying under this subpart covers all material issued, adopted, or promulgated after July 4, 1967. However, earlier material may be included in the index to the extent practicable. Each index contains instructions on how to use it.

§ 7.37 Copies.

Copies of any material covered by this subpart that is not published and offered for sale may be ordered, upon payment of the appropriate fee, from the office in which the material is located. Copies are certified upon request and payment of the prescribed fee.

Subpart E—Availability of Identifiable Records

§ 7.41 Applicability.

This subpart implements section 552 (a)(3) of Title 5, United States Code, and prescribes the regulations governing public inspection and copying of identifiable records. However, it does not apply to material that is covered by Subparts C and D of this part, records determined under Subpart F of this part not to be available, and material that is offered for sale by the Government Printing Office.

§ 7.43 Public availability of records.

(a) Each person desiring to see a record covered by this subpart that is located in the Office of the Secretary, or to obtain a copy of such a record, must make a written request to the Assistant Secretary for Public Affairs, 800 Independence Avenue SW., Washington, D.C. 20590.

(b) Each person desiring to see a record covered by this subpart that is located in an operating administration, or to obtain a copy of such a record, must make a written request to that administration at the address set forth in the appendix applicable to that administration.

(c) If the person making the request does not know where in the Department the record is located, he may send his request to the Assistant Secretary for Public Affairs at the address in paragraph (a) of this section.

(d) Each request must describe the particular record in enough detail to allow the record to be identified and located with a reasonable amount of effort. So far as possible, the request must specify the subject matter of the record, the date when it was made, the place where it was made, and the person or office that made it. If the description is insufficient, the officer handling the request will notify the applicant and, to the extent possible, indicate the additional data required. In any case in which an extended period of time will be required to identify and locate the record sought, the officer handling the request will notify the person making the request of the estimated time required to fill the request.

(e) Each record covered by this subpart is available for inspection and copying during regular working hours at the place where it is located. Original records may be copied but may not be released from custody. Upon payment of the prescribed fee, copies will be mailed to the requester.

(f) Each request for a search of records or for a copy of a record must be accompanied by the fee prescribed in the applicable fee schedule. The fee for a search is charged, regardless of whether it is successful. If the fee cannot be ascertained from the appropriate schedule, the officer or employee processing the request will furnish an estimate of the fee to the person making the request.

(g) Notwithstanding paragraphs (a) through (f) of this section, informational material, such as press releases, pamphlets, and other material of that nature that is ordinarily made available to the public as a part of any information program of the Government is available upon oral or written request. There is no fee for individual copies of that material as long as it is in supply. In addition, the Department will continue to respond,

without charge, to routine oral or written inquiries that do not involve the furnishing of records.

§ 7.45 Request for records of concern to more than one Governmental organization.

If the release of a record covered by this subpart would be of concern to both this Department and another Federal agency, a State or local government, or a foreign government, the record will be made available by the Department only if its interest in that record is the primary interest and only after coordination with the other interested agency, the State or local government, or the foreign government, as the case may be. If this Department's interest in a record that is identifiable as being of concern to another agency is not the primary interest, the request will be transferred to the agency having the primary interest, and the requester will be notified of that action.

Subpart F—Exemptions

§ 7.51 Applicability.

This subpart implements section 552 (b) of Title 5, United States Code. Section 552(b) exempts certain records from public inspection under section 552(a). However, the Department will release a record authorized to be withheld under §§ 7.55 through 7.69, unless it determines that the release of that record would be inconsistent with a purpose of the section concerned.

§ 7.53 Records relating to matters that are required by Executive Order to be kept secret.

Records relating to matters that are protected by Executive order from disclosure, in the interests of national defense or foreign policy, include those within the scope of the following, and any further amendment of any of them:

(a) Executive Order 10501 of November 5, 1953 (3 CFR 1949–53 Comp., p. 979), as amended by Executive Order 11097 of February 28, 1963 (3 CFR, 1963 Supp., p. 161);

(b) Executive Order 10865 (3 CFR, 1960 Supp., p. 62); and

(c) Executive Order 10104 (3 CFR, 1953 Comp., p. 298).

These records may not be made available for public inspection.

§ 7.55 Records related solely to internal rules and practices.

(a) Records related solely to internal rules and practices that are within the statutory exemption include memoranda pertaining to personnel matters such as staffing policies and policies and procedures for the hiring, training, promotion, demotion, and discharge of employees. In addition, records concerning operating rules, practices, guidelines, and procedures for Departmental inspectors, investigators, and examiners, the release of which would substantially impair the effective performance of their duties, are included.

(b) The purpose of this section is to authorize the protection of any record that is designed only for the guidance of Department personnel, including internal rules and practices that cannot be disclosed to the public without substantial prejudice to the effective performance of a significant Department function. A negotiator cannot bargain effectively if his instructions and limitations are known to the person with whom he is negotiating. Similarly, the effectiveness of an authorized but unannounced inspection or audit would be destroyed if the circumstances under which that inspection or audit is to be held become public knowledge.

§ 7.57 Records exempted from disclosure by statute.

(a) Records relating to matters that are specifically exempted by statute from disclosure include those covered by the following:

(1) Section 1905 of Title 18, United States Code, protecting trade secrets, processes, and certain economic and other data obtained by examination or investigation, or from reports.

(2) Revised Statutes section 4448, as amended (46 U.S.C. 234) protecting the source of reports of defects and imperfections of vessels.

(3) Revised Statutes section 4551, as amended (46 U.S.C. 643) protecting the names, addresses, and next of kin of merchant seamen and entries made in records pertaining to merchant seamen.

(4) Public Law 86–660, as amended (23 U.S.C. 313 (note)) protecting information in the register of persons whose license to operate a motor vehicle has been denied, terminated, or suspended.

(5) Section 106 of Public Law 89–564 (23 U.S.C. 403 (note)) relating to identification of individuals in reports on highway traffic accidents.

(6) Section 220(f) of the Interstate Commerce Act, as amended (49 U.S.C. 320(f)), relating to accident reports filed by motor carriers.

(7) Section 222(d) of the Interstate Commerce Act, as amended (49 U.S.C. 322(d)) relating to information as to motor carriers obtained during the course of an examination or inspection.

(8) Section 902(f) of the Federal Aviation Act (49 U.S.C. 1472(f)) relating to information obtained by examining the accounts, records, or memoranda of an air carrier.

(9) Section 1104 of the Federal Aviation Act (49 U.S.C. 1504) relating to the withholding, upon request, of information obtained under that Act.

(b) The purpose of this section is to preserve the effectiveness of statutes of the kind listed in paragraph (a) of this section, in accordance with their terms.

§ 7.59 Trade secrets and privileged or confidential information.

(a) Trade secrets and privileged or confidential information that are within the statutory exemption include the following:

(1) Information furnished by any person, to the extent that the person furnishing the information would not customarily release it to the public.

(2) Information furnished and accepted in confidence.

(3) Statements of financial interests furnished by employees of the Department.

(4) Commercial, technical, and financial information furnished by any person in connection with an application for a loan or a loan guarantee.

(5) Information customarily subject to a doctor-patient, lawyer-client, priest-penitent, or similar privilege.

(6) Materials in which the Department has a property right such as designs, drawings, and other data and reports acquired in connection with any research project, inside or outside of the Department, or any grant or contract.

(b) The purpose of this section is to authorize the protection of records that are customarily privileged or are appropriately given to the Department in confidence. It assures the confidentiality of information obtained by the Department through questionnaires and required reports to the extent that the information would not customarily be made public by the person from whom it was obtained. In any case in which the Department has obligated itself not to disclose information it receives, this section authorizes the Department to honor that obligation. In addition, this section recognizes that certain materials, such as research data and materials, formulae, designs, and architectural drawings, have significance not as records but as items of property acquired, in many cases, at public expense. In any case in which similar proprietary material in private hands would be held in confidence, material covered by this section may be held in confidence.

§ 7.61 Intragovernmental exchanges.

(a) Any record prepared by a Government officer or employee (including those prepared by a consultant or advisory body) for internal Government use is within the statutory exemption to the extent that it contains—

(1) Opinions, advice, deliberations, or recommendations made in the course of developing official action by the Government; or

(2) Information concerning any pending matter, including any claim or other dispute to be resolved before a court of law, administrative board, hearing officer, or contracting officer.

(b) This section has two distinct purposes. One is to protect the full and frank exchange of ideas, views, and opinions necessary for the effective functioning of the Government. This judicially recognized privilege of protection against disclosure in litigation or elsewhere is intended to assure that these resources will be fully and readily available to those officials upon whom the responsibility rests to take official and final Department action. However, the action itself and the facts on which it is based are not within this protection. The other purpose is to protect against the premature disclosure of material that is in the development stage if premature disclosure would be detrimental to the authorized and appropriate purposes for which the material is being used, or if,

because of its tentative nature, the material is likely to be revised or modified before it is officially presented to the public.

(c) Examples of records covered by this section include minutes; staff papers containing advice, opinions, suggestions, or exchanges of views, preliminary to final agency decision or action; budgetary planning and programming information; advance information on such things as proposed plans to procure, lease, or otherwise hire and dispose of materials, real estate, or facilities; documents exchanged preparatory to anticipated legal proceedings; material intended for public release at a specified future time, if premature disclosure would be detrimental to orderly processes of the Department; records of inspections, investigations, and surveys pertaining to internal management of the Department; and matters that would not be routinely disclosed under disclosure procedures in litigation and which are likely to be the subject of litigation. However, if such a record also contains factual information, that information may be made available under § 7.15.

§ 7.63 Protection of personal privacy.

(a) Any of the following personnel, medical, or similar records is within the statutory exemption if its disclosure would harm the individual concerned or be a clearly unwarranted invasion of his personal privacy:

(1) Personnel and background records personal to any officer or employee of the Department, or other person, including his home address.

(2) Medical histories and medical records concerning individuals, including applicants for licenses.

(3) Any other detailed record containing personal information identifiable with a particular person.

(b) The purpose of this section is to provide a proper balance between the protection of personal privacy and the preservation of the public's right to Department information by authorizing the protection of information that, if released, might unjustifiably invade an individual's personal privacy.

§ 7.65 Investigatory files compiled for law enforcement purposes except to extent available by law to private parties.

(a) Files compiled by the Department for law enforcement purposes, including the enforcement of the regulations of the Department, are within the statutory exemption, except to the extent available by law to a private party.

(b) The purpose of this section is to protect from disclosure the law enforcement files of the Department, including files prepared in connection with related litigation and adjudicative proceedings. It includes the enforcement not only of criminal statutes but all kinds of laws. It is also the purpose of this section to preserve the position of the Government in litigation or potential litigation, in accordance with the rules governing discovery in cases before courts and administrative agencies. While it confirms the availability to litigants of documents from investigatory files to the extent that Congress and the courts have made them available, it ensures that the litigant is not given any earlier or greater access to investigatory material than he would have directly in litigation or other enforcement proceedings.

§ 7.67 Reports of financial institutions.

Any material contained in or related to any examination, operating, or condition report prepared by, on behalf of, or for the use of, any agency responsible for the regulation or supervision of financial institutions is within the statutory exemption.

§ 7.69 Geological and geophysical information.

Any geological or geophysical information and data (including maps) concerning wells is within the statutory exemption.

Subpart G—Procedures for Reconsidering Decisions Not To Disclose Records

§ 7.71 General.

(a) Each officer or employee of the Department who, upon a request by a member of the public for a record under this part, makes a determination that the record is not to be disclosed, will give a written statement of his reasons for that determination to the person making the request.

(b) Any person to whom a record is not made available within a reasonable time after his request, and any person who has been given a determination, pursuant to paragraph (a) of this section, that a record he has requested will not be disclosed, may apply to the Assistant Secretary for Public Affairs, or the head of the operating administration concerned, as the case may be, for reconsideration of the request.

(c) Each application for reconsideration must be in writing and must include all information and arguments relied upon by the person making the request.

(d) Whenever the Assistant Secretary or the head of the operating administration concerned determines it to be necessary, he may require the person making the request to furnish additional information, or proof of factual allegations, and may order other proceedings appropriate in the circumstances. The decision of the Assistant Secretary or the head of the operating administration concerned as to the availability of the record is administratively final.

(e) A decision by the Assistant Secretary or the head of the operating administration concerned not to disclose a record under this part is considered to be a withholding by the Secretary for the purposes of section 552(a)(3) of Title 5, United States Code.

Subpart H—Fees

§ 7.81 General.

This subpart prescribes fees for services performed for the public under Subparts D and E of this part by the Department of Transportation.

§ 7.83 Payment of fees.

The fees prescribed in this subpart may be paid by check, draft, or postal money order, payable to the Treasurer of the United States. The fee is payable in advance.

§ 7.85 Fee schedule.

(a) Search for a record under Subpart E, including making it available for inspection	$3.00
(b) Copies of documents by photocopy or similar method:	
(1) Each page not larger than 12 by 18 inches	.50
(2) Minimum charge	1.00
(c) Copies of documents by typewriter, each page	2.50
(d) Certified copies of documents:	
(1) With Department of Transportation seal	2.00
(2) True copy, without seal	1.00
(e) Photographs: black and white glossy print, 8" x 10" or smaller, each	1.00
(f) Duplicate data tapes—each reel of tape or fraction thereof	40.00
(g) Microfilm copies, each 100 foot roll or less	8.00
(h) Data processed records, each 1,000 lines or fraction thereof	5.00
(i) Preprinted materials, shelf stock, one color, standard sizes:	
(1) Each page (excluding blanks)	.05
(2) Minimum charge	1.00
(j) Other records: The fee for a copy of a record not described in paragraphs (b) through (i) of this section will be supplied upon request. The amount of that fee will be the cost of producing and handling. Fees covering items that are peculiar to the records of any operating administration may be prescribed in the appendix to this part that is applicable to that Administration.	

APPENDIX A—OFFICE OF THE SECRETARY

1. *General.* This appendix describes the document inspection facility of the Office of the Secretary, the kinds of records that are available for public inspection and copying at that facility, and the procedures by which members of the public may make requests for identifiable records.

2. *Document inspection facility.* The document inspection facility for the Office of the Secretary is maintained by the Assistant Secretary for Public Affairs, 800 Independence Avenue SW., Washington, D.C. 20590. This facility is open to the public from 8:30 a.m. to 5 p.m. on regular working days.

3. *Records available at the document inspection facility.* The following records are located at the document inspection facility:

(a) Any material issued by the Office of the Secretary and published in the FEDERAL REGISTER, including regulations.

(b) Final opinions (including concurring or dissenting opinions) and orders made in the adjudication of cases and issued from within the Office of the Secretary.

(c) Any policy or interpretation issued within the Office of the Secretary, including any policy or interpretation concerning a particular factual situation, if that policy or interpretation can reasonably be expected to have precedential value in any case involving a member of the public in a similar situation.

(d) Any administrative staff manual or instruction to staff, issued from within the Office of the Secretary, that affects any member of the public, including the prescribing of any standard, procedure, or policy that,

when implemented, requires or limits any action of any member of the public or prescribes the manner of performance of any activity by any member of the public.

(e) An index to the material described in items (a) through (d).

The records and the index may be inspected, at the facility, without charge. Copies of records may be obtained upon payment of the fee prescribed in Subpart H of this part.

4. *Requests for identifiable records under Subpart E of this part.* Each person desiring to inspect a record, or to obtain a copy thereof, must submit his request in writing to the Assistant Secretary for Public Affairs at the address listed in paragraph (a) of this appendix. Each request must be accompanied by the appropriate fee prescribed in Subpart H of this part.

APPENDIX B—UNITED STATES COAST GUARD

1. *General.* This appendix describes the document inspection facilities of the U.S. Coast Guard, the kinds of records that are available for public inspection and copying at those facilities and the procedures by which members of the public may make requests for identifiable records.

2. *Document inspection facilities.* The document inspection facilities are located at the offices of the Commandant and District Commanders. These facilities are open to the public during regular working hours at the following addresses:

Commandant (A), U.S. Coast Guard, 1300 E Street NW., Washington, D.C. 20591.

DISTRICT OFFICES

Commander, 1st Coast Guard District, J. F. Kennedy Federal Building, Government Center, Boston, Mass. 02203.
Commander, 2d Coast Guard District, Federal Building, 1520 Market Street, St. Louis, Mo. 63103.
Commander, 3d Coast Guard District, Governors Island, New York, N.Y. 1004.
Commander, 5th Coast Guard District, Federal Building, 431 Crawford Street, Portsmouth, Va. 23705.
Commander, 7th Coast Guard District, Room 1203, Federal Building, 51 Southwest First Avenue, Miami, Fla. 33130.
Commander, 8th Coast Guard District, Customhouse, New Orleans, La. 70130.
Commander, 9th Coast Guard District, Main Post Office Building, West Third and Prospect Streets, Cleveland, Ohio 44113.
Commander, 11th Coast Guard District, Heartwell Building, 19 Pine Avenue, Long Beach, Calif. 90802.
Commander, 12th Coast Guard District, 630 Sansome Street, San Francisco, Calif. 94126.
Commander, 13th Coast Guard District, 618 Second Avenue, Seattle, Wash. 98104.
Commander, 14th Coast Guard District, 1347 Kapiolani Boulevard, Honolulu, Hawaii 96814.
Commander, 17th Coast Guard District, Post Office Box 3-5000, Federal Building, Juneau, Alaska 99801.

3. *Records available at document inspection facilities.* (a) The following records are available at any U.S. Coast Guard document inspection facility:

(1) Final opinions and orders made in the adjudication of cases by the Commandant, U.S. Coast Guard.

(2) U.S. Coast Guard numbered publications that affect any member of the public, including the prescribing of any standard, procedure, or policy that, when implemented, requires or limits any action of any member of the public or prescribes the manner of performance of any activity by any member of the public.

(b) Opinions and orders of Hearing Examiners are available at the document inspection facility of the Office of the Commandant and the District in which the Hearing Examiner is located.

(c) Policies and interpretations issued within the U.S. Coast Guard (including any policy or interpretation concerning a particular factual situation, if that policy or interpretation can reasonably be expected to have precedential value in any case involving a member of the public in a similar situation) are available at the document inspection facility of the Office of the Commandant.

(d) An index of the records located at each facility is maintained at that facility.

(e) The records and the index may be inspected, at the facility, without charge. Copies of records may be obtained upon payment of the fee prescribed in Subpart H of this part.

4. *Requests for identifiable records under Subpart E of this part.* Each person desiring to inspect a record, or to obtain a copy thereof, must submit his request in writing to the U.S. Coast Guard office in which it is located. The addresses of the Offices of the Commandant and District Commanders are listed in section 2 of this appendix. The addresses of the offices of Officers in Charge, Marine Inspection are listed in paragraph (d) of this section. If the location of the record is not known, the request may be submitted to the Office of the Commandant. Each request must be accompanied by the appropriate fee prescribed in Subpart H of this part. The following table gives illustrations of types of records and where they are located:

(a) The types of records maintained at the office of the Commandant, U.S. Coast Guard, include the following:

(1) Central files of merchant seamen.
(2) Marine casualty investigation records.
(3) Records of certificates and licenses issued to merchant seamen.
(4) Merchant vessel shipping articles.
(5) Merchant vessel inspection records.
(6) Records of merchant vessel documentation and records of sales and other dispositions.
(7) Merchant vessel equipment approvals.
(8) Merchant Marine Council proceedings.
(9) Recreational boating records.
(10) Great Lakes Pilotage records.
(11) Records pertaining to bridges over navigable waters.
(12) Central files of Coast Guard personnel.
(13) Coast Guard courts-martial records.
(14) Records of Coast Guard property and contracts.

(b) The types of records maintained by the office of the appropriate District Commander include the following:

(1) Navigation and Vessel Inspection penalty action records.
(2) Search and rescue records.
(3) Coast Guard vessel and shore station logbooks.
(4) Port safety and waterfront facility records.
(5) Coast Guard property and contracts.
(6) Aids to navigation records.
(7) Records of bridges over navigable waters.

(c) The types of records maintained by the appropriate Officer in Charge, Marine Inspection include the following:

(1) Certificates and licenses issued to merchant seamen.
(2) Merchant vessel inspection records.
(3) Merchant vessel logbooks and shipping articles.
(4) Shipment and discharge of seamen records.
(5) Marine casualty investigation records.
(6) Shipyard and factory inspection records.
(7) Records of merchant vessel documentation and recording of sales and other dispositions.

(d) *Officer In Charge, U.S. Coast Guard Marine Inspection:*

Officer In Charge, USCG Marine Inspection, 427 Commercial Street, Boston, Mass. 02109.
Officer In Charge, USCG Marine Inspection, Post Office Box 108, Pearl Street Station, Portland, Maine 04112.
Officer In Charge, USCG Marine Inspection, 409 Federal Building, Providence, R.I. 02903.
Officer In Charge, USCG Marine Inspection, Post Office Box 391, Cairo, Ill. 62914.
Officer In Charge, USCG Marine Inspection, Room 8413, Federal Office Building 550 Main Street, Cincinnati, Ohio 45202.
Officer In Charge, USCG Marine Inspection, Box 695, Dubuque, Iowa 52001.
Officer In Charge, USCG Marine Inspection, 328 Post Office and Federal Courthouse Building, Fifth Avenue and Ninth Street, Huntington, W. Va. 25701.
Officer In Charge, USCG Marine Inspection, 254 Francis Building, Fourth and Chestnut Streets, Louisville, Ky. 40202.
Officer In Charge, USCG Marine Inspection, 856 Federal Building, 167 North Main Street, Memphis, Tenn. 38103.
Officer In Charge, USCG Marine Inspection, 670 U.S. Courthouse, 801 Broadway, Nashville, Tenn. 37203.
Officer In Charge, USCG Marine Inspection, U.S. Post Office and Courthouse Building, Room 1032, Pittsburgh, Pa. 15219.
Officer In Charge, USCG Marine Inspection, Federal Building, 1520 Market Street, St. Louis, Mo. 63103.
Officer In Charge, USCG Marine Inspection, Room 313, Federal Building, Albany, N.Y. 12207.
Officer In Charge, USCG Marine Inspection, Room 306, Post Office Building, New London, Conn. 06321.
Officer In Charge, USCG Marine Inspection, Battery Park Building, New York, N.Y. 10004.
Officer In Charge, USCG Marine Inspection, Customhouse, Philadelphia, Pa. 19106.
Officer In Charge, USCG Marine Inspection, Customhouse, Baltimore, Md. 21202.
Officer In Charge, USCG Marine Inspection, Federal Building, Room 200, Portsmouth, Va. 23705.
Officer In Charge, USCG Marine Inspection, Room 101-105, Customhouse, Wilmington, N.C. 28401.
Officer In Charge, USCG Marine Inspection, Room 625, Federal Building, 334 Meeting Street, Charleston, S.C. 29403.
Officer In Charge, USCG Marine Inspection, Room 210, Federal Building, Post Office Box 4968, Jacksonville, Fla. 32201.
Officer In Charge, USCG Marine Inspection, Room 1202, Federal Building, 51 Southwest First Avenue, Miami, Fla. 33130.
Officer In Charge, USCG Marine Inspection, Room 302, Federal Building, Post Office Box 3666, San Juan, P.R. 00904.
Officer In Charge, USCG Marine Inspection, Post Office Box 191, Savannah, Ga. 31402.
Officer In Charge, USCG Marine Inspection, Room 210, 500 Zack Street, Post Office Box 3172, Tampa, Fla. 33601.
Officer In Charge, USCG Marine Inspection, Room 101, Federal Building, Corpus Christi, Tex. 78401.
Officer In Charge, USCG Marine Inspection, Room 232, Customhouse, Galveston, Tex. 77550.
Officer In Charge, USCG Marine Inspection, 7300 Wingate Street, Houston, Tex. 77011.
Officer In Charge, USCG Marine Inspection, Room 563, Federal Building, Mobile, Ala. 36602.
Officer In Charge, USCG Marine Inspection, 310 Customhouse, New Orleans, La. 70130.
Officer In Charge, USCG Marine Inspection, 1601 Proctor Street, Port Arthur, Tex. 77640.

Officer In Charge, USCG Marine Inspection, Room 440, Federal Building, 121 Ellicott Street, Buffalo, N.Y. 14203.
Officer In Charge, USCG Marine Inspection, 10101 South Ewing Avenue, Chicago, Ill. 60617.
Officer In Charge, USCG Marine Inspection, 1055 East Ninth Street Cleveland, Ohio 44114.
Officer In Charge, USCG Marine Inspection, Federal Building, Room 424, Detroit, Mich. 48226.
Officer In Charge, USCG Marine Inspection, Federal Building Room 311, Duluth, Minn. 55802.
Officer In Charge, USCG Marine Inspection, Post Office Box 308, Ludington, Mich. 49431.
Officer In Charge, USCG Marine Inspection, Room 400, 135 West Wells Street, Milwaukee, Wis. 53203.
Officer In Charge, USCG Marine Inspection, Room 205, Federal Building, Oswego, N.Y. 13126.
Officer In Charge, USCG Marine Inspection, Municipal Building, St. Ignace, Mich. 49781.
Officer In Charge, USCG Marine Inspection, Federal Building, Room 5101, 234 Summit Street, Toledo, Ohio 43604.
Officer In Charge, USCG Marine Inspection, (Los Angeles-Long Beach), Center Building, 750 North Broad Avenue, Wilmington, Calif. 90744.
Officer In Charge, USCG Marine Inspection, Station B, Box 2029, San Francisco, Calif. 94126.
Officer In Charge, USCG Marine Inspection, Room 12A, Broadway Pier, San Diego, Calif. 92101.
Officer In Charge, USCG Marine Inspection, Room 202, Lincoln Building, 208 Southwest Fifth Avenue, Portland, Oreg. 97204.
Officer In Charge, USCG Marine Inspection, 618 Second Avenue, Seattle, Wash. 98104.
Officer In Charge, USCG Marine Inspection, Post Office Box 157, FPO, San Francisco 96630.
Officer In Charge, USCG Marine Inspection, 610 Fort Street, Honolulu, Hawaii, 96813.
Officer In Charge, USCG Marine Inspection, Post Office Box 1286, Anchorage, Alaska 99501.
Officer In Charge, USCG Marine Inspection, Post Office Box 3-5000, Juneau, Alaska 99801.
Officer In Charge, USCG Marine Inspection, Post Office Box 1719, Ketchikan, Alaska 99901.

5. *Reconsideration of determinations not to disclose records.* Any person to whom a record is not made available within a reasonable time after his request, and any person who has been notified that a record he has requested cannot be disclosed, may apply, in writing, to the Commandant, U.S. Coast Guard, for reconsideration of that request. The decision of the Commandant is administratively final.

Appendix C—Federal Aviation Administration

1. *General.* This appendix describes the document inspection facilities of the Federal Aviation Administration, the kinds of records that are available for public inspection and copying at these facilities, and the procedures by which members of the public may make requests for identifiable records.

2. *Document inspection facilities.* Document inspection facilities are maintained for FAA Headquarters, each FAA regional office, the Aeronautical Center, and the National Aviation Facilities Experimental Center. The document inspection facility for the European Region is located at Headquarters. These facilities are open to the public during regular working hours at the following addresses:

FAA Headquarters, 800 Independence Avenue SW., Washington, D.C. 20590.
Alaskan Region, 632 Sixth Avenue, Anchorage, Alaska 99501.
Central Region, 601 East 12th Street, Kansas City, Mo. 64106.
Southern Region, 3400 Whipple Street, East Point, Ga. (Mailing address: Post Office Box 20636, Atlanta, Ga. 30320.)
Southwest Region, 4400 Blue Mound Road (Mailing address: Post Office Box 1689), Fort Worth, Tex. 76101.
Western Region, 5651 West Manchester Avenue, (Mailing address: Post Office Box 90007), Los Angeles, Calif. 90009.
Eastern Region, JFK International Airport, New York, N.Y. 11430.
Pacific Region, 1833 Kalakaua Avenue (Mailing address: Post Office Box 4009), Honolulu, Hawaii 96812.
Aeronautical Center, 6400 South MacArthur Boulevard (Mailing address: Post Office Box 25082), Oklahoma City, Okla. 73125.
National Aviation Facilities Experimental Center, Tilton Road, Route 563 (near Pomona, N.J.) (Mailing address: Atlantic City, N.J. 08405).

3. *Records available at document inspection facilities.* The records described in subpart D of this part are located at the document inspection facility for the organizational unit concerned. An index of the records available at each facility is maintained at that facility. The records and the index may be inspected, at the facility, without charge. Copies of these records may be obtained upon payment of the fee prescribed in Subpart H of this part. The following table illustrates the types of records available and where they are located.

a. Final opinions and orders.

(1) Issue, amendment, suspension, or revocation of certificates, permits, authorizations, approvals.

(a) Airman certificates and ratings.
Aeronautical Center:
Pilots.
Flight Instructors.
Flight Navigators.
Flight Engineers.
Aircraft Dispatchers.
Mechanics.
Repairmen.
Air Traffic Control Operators.
Parachute Riggers.

(b) Aircraft Certificates—Registration Certificates: Aeronautical Center.

The facility for the Region within which the action was taken:
Type Certificates.
Production Certificates.
Airworthiness Certificates.
Ferry Permits.
Special Flight Authorizations.

(c) Air Carrier and Air Agency Certificates.

The facility for the Region within which the action was taken:
Air Carrier Operating Certificates.
Commercial Operators Certificates.
Agricultural Aircraft Operator Certificates.
Repair Station Certificates.
Parachute Loft Certificates.
Pilot School Certificates.
Mechanic School Certificates.
Ground Instructor Certificates.

(d) Designations of Representatives of the Administrator: Headquarters.

(e) Approvals of navigational facilities under FAR Part 171: The facility for the Region within which the approval was issued.

(2) Federal-aid Airport Grants: The facility for the Region within which the grant was made.

(3) Penalties.

(a) Compromise of Civil Penalties Seizure of Aircraft: The facility for the Region within which the action is taken.

(b) Civil Rights Violations Determinations under Title VI Civil Rights Act of 1964: Headquarters.

b. Statements of Policy and Interpretations.

(1) Advisory Circulars: All facilities.

(2) Individual Interpretations: The facility for the organizational unit within which the interpretation was issued.

(3) Legal Interpretations: All facilities.

(4) Unpublished Policy Statements: The facility for the organizational unit within which the policy statement was issued.

c. Administrative Staff Manuals and Instructions to Staff that affect the public: The facility for the organizational unit within which the manual or instruction was issued.

4. *Requests for identifiable records under Subpart E of this part.* Each person desiring to inspect a record, or to obtain a copy thereof, must submit his request in writing to the Manager, Headquarters Operations, at Headquarters, or the Director of the appropriate Region or Center, depending on where the record is located. If the location of the record is not known, the request may be submitted to Manager, Headquarters Operations. Each request must be accompanied by the appropriate fee prescribed in Subpart H of this part.

5. *Reconsideration of determinations not to disclose records.* Any person to whom a record is not made available within a reasonable time after his request, and any person who has been notified that a record he has requested cannot be disclosed, may apply, in writing, to the Director, Information Services at FAA Headquarters, for reconsideration of that request. The decision of the Director, Information Services is administratively final.

Appendix D—Federal Highway Administration

1. *General.* This appendix describes the document inspection facilities of the Federal Highway Administration (FHWA), the kinds of records that are available for public inspection and copying at these facilities, and the procedures by which members of the public may make requests for identifiable records.

2. *Document inspection facilities.* Document inspection facilities are maintained for FHWA Headquarters, each FHWA regional office, and each Division Engineer Office of the Bureau of Public Roads. These facilities are open to the public during regular working hours at the following addresses:

Washington Headquarters:
Federal Highway Administration, Office of the Records Officer, 1717 H Street NW., Washington, D.C. 20591.

Regional Offices

Regional Federal Highway Administrator, Region 1, Federal Highway Administration, 4 Normanskill Boulevard, Delmar, N.Y. 12054.
Regional Federal Highway Administrator, Region 2, Federal Highway Administration, 1610 Oak Hill Avenue, Hagerstown, Md. 21740.
Regional Federal Highway Administrator, Region 3, Federal Highway Administration, Suite 200, 1720 Peachtree Road NW., Atlanta, Ga. 30309.
Regional Federal Highway Administrator, Region 4, Federal Highway Administration, 18209 Dixie Highway, Homewood, Ill. 60430.
Regional Federal Highway Administrator, Region 5, Federal Highway Administration, Post Office Box 15177, Civic Center, Federal Building, 911 Walnut Street, Kansas City, Mo. 64106.
Regional Federal Highway Administrator, Region 6, Federal Highway Administration, 819 Taylor Street, Fort Worth, Tex. 76102.

Regional Federal Highway Administrator, Region 7, Federal Highway Administration, 450 Golden Gate Avenue, Box 36096, San Francisco, Calif. 94102.
Regional Federal Highway Administrator, Region 8, Federal Highway Administration, 222 Southwest Morrison Street, Portland, Oreg. 97204.
Regional Federal Highway Administrator, Region 9, Federal Highway Administration, Room 242, Building 40, Denver Federal Center, Denver, Colo. 80225.
Regional Federal Highway Administrator, Region 10, Federal Highway Administration, Post Office Box 1648, Federal Building, Juneau, Alaska 99801.
Regional Engineer, Region 15, Federal Highway Administration, 1000 North Glebe Road, Arlington, Va. 22201.

DIVISION OFFICE

Division Engineer, Bureau of Public Roads, 441 High Street, Montgomery, Ala. 36104.
Division Engineer, Bureau of Public Roads, 230 North First Avenue, Room 5443, Phoenix, Ariz. 85025.
Division Engineer, Bureau of Public Roads, 700 West Capitol Avenue, Little Rock, Ark. 72201.
Division Engineer, Bureau of Public Roads, Eighth and I Streets, Sacramento, Calif. 95809.
Division Engineer, Bureau of Public Roads, Room 267, Building 40, Denver Federal Center, Denver, Colo. 80225.
Division Engineer, Bureau of Public Roads, 990 Wethersfield Avenue, Hartford, Conn. 06114.
Division Engineer, Bureau of Public Roads, Arden Building, 11 North Street, Dover, Del. 19901.
Division Engineer, Bureau of Public Roads, 425 13th Street NW., Room 1248, Washington, D.C. 20004.
Division Engineer, Bureau of Public Roads, Post Office Box 1079, 222 West Pensacola Street, Tallahassee, Fla. 32302.
Division Engineer, Bureau of Public Roads, 900 Peachtree Street NE., Atlanta, Ga. 30309.
Division Engineer, Bureau of Public Roads, 336 Federal Building, Post Office Box 120, Honolulu, Hawaii 96810.
Division Engineer, Bureau of Public Roads, 3010 West State Street, Post Office Box 7527, Boise, Idaho 83707.
Division Engineer, Bureau of Public Roads, 200 West Washington Street, Springfield, Ill. 62705.
Division Engineer, Bureau of Public Roads, Room 707, I.S.T.A. Center, 150 West Market Street, Indianapolis, Ind. 46204.
Division Engineer, Bureau of Public Roads, Sixth and Kellogg Streets, Ames, Iowa 50010.
Division Engineer, Bureau of Public Roads, 512 West Sixth Street, Topeka, Kans. 66603.
Division Engineer, Bureau of Public Roads, 151 Elkhorn Court, Post Office Box 536, Frankfort, Ky. 40601.
Division Engineer, Bureau of Public Roads, 3444 Convention Street, Baton Rouge, La. 70806.
Division Engineer, Bureau of Public Roads, 40 Western Avenue, Augusta, Maine 04330.
Division Engineer, Bureau of Public Roads, 1114 Cathedral Street, Baltimore, Md. 21201.
Division Engineer, Bureau of Public Roads, JFK Federal Building, Room 612, Boston, Mass. 02203.
Division Engineer, Bureau of Public Roads, Room 211, Federal Building, Post Office Box 147, Lansing, Mich. 48901.
Division Engineer, Bureau of Public Roads, 461 Race Street, St. Paul, Minn. 55103.
Division Engineer, Bureau of Public Roads, 301 Building, 301 North Lamar Street, Jackson, Miss. 39202.
Division Engineer, Bureau of Public Roads, Highway 50 West, Post Office Box 148, Jefferson City, Mo. 65101.
Division Engineer, Bureau of Public Roads, 11th and Fee Streets, Helena, Mont. 59601. 59601.
Division Engineer, Bureau of Public Roads, 300 South 17th Street, Lincoln, Nebr. 68501.
Division Engineer, Bureau of Public Roads, 222 East Washington Street, Carson City, Nev. 89701.
Division Engineer, Bureau of Public Roads, Federal Building, 55 Pleasant Street, Concord, N.H. 03301.
Division Engineer, Bureau of Public Roads, 25 Scotch Road, Post Office Box 211, Trenton, N.J. 08628.
Division Engineer, Bureau of Public Roads, 117 U.S. Courthouse, Santa Fe, N. Mex. 87501.
Division Engineer, Bureau of Public Roads, 12-14 Russell Road, Albany, N.Y. 12205.
Division Engineer, Bureau of Public Roads, Phillips Building, 401 Oberlin Road, Raleigh, N.C. 27605.
Division Engineer, Bureau of Public Roads, New Federal Building, Post Office Box 1755, Bismarck, N. Dak. 58502.
Division Engineer, Bureau of Public Roads, 700 Bryden Road, Columbus, Ohio 43215.
Division Engineer, Bureau of Public Roads, 2409 North Broadway Street, Oklahoma City, Okla. 73103.
Division Engineer, Bureau of Public Roads, 477 Cottage Street NE., Salem, Oreg. 97301.
Division Engineer, Bureau of Public Roads, 123-127 Walnut Street, Harrisburg, Pa. 17101.
Division Engineer, Bureau of Public Roads, 605 Condado Avenue, Santurce, P.R. 00907.
Division Engineer, Bureau of Public Roads, 40 Fountain Street, Providence, R.I. 02903.
Division Engineer, Bureau of Public Roads, 1813 Main Street, Room 201, Columbia, S.C. 29201.
Division Engineer, Bureau of Public Roads, Federal Office Building, Post Office Box 700, Pierre, S. Dak. 57501.
Division Engineer, Bureau of Public Roads, 226 Capitol Boulevard Building, Room 414, Nashville, Tenn. 37219.
Division Engineer, Bureau of Public Roads, 300 East Eighth Street, Austin, Tex. 78701.
Division Engineer, Bureau of Public Roads, 125 South State Street, Salt Lake City, Utah 84111.
Division Engineer, Bureau of Public Roads, Federal Building, Post Office Box 568, Montpelier, Vt. 05602.
Division Engineer, Bureau of Public Roads, 400 North Eighth Street, Richmond, Va. 23219.
Division Engineer, Bureau of Public Roads, 1007 South Washington Street, Olympia, Wash. 98501.
Division Engineer, Bureau of Public Roads, 500 Quarrier Street, Charleston, W. Va. 25301.
Division Engineer, Bureau of Public Roads, 139 West Wilson Street, Madison, Wis. 53701.
Division Engineer, Bureau of Public Roads, 2120 Capitol, Post Office Box 1127, Cheyenne, Wyo. 82001.

3. *Records available at document inspection facilities.* (a) The following records are available at the FHWA headquarters document inspection facility.

(1) Final opinions (including concurring and dissenting opinions, if any) and orders made in the adjudication of cases and issued from within the Federal Highway Administration.

(2) Any policy or interpretation issued within the Federal Highway Administration, including any policy or interpretation concerning a particular factual situation, if that policy or interpretation can reasonably be expected to have precedential value in any case involving a member of the public in a similar situation.

(b) The following records are available at all FHWA document inspection facilities:

FHWA Orders. These Orders are issued by Federal Highway Administration and contain policy, instructions, and general procedures.

FHWA Manuals. These Manuals are issued by Federal Highway Administration and contain more detailed procedures relating to policies and program responsibilities, and include the following:

(1) Administrative Manual (issued by Office of Adm.).

(2) Audit Manual (issued by Audits & Investigation).

(3) Labor Compliance Manual (issued by General Counsel).

FHWA Notices. These Notices are issued by Federal Highway Administration and transmit one-time or short-term announcements or temporary directives (90 days or less).

Bureau of Public Roads Policy and Procedure Memorandums (PPM's). PPM's state official policies and provide procedural direction.

Bureau of Public Roads Administrative Memorandums (AM's). AM's state official administrative policies and procedures within the Bureau.

Bureau of Public Roads Manuals. These Manuals contain much more detail relating to procedures, policy, and program responsibilities. The following manuals are utilized in Public Roads:

(1) Highway Planning Program Manual.

(2) Construction Manual.

(3) Emergency Planning and Operations Manual.

Bureau of Public Roads Instructional Memorandums (IM's). IM's are temporary in nature. They are used by the Bureau to state official policies and procedures, until such time as they can be converted to a permanent type directive series, such as a PPM.

Bureau of Public Roads Circular Memorandums. These memorandums are temporary issuances used to transmit a one-time or short-term announcement (90 days or less).

NHSB Orders. These Orders contain policy, instructions, and general procedures.

NHSB Manuals. These Manuals, issued by National Highway Safety Bureau, contain more detailed procedures relating to policies and program responsibilities.

Motor Vehicle Safety Standards. These standards, issued by National Highway Safety Bureau, apply to new motor vehicles and equipment thereon.

Highway Safety Standards. These Standards, issued by National Highway Safety Bureau, apply to State highway safety programs.

NHSB Notices. These Notices, issued by National Highway Safety Bureau, are temporary issuances transmitting one-time or short-term announcements or temporary directives (90 days or less).

Motor Carrier Safety Operations Manuals. These Manuals, issued by Bureau of Motor Carrier Safety, contain details of compliance programs, accident investigations, enforcement programs, and interpretations.

Motor Carrier Safety Administrative Rulings.

Motor Carrier Safety Waivers from Regulations.

4. *Requests for identifiable records under Subpart E of this part.* Each person desiring to inspect a record, or to obtain a copy thereof, may submit his request, in writing, to any FHWA document inspection facility. If that facility does not have custody of the record, it will forward the request to the appropriate office. Each request must be accompanied by the appropriate fee prescribed in Subpart H of this part.

5. *Reconsideration of determinations not to disclose records.* Any person to whom a record is not made available within a reasonable time after his request, and any person who has been notified that a record he has requested cannot be disclosed, may apply, in writing, to the Director of Administration, Federal Highway Administration, Donohoe Building, 400 Sixth Street SW., Washington, D.C. 20591, for reconsideration of his request. The decision of the Director of Administration is administratively final.

APPENDIX E—FEDERAL RAILROAD ADMINISTRATION

1. *General.* This appendix describes the document inspection facility of the Federal Railroad Administration, the kinds of records that are available for public inspection and copying at that facility and the procedures by which members of the public may make requests for identifiable records.

2. *Document inspection facility.* The document inspection facility is maintained at the headquarters of the Federal Railroad Administration, Donohoe Building, 400 Sixth Street SW., Washington, D.C. 20591. This facility is open to the public during regular working hours.

3. *Records available at the document inspection facility.* The following records are maintained at the document inspection facility:

(a) Final opinions (including concurring and dissenting opinions, if any) and orders made in the adjudication of cases and issued from within the Federal Railroad Administration. Included are opinions and orders issued under the Safety Appliance Acts, Hours of Service Act, Signal Inspection Act, Locomotive Inspection Act, and Accident Reports Act.

(b) Any policy or interpretation issued within the Federal Railroad Administration, including any policy or interpretation concerning a particular factual situation, if that policy or interpretation can reasonably be expected to have precedential value in any case involving a member of the public in a similar situation.

(c) Any administrative staff manual or instruction to staff, issued from within the Federal Railroad Administration, that affects any member of the public, including the prescribing of any standard, procedure, or policy that, when implemented, requires or limits any action of any member of the public or prescribes the manner of performance of any activity by any member of the public.

(d) Public Notice of pending administrative actions.

(e) Bureau of Railroad Safety Annual Report.

(f) Accident Bulletin.

(g) Rail-Highway Grade-Crossing Bulletin.

(h) Locomotive Specifications.

(i) An index to the material described in (a) through (h).

The records and the index may be inspected, at the facility, without charge. Copies of records may be obtained upon payment of the fee prescribed in Subpart H of this part.

4. *Requests for identifiable records under Subpart E of this part.* Each person desiring to inspect a record, or to obtain a copy thereof, must submit his request in writing to the Administrative Services Officer, Federal Railroad Administration, Room 216–C, Donohoe Building, 400 Sixth Street SW., Washington, D.C. 20591. Each request must be accompanied by the appropriate fee prescribed in Subpart H of this part.

APPENDIX F—ST. LAWRENCE SEAWAY DEVELOPMENT CORPORATION

1. *General.* This appendix describes the document inspection facility of the St. Lawrence Seaway Development Corporation, the kinds of records that are available for public inspection and copying at that facility, and the procedures by which members of the public may make requests for identifiable records.

2. *Document inspection facility.* The document inspection facility of the St. Lawrence Seaway Development Corporation is maintained at its headquarters building at Seaway Circle, Massena, N.Y. This facility is open to the public during regular working hours.

3. *Records available at the document inspection facility.* The following records are located at the document inspection facility:

(a) Final opinions (including concurring and dissenting opinions, if any) and orders made in the adjudication of cases and issued from within the St. Lawrence Seaway Development Corporation.

(b) Any policy or interpretation issued within the St. Lawrence Seaway Development Corporation, including any policy or interpretation concerning a particular factual situation, if that policy or interpretation can reasonably be expected to have precedential value in any case involving a member of the public in a similar situation.

(c) Any administrative staff manual or instruction to staff, issued from within the St. Lawrence Seaway Development Corporation, that affects any member of the public, including the prescribing of any standard, procedure, or policy that, when implemented, requires or limits any action of any member of the public or prescribes the manner of performance of any activity by any member of the public.

(d) An index to the material described in (a) through (c).

The records and the index may be inspected, at the facility, without charge. Copies of records may be obtained upon payment of the fee prescribed in Subpart H of this part.

4. *Requests for identifiable records under Subpart E of this part.* Each person desiring to inspect a record, or to obtain a copy thereof, must submit his request in writing to the Public Information Officer, St. Lawrence Seaway Development Corporation, Seaway Circle, Massena, N.Y. 13662. Each request must be accompanied by the appropriate fee prescribed in Subpart H of this part. The decision of the Public Information Officer to withhold a record is administratively final.

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